RESOLUTION NO. 33-2026

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF SAUSALITO, SUBMITTING TO THE VOTERS OF THE CITY OF SAUSALITO THE ARTS, INDUSTRIAL & MARITIME PRESERVATION AND IMPROVEMENT INITIATIVE TO BE VOTED ON AT THE NOVEMBER 3, 2026 GENERAL MUNICIPAL ELECTION

WHEREAS, on May 7, 2026, proponents filed an initiative petition with the City Clerk titled the Arts, Industrial & Maritime Preservation and Improvement Initiative; and

WHEREAS, the City provided the petition to the County Registrar of Voters for signature verification, which concluded on May 29, 2026 and determined that the proponents have gather enough signatures to qualify the proposed measure for the ballot; and

WHEREAS, Elections Code section 9215 and applicable case law require the placement of the initiative measure on the ballot.

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Sausalito as follows:

Section 1. Recitals. The City Council hereby finds and determines that the foregoing recitals are true and correct, are incorporated herein and by this reference made an operative part hereof.

Section 2. Environmental Review. This action is not subject to CEQA, because the placement of the measure on the ballot is not a discretionary act of the City of Sausalito. See *DeVita v. County of Napa* (1995) 9 Cal.4th 763, 793-95; *Tuolumne Jobs and Small Business Alliance v. Superior Court* (2014) 59 Cal. 4th 1029, 1040-1043.

Section 3. Ballot Measure Question. Pursuant to authority in California Elections Code sections 9214 and 9215, the City Council does hereby order that the proposed measure set forth in Exhibit "A", be presented to the qualified electors on the general municipal election to be held in the City of Sausalito on **Tuesday, November 3, 2026,** which measure is incorporated by this reference as if fully set forth herein. The City Council does hereby order that the ballot label for the measure set forth in Exhibit "A" shall be presented and printed upon the ballot submitted to the qualified voters in substantially the following form:

Shall the measure named the "Arts, Industrial & Maritime Preservation and Improvement Initiative," which revises zoning standards in the I and W zoning district to increase permitted height, building coverage limits and floor area ratio and allow certain new land uses; repeals the Marinship Specific Plan; revises Ordinance No. 1022 to allow future city council modifications to zoning outside the Downtown Historic District; and modifies various portions of the Sausalito General Plan, be adopted?	**YES**	
	NO	

Section 4. Impartial Analysis; Ballot Arguments. The City Clerk is hereby directed to transmit a copy of the measure set forth in Section 3 above to the City Attorney, who shall

prepare an impartial analysis of the measure in accordance with Section 9280 of the Elections Code. The City Council does not authorize the City Council as a body, nor any individual member of the Council, to file a written argument or any rebuttal argument for or against the measure. In addition, the City Clerk is directed to make the Ordinance available to any voter upon request. The deadline for submission of ballot arguments shall be August 17, 2026 at 5:00 p.m. for primary arguments and August 24, 2026 at 5:00 p.m. for rebuttal arguments.

Section 5. Consolidation. The City Council requests that the Board of Supervisors of Marin County consolidate the election on the proposed measure with any other election to be held the same day and the Registrar of Voters of Marin County conduct the election in the manner provided by law including, without limitation, Elections Code Section 10418. Pursuant to Election Code Section 10400 et seq., the City Clerk is directed to file a certified copy of this Resolution with the Board of Supervisors of Marin County and the Registrar of Voters of Marin County.

Section 6. State Election Law. In all particulars not recited in this resolution, the election shall be held and conducted as provided by law for holding municipal elections.

Section 7. Clerk Authorized to Take All Necessary Acts. Notice of the time and place of the election is hereby given. Additionally, the City Clerk is authorized, instructed and directed to give all required notices under the Elections Code, and procure and furnish any and all official ballots, notices, printed matter and all supplies, equipment and paraphernalia that may be necessary in order to properly and lawfully conduct the election.

Section 8. Appropriations Authorized. The City Finance Director is hereby authorized and directed to appropriate the necessary funds to pay for the City's cost of placing the measure on the election ballot.

Section 9. Severability. The provisions of this Resolution are severable and if any provision of this Resolution is held invalid, that provision shall be severed from the Resolution and the remainder of this Resolution shall continue in full force and effect, and not be affected by such invalidity.

Section 10. Effective. This Resolution shall become effective upon its adoption. The City Clerk shall certify to the adoption of this Resolution.

PASSED, APPROVED AND ADOPTED this 7th day of July, 2026:

I, Deirdre Coyne, Deputy City Clerk of the City of Sausalito, California do hereby certify that the foregoing Resolution No.33-2026 was duly adopted and passed at a regular meeting of the City Council on the 7th day of July, 2026, by the following vote:

AYES: **COX, HOFFMAN, SOBIESKI, BLAUSTEIN, WOODSIDE**

NOES:

ABSENT:

ABSTAIN:

Steven Woodside
Mayor

Deirdre Coyne
Deputy City Clerk

STATE OF CALIFORNIA)
COUNTY OF MARIN) **CERTIFIED COPY OF RESOLUTION**
CITY OF SAUSALITO)

I, Deirdre Coyne, Deputy City Clerk for the City of Sausalito, County of Marin, State of California, do hereby certify that **Resolution No. 33-2026,** the original copy of which is attached hereto, was adopted on the 7th day of July 2026.

AYES: COX, HOFFMAN, SOBIESKI, BLAUSTEIN, WOODSIDE
NOES:
ABSENT:
ABSTAIN:

The Resolution is effective as of the 7th day of July 2026.

The undersigned Deputy City Clerk of the City of Sausalito there before named does hereby attest and certify that the foregoing is a true and full copy of the Resolution of the City Council of the City of Sausalito adopted at a duly convened meeting on the date above-mentioned, which has not been altered, amended, or repealed.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed the city seal of the City of Sausalito.

Deirdre Coyne
Deputy City Clerk

Arts, Industrial & Maritime Preservation and Improvement Initiative ("AIM Initiative")

SECTION 1. Title.

This measure may be cited as the "Arts, Industrial & Maritime Preservation and Improvement Initiative" or the "AIM Initiative." Additions to existing law are underlined; deletions are shown with ~~strike-throughs~~ or cross-outs. Existing law is indicated by unmodified text.

SECTION 2. Findings and Purposes.

The People of Sausalito hereby find and declare:

A. Sausalito's Waterfront and Industrial Zone, also known as the "Marinship," is one of California's great working waterfronts. Liberty Ships were once built there and now artists, boat builders and skilled trades work there together side-by-side.

B. The Marinship's infrastructure is decaying, streets are flooding, and fields sit empty as a result of a pair of well-intentioned laws from the 1980s: Ordinance 1022, also known as the "Fair Traffic Limits Initiative," and the Marinship Specific Plan.

C. Even though the original intent of Ordinance 1022 was to only cover the Marinship area, ambiguities in this law have resulted in a prohibition on the City making any changes to permitted uses, floor area ratios, zoning, setbacks, variances and development agreements on properties located in all commercial zones in the City.

D. Even though the City Council passed resolutions in an attempt to limit the scope of Ordinance 1022 to the Marinship area, City Attorneys have concluded that Ordinance 1022 applies to all commercial zones in the City and that the City Council is prohibited from making routine land use decisions in these areas.

E. The result of the ambiguities in this 40-year-old law is that any change to how a property is used and any proposed new project in the commercial areas of the City requires a vote of the people. The rigidity created by Ordinance 1022 prevents waterfront businesses from growing, buildings from being updated, and infrastructure from being modernized.

F. Sausalito's unique and valuable arts, industrial and maritime heritage should not be held back by a 40-year-old law.

G. This measure is intended to allow for carefully planned, compatible development of the Marinship which is respectful of the community's scale and character, which will breathe new life into the waterfront, and which will generate the revenue needed for the area to thrive. It will revitalize the waterfront by allowing businesses to regularly sell their wares to the public, by opening underutilized parcels to new and expanded workspaces for artists, makers, maritime enterprises and light industrial uses, and by allowing complementary businesses such as coffee shops, cafes and galleries.

H. This measure is intended to still require compliance with hearing procedures, Brown Act open meetings law, the California Environmental Quality Act, laws regarding adoption of general plans, etc. for changes and projects in the commercial and industrial zones, while returning routine land-use decisions in these areas to City government with no more Citywide votes.

I. This measure is not intended to change how land use decisions are made in the Downtown Historic District, where changes of use will continue to require voter approval.

SECTION 3. Amendments to Ordinance No. 1022.

Ordinance No. 1022, an uncodified provision of Sausalito law, is hereby amended as follows.

ORDINANCE NO. 1022

SECTION 1: AMENDMENT OF INITIATIVE ORDINANCE 1022 - MODIFICATION OF TITLE 10

10.200.1 FINDINGS AND PURPOSE

The Ppeople of the City of Sausalito ~~hereby~~ find and declare that it is in the best interests of the present and future residents of the City ~~to reduce the increase in automobile traffic generated by new development in the City's commercial and Iindustrial and Waterfront zones and~~ to amend overly restrictive land use rules to allow working businesses to thrive in the W and I zones. For example, bakeries should be permitted to legally sell fresh bread to the public, artists to sell their art directly from their studios, and fabricators to sell their goods from their workshops easily and on a regular basis. Land uses that are currently prohibited in the Marinship, such as new galleries and coffee shops, should be allowed to open their doors as complementary uses.~~preserve the maritime character of those areas by reducing permissible density in commercial and industrial areas~~.

Beyond existing businesses, this measure aims to foster the creation of new workspaces for artists, makers, maritime enterprises, and light industrial users, bringing new creative and productive energy to underutilized parcels.

Furthermore, in recognition the urgent need to mitigate sea-level rise, the demand to repair decaying storm drains and other critical infrastructure, and the significant economic and social benefits of a waterfront that integrates arts, industrial, maritime, liveaboard, houseboat, and public uses, the People find and declare that it is appropriate for the City to engage in land-use planning along the waterfront that preserves these uses while enabling compatible economic activity.

Carefully planned development can generate new revenue without raising taxes to fund essential infrastructure enhancements, protect our shoreline, and secure the general welfare of all

residents. To achieve these goals while respecting our community's scale, and preserving the community's industrial and creative character, this measure amends Initiative Ordinance No.1022, modernizes permitted uses in the ~~This reduction is necessary to protect property rights and to ensure orderly development in commercial and~~ Iindustrial and Waterfront zones, repeals the Marinship Specific Plan, establishes a 47-foot height limit in the Industrial District, and amends the General Plan and Municipal Code for consistency. To the extent practical, housing required under state housing mandates should prioritize unused parcels before building in parks and adjacent park infrastructure, and is compatible in scale, composition, and design with the art, industrial, and maritime character. Finally, the State-approved Downtown Historic District as designated and/or depicted on the Sausalito zoning map as of January 1, 2026, is strictly excluded from this measure, ensuring its core historic character remains untouched. ~~in the City in a manner that will not generate excessive traffic, air or noise pollution, nor diminish the public health and welfare.~~

10.200.2 APPLICATION OF STANDARDS

~~It is the intention of the people of Sausalito that the following policies govern the implementation of~~The following shall govern density standards and Maximum Floor Area ratios in the City except that these provisions shall not apply to the State approved Downtown Historic District as designated and/or depicted on the Sausalito zoning map as of January 1, 2026.

(a) Existing uses as of March 13, 2026 ~~which are made~~shall be considered N~~n~~on-conforming ~~by this amendment shall be considered Continued Existing~~ Uses and Structures under the provisions of Section 10.62~~110~~ of this Code.

~~(b) If on December 1, 1984, a parcel exceeds the Maximum Floor Area Ratio permitted by this amendment, that parcel may not be split into additional parcels in order to provide additional buildable area.~~

(b~~e~~) The zoning map of Sausalito effective as ~~amended July 15, 1980~~of March 13th, 2026 shall govern the zoning categories together with changes authorized by this measure or other changes pursuant to 10.200.2(d). ~~No site may be redesignated to any other zoning classification which would allow greater density or Floor Area Ratio.~~

~~(d) Where a parcel is already developed, no conversion or change in use may be permitted when that conversion or change in use will result in increased commercial usage or density.~~

(c~~e~~) In the CR zone, residential uses existing as of December 1, 1984, may not be converted into any other uses.

(d~~f~~) Except in the State approved Downtown Historic District as designated and/or depicted on the Sausalito zoning map as of January 1, 2026, future changes in zoning, permitted uses and land use regulations may be made in compliance with the administrative and legislative hearing procedures in the Sausalito Municipal Code, the California Brown Act open meetings law, the

California Environmental Quality Act and State law regarding adoption of general plans. Nothing herein shall abrogate the power of the voters found in Article XI of the California Constitution to adopt laws by Initiative or repeal changes in local law by Referendum. ~~The limits set out in Maximum Floor Area Ratio Table No. 2 may not be exceeded by Variance, Conditional Use, Planned Unit Development or any other device.~~

(e) Any changes in zoning, permitted uses and land use regulations in the State approved Downtown Historic District as designated and/or depicted on the Sausalito zoning map as of January 1, 2026 shall still require a vote of the People of the City of Sausalito.

~~The following Table is amended:~~

Table No. 2

BASIC AREA, OPEN SPACE AND BULK REGULATIONS
COMMERCIAL AND INDUSTRIAL DISTRICTS

	(Sec. 10.201)	(Sec. 10.202) REQUIRED YARDS WHEN ADJACENT TO ANY "R" OR "H" DISTRICT**		(Sec. 10.202)	(Sec. 10.203)	(Sec. 10.203)	
DISTRICT	REQUIRED PARCEL AREA PER DWELLING UNIT – SQ. FT.	Rear, Least Depth	Side, Least Width	HEIGHT LIMIT	BUILDING COVERAGE LIMIT %	MAXIMUM FLOOR AREA RATIO	
CC	1,500	15'	10'	32 ft.	100	1.3~~0~~	
CN	1,500	15'	10'	32 ft.	70	.50	
CR	1,500	15'	10'	32 ft.	70	1.00	
CM	N/A	20'	*	32 ft.	50	.35	
CS	N/A	20'	*	32 ft.	50	.2~~0~~	
I	N/A	15~~30~~'	15'*	47~~32~~ ft.	75~~0~~	3.0~~.4~~	** *
CW	N/A	20'	*	32 ft.	30	.30	** *

W	N/A	15'	15'~~*~~	32 ft.**	70~~30~~	3.0~~.30~~‡	** ~~*~~

NA - Not Applicable

* Side setback = 1/2 height of building but not less than 5'~~.~~

** Height limit may be extended to up to 47 feet for Marine Commercial Service or Marine Industrial uses with a use permit issued pursuant to Chapter 10.60 of the Sausalito Municipal Code~~Required only along parcel lines abutting on such districts.~~

‡ No new or additional use may displace the uses at ICB Building or shipways at the historic Arques Shipyard.

~~Amended by: Ord. 923, 1/3/78, Ord. 942, 7/18/78, Ord. 990, 2/2/82~~

~~**SECTION 2**~~

~~If any part of this initiative is held invalid by a court of law, or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect the other parts of the initiative or applications of this initiative which can be given effect without the invalid part or application, and to this end the sections of this initiative are separable.~~

~~PASSED AND ADOPTED as a result of a majority vote of the electors of the City of Sausalito at a Special Municipal Election held in the City of Sausalito on June 4, 1985.~~

~~_____~~

~~City Clerk of the City of Sausalito~~

SECTION 4. Amendments to Municipal Code.

Chapters 10.10, 10.12, 10.24, 10.26, 10.28, 10.40, 10.44, 10.52, 10.56 and 10.88 of the Municipal Code are hereby amended as follows:

A. Chapter 10.10 (Adoption of Zoning Ordinance) is hereby amended as follows:

Section 10.10.030 Title and purpose.

This title shall be known and may be cited as the City of Sausalito Zoning Ordinance, Title 10 of the Sausalito Municipal Code. This title is adopted to promote and protect the public health, safety, peace, morals, comfort, convenience and general welfare. The Zoning Ordinance is also intended to promote the following more specific purposes:

A. To implement and promote the goals and policies of the Sausalito General Plan ~~and the marinship specific plan,~~ and to guide, control and regulate the future growth and development of the City of Sausalito in a manner consistent with the ~~plans~~ General Plan and AIM Initiative;

B. To protect the established character and stability of private and public areas within the City, and assure orderly and beneficial development;

C. To manage the distribution of population consistent with, and based on, the availability of natural resources, public facilities and services necessary to support a growing population;

D. To reduce or remove negative impacts caused by the inappropriate location, use or design of buildings and land uses in relation to natural and built hazards, and the local circulation system;

E. To classify and regulate the use of land, buildings and structures;

F. To establish appropriate minimum regulations and standards for the development of land;

G. To preserve and enhance the unique visual and natural qualities of the City of Sausalito;

H. To balance view protection with property rights for all involved parties;

I. To provide adequate light, air, space, fire safety and privacy between buildings and convenient access to property;

J. To minimize erosion and silting of drains and drainage channels;

K. To attain the physical, social, and economic advantages resulting from comprehensive and orderly land use and resource planning;

L. To provide adequate, safe and effective off-street parking and loading facilities;

M. To provide adequate personal and public safety access to property;

N. To foster harmonious and workable relationships among land uses;

O. To promote a safe, effective traffic circulation system and maintain acceptable local circulation system operating conditions;

P. To promote design quality in all development;

Q. To preserve and enhance the City's existing historic, architectural and cultural resources;

R. To preserve and enhance natural resources and key visual features in the community, including the waterfront and hillsides;

S. To coordinate the service demands of new development with the capacities of existing streets, utilities and public services;

T. To protect and conserve Sausalito's existing housing stock;

U. To promote housing development that provides a variety of residential densities, occupancy types and locations;

V. To provide for effective citizen participation in decision-making;

W. To promote a balance of commercial and residential development; and

X. To preserve and encourage resident-serving commercial uses.

B. Chapter 10.12 (Organization, Applicability and Interpretation) is hereby amended as follows:

SECTION 10.12.010. Organization

This title, known as the Zoning Ordinance, is organized as follows:

* * *

B. Division II, Zoning Districts Regulations, establishes the land uses allowed in, and development standards for, each zoning district, as follows:

* * *

4. Chapter 10.26 SMC, Industrial ~~Marinship~~ District; and

* * *

SECTION 10.12.040. Establishment of zoning districts.

A. Zoning Designation System. Land use and development regulations applicable to specific sites shall be shown on the zoning map by zoning designations, as outlined in the following subsections.

B. Base Zoning Districts. The City is divided into the base zoning districts listed in Table 10.12-1 (Base Zoning Districts – Designation and Regulations):

Table 10.12-1 BASE ZONING DISTRICTS – DESIGNATION AND REGULATIONS		
Designator	**Base Zoning District**	**Regulations**
Open Space and Public		Chapter 10.20 SMC
OS	Open Space	
PP	Public Parks	
PI	Public Institutional	

OA	Open Area	
Residential		Chapter 10.22 SMC
R-1	Single-Family Residential	
R-2	Two-Family Residential	
R-3	Multiple-Family Residential	
PR	Planned Residential	
H	Houseboats	
A	Residential Arks	
Commercial		Chapter 10.24 SMC
CC	Central Commercial	
CR	Mixed Commercial and Residential	
CN	Neighborhood Commercial	
SC	Shopping Center	
CW	Commercial Waterfront	
W	Waterfront	
Industrial		Chapter 10.26 SMC
~~IM~~	Industrial ~~Marinship~~	

C. Overlay Zoning Districts. Overlay zoning districts, one or more of which may be combined with a base district, are listed in Table 10.12-2 (Overlay District Designations):

Table 10.12-2 OVERLAY DISTRICT DESIGNATIONS		
Designator	Overlay Zoning District	Regulations in SMC
-H	Historic	SMC § 10.28.040 and Chapter 10.46 SMC (Historic Overlay District and Local Register)
~~-M~~	~~Marinship~~	~~SMC § 10.28.050~~
-Pd	Planned Development	SMC § 10.28.060
-Sh	Senior Housing	SMC § 10.28.070 and § 10.44.120 (Senior Housing Projects)
-Es	Emergency Shelter	SMC § 10.28.080

C. Chapter 10.24 (Commercial Zoning Districts) is hereby amended as follows:

CHAPTER 10.24. COMMERCIAL ZONING DISTRICTS

SECTION 10.24.010 Specific purposes.

In addition to the general purposes established in SMC § 10.10.030 (Title and purpose), the specific purposes of the commercial zoning districts are as follows:

A. To provide space for diverse types of commercial activity to serve people and industry, while maintaining and strengthening the economic base of the City of Sausalito;

B. To implement the general plan by designating a variety of commercial districts so that all appropriate types of commercial activity may have a suitable location;

C. To permit the establishment of varying commercial uses in locations suitable both to individual enterprises and the entire City of Sausalito;

D. To promote the constructive improvement and orderly growth of the existing well-located commercial centers and districts; and

E. To protect residential districts adjacent to commercial uses.

SECTION 10.24.020 Additional purposes.

The additional purposes of each commercial district are as follows:

Central Commercial (CC):

A. To provide for a wide variety of retail and service businesses to serve Sausalito residents and visitors;

B. To provide for enhanced quality and reduced redundancy of downtown's available merchandise;

C. To maintain an inviting shopping environment for visitors and residents, utilizing the area's natural attributes;

D. To provide for, and encourage, ground-floor retail business with upper-floor residential uses;

E. To promote continuous retail frontage and prohibit establishments that tend to break up such continuity; and

F. To provide for accessory manufacturing uses, incidental to primary commercial activity.

Mixed Commercial and Residential (CR):

G. To provide for local-serving retail and service businesses and residential uses where mutually compatible;

H. To provide for local-serving commercial uses;

I. To provide a pedestrian-oriented experience for local residents; and

J. To provide for accessory manufacturing uses, incidental to primary commercial activity.

Neighborhood Commercial (CN):

K. To provide local-serving retail and service businesses in a location and manner that serve nearby commercial and residential areas;

L. To provide one-stop convenience services in the three distinct neighborhood commercial centers; and

M. To provide for accessory manufacturing uses, incidental to primary commercial activity.

Shopping Center (SC):

N. To provide for sales of frequently-purchased household necessities and services for local residents.

Commercial Waterfront (CW):

O. To protect the waterfront area, while promoting uses that benefit from, and need, a waterfront location.

Waterfront (W):

P. To protect the waterfront area while promoting marine-oriented and compatible uses. Within the Marinship, the Waterfront (W) zone is governed by the permitted uses and development standards set forth in the AIM Initiative. ~~To protect the waterfront area while promoting marine-oriented uses which will benefit from, and need, a waterfront location. The waterfront (W) district is divided into two subdistricts for the purposes of Table 10.24-1, including the base district (W) and combined with the marinship overlay (W-M) (SMC § 10.28.050, Marinship (-M)).~~

SECTION 10.24.030 Allowable land uses.

Table 10.24-1 (Land Uses Allowed in Commercial Districts) outlines the uses that are allowed in each commercial district. The notations indicate whether each use is permitted or requires one of two permits, as indicated in the legend. Blanks indicate the use is not allowed in that particular district. The last column identifies sections of the Zoning Ordinance where additional requirements are found and apply to the land use, including those from Chapter 10.44 SMC (Specific Use Requirements). Additional requirements may also be applicable.

Table 10.24-1
LAND USES ALLOWED IN COMMERCIAL DISTRICTS[1]

Land Use	CC	CR	CN	SC	CW	~~W~~	~~W-M~~	See SMC
Manufacturing and Processing Uses								
Commercial fishing facilities					P	~~P~~	~~CUP~~	
Drydocks					CUP	~~CUP~~	~~CUP~~	
Marine industrial use					P	~~P~~	~~P~~	
Printing and publishing	CUP				CUP			
Recycling collection stations	MUP	MUP	MUP	P	MUP	~~MUP~~	~~MUP~~	SMC § 10.44.200 (Recycling collection stations)
Recreation, Education, and Public Assembly Uses								
Religious institutions, clubs and fraternal organizations	P	CUP	P					SMC § 10.44.110 (Religious institutions, private clubs and fraternal organizations)
Libraries and museums	MUP				CUP			
Parks, playgrounds	P	P	P		P	~~P~~		
Piers and wharves	MUP				P	~~P~~	~~P~~	
Private club or facility	CUP		CUP					
Recreation and fitness centers		CUP	CUP					
Schools – specialized education and training	P	CUP	CUP		P	~~P~~		
Temporary uses and events	P	P	P	P	P	~~P~~	~~P~~	SMC § 10.44.310 (Temporary uses)
Theaters and meeting halls	CUP	CUP						
Yacht clubs	CUP				CUP	~~CUP~~	~~P~~[2]	
Residential Uses								
Accessory dwelling units	P	P	P					SMC § 10.44.080 (Accessory dwelling units)[9]
Employee housing								SMC § 10.44.360 (Employee housing)
Employee housing, agricultural	CUP		CUP		CUP		~~CUP~~	SMC § 10.44.370 (Employee housing, agricultural)
Home occupations	P	P	P		P			SMC § 10.44.030 (Home occupations)
Houseboats							~~CUP~~[3]	
Liveaboards					CUP	~~CUP~~	~~CUP~~	SMC § 10.44.170 (Liveaboards)

Table 10.24-1
LAND USES ALLOWED IN COMMERCIAL DISTRICTS[1]

Land Use	CC	CR	CN	SC	CW	~~W~~	~~W-M~~	See SMC
Low barrier navigation center	P	P	P					SMC § 10.44.380
Residential accessory uses	P	P	P					SMC § 10.44.020 (Accessory uses and structures)
Senior housing projects	CUP	CUP	CUP[4]					SMC § 10.44.120 (Senior housing projects)
Residential care homes, seven or more clients		CUP						
Single room occupancy housing	CUP	CUP	CUP					SMC § 10.88.040 (Definitions)
Supportive housing, levels above first (street or ground) only[8]	P	P or CUP	P[4]					SMC § 10.88.040 (Definitions); SMC § 10.88.390 (Supportive housing)
Transitional housing, levels above first (street or ground) only[8]	P	P or CUP	P[4]					SMC § 10.88.040 (Definitions)
Upper floor residential								
One to six dwelling units	P	P or CUP	P[4]					SMC § 10.44.190 (Residential use in commercial districts)
Seven or more dwelling units	CUP	CUP	CUP[4]					
Retail Trade								
Art galleries dealing in original art	P	CUP						SMC § 10.44.230 (Visitor serving stores and art galleries)
Building material stores	P	P	P		P			
Drinking establishments	CUP	CUP	CUP		CUP[5]			
Formula retail (applies to all forms of retail trade)	CUP		CUP	CUP				SMC § 10.44.240 (Formula retail)
Full service supermarket				P				
Furniture, furnishings and equipment stores	P	P	P		P			
Grocery stores	P	P	P		P			
Jewelry stores – precious metals and gems	P	P						
Liquor stores	P	CUP	CUP					

Table 10.24-1
LAND USES ALLOWED IN COMMERCIAL DISTRICTS[1]

Land Use	CC	CR	CN	SC	CW	~~W~~	~~W-M~~	See SMC
Lumberyard				CUP				
Plant nurseries	CUP		CUP		CUP			
Recreational equipment sales and rentals	P	P			P	~~P~~		
Restaurants	P	CUP	CUP		P		~~CUP~~[6]	SMC § 10.44.210 (Restaurants) and 10.44.220 (Outdoor dining areas)
Outdoor dining (on public right-of-way or private property)	MUP	MUP	MUP		MUP		~~MUP~~	
Retail stores, general merchandise (nonvisitor serving)	P	P	P					
Secondhand or thrift stores	P	P	P					
Visitor serving stores	CUP							SMC § 10.44.230 (Visitor serving stores)
Wholesale and retail fish sales	P	P	P		P	~~P~~	~~CUP~~	
Wine shops	P	P						
Service Uses								
Banks and financial services – retail	P	CUP	P					SMC § 10.44.340 (Banks and financial service – retail in the CR District)
Business support services	P	P	P		P			
Child day care								SMC § 10.44.100 (Child day care)
Centers	P	CUP	CUP					
Large family care homes		MUP	MUP					
Small family care homes		P	P					
Columbariums and mortuaries		CUP	CUP					
Marine applied arts					P	~~P~~	~~CUP~~	
Marine commercial services					P	~~P~~	~~P~~	
Marine fuel facility					CUP	~~CUP~~	~~CUP~~	
Medical services – clinics and laboratories	MUP	CUP	CUP		CUP			

Table 10.24-1
LAND USES ALLOWED IN COMMERCIAL DISTRICTS[1]

Land Use	CC	CR	CN	SC	CW	~~W~~	~~W-M~~	See SMC
Office conversion of an existing or previously existing retail trade, commercial services, drinking/eating or residential use	CUP	CUP	CUP		CUP			SMC § 10.44.250 (Office conversions)
Offices (new structure or replacement of existing office)	P	P	CUP		CUP			
Offices, temporary	MUP	MUP	MUP		MUP	~~MUP~~	~~MUP~~	SMC § 10.44.280 (Offices, temporary)
Personal services	P	P	P					
Public safety facilities	P	P	P		P	~~P~~		
Minor public utility facilities	MUP	MUP	MUP			~~MUP~~		
Major public utility facilities	CUP	CUP	CUP			~~CUP~~		
Repair and maintenance – consumer products	P	P	P					
Service stations		CUP	CUP		CUP			SMC § 10.44.260 (Service stations)
Storage, accessory		P	P		P	~~P~~		SMC § 10.44.050 (Storage, accessory)
Upholstery shops		P	P		P			
Veterinary clinic	CUP	CUP	CUP		CUP	~~CUP~~	~~CUP~~	SMC § 10.44.180 (Veterinary clinics)
Warehousing		CUP	CUP	CUP	CUP			
Transient Lodging								
Bed and breakfasts	CUP		CUP					
Hotels	CUP		CUP					
Transportation and Communications Uses								
Wireless communications facilities	See Chapter 10.45 SMC (Standards and Criteria for Wireless Communications Facilities)							Chapter 10.45 SMC
Boat launching ramps					CUP	~~CUP~~	~~CUP~~	
Dry boat storage				CUP	CUP	~~P~~	~~P~~	
Harbor facilities and marinas					P	~~P~~	~~P~~[2]	SMC § 10.44.140 (Harbor and marina facilities)
Off-street parking facilities (private and commercial)	CUP	CUP	CUP					SMC § 10.40.100 – 10.40.120 (Parking – standards, requirements, design)

Table 10.24-1
LAND USES ALLOWED IN COMMERCIAL DISTRICTS[1]

Land Use	CC	CR	CN	SC	CW	~~W~~	~~W-M~~	See SMC
Pipelines and transmission lines		P	P		P	~~MUP~~		
Transit stations and terminals	CUP	CUP	CUP					

P	Permitted use	
MUP	Minor use permit required	Chapter 10.58 SMC
CUP	Conditional use permit required	Chapter 10.60 SMC

Notes:

~~[1] Zoning permit required for all uses. (See Chapter 10.52 SMC.)~~

~~[2] Tax-exempt yacht clubs only, subject to restrictions in the marinship specific plan.~~

~~[3] No new houseboats are allowed. Existing houseboats may be legalized with a conditional use permit.~~

[4] Residential uses are permitted above the ground floor in the CN zoning districts located in the Second and Main Street area and the Bridgeway and Spring Street area. Residential uses are not permitted in the CN zoning district located along Bridgeway between Coloma Street and Ebbtide Avenue.

[5] Other than beer and wine for on-site consumption as an accessory use.

~~[6] Not to exceed 20 seats.~~

~~[7] Marine service harbors only.~~

[8] Supportive housing and transitional housing shall be subject to those restrictions that apply to other residential dwellings of the same type in the same zoning district, except that supportive housing is allowed by right in all multifamily and mixed use zones.

[9] Accessory dwelling units in the CC, CR, and CN districts are only permitted on lots containing an existing or proposed dwelling unit, subject to SMC § 10.44.080.

SECTION 10.24.040 Special requirements.

A. Incidental Manufacturing. Incidental manufacturing, fabricating, processing, packaging, treating and related storage will be allowed in the CC, CR and CN districts, subject to the following:

1. Incidental use or storage shall be in the same line of merchandise or service as the retail or service business conducted on the premises;

2. Gross floor area occupied by incidental use shall not exceed 50 percent; and

3. No more than five employees shall be engaged in the activities.

B. New Development in CR District. Unless authorized as a conditional use pursuant to Chapter 10.60 SMC (Conditional Use Permits), any use proposed above the ground floor within the CR zoning district shall be residential.

C. Outdoor Display of Merchandise and Commercial Uses. All uses and related commercial activities shall be conducted in enclosed buildings except for the following uses or activities when related to permitted or conditionally permitted use within a commercial zoning district:

1. Delivery of fuel, lubricants, and incidental servicing of automobiles (service station);

2. Parking and loading facilities;

3. Outdoor eating and drinking areas (MUP required);

4. Recreation facilities;

5. Public utility substations;

6. Display of plants, flowers, and garden care and decoration items (nurseries, florist shops);

7. Display of household and garden hardwares (hardware stores);

8. Marine industrial uses;

9. Storage and lumber yards (CUP required);

10. Storage incidental to industrial uses.

D. Large Frontage Retail. Unless authorized as a conditional use pursuant to Chapter 10.60 SMC (Conditional Use Permits), retail trade businesses that front only one street and contain over 50 feet of lineal street frontage are prohibited. A conditional use permit shall also be required for any retail trade business located in a corner building with two street frontages on a corner lot that has more than 50 feet of lineal frontage on the primary street. The measurement of frontage shall be calculated separately for each tenant in a multitenant building. This requirement does not apply in the shopping center district.

SECTION 10.24.050 Site development requirements.

Table 10.24-2 (Site Development Standards – Commercial Zoning Districts) establishes parcel requirements, residential density and site development standards for the commercial zoning districts. Minimum standards are provided for parcel size, lot width and setbacks. Residential density, floor area ratio, building coverage and height limits are maximum amounts allowed. Specific uses may be subject to additional, specific standards. Certain standards vary depending on the applicable situation. Refer to noted sections. The commercial neighborhood (CN) district is divided into two subdistricts (CN-1 and CN-2) for regulating maximum floor area ratio and maximum coverage.

Table 10.24-2
SITE DEVELOPMENT STANDARDS – COMMERCIAL ZONING DISTRICTS

Development Requirement	CC	CR	CN	SC	CW	W	~~W-M~~	See SMC
Minimum parcel size	5,000 sf	5,000 sf	5,000 sf	10,000 sf	5,000 sf	25,000 sf		SMC § 10.40.030 (Minimum parcel standards) and SMC Title 9
Minimum lot width	50 feet	50 feet	50 feet	50 feet	50 feet	50 feet		SMC § 10.28.060 (Planned development (-Pd))
Maximum density 1 du per	1,500 sf	1,500 sf	1,500 sf	N/A	~~10% of total berths (1)~~ Per BCDC permits and state law (1)	~~10% of total berths (1)~~ Per BCDC permits and state law (1)	~~See Table 10.28-1 for site development standards~~	SMC § 10.44.170 (Liveaboards)
Maximum floor area ratio (5)	1.3	1.00	-1 .50 / -2 .35	.20	.30	~~.30~~ 3.0		SMC § 10.40.040 (Floor area ratio)
Maximum building coverage	100%	70%	70% / 50%	50%	30%	~~30%~~ 70%		SMC § 10.40.050 (Building coverage limits)
Minimum Setbacks (2)								SMC § 10.40.080 (Exceptions to required setbacks), 10.40.070 (Setbacks and yards), and Chapter 10.44 SMC (Specific Use Requirements)
Front	N/A	N/A	N/A	N/A	N/A	N/A		
Side (3)	10 feet	10 feet	10 feet	(4)	(4) 15 feet when	(4)		
Rear (3)	15 feet	15 feet	15 feet	20 feet	20 feet	15 feet	~~See Table 10.28-1 for site development standards~~	
Maximum building height	32 feet	32 feet	32 feet	32 feet	25 feet	32 feet (may be extended to 47 feet to for Marine Commercial Service or		SMC § 10.40.060 (Height requirements)

Marine
Industrial uses)

Notes:

(1) Liveaboard residential density shall be as permitted by applicable BCDC permits and Bay Plan policies, or as otherwise provided by state law. ~~Density allowed for liveaboard residential uses.~~

(2) ~~Per SMC § 10.40.080E, a multifamily rental project that is located on a single site composed of multiple contiguous lots shall only be subject to setback requirements along the exterior lot lines for projects that include a lot merger.~~

(3) Setback required only when adjacent to residential zoning district. See noted section for additional setback requirements between structures on the same site and in other situations. Different setbacks may also apply if district is combined with other zoning districts.

(4) One-half the building height, but no less than five feet.

(5) Pursuant to Cal. Gov't. Code § 65913.11(b), a housing development project consisting of three to seven units shall be allowed to have a floor area ratio of up to 1.0, and for a housing development project consisting of eight to 10 units, the project shall be allowed a floor area ratio of up to 1.25, except for projects within a historic district or property included on the State Historic Resources Inventory, as defined in Cal. Pub. Res. Code § 5020.1, or within a site that is designated or listed as a city or county landmark or historic property or district pursuant to a city or county ordinance.

The following requirements also apply:

A. Minimum Lot Size. New parcels proposed in a subdivision shall also comply with applicable provisions of SMC Title 9 (Subdivisions). Existing parcels which do not meet the minimum lot area or width requirements specified by this section may be developed in accordance with the development standards outlined in Table 10.24-2 (Site Development Standards – Commercial Zoning Districts); provided, that the subject parcel has been legally created.

B. Setbacks. Setbacks will only be required where the subject parcel is adjacent to a residential zoning district. Additional requirements for setbacks between structures on the same site, and setbacks in other situations, are established by SMC § 10.40.080 (Exceptions to required setbacks) and by Chapter 10.44 SMC (Specific Use Requirements) for certain specific land uses.

C. Residential Density. Allowed density for liveaboard residential uses in the W district shall be as permitted by applicable Bay Commission Development Corporation ("BCDC") permits and Bay Plan policies, or as otherwise provided by state law. ~~one unit for each 10 berths in a marina~~.

D. Chapter 10.26 (Industrial ~~Marinship~~ District) is hereby amended as follows:

CHAPTER 10.26. INDUSTRIAL ~~MARINSHIP~~ DISTRICT

SECTION 10.26.010. Specific purposes.

In addition to the general purposes established in SMC § 10.10.030 (Title and purpose), the specific purposes of the industrial ~~marinship~~ zoning district are as follows:

A. To provide for ~~nonpolluting, low-intensity industrial uses;~~ vibrant art, maritime, industrial and compatible uses;

B. To provide for uses compatible with the 2021 General Plan Marinship Vision ~~an industrial area~~;

C. To provide for non-invasive industry with minimal community impacts;

D. To provide for industrial, service and arts uses, with the necessary support elements for the Sausalito community;

E. To ensure all uses and development are compatible with the ~~marinship specific plan;~~ AIM Initiative;

F. To encourage a mixture of uses;

G. To provide for urban development standards;

~~H. To maintain the land use entitlements that were contained in prior code Section 10.700 (Industrial District Regulations); and~~

~~I.~~H. To provide for public access to and views of Richardson Bay.
~~The industrial marinship district is a base district which is entirely within an overlay district (-M, marinship). The entire district is subject to the requirements established by SMC § 10.28.050 (Marinship (-M)).~~
~~(Ord. 1167 § 2, 2003)~~

SECTION 10.26.020. Land uses allowed.

~~Table 10.26-1 (Land Uses Allowed in Industrial Marinship District) outlines the uses that are allowed in the industrial marinship district. The notations indicate whether the use is permitted or requires a minor use permit or a conditional use permit. The table also indicates the uses that are subject to additional special requirements and notes the section of the Zoning Ordinance where these standards can be found. In addition, all uses in the industrial marinship district are subject to the marinship overlay district, which identifies use and development requirements for all properties in the marinship specific planning area. Chapter 10.88 SMC (Definitions) provides definitions for general land use categories.~~

Table 10.26-1 (Land Uses Allowed in Industrial and Waterfront Zones) identifies the uses that are allowed in the Industrial (I) zone and the Waterfront (W) zone, as set forth in the AIM Initiative. P indicates a permitted use; MUP indicates a minor use permit is required (Chapter 10.58 SMC); CUP indicates a conditional use permit is required (Chapter 10.60 SMC). Chapter 10.88 SMC (Definitions) provides definitions for general land use categories.

Residential and office uses which existed in 1989 ~~when the marinship specific plan was adopted~~ are permitted to remain~~, provided no expansion occurs and no new uses are established, consistent with the marinship specific plan.~~ Existing restaurants are also permitted to remain. Additions to existing restaurants and new eating establishments are subject to ~~the marinship specific plan, this chapter, and~~ SMC § 10.44.210 (Restaurants), as indicated in Table 10.26-1 (Land Uses Allowed in Industrial ~~Marinship~~ District). ~~In addition, site-specific exceptions shall be allowed, consistent with the marinship specific plan and SMC § 10.28.050 (Marinship (-M)).~~

~~Table 10.26-1~~
~~LAND USES ALLOWED IN INDUSTRIAL MARINSHIP DISTRICT~~

~~Allowable Land Uses~~	~~Land Use Permit~~	~~Special Requirements~~	~~Specific Standards in SMC~~
~~**Manufacturing and Processing Uses**~~			
~~Applied arts~~	~~MUP~~		~~SMC § 10.26.030(A) (Applied Arts) and 10.28.050(D)(3) (Arts and Applied Arts) See marinship specific plan~~
~~Arts (fine, industrial, and marine)~~	~~P~~		~~See marinship specific plan~~
~~Commercial fishing facilities~~	~~CUP~~	~~processing plants~~	~~See marinship specific plan~~

Table 10.26-1

LAND USES ALLOWED IN INDUSTRIAL MARINSHIP DISTRICT

Allowable Land Uses	Land Use Permit	Special Requirements	Specific Standards in SMC
Industrial research and development	P		See marinship specific plan
Industrial service and supply	P		See marinship specific plan
Light manufacturing	P		See marinship specific plan
Lumber yards	CUP		See marinship specific plan
Marine-oriented research and development	P		See marinship specific plan
Marine industrial uses	P		See marinship specific plan
Photofinishing labs	CUP		See marinship specific plan
Printing and publishing	MUP		See marinship specific plan
Recycling collection stations	See SMC § 10.44.200 (Recycling collection stations)		
Wholesaling and distribution	P		See marinship specific plan
Recreation, Education and Public Assembly Uses			
Parks and playgrounds	P		See marinship specific plan
Recreation and fitness centers	CUP		See marinship specific plan
Schools—specialized education and training	CUP		See marinship specific plan
Temporary uses and events	P		SMC § 10.44.310 (Temporary uses and events)
Performing arts, theaters and rehearsal use	P	Occasional live performances or films require CUP	See marinship specific plan
Yacht clubs (tax-exempt)	CUP		See marinship specific plan
Resource and Open Space Uses			
Plant nurseries	CUP		See marinship specific plan
Retail Trade			
Auto, vehicle and parts sales	CUP		See marinship specific plan
Building material stores	CUP		See marinship specific plan
Nurseries	CUP		See marinship specific plan

Table 10.26-1

LAND USES ALLOWED IN INDUSTRIAL-MARINSHIP DISTRICT

Allowable Land Uses	Land Use Permit	Special Requirements	Specific Standards in SMC
Restaurants	CUP		SMC § 10.44.210 (Restaurants) and 10.44.220 (Restaurants—Outdoor dining areas) and see marinship specific plan
Wholesale and retail fish sales	CUP		See marinship specific plan
Service Uses			
Business/office supply and support services	P		See marinship specific plan
Catering	P		See marinship specific plan
Equipment rental and sales	P		See marinship specific plan
Financial institutions	P		See marinship specific plan
Laundry and dry cleaning plants	P		See marinship specific plan
Marine commercial service uses	P		See marinship specific plan
Marine fuel facility	CUP		See marinship specific plan
Medical services—clinics and laboratories	P		See marinship specific plan
Existing offices—prior to April 5, 1988	P		SMC § 10.28.050(D)(4) (Office uses) See marinship specific plan
Parcel delivery service	P		See marinship specific plan
Public safety facilities	P		See marinship specific plan
Public utility facilities	P		See marinship specific plan
Publishers	CUP		See marinship specific plan
Recording studios	P		See marinship specific plan
Repair and maintenance—consumer products	P		See marinship specific plan
Repair and maintenance—vehicle	P		See marinship specific plan
Service stations	CUP		SMC § 10.44.260 (Service stations) See marinship specific plan
Storage, accessory	P	Less than 90 days	SMC § 10.44.050 (Storage, accessory) See marinship specific plan

Table 10.26-1

LAND USES ALLOWED IN INDUSTRIAL MARINSHIP DISTRICT

Allowable Land Uses	Land Use Permit	Special Requirements	Specific Standards in SMC
Storage yards	CUP	Containerized or outdoor	See marinship specific plan
Veterinary clinics	CUP	Only when accessory to marine research laboratory	See marinship specific plan
Warehousing	P		See marinship specific plan
Transportation and Communications			
Antennas, communications facilities	CUP	See SMC § 10.44.260 (Antennas and personal communication service facilities) and see marinship specific plan	
Boat storage	P		See marinship specific plan
Boat launching ramps, haul out and drydocks	CUP		See marinship specific plan
Off-street parking	CUP	To serve use in W district	See marinship specific plan
Piers or docks for pleasure craft	CUP	Only when incidental and accessory to marine industrial use	See marinship specific plan
Pipelines and transmission lines	P		See marinship specific plan
Vehicle storage	CUP		See marinship specific plan

Zoning permit required for all uses P Permitted use — Chapter 10.52 SMC

MUP Minor use permit required — Chapter 10.58 SMC

CUP Conditional use permit required — Chapter 10.60 SMC

TABLE 10.26-1 LAND USES ALLOWED IN INDUSTRIAL (I) AND WATERFRONT (W) ZONES		
Type of Use	Permit	Municipal Code Section
Arts and Creative Uses		
Arts, fine	P	§10.88.040
Arts, industrial	P	§10.88.040
Arts, marine	P	§10.88.040
Arts, applied	P	§10.88.040
Art galleries	P	§10.44.230
Digital Art	P	§10.88.040
Performing arts, theaters, rehearsal spaces	MUP	
Recording Studios	P	
Publishers	P	§10.88.040
Printing and Publishing	P	§10.88.040
Manufacturing and Processing		
Light manufacturing	P	§10.88.040
Industrial research and development	P	
Industrial service and supply	P	
Wholesaling and distribution	MUP	§10.88.040
Commercial fishing facilities	MUP	
Lumber yards	CUP	
Recycling Collection Stations	CUP	§10.44.200
Photofinishing Labs	CUP	
Marine and Maritime Uses		
Marine industrial uses	P	§10.88.040
Marine commercial service uses	P	§10.88.040

Marine-oriented research and development and education	P	
Marine fuel facility	CUP	
Boat storage	P	
Boat launching ramps, haul out, drydocks	MUP	
Harbor and marina facilities	P	§10.88.040, §10.44.140
Moorings and mooring fields	P	
Wholesale and retail fish sales	P	
Piers, docks, floats, wharves	P	§10.44.070
Houseboats	P	§10.88.040, §10.44.160
Liveaboards	P	§10.88.040, §10.44.170
Recreation and Education		
Parks and playgrounds	P	
Community centers	P	
Libraries & Museums	P	§10.88.040
Schools	MUP	
Fitness and wellness facilities	MUP	
Yacht clubs	MUP	
Retail Trade		
Ancillary retail	MUP	§10.26.030(B), §10.26.040(D)
Temporary outdoor retail sales	MUP	§10.44.300
Building material stores	MUP	§10.88.040
Auto, vehicle and parts sales	CUP	§10.88.040
Nurseries	MUP	§10.88.040
Food and Dining Uses		
Restaurants	MUP	§10.44.210, §10.26.040(D)
Outdoor Dining Areas	MUP	§10.44.220, §10.26.040(D)
Child Day Care	MUP	§10.44.100, §10.26.040(D)

Catering, retail	P	§10.88.040
Bakery	P	
Service Uses		
Business/office supply and support	P	§10.88.040,§10.26.030(B), §10.26.040(D)
Equipment rental and sales	P	
Repair and maintenance – consumer products	P	§10.88.040
Repair and maintenance – vehicle	P	§10.88.040
Parcel delivery service	MUP	
Public safety facilities	P	
Public utility facilities	P	§10.88.040
Storage, accessory	P	§10.44.050
Storage yards	CUP	§10.88.040
Veterinary clinics	CUP	§10.44.180
Financial institutions	P	§10.26.030(B), §10.26.040(D)
Medical services – clinics and laboratories	P	§10.88.040, §10.26.040(D)
Existing offices – prior to April 5, 1988	P	§10.26.040(H)
Vehicles and Infrastructure		
Off-street parking (standalone)	CUP	
Pipelines and transmission lines	MUP	§10.88.040
Vehicle storage	CUP	§10.88.040
Antennas, communications facilities	CUP	§10.44.260
Temporary Uses		
Temporary uses and events	P	§10.44.310
Offices, Temporary	MUP	§10.44.280, §10.88.040
Temporary outdoor retail sales	MUP	§10.44.300
P – Permitted Use		

MUP – Minor Use Permit required (Chapter 10.58 SMC) CUP – Conditional Use Permit required (Chapter 10.60 SMC)		

SECTION 10.26.030. Arts uses and ~~I~~inclusionary commercial uses.

~~The following uses may be permitted as inclusionary uses only when accompanied by a specified use:~~

~~A. Applied Arts. Applied arts uses may not exceed 50 percent of all arts uses on the parcel. Other required arts uses are fine, industrial and marine arts. Applied arts uses that are established consistent with this requirement may remain if other arts uses vacate the site and/or premises. However, the vacated tenant space cannot be utilized for uses other than required arts uses and must remain dedicated to the re-establishment of another required arts use to fulfill the inclusionary use ratio.~~

~~B. Commercial Uses. Commercial office and retail uses may not exceed 40 percent of the floor area permitted on the parcel and must be accompanied by noncommercial uses. Commercial office and retail uses that are established consistent with this requirement may remain if other noncommercial uses vacate the site and/or premises. However, the vacated tenant space cannot be utilized for uses other than noncommercial use and must remain dedicated to the re-establishment of another noncommercial use to fulfill the inclusionary use ratio.~~

A. Arts Uses. All arts uses including fine arts, industrial arts, marine arts, applied arts and digital arts are permitted uses in the Industrial (I) and Waterfront (W) zones as set forth in Table 10.26-1. No inclusionary ratio or conditional use permit is required for any arts use. Arts uses may occupy any portion of a parcel or building without limitation.

B. Inclusionary Commercial Uses. Commercial office, commercial services, restaurants, food services, and ancillary retail uses may not exceed 40 percent of the floor area permitted on the parcel and must be accompanied by noncommercial uses. Commercial Uses that are established consistent with this requirement may remain if noncommercial uses vacate the site and/or premises. Uses independently permitted by Table 10.26-1 are permitted as set forth in that table and are not subject to the 40 percent limitation. Accessory office uses are permitted.

SECTION 10.26.040. Site development requirements.

~~Table 10.26-2 (Site Development Standards – Industrial Marinship Zoning District) establishes parcel requirements and site development standards for the industrial marinship zoning district. Minimum standards are provided for parcel size, lot width and setbacks. Floor area ratio, building coverage and height limit are the maximum amounts allowed. Site development standards are also specified by and contained in~~

~~SMC § 10.28.050 (Marinship (-M)). Specific uses may be subject to additional specific standards. In addition, certain standards vary depending on the applicable situation. Refer to noted sections and the marinship specific plan for additional requirements or explanations.~~

The site development standards for the Industrial (I) and Waterfront (W) zones shall be as set forth in Table No. 2 of the AIM Initiative. Specific uses may be subject to additional specific standards as set forth in Chapter 10.44 SMC (Specific Use Requirements).

~~Table 10.26-2~~
~~SITE DEVELOPMENT STANDARDS—INDUSTRIAL MARINSHIP ZONING DISTRICT~~

~~Development Requirement~~	~~IM~~	~~See SMC~~
~~Minimum parcel size~~	~~N/A~~	
~~Minimum lot width~~	~~30 feet~~	
~~Average lot width (minimum)~~	~~50 feet~~	
~~Maximum density 1 du per~~	~~N/A~~	
~~Maximum floor area ratio~~	~~.40~~	~~SMC § 10.40.040(G) (Industrial Equivalent FAR Requirements) and 10.26.040(C) (Floor Area Ratio)~~
~~Maximum building coverage~~	~~50%~~	
~~Minimum Building Setbacks[1]~~		
~~Front~~	~~0 feet~~	
~~Public open space~~	~~30 feet~~	
~~Public streets~~	~~0 feet[2]~~	
~~Property lines~~	~~0 feet[3]~~	
~~Shorelines~~	~~Determined by Community Development Director~~	
~~View corridors~~		
~~Minimum Parking Setbacks~~		
~~Public streets, rights-of-way, and/or pedestrian or bicycle pathways~~	~~5 feet~~	
~~Property lines~~	~~0 feet~~	
~~Shorelines~~	~~50 feet[4]~~	
~~View corridors~~	~~Subject to Community Development Director review~~	
~~Public open space~~	~~10 feet~~	
~~Buildings~~	~~0 feet~~	

~~Minimum landscaped area~~	~~10% of floor area~~
~~Maximum building height~~	~~32 feet[5]~~

~~Notes:~~

~~[1] Setback required only when adjacent to residential, public or public open space zoning district. See noted section for additional setback requirements between structures on the same site and in other situations. Different setbacks may also apply if district is combined with other zoning districts.~~

~~[2] The marinship specific plan "prefers" buildings be located at the street (public or private) right-of-way line.~~

~~[3] Except adjacent to H district (20 feet) or P district (30 feet).~~

~~[4] Unless otherwise approved by Community Development Director.~~

~~[5] Along shoreline, lower height is encouraged. Taller buildings may be allowed for heavy marine industrial uses or remodeled existing historic structures with a conditional use permit. See marinship specific plan.~~

The following requirements also apply:

A. Minimum Parcel Size. New parcels proposed in a subdivision shall comply with applicable provisions of SMC § 10.40.030 (Minimum parcel standards) and SMC Title 9 (Subdivisions). Existing parcels which do not meet the minimum lot area or width requirements specified by this section may be developed in accordance with the development standards outlined in the following section; provided, that the subject parcel has been legally created.

B. Setbacks. Setbacks will only be required where the subject parcel is adjacent to a residential use (including H, houseboat) or public zoning district. Additional requirements for setbacks between structures on the same site, and setbacks in other situations are established by ~~SMC § 10.28.050 (Marinship (-M)),~~ 10.40.080 (Exceptions to required setbacks) and by Chapter 10.44 SMC (Specific Use Requirements) for certain specific land uses.

C. ~~Floor Area Ratio. Accessory commercial and office use is limited to a floor area ratio of 0.15 of the total permitted floor area ratio (0.40).~~ Intentionally left blank.

D. Commercial Uses. Commercial uses shall not exceed 40 percent of the permitted FAR. For the purposes of this section, commercial uses shall include commercial office, commercial services, restaurants, ~~and~~ food services, and ancillary retail. ~~Accessory office uses shall not be included for the purposes of this section.~~ Commercial uses shall be permitted when developed with approved noncommercial uses. No new commercial office uses are permitted, except for accessory offices, ~~(see SMC § 10.28.050(D), Land Uses)~~. Uses independently permitted by Table 10.26-1 are permitted as set forth in that table and are not subject to the 40 percent limitation or the prohibition of the new commercial office uses.

E. Uses in Enclosed Buildings. All uses shall be conducted within completely enclosed buildings, except the following:

1. Off-street parking and loading;

2. Nurseries ~~(CUP required)~~;

3. Marine industrial uses;

4. Outdoor eating and drinking area;

5. Recreational facilities;

6. Public utility substations;

7. Storage and lumber yards (CUP required); and

8. Temporary accessory storage, accessory to permitted uses (90 days).

~~F. Marinship Overlay. All development is subject to the development requirements contained and specified in SMC § 10.28.050 (Marinship (-M)).~~ Intentionally left blank.

G. Operational Requirements. All new and existing operations and uses shall be subject to review of impacts, including but not limited to noise, air quality (including dust, fumes, gases, vapors, and other particulate matter), vibration, radiation, electrical disturbances, illumination and glare, odor, solid and liquid waste, and temperature variations.

H. Existing Office Uses. Any office use established on or before April 5, 1988, within a given tenant space is a permitted conforming use and may continue to occupy that space.

E. Chapter 10.28 (Overlay Districts) is hereby amended as follows:

~~**SECTION 10.28.050. Marinship (-M).**~~

~~A. Purpose and Intent. In addition to the general purposes of this chapter, the specific purposes of the marinship (-M) overlay district are as follows:~~

~~1. To identify the area which is the subject of the marinship specific plan;~~

~~2. To preserve and enhance the maritime history and character of the marinship area;~~

~~3. To preserve and enhance the industrial character and use of the marinship area;~~

~~4. To preserve the marinship area's primary orientation to the use and service of Sausalito residents, rather than tourists;~~

5. To discourage the development of non-industrial commercial businesses that would displace industrial and marine businesses, or that would disproportionately contribute to traffic generation;

6. To encourage public access and use of the water and waterfront; and

7. To maximize the amount of open water and open shoreline area.

B. Zoning Map Indicator. The -M marinship overlay district may be combined with any zoning district included within the marinship specific plan area. The -M overlay district shall be shown on the zoning map by adding an "-M" designator to the base district designation.

C. Applicability. All lands within the boundaries of the marinship specific plan shall be subject to the regulations of the marinship overlay district.

D. Land Uses. The land use regulations applicable in an -M district shall be as prescribed for the base district with which it is combined unless modified by the following, or by another overlay district. The following land use regulations also apply to the -M overlay district:

1. Commercial Uses. Commercial uses permitted in the marinship overlay district shall be limited to offices which are accessory to other permitted uses, commercial service uses which support other permitted uses and size-restricted restaurants. Offices, retail uses and restaurants with more seats than permitted, which existed prior to April 5, 1988, may remain.

2. Ancillary Offices. The only new office use permitted in the marinship will be limited to accessory office use (the small amount of office activity needed to administer the operations of an approved use.) No new commercial office use will be permitted in the marinship. Existing office buildings and uses may remain as permitted uses.

3. Arts and Applied Arts. Art uses (see Definitions, SMC § 10.88.040) are strongly encouraged within the marinship overlay district. Applied art uses may be permitted as long as they do not exceed 50 percent of all art uses on a property in the district. If an applied arts use occupies a space previously occupied by an office use, there shall be no requirement for an equal amount of other arts use on the property.

4. Office Uses. Any office use established on or before April 5, 1988, within a given tenant space may continue to occupy that space.

5. New Harbors or Marinas. No new recreational marinas or harbors may be constructed or developed in the zoning districts subject to the -M overlay designation. New marine service harbors may be constructed or developed in accordance with the provisions of this section.

6. Existing Harbors and Marinas. Existing recreational marinas and harbors may be remodeled and realigned with the issuance of a design review permit, consistent with the provisions of Chapter 10.54 SMC (Design Review Procedures). Enlargement of existing recreational marinas and harbors may take place with the issuance of a

~~conditional use permit consistent with Chapter 10.60 SMC (Conditional Use Permits). Enlargement shall not exceed 10 percent of existing berths at the time of application of the conditional use permit.~~

~~7. Ferry Terminal. No ferry or similar marine transportation shall be located in the marinship overlay district.~~

~~E. Development Standards. All lands within the boundaries of the -M overlay district are subject to the development standards established by this section and shown in Table 10.28-1 (Site Development Standards – Marinship (-M) Overlay Zoning District). Any additional requirements applicable in the base district (IM, W, P, OA, SC, or H) or another applicable overlay district shall also apply. Additional standards may be established by the marinship specific plan and shall apply. Where development regulations conflict, the more restrictive shall apply. In addition, the following standards shall apply:~~

~~1. Applicability. Development standards shall apply to any new construction, redevelopment or exterior building remodeling involving at least 25 percent of the existing floor area or 25 percent of the market value of the parcel improvements.~~

~~2. Public Access. All shoreline parcels shall provide for temporary tie-up of small boats, as required by the City. The number of such spaces shall be a minimum of one per parcel or two percent of the total number of berths in the harbor, whichever is greater, unless otherwise approved by the City.~~

~~3. Dry Boat Berths. The number of dry boat berths shall not exceed 100 berths per acre.~~

~~4. Industrial Equivalent FAR. Allowable floor area is further limited in the W (waterfront) and IM (industrial marinship) districts for parcels with commercial development in excess of the allowable floor area ratio (FAR) for commercial use as of the adoption date of the marinship specific plan (April 5, 1988). The limitation shall be based on an industrial-equivalent FAR, which shall be calculated as follows:~~

~~a. Multiply the amount of the commercial development that is in excess of the allowable FAR for commercial uses by the appropriate factor below:~~

~~i. Office: 3.14;~~

~~ii. Retail: 1.91;~~

~~iii. Restaurant: 3.12.~~

~~b. Add the resulting number to the existing FAR for the parcel to get the industrial-equivalent FAR. The industrial-equivalent FAR shall not exceed the total FAR allowed for the zone. If the existing industrial-equivalent FAR exceeds the total FAR allowed for the zone, no new development is permitted. Existing uses may not be converted to more intensive uses if they cause the industrial-equivalent FAR to exceed the total FAR allowed for the zone. Here are two examples:~~

Example A: An existing office building in the industrial district contains 0.30 FAR. This would typically allow an additional 0.10 FAR to be constructed for permitted uses. As only 0.15 FAR is permitted for commercial uses, the remaining 0.15 FAR is multiplied by 3.14 office factor. The resultant 0.47 FAR is added to the allowable 0.15 FAR to get an industrial-equivalent FAR of 0.62 which exceeds the permitted 0.40 FAR. No further development is permitted.

Example B: An existing building in the industrial district contains 0.22 FAR for retail uses. This would typically allow an additional 0.18 FAR to be constructed for permitted uses. As only a 0.15 FAR is permitted for commercial uses, the remaining 0.07 FAR is multiplied by the 1.91 retail factor. The resultant 0.134 FAR is added to the 0.15 FAR to get an industrial-equivalent FAR of 0.284 which is less than the maximum 0.40 FAR. An additional 0.116 FAR may be constructed for permitted uses.

5. Building Height and Bulk. Building height should be compatible with surrounding developments, consistent with the marinship specific plan. Building masses shall be modulated in plan, elevation and profile to avoid monotonous form and character.

Table 10.28-1
SITE DEVELOPMENT STANDARDS – Marinship (-M) Overlay Zoning District

Development Requirement	-M	See SMC
Minimum lot width	• 30 feet	
Average lot width (minimum)	• 50 feet	
Minimum Building Setbacks[1]		SMC § 10.40.080 (Exceptions to required setbacks) and 10.40.070 (Setbacks and yards) and Chapter 10.44 SMC (Specific Use Requirements)
Front	• 0 feet	
Public open space	• 30 feet	
Public streets	• 0 feet[2]	
Property lines	• 0 feet[3]	
Shorelines	• Determined by Community Development Director	
View corridors		
Parking Setbacks[1]		
Public street, rights-of-way and/or pedestrian or bike pathways	• 5 feet	
Property lines	• 0 feet	
Shorelines	• 50 feet[4]	
View corridors	• Subject to Community Development Director review	

Table 10.28-1

SITE DEVELOPMENT STANDARDS – Marinship (-M) Overlay Zoning District

Development Requirement	-M	See SMC
Public open space	• 10 feet	
Buildings	• 0 feet	
Minimum landscaped area	• 10% of floor area	
Maximum building height	• 32 feet above natural average grade[5]	SMC § 10.40.060 (Height requirements)

Notes:

[1] Setback required only when adjacent to residential, public or public open space zoning district. See noted section for additional setback requirements between structures on the same site and in other situations. Different setbacks may also apply if district is combined with other zoning districts.

[2] The marinship specific plan "prefers" buildings be located at the street (public or private) right-of-way line.

[3] Except adjacent to H district (20 feet) or P district (30 feet).

[4] Unless otherwise approved by Community Development Director.

[5] Along shoreline, lower height is encouraged. Taller buildings may be allowed for heavy marine industrial uses or remodeled existing historic structures with a conditional use permit. See marinship specific plan.

F. Exceptions. Minor exceptions to the development standards or definitions of use established by the marinship specific plan that do not alter the general development programs of the plan may be approved by the City Council upon recommendation by the Planning Commission. Exceptions are subject to the following:

1. Submittal Requirements. Application for an exception shall be filed with the Community Development Department by the applicant. The applicant shall submit all required data as listed below:

a. Documentation describing how the requested exception will conform to the marinship specific plan goals, the development programs for the marinship as a whole and for all parcels to be affected by the proposed exception, and the development standards.

b. An accurate legal description and a map of the land and any existing buildings.

~~c. Documentation describing the changed circumstances which warrant or require the exception.~~

~~d. Change in the number of residents, employees, patrons, or visitors in the area resulting from the exception.~~

~~e. Probable amount and type of traffic to be generated by the exception and the impact on the intersections with Bridgeway which serve the marinship.~~

~~f. Documentation describing how the proposed exception complies with the 1985 Traffic Initiative.~~

~~2. Exception Findings. In order to approve an exception to the marinship specific plan standards or definitions of use, the following findings must be made:~~

~~a. The exception requested addresses an implementation measure of the marinship specific plan and not a policy essential to achieving the goals of the plan.~~

~~b. The exception is needed to accommodate changed economic or operational circumstances affecting preferred uses described in the plan which were not or could not have been foreseen when the plan was adopted.~~

~~c. The exception furthers the intent of one or more goals of the marinship specific plan and the project is in substantial compliance with both specific and general regulations of the marinship specific plan and the underlying zoning designation.~~

~~d. The exception will not result in a significant negative impact on the traffic conditions in the marinship or on Bridgeway.~~

~~e. The exception will serve the needs of residents of Sausalito and employees in the marinship.~~

F. Chapter 10.40 (General Development Regulations) is hereby amended as follows:

* * *

SECTION 10.40.020. Development standards of the fair traffic limits initiative.

The following standards were adopted by a majority vote of the electors of the City of Sausalito on June 4, 1985 (full text in the appendix to this title). Included below, in italics, is clarification language adopted by Resolution 3407 of the City Council on July 16, 1985, and now made a part of this Zoning Ordinance. This section affects only the CN (commercial neighborhood), CS (commercial shopping center), ~~IM (industrial marinship),~~ CW (commercial waterfront), ~~and W (waterfront),~~ but does not affect the CC (central commercial), I (industrial), W (waterfront) or any residential zoning districts. The CR (commercial residential) zoning district is affected only as provided in SMC § 10.24.040(B) (New Development in CR District).

A. Findings and Purpose. The people of the City of Sausalito hereby find that it is in the best interests of the present and future residents of the City to reduce the increase in automobile traffic generated by new development in the City's commercial and industrial zones and to preserve the maritime character of those areas by reducing permissible density in commercial and industrial areas.

This reduction is necessary to protect property rights and to ensure orderly development in commercial and industrial zones in the City in a manner that will not generate excessive traffic, air or noise pollution, nor diminish the public health and welfare.

B. Application of Standards. It is the intention of the people of Sausalito that the following policies govern the implementation of density standards and maximum floor area ratios:

1. Existing uses which are made nonconforming by this amendment shall be considered nonconforming under the provisions of SMC § 10.62.020 (Applicability).

2. If on December 1, 1984, a parcel exceeds the maximum floor area ratio permitted by this amendment, that parcel may not be split into additional parcels in order to provide additional buildable area. *This section limits the division of land parcels which on or after December 1, 1984, equaled or exceeded the maximum floor area ratio.*

3. The zoning map of Sausalito effective as amended July 15, 1980, shall govern the affected zoning categories. No site may be redesignated to any other zoning classification that would allow greater density or floor area ratio. *The term "categories" may be used interchangeably with the term "classifications." The term "density" shall refer to the amount of floor area ratio as determined by the maximum floor area ratio column shown on the development standards table for each applicable commercial district. This section prohibits the redesignation of any site within the affected zoning districts to any other zoning classification from the list of classifications on the zoning map or any other zoning classification later invented, that would result in greater floor area ratio than presently attached to the site. No parcel reverts to the zoning classification that it bore on July 15, 1980.*

4. Where a parcel is already developed up to or beyond the maximum floor area ratio, no conversion or change in use may be permitted when that conversion or change in use will result in increased commercial usage or density. *The term "increased commercial usage or density" refers to the prohibition of increasing the allowable percentage of commercial use and floor area ratio above those indicated in the maximum floor area ratio column of the development standards table for each applicable commercial district. This section does not prohibit the addition or deletion to the list of permitted uses in each affected zoning classification; provided, that such a modification would not produce an increase in the amount of allowable floor area ratio that would have been permitted had the list not been modified.*

5. In the CR zone, residential uses existing as of December 1, 1984, may not be converted into any other uses. This section limits the conversion of residential uses in the CR (commercial-residential) zoning district which existed on or after December 1, 1984.

6. The maximum floor area ratios identified for the CN (commercial neighborhood), CS (commercial shopping center), ~~IM (industrial marinship)~~, CW (commercial waterfront), and ~~W (waterfront)~~ zoning districts may not be exceeded by variance, conditional use, planned unit development or any other device. *These zoning permits may not be used to increase the floor area ratio beyond the figures listed as the maximum floor area ratio in Table 2 of the initiative. Variances may be considered to modify required yards, height limit, required parcel size and building coverage; provided, that the variance does not result in an increase in the amount of development permitted by the floor area ratios in the development standards tables for each applicable commercial district.*

* * *

SECTION 10.40.040. Floor area ratio.

A. Applicability of Floor Area Limits. Floor area limits for buildings and structures are established by Chapters 10.20 through 10.28 (Zoning Districts Regulations), 10.44 SMC (Specific Use Requirements) and this chapter. New construction and additions to buildings shall not exceed the floor area ratio (FAR) limit identified in the site development standards table for each applicable zoning district (Chapters 10.20 through 10.26 SMC, base zoning district regulations).

B. Measurement of Floor Area. The sum of the gross horizontal surfaces of all enclosed buildings and any covered patio, balcony, court, deck, porch or terrace with over 50 percent of the surface of the exterior vertical area (not including the vertical area of the main building wall) enclosed by weatherproof materials (including closable windows, doors and louvers). Floor area shall be measured from the interior faces of the exterior walls and shall exclude vent, utility and elevator shafts; inner courts; 500 square feet of enclosed automobile parking spaces for single-family dwellings and the minimum area for parking and circulation required by SMC § 10.40.110 (Parking space requirements by land use) and 10.40.120 (Design and improvement of parking) for all other uses; and shall include attics, crawl spaces and other confined spaces with a ceiling height greater than five feet 11 inches where such space has a finished floor. Interior volumes in residential structures with a finished floor to top of roof height of over 20 feet for sloped roofs (minimum 4:12 pitch) and over 17 feet for flat roofs shall be counted as 1.5 times the finished floor area. Continuous staircases (e.g., stacked) shall be measured as floor area on one floor only. Discontinuous (e.g., offset) staircases in residential structures shall be measured as floor area on each floor. See Diagram 10.40-10.[1] [1] Editor's Note: Diagram 10.40-10 is included as an attachment to this title.

C. Floor Area Ratio (FAR) Calculation. "Floor area ratio" or "FAR" shall mean the floor area of the building or buildings on a parcel divided by the net area of the parcel. Floor area for basements where at least 50 percent of the exterior walls are subterranean shall receive a 50 percent discount. ~~A maximum of 500 square feet of subterranean floor area may receive the discount.~~ To receive this credit for subterranean floor area, the entire basement must be located within the required setbacks, an accessory dwelling unit or junior accessory dwelling unit must be located or proposed as a part of the development on the parcel, and the project must comply with all other parts of this title.

D. Floor Area Ratio (FAR) Limits. The maximum floor area allowed on any parcel shall be determined by multiplying the net parcel area by the maximum permitted FAR identified in the site development standards table for each applicable district. Also see SMC § 10.56.050.

E. Reserved.

F. Split Parcels. For parcels which are located within two or more separate residential zoning districts, the FAR calculation for structures within a certain zoning district shall be based upon the net parcel area only within that zoning district. Each portion of the parcel located within a different residential zoning district is treated as a separate parcel for determination of FAR entitlements. FAR entitlements within one residential district cannot be transferred to another residential district. This rule shall not apply in commercial districts for development associated with an approved master plan.

~~G. Industrial Equivalent FAR Requirements (Marinship Specific Plan). See SMC § 10.28.050(E)(4).~~

* * *

G. Chapter 10.44 (Specific Use Requirements) is hereby amended as follows:

* * *

SECTION 10.44.160. Houseboats.

A. Purpose and Applicability. Houseboats are subject to the requirements of this section when allowed by Chapter 10.22 (Residential Zoning Districts) or 10.24 SMC (Commercial Zoning Districts) in the H, W, and I ~~or W-M~~ zoning districts. In addition to the general purposes of this chapter, the specific purposes of this section regulating houseboats are as follows:

1. To provide a unique residential opportunity in water areas;

2. To ensure compatibility with adjacent land uses;

3. To ensure environmentally sensitive use of water areas for residential uses;

4. To provide specific regulations governing the reconstruction, alteration, and exterior remodeling of houseboats;

5. To ensure houseboat design reflects the maritime character of the area and encourages creativity and variety;

6. To preserve existing water views, privacy and sunlight for adjacent homes; and

7. To provide for public access to the shoreline.

B. Residential Density. The maximum density for residential uses in the H zoning district is one dwelling unit per 10,000 square feet, as specified in SMC § 10.40.030 (Minimum parcel standards). For houseboats located in marinas or harbors and outside the H zoning district, the maximum residential density shall be as permitted by applicable BCDC permits and Bay Plan policies, or as otherwise provided by state law. ~~10 percent of the total number of berths in the marina or harbor. The 10 percent total~~ The residential density includes the combination of any houseboats and liveaboards (SMC § 10.44.170, Liveaboards).

C. Houseboat Requirements. Houseboats shall be used or occupied for living quarters, either permanently or on a temporary basis, within the City, only in designated locations (as specified by the City), or in conformance with subsection A of this section (Purpose and Applicability). Houseboats must meet the following additional requirements:

1. Construction. Every houseboat shall be inspected and approved by the Sausalito Building Official, or any individual qualified to render such inspection and duly authorized by the City to review buoyancy, windage, stability and structure, and for compliance with this section.

2. Safety. Every houseboat shall be supplied with lifesaving equipment and extinguishers, access to circumference of the houseboat, and adequate means of egress.

3. Water Connection. Every houseboat shall have a secure water connection above the waterline with an approved backflow prevention device subject to the approval of the Sausalito Building Official and Fire Marshal.

4. Electrical Connection. Every houseboat shall have a permanent and adequate electrical connection.

5. Sewer. Every houseboat shall be connected to a public sewer system with adequate vents, tanks and ejector devices, consistent with the Uniform Building Code. Should a public sewer not be available, then other devices acceptable to the Regional Water Quality Control Board may be used.

6. Mooring. Every houseboat shall maintain adequate lines, cleats and other necessary mooring equipment. This shall be inspected by the owner and/or operator of the marina or property upon which or within which such watercraft

are located preceding the winter season.

7. Gangway (Secondary Walkway). Every houseboat shall have a firm and substantial walkway extending from houseboat to mooring docks.

8. Construction Specifications. All construction shall conform to the specifications of the most recent Uniform Building Codes adopted by the City of Sausalito.

D. Permit Required for Construction or Alteration of, or Moving Houseboat into, City. No person shall commence the construction, alteration or renovation of any houseboat within the City, or move a houseboat into the City, for use within the City, until a permit authorizing such work has been obtained from the Building Official. The fees for such permits shall be based upon the rates established by the latest Building Division fee schedule adopted by the City Council. All and any work thereafter shall comply with the requirements set forth in this section.

E. Development Standards. All reconstruction, alteration, and exterior remodeling of houseboats shall comply with the following standards:

1. The houseboat shall not exceed a maximum height of 18 feet, as measured according to SMC § 10.40.060 (Height requirements);

2. The maximum floor area of a houseboat, as specified in SMC § 10.40.040 (Floor area ratio), shall not exceed 1,700 square feet;

3. The floor area of any story above the lowest story of a houseboat shall not exceed 80 percent of the floor area of the story immediately below; and

4. In addition to the setback requirements for the district, the clear separation between houseboats on one parcel shall be at least 10 feet, plus an additional five feet for each story in excess of one story in each vessel, to a maximum distance of 20 feet.

F. Design Standards. Houseboats should be designed to include the following:

1. Compatible scale to recreational boats and other houseboats in the vicinity. Compact, well-organized interior spaces are encouraged.

2. Large, two-story houseboats in areas of predominantly small, one-story houseboats or small recreational boats are discouraged.

3. Roof lines designed to visually reduce boat's bulk (e.g., curved, sloped or other articulated roof lines).

4. Architectural details and enhanced character to eliminate "box-like" appearance (e.g., eaves, bay windows, decks).

G. View and Water Access Standards.

1. Views, Sunlight and Privacy. Houseboats should be placed so that they preserve, to the greatest extent possible, existing water views, privacy, and

sunlight for adjacent homes. Design review approval shall not be granted if the proposal significantly obstructs water views, either from nearby structures, or from a distance.

2. Water Access. Provision of public access to the shoreline is encouraged on parcels containing houseboat marinas and may be required as a condition of approval of discretionary permits.

H. Parking Standards. All houseboats shall provide off-street parking in the amount and manner specified in SMC § 10.40.100 (Parking standards) et seq.

I. Multiple Units (H District Only). A conditional use permit shall be required for multiple-unit residential houseboats (not to exceed three units). Any application shall provide evidence of the multiple-unit houseboat's historic significance to the City of Sausalito and the houseboat's historic use as a duplex or three-unit floating residence. The Community Development Director, upon consultation with the Historic Preservation Commission, shall determine the adequacy of the evidence.

J. Commercial Uses. Commercial uses of any houseboat shall be limited to ancillary home occupations.

* * *

SECTION 10.44.170. Liveaboards.

A. Purpose. Liveaboards are subject to the requirements of this section, as provided by Chapter 10.24 SMC (Commercial Zoning Districts) and when allowed in the W or CW zoning districts in accordance with Table 10.24-1. In addition to the general purposes of this chapter, the specific purposes of allowing and regulating liveaboards on private vessels in recreational marinas or harbors are as follows:

1. To provide affordable housing opportunities for low and moderate income households;

2. To promote 24-hour security in marinas and harbors;

3. To ensure compatibility with adjacent land uses; and

4. To ensure environmentally sensitive use of water areas for residential uses.

B. Applicability. Any vessel occupied in its berth for more than 180 nights in a calendar year shall be classified as a liveaboard vessel and subject to this section.

C. Residential Density. The maximum density for residential uses in the CW, W and I ~~CW and W~~ zoning districts shall be as permitted by applicable BCDC permits and Bay Plan policies, or as otherwise provided by state law. ~~10 percent of the total number of berths in the marina or harbor. The 10 percent total~~ The residential density includes the combination of any liveaboards and houseboat uses (SMC § 10.44.160, Houseboats).

D. Liveaboard Requirements. Use or occupancy of a sailing vessel for living quarters, either permanently or on a temporary basis, shall be in conformance with subsection A of this section (Purpose). Liveaboards shall also meet the following additional requirements:

1. Safety. Every boat shall be supplied with lifesaving equipment and extinguishers and other safety equipment and placards as specified in the current United States Coast Guard regulations, access to circumference of the boat, and adequate means of egress.

2. Reserved.

3. Sewer. Every boat shall be connected to a public sewer system with adequate vents, tanks and ejector devices. Should a public sewer not be available, other devices acceptable to the Regional Water Quality Control Board and United States Coast Guard may be used. Holding tanks designed and intended to accept all waste discharges from boats may be approved by the City where direct sanitary sewer connections cannot be accomplished and the marina or harbor has pump-out facilities or is under contract with a pump-out service.

4. Mooring. Every boat shall maintain adequate lines, cleats and other necessary mooring equipment at all times. This shall be inspected by the owner and/or operator of the marina or property upon which or within which such watercraft are located preceding the winter season.

5. Navigable Vessels. Every vessel shall be able to move under its own power (sail or engine). Vessels inoperable for more than 90 consecutive days shall be classified as houseboats and subject to the requirements of SMC § 10.44.160 (Houseboats) and shall not be deemed legal, nonconforming liveaboard uses.

E. Parking Standards. Off-street parking spaces shall be provided in the amount and manner specified in SMC § 10.40.100 (Parking standards) et seq.

F. Commercial Uses. No vessel used for liveaboard purposes may be used for commercial uses except marine service vessels. The provision of paid crew is not a commercial use under this section.

G. Dockside Charters. Dockside charters shall be prohibited. No vessel used for liveaboard purposes shall be rented or chartered except where the provision of living accommodation is incidental to the operation of the vessel. A minimum term of 30 days shall be required for liveaboard tenants, all boats used for liveaboard purposes must be operable, and the primary liveaboard tenant shall know how to operate the vessel that he or she is renting.

H. Low and Moderate Income Housing. As vacancies occur, marina operators shall give preference to qualified low and moderate income tenants until such tenants constitute at least 50 percent of the liveaboard vessels in the marina.

* * *

SECTION 10.44.210. Restaurants.

Any proposed restaurant is subject to the requirements of this section, as provided by Chapters 10.20 through 10.28 SMC (Zoning Districts Regulations).

A. Standard Requirements. The following uses are excluded in all zoning districts and are not included in the definition of restaurants:

1. Retail catering establishments without on-site dining or accessory to a grocery store.

2. Establishments serving customers within their automobiles on the premises or preparing food intended for consumption within automobiles on the premises.

3. Establishments primarily preparing food intended for consumption off the premises.

B. Music and/or Dancing. Music and/or dancing are only permitted as an accessory use to an approved eating or drinking establishment.

1. A minor use permit is required (see Chapter 10.58 SMC).

2. Findings. The Zoning Administrator may approve or conditionally approve a minor use permit if the following findings can be made in addition to those required by SMC § 10.58.050:

a. The proposed use is incidental to a primary restaurant use.

b. The proposed use will not adversely affect residential uses.

3. Conditions. All minor use permits for music and/or dancing must meet the following conditions:

a. Under Planning Division supervision and at the cost of the applicant, prior to commencement of use the ambient noise levels shall be established from specific residential properties within 300 feet of the restaurant premises. The location of the ambient noise measurements shall be established by the Community Development Director during the completeness review of the minor use permits application.

b. Under Planning Division supervision and at the cost of the applicant, noise measurements shall be taken after commencement of the use to ensure that the noise source does not exceed "audible" levels (see Chapter 10.88 SMC for definition of "audible"). Thereafter, testing shall be done at any time so directed by the Community Development Director.

c. Noise from the music and/or dancing shall not be audible from any residential property or from within any residential unit.

d. Music and dancing shall only be allowed between the hours of 9:00 a.m. and midnight.

C. Alcoholic Beverages. The sale of alcoholic beverages in restaurants is subject to the permits identified in Table 10.44-2 (Permits Required for Alcoholic Beverage Sales in Restaurants):

Table 10.44-2
PERMITS REQUIRED FOR ALCOHOLIC BEVERAGE SALES IN RESTAURANTS

Permitted Sales	District	Permit
Establishments serving any alcoholic beverage for consumption on the premises	CC, CN, CW, ~~IM~~	CUP
Establishments serving beer and wine only	CR, W	MUP

MUP Minor use permit (Chapter 10.58 SMC)
CUP Conditional use permit (Chapter 10.60 SMC)

~~D. Waterfront Zoning District with Marinship Overlay (W-M). Commercial food service and small-scale restaurants in the waterfront marinship (W-M) zoning district shall meet the following requirements:~~

~~1. A needs analysis shall be completed that addresses the need to serve employees in the marinship and the amount of food service square footage that will be allowed.~~

~~2. Occupancy shall be based on needs analysis and shall be limited to 20 persons.~~

~~3. A finding is required that the location and signing does not encourage use by persons outside the marinship.~~

~~E. Industrial Marinship (IM) District. Eating establishments located within an existing industrial or office structure as accessory uses are permitted. Independent restaurants shall be subject to the following requirements:~~

~~1. The need for such a facility to serve employees in the marinship area (as indicated with the -M overlay zoning designation) shall be determined.~~

~~2. New restaurants shall meet the following requirements:~~

~~a. Located on parcels of at least four acres.~~

~~b. Limited to a maximum occupancy of 40 seats.~~

~~c. Subject to the issuance of a conditional use permit pursuant to Chapter 10.60 SMC (Conditional Use Permits).~~

~~3. A finding is required that the location and signage does not encourage use by persons outside the marinship area.~~

* * *

H. Chapter 10.52 (Zoning Permits) is hereby amended as follows:

SECTION 10.52.010. Purpose.

The zoning permit process allows for review of new and modified structures and uses for compliance with all provisions of this title. In addition to the general purposes established by SMC § 10.10.030 (Title and purpose), the specific purposes of this chapter are as follows:

A. To provide for Community Development Department review of all permitted land uses; and

B. To ensure building permits are issued consistent with this title.

SECTION 10.52.020. Applicability.

Application shall be made on a form provided by the Community Development Department at the time application is made for the building permit. If no building permit is required, application shall be made whenever there is any change in the use of any structure, or any change of use in any land, or whenever there is a change in existing grade greater than six feet or whenever any sign is erected, altered, strung, or otherwise displayed. Building permits for nonstructural interior work (e.g., plumbing and electrical permits, interior water heater replacement, and nonstructural interior remodels) shall not require a zoning permit, unless otherwise determined by the Community Development Director.

SECTION 10.52.030. Application contents.

The applicant shall submit all required data at the time of making application, including a site plan drawn to scale showing location of all existing and proposed buildings, yards, driveways, and parking areas and all other uses on the property as required to assure consistency with the general plan, ~~marinship specific plan~~ and Zoning Ordinance. Acceptance of an application does not constitute any indication of approval.

* * *

I. Chapter 10.56 (Encroachment Review and Agreements) is hereby amended as follows:

SECTION 10.56.010. Purpose.

The encroachment review and agreement process provides an opportunity to review permanent and/or semi-permanent encroachments onto public lands, easements and rights-of-way of the

City of Sausalito. In addition to the general purposes of this title, the specific purposes of this chapter regulating encroachments are as follows:

A. To review and regulate the long-term (three years or more) use of City of Sausalito properties and easements by individual property owners;

B. To protect the City of Sausalito's interests in City-owned property and easements;

C. To examine demonstrated physical need by neighboring property owners to use and improve adjacent or nearby publicly owned properties or easements for long-term and short-term private use;

D. To ensure that permanent and/or semi-permanent private use of City-owned properties or easements will not affect the need for, and use of, public passageways and utilities;

E. . To ensure compatibility of permanent and/or semi-permanent encroachments with the surrounding area;

F. To ensure land use review of permanent and/or semi-permanent encroachments;

G. To ensure consistency of encroachments with the general plan, ~~marinship specific plan~~, other sections of the Municipal Code and applicable plans and ordinances; and

H. To provide for the necessary removal or termination of any encroachment.

* * *

J. Chapter 10.88 (Definitions) is hereby amended as follows:

* * *

SECTION 10.88.040. Specialized terms and land use definitions.

The definitions that follow include lists of the various land uses included under each general title. It is the intention of this chapter that by referencing specific uses, those are the specific uses that are permitted in the applicable zoning district. Uses that are not listed are not permitted. Chapters 10.20 through 10.28 (Zoning Districts Regulations), 10.40 (General Development Regulations), 10.42 (Sign and Awning Regulations) and 10.44 SMC (Specific Use Requirements) specify permit requirements and/or development standards applicable to a given use.

Whenever a land use definition in this section includes a reference to "SIC," such reference is to the Standard Industrial Classification Manual, 1987, published by the Executive Office of the President of the United States, Office of Management and Budget. The SIC is a collection of more comprehensive and detailed definitions of land uses, which may be consulted as a reference by the Community Development Director and/or the Planning Commission in determinations regarding

specific land uses allowed in particular zoning and overlay districts. If the SIC identifies a use which is not listed in the definitions contained in this chapter, this chapter is the governing list of permitted uses (not the SIC). However, a project proponent may file a determination of use application pursuant to the provisions of SMC § 10.80.080 (Determination of use) and the Planning Commission may use the SIC as a reference in reaching its decision.

"Access way" means a portion of a parcel of land which because of its size and shape and its relationship to the street and the balance of the property is suitable only for providing vehicular or pedestrian access to the balance of the property.

"Accessory dwelling unit" means an attached, detached, or interior residential dwelling unit that provides complete independent living facilities for one or more persons and is located on a lot with a proposed or existing primary dwelling unit. It shall include permanent provisions for living, sleeping, eating, cooking, and sanitation on the same parcel as the single-family or multifamily dwelling is or will be situated. An accessory dwelling unit also includes an efficiency unit, as defined in California Health and Safety Code Section 17958.1, and a manufactured home, as defined in California Health and Safety Code Section 18007 as may be amended from time to time.

"Accessory structure or building" means a detached building or structure which is subordinate to, substantially smaller than, and the use of which is customarily incidental to, that of the main building, structure, or use on the same lot.

"Accessory use" means a use accessory to any principal use and customarily a part thereof, which is clearly incidental and secondary to the principal use and does not change the character of the principal use.

"Affordable rent" means the amount of monthly rent, including a reasonable utility allowance, that does not exceed the maximum allowable rent to be charged by the property owner and paid by very low income households, or low income households, or moderate income households, as the case may be, occupying the accessory dwelling unit as determined pursuant to Section 50053 of the California Health and Safety Code.

"Affordable units" means units within a residential development which will be reserved for sale or rent to, and made available at an affordable rent or affordable ownership cost to, very low, low or moderate income households.

"Agricultural accessory structure" means an uninhabited structure or building designed and built to store farm animals, implements, supplies or products that contains no residential use and is not open to the public. Includes: Barns and other similar buildings and structures, but not commercial greenhouses (which are under "plant nurseries") or buildings for agricultural processing activities.

"Alcoholic beverage" means any beverage falling within the definition contained in Section 23004 of the Business and Professions Code of the State of California.

"Animal enclosures" means any structure including, but not limited to, pens, paddocks, corrals, stalls, stables, barns, shelters, or any other similar facility, within which animals are permanently kept or which are intended primarily for the keeping of animals.

"Animal raising and keeping" means the keeping, feeding or raising of animals as an avocation, hobby, or school project as a subordinate use to a principally permitted land use. Includes the keeping of aviaries; worm farms; household pets, etc.

Antennas. See "wireless communication facilities."

Apartment. See "dwelling, multiple-family."

"Appurtenance" means a building element attached to a structure, including a bay window or a decorative element that projects from the plane of a structure wall.

Ark. See "dwelling, single-family ark."

"Arterial" means any major street/road designed for thoroughfare use by regional traffic as distinguished from neighborhood streets, local service routes or collector avenues.

"Arts, applied" means the design, crafting, and construction of custom products for commercial purposes by persons who employ artistic techniques. Applied arts uses include, but are not limited to:[1]–[2]

1. Architecture and building design;

2. Commercial photography;

3. Digital media design, computer software and website design;

4. Graphic design including production;

5. Home decoration;

6. Interior design;

7. Landscape architecture and design;

8. Marine applied arts such as:

    a. Marine graphics and illustration;

    b. Marine photography;

    c. Marine publishing (fine art);

    d. Nautical arts and photography;

    e. Naval architecture and design;

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[1] ~~**Definition also in the marinship specific plan.**~~

[2] ~~**Definition also in the marinship specific plan.**~~

f. Naval engineering.

"Arts, fine" means the design, crafting, and construction of singular, fine art products by persons who employ artistic techniques. Fine arts include, but are not limited to:[3]

1. Artists, such as painters, potters, sculptors, photographers, poets, and authors;

2. Arts and crafts studios;

3. Digital artists;

4. Publishers;

5. Theatrical groups.

"Arts, industrial" means the design, crafting, and construction of unique or custom-made industrial products by persons who employ artistic techniques. Industrial arts uses include, but are not limited to:[4]

1. Cabinet making;

2. Metal fabricating;

3. Casting (metal, concrete, plaster, plastic, etc.);

4. Woodworking.

"Arts, marine" means the design, crafting, and construction of unique or custom-made marine products by persons who employ artistic techniques. Marine arts uses include, but are not limited to:[5]

1. Boat building and fabricating;

2. Marine carpentry, cabinet making, woodworking.

Attached. For purposes of this title, buildings and structures shall be considered "attached" if they share a common roof system and/or building walls.

"Attached accessory dwelling unit" means an accessory dwelling unit that shares a common wall with the primary dwelling unit on the lot, either by being constructed as a physical expansion (i.e., addition) of the primary dwelling unit, conversion of an existing garage attached to the primary dwelling on all parcels that do not contain single-family dwellings, or installation of a new basement underneath an existing primary dwelling unit.

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[3] ~~**Definition also in the marinship specific plan.**~~
[4] ~~**Definition also in the marinship specific plan.**~~
[5] ~~**Definition also in the marinship specific plan.**~~

Audible. Noise shall be considered to be "audible" if it exceeds five decibels above the ambient noise level. The ambient noise level shall be established with a noise meter or as defined, by zoning classification, in SMC § 12.16.040, whichever is greater. Sound levels shall be measured with a sound level meter using the A weighting and slow response pursuant to SMC § 12.16.030.

"Author" means a person who writes as a profession.

"Auto, vehicle and parts sales" means retail trade establishments selling and/or renting new and used automobiles, boats, vans, campers, trucks, recreational and utility trailers, motorcycles, golf carts, and jet-skis (except bicycles and mopeds, which are included under "retail stores"). This use includes any sales of vehicles by an individual when more than six vehicles are sold in one calendar year. Also includes stores selling new automobile parts, tires and accessories (including tire recapping establishments), as well as establishments dealing in used automobiles exclusively. Does not include "service stations," which are separately defined. (SIC: Group 55.)

Banks and Financial Services — Retail. See SMC § 10.44.340.

"Bed and breakfast lodging" means a structure, with one family in permanent residence, where bedrooms without individual cooking facilities are rented for overnight lodging. Meals may be provided subject to applicable County health regulations. Bed and breakfast establishments and other overnight lodging facilities in commercial zones are considered to be hotels regardless of their design or operational character. This definition does not include "hotels" which are defined separately; rooming and boarding houses, which are included under "multiple-family dwellings"; or the rental of an entire residence for one week or longer.

"Building" means a roofed structure built for the support, shelter, or enclosure of persons, animals, or property of any kind. When the parts of a structure are joined only by a breezeway, each such part is a separate building. For the purposes of this title, "building" includes permanent tents and floating structures other than navigable craft docked or moored pending their use for movement of people or goods.

"Building height" means the height of a building as defined in SMC § 10.40.060(B)(1) (Standard Building Height).

"Building, main" means a building within which is conducted the principal use on the parcel. Where a use involves more than one building designed or used for the primary purpose, as in the case of dwelling groups or a group of commercial or industrial buildings, each such building on the parcel shall be considered a main, principal, or primary building.

"Building material stores" means primarily indoor retail establishments selling lumber and other large building materials, and also including paint, wallpaper, glass, fixtures, nursery stock, lawn and garden supplies (which may also be sold in hardware stores, included under the definition of "retail stores, general merchandise"). Includes all such stores selling to the general public, even if contractor sales account for a larger proportion of total sales. Also includes incidental retail ready-mix concrete operations. Establishments primarily selling electrical, plumbing, heating, and air conditioning equipment and supplies are classified in "wholesaling and distribution." (SIC: Group 52.)

"Bulk reverse vending machine" means a reverse vending machine that occupies an area larger than 50 square feet; is designed to accept more than one container at a time; and will pay by weight instead of by container.

"Business support services" means establishments primarily within buildings, providing other businesses with services including maintenance, repair and service, testing, rental, etc.; also includes:

1. Addressing and mailing service;

2. Blueprinting;

3. Business equipment repair services (except vehicle repair, see "repair and maintenance — vehicle");

4. Business supplies;

5. Commercial art and design (production);

6. Computer-related service (rental, repair, maintenance);

7. Equipment rental businesses within buildings;

8. Exterminators;

9. Film processing laboratories;

10. Janitorial services;

11. Mail advertising services (reproduction and shipping);

12. Photocopying;

13. Photofinishing;

14. Protective services (other than office related);

15. Research and development laboratories;

16. Soils and materials testing laboratories;

17. Stenographic services;

18. Window cleaning. (SIC: Groups 73, 87.)

"Catering, retail" means a business that prepares, delivers and serves food for consumption at off-site locations.

"Certified mobile home" means mobile homes that are certified under the National Mobile Home Construction and Safety Act of 1974 (42 USC Section 5401, et seq.).

"Child day care center" means a commercial or nonprofit facility that does not meet the definition of "Child day care, large and small family day care home" and that provides care, protection and supervision of minor children for periods of less than 24 hours, typically while parents are working and/or before or after daily attendance at an elementary school. Child day care centers may be operated in conjunction with a school or church facility, or as an independent land use. Includes preschools and nursery schools. Such facilities are required to be licensed by the California State Department of Social Services. See SMC § 10.44.100 (Child day care) for special land use requirements.

"Child day care, large and small family day care home" means, as provided by Chapters 3.4 through 3.6 of Division 2 of the Health and Safety Code, or its successor, a private dwelling unit where care, protection and supervision of 12 or fewer minor children for periods of less than 24 hours is regularly provided, typically while parents are working. This land use includes large family day care homes, which care for seven to 12 children, and small family day care homes, which care for six or fewer children. Such facilities are required to be licensed by the California State Department of Social Services. See SMC § 10.44.100 (Child day care) for special land use requirements.

"Chimney" means a vertical shaft enclosing one or more flues for conveying gases to the outside atmosphere.

"Clothing products" means manufacturing establishments producing clothing and fabricating products by cutting and sewing purchased textile fabrics, and related materials such as leather, rubberized fabrics, plastics, and furs. Also includes leather products and clothing. Custom tailors and dressmakers not operating as a factory and not located on the site of a clothing store ("general merchandise stores") are included under "personal services." (SIC: Groups 23, 31.)

"Co-location" means locating multiple wireless communications antennas at a single facility.

"Columbariums and mortuaries" means interment establishments engaged in offering burial plots or air space for sale. Includes mausoleum and columbarium operations; and full-service funeral parlors, separate from a cemetery or columbarium.

Commercial Use. ~~See marinship overlay, SMC § 10.28.050.~~ For purposes of the Industrial (I) and Waterfront (W) zones, commercial uses include, but are not limited to accessory/ancillary office, commercial services, restaurants, food services, and ancillary retail, as provided in SMC §10.26.030(B) and §10.26.040(D). For other zoning districts, commercial use is defined by the applicable zoning district regulations in Chapters 10.20 through 10.28 SMC.

"Commercial vehicle" means any motor vehicle other than a standard passenger car, pickup truck or van with a rated carrying capacity of less than one ton, or a single-or double-axle trailer 15 feet or less in length. Commercial vehicles include vehicles more than 20 feet in length and single- or double-axle trailers in excess of 15 feet in length, tow trucks, water trucks, busses, dump trucks, forklifts, front loaders, backhoes, carryalls, graders, tracked vehicles, bulldozers, tractors with or without semitrailers, and farm equipment in excess of 10 feet in length.

"Community apartment" means a development in which an undivided interest in the land is coupled with the right of exclusive occupancy of any apartment located thereon.

"Condominium" is defined as set forth in California Civil Code Section 783. Wherever the term "condominium" is used in this title it shall also be deemed to include "community apartment" and "stock cooperative." "Condominium" shall also include an estate in real property consisting of an undivided interest in common in a portion of a parcel of real property developed for marina or yacht harbor purposes together with a separate interest in a berthing space in such marina or yacht harbor.

"Condominium conversion" means the conversion of existing real estate and/or structures to separate, saleable condominium units, potentially involving new construction and/or improvements.

"Construction permit" means any or all of the various entitlements established by this title and/or SMC Title 8 (Buildings and Construction) that authorize commencement of construction activities, including but not limited to building permits, grading permits, electrical and plumbing permits, and demolition permits.

"Convenience zone" is an area within a one-half mile radius of a supermarket. A supermarket, for the purpose of this title, is defined as a full-line, self-service retail store with gross annual sales of $2,000,000 or more, and which sells a line of dry grocery, canned goods, or nonfood items and some perishable items.

"Cottage industries" means the following uses within existing structures on school district property that are not related to the functions of the school district. Cottage industry uses provide for interim, low-intensity, low-density uses compatible with adjacent school uses and residential uses. Retail sales are not permitted in these commercial/industrial businesses. Office use is not permitted except as an accessory use to the uses listed below:

1. Art studios and fine arts.

2. Bookbinding.

3. Craft workshops.

4. Dental labs.

5. Design studios for advertising, building, industrial, stained glass and landscape designers.

6. Marine equipment manufacturing.

7. Picture framing shops.

8. Repair shops for musical instruments, electrical appliances, radios, televisions and furniture.

9. Sign printing shops.

10. Storage and warehousing.

11. Theater workshop.

12. Upholstery shops.

13. Food preparation and catering.

14. Pottery studios.

15. Woodshops.

Coverage. See SMC § 10.40.050 regarding building and impervious surface coverage limitations.

"Deck" means an outdoor activity area consisting of a manmade platform that is elevated above the surrounding finished~~finshed~~ grade.

"Demolition, involuntary" means demolition or damage to structures or buildings due to unanticipated or accidental catastrophic events such as, but not limited to, fire, earthquake, mudslide, flooding, or collision. Does not include deterioration by weathering and/or dry rot, or deterioration due to inadequate maintenance.

"Demolition, partial" means the removal, replacement, renovation, or alteration of (1) less than 51 percent of the lineal footage of such existing elements as the interior and exterior walls as determined by the Community Development Director, or (2) less than 51 percent of the area of existing floors, ceilings and roofs as determined by the Community Development Director.

"Demolition, substantial" means the removal, replacement, or alteration of (1) 51 percent or more of the lineal footage of such existing elements as the interior and exterior walls, or (2) 51 percent or more of the area of existing floors, ceilings and roofs as determined by the Community Development Director.

"Demolition, voluntary" means demolition or damage to structures or buildings due to premeditated acts of the property owner or representative.

"Density" means the measure of the ratio of population to the area of land occupied by that population, which for the purposes of this title is expressed as dwelling units per acre. "Gross density" is the number of lots derived from dividing the area of a site by the area required for each lot or dwelling unit. "Net density" is the number of lots resulting from subtracting the area required for streets (in the case of a subdivision) from the total area of the undivided site, and then dividing the remaining area by the area required for each lot.

Density Bonus. See "residential density bonus."

"Detached accessory dwelling unit" means an accessory dwelling unit that is constructed as a separate structure from the primary dwelling unit on the lot, or on all parcels that do not contain single-family dwellings is created by the conversion (full or partial) of an existing detached

accessory structure into an accessory dwelling unit, or is created by adding to an existing accessory structure.

"Development" means any construction activity or significant alteration of the landscape, its terrain contour or vegetation, including the erection or alteration of buildings or structures.

"Digital arts" means the practice of digitally enhancing traditional material produced by nondigital mediums including photos, film, video, print, and sound.

"Director" means the Community Development Director or his/her designee.

"Discretionary permit" means a land use entitlement that may be issued under the provisions of this title, but requires the exercise of judgment and the resolution of factual issues to determine if the application and proposed development or land use conform with the provisions of this title. These include administrative design review permits (SMC § 10.54.040), design review permits (SMC § 10.54.050), encroachment agreements (Chapter 10.56 SMC), minor use permits (Chapter 10.58 SMC), conditional use permits (Chapter 10.60 SMC), nonconforming permits (Chapter 10.62 SMC), condominium conversion permits (Chapter 10.66 SMC), and variances (Chapter 10.68 SMC). Generally, a discretionary permit consists of any entitlement that requires a decision to approve, approve subject to conditions or deny, based on the judgment of the Community Development Department staff, Zoning Administrator or Planning Commission.

"Dock" means a waterborne floating platform affixed to pilings, which may travel in a vertical direction for the purpose of mooring boats. Shall not include drydocks capable of servicing vessels in excess of 60 feet in length (pier, drydock).

"Dockside charter" means an agreement which prohibits a boat from leaving its berth.

"Drinking establishments" means establishments primarily engaged in the retail sale of alcoholic drinks, such as beer, ale, wine, and liquor, for consumption on the premises. Such establishments include bars, beer gardens, beer and/or wine tasting rooms, saloons, and taverns. (SIC: Group 58.)

"Driveway" means a vehicle access way extending from a road or street (See "street") to a building or structure, vehicle parking or delivery area, or pedestrian drop-off point on the site of a land use, or between such areas on a site. A driveway serves no more than two separately owned parcels.

"Drive-in and drive-thru services" means facilities where motorists may obtain services without leaving their vehicles. Such facilities include drive-up teller windows in banks, etc. Specifically excludes facilities where food or other products may be purchased by motorists without leaving their vehicles, e.g., fast food restaurants.

"Drydock" means a waterborne platform and hoist designed for the purpose of cleaning and repairing boats on and above the water surface.

"Duplex" means a single residential building containing two dwelling units.

"Dwelling" or "dwelling unit" means one or more habitable rooms that are designed and/ or used as independent living space for one household, with facilities for living, eating and sleeping, with

no more than one kitchen and at least one bathroom, and where all such habitable areas have access to each other from within the building.

"Dwelling, multiple-family" means three or more dwelling units on one lot. "Dwelling, single-family" means one dwelling unit on one lot.

"Dwelling, single-family ark" means a single-family dwelling existing in the ark (A) district at the time of adoption of this title, or a single-family dwelling the exterior design of which is an exact replica of the structure existing at the time of adoption of this title.[6]

"Dwelling, two-family" means two dwelling units on one lot.

"Electromagnetic field (EMF)" means fields of radiation produced by all electromagnetic waves, from gamma rays to radio waves. The EMF produced by wireless facilities is radio frequency radiation.

"Emergency shelter" means housing with minimal supportive services for homeless persons that is limited to occupancy of six months or less by a homeless person. No individual or household may be denied emergency shelter because of an inability to pay (Health and Safety Code Section 50801(e)).

FAR or Floor Area Ratio. See SMC § 10.40.040.

"Fence" means a structure designed to act as an enclosure or barrier constructed of wood, posts, or other materials.

"Flag lot" means a lot which does not have direct frontage on a road or street, and which is connected to a road or street by a narrow fee ownership appendage that is primarily used to provide access to the building site on the lot.

"Float" means a waterborne platform anchored or secured to the bottom rather than affixed to a piling.

Floor Area. For a definition of floor area, see SMC § 10.40.040.

"Floor, finished" means a flat floor on any level of a home that has been finished for purposes of occupancy or storage. Does not include crawl spaces with dirt floors or attics with rafter/insulation.

Formula Retail. See SMC § 10.44.240.

"Frequency" means the number of cycles made by electromagnetic radiation in one second.

"Fuel and ice dealers" means retail trade establishments primarily engaged in the sale to consumers of ice, bottled water, fuel oil, butane, propane and liquefied petroleum gas (LPG), bottled or in bulk, as a principal use. (SIC: Group 598.)

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[6] ~~**Definition also in the marinship specific plan.**~~

"Furniture, furnishings and equipment stores" means stores primarily selling: Home furnishings such as antiques, furniture, floor coverings, draperies, glass and chinaware, stoves, refrigerators, other household electrical and gas appliances including televisions and home sound systems and outdoor furniture such as lawn furniture, movable spas and hot tubs. Establishments selling electrical and gas appliances are included only if the major part of their sales consists of articles for home use. Also includes the retail sale of office furniture and large musical instruments. (SIC: Group 57.)

Garage or Carport. A "garage" is a structure dedicated for the parking of vehicles that is enclosed on at least three sides; a "carport" is enclosed on no more than two sides. Any parking space(s) in a garage must comply with the minimum parking space dimensions specified in SMC § 10.40.100 (Parking standards).

"Garage parking space" means an accessible and usable enclosed parking space of not less than nine feet by 19 feet for the storage of automobiles.

"Garage, private" means a building or part thereof accessory to a main building and used primarily for the storage of private passenger automobiles.

"Garage, public" means any premises other than a private garage, used for the storage and/or care of self-propelled vehicles, or where such vehicles are equipped for sale or lease. As a land use, public garages are included under the definition of "vehicle storage."

"Granting authority" includes the Building Official, Director, Zoning Administrator, Planning Commission and City Council.

Harbor and Marina Facilities. Harbors involve the physical alteration of the shoreline to accommodate facilities such as docks and piers, breakwaters, artificial channels or fills. Marinas are water-oriented service establishments, including: Yachting and rowing clubs, boat rental, storage and launching facilities; excursion boat and sight-seeing facilities; service docks; and other marina-related activities, including but not limited to fuel sales and boat sales.

Height. See "building height."

"Historic building" means a structure of historic significance based on the criteria contained in Chapter 10.46 SMC.

"Historic landmark" means any building, structure or site that has been so designated by the City Council due to its architectural or cultural historic significance.

"Historic register, local" means a local register of historic structures and sites designated by the City Council, pursuant to Chapter 10.46 SMC.

"Historic resource" means any site, or portion, feature, or use that has architectural or cultural historic significance based upon the criteria contained in Chapter 10.46 SMC.

"Home occupation" means the gainful employment of the occupant of a dwelling in a limited commercial activity, with such employment activity being subordinate to the residential use of the

property. See SMC § 10.44.030 (Home occupations) for specific use requirements applicable to home occupations.

"Hotel" means any structure, or any portions of any structure, which is occupied or intended or designed for occupancy by transients for dwelling, lodging or sleeping purposes, and includes any hotel-condominium, inn, motel, studio hotel, bachelor hotel, lodging house, tourist home or house, rooming house, apartment house, dormitory, public or private club, mobile home or house trailer at a fixed location, or other similar structure or portion thereof. A "hotel" facility excludes timeshare estates and/or timeshare properties, but includes hotel-condominiums and their respective hotel management entities wherein the owners of hotel-condominiums obtain an estate in real property consisting of an undivided interest in common space together with a separate interest in space called a unit, the boundaries of which are described on a recorded final map, parcel map, or condominium plan in sufficient detail to locate all boundaries thereof.

"Hotel-condominium conversion" shall mean the change in the form of ownership of any hotel to separate, saleable condominium units as defined in Section 1351(f) of the California Civil Code.

"Houseboat" means a floating boat, vessel, or industrial or commercial structure on, or in, the waters of the State, which is designed, fitted out, or used principally for residential purposes and is not principally used for active navigation. See SMC § 10.44.160 (Houseboats) for specific use requirements related to houseboats.[7]

"Household" means a single individual or a collective body of individuals, with common access to a single kitchen and eating areas sharing household responsibilities and activities, which may include chores, meals, shared expenses, and recreational activities, and living together upon the premises as a single family unit or single housekeeping unit, or functional equivalent thereof, as distinguished from a group of individuals occupying a boarding house, lodging house, club, fraternity, sorority or hotel who do not form a single family unit, housekeeping unit, or functional equivalent thereof

"Household income levels: very low, low and moderate"[8] means households whose gross incomes do not exceed the qualifying very low, low and moderate income limits established in Section 6932 of the California Code of Regulations, as amended periodically based on the U.S. Department of Housing and Urban Development (HUD) estimate of median income in Marin County, and as adjusted by the State Department of Housing and Community Development (HCD). Pursuant to Code Sections 6926, 6928 and 6930, these income limits are equivalent to the following:

1. Very low income household: 50 percent of area median income, adjusted for household size appropriate for the unit and other factors determined by HUD;
2. Low income household: 80 percent of area median income, adjusted for household size appropriate for the unit and other factors determined by HUD;
3. Moderate income households: 120 percent of area median income adjusted for household size appropriate for the unit and other factors determined by HUD.

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[7] ~~**Definition also in the marinship specific plan.**~~

[8] **Code reviser's note: This definition specifically used in the context of SMC § 10.40.130.**

Pursuant to the Code of Federal Regulations (24 CFR
consistent with the income eligibility criteria utilized by
other net income of any kind from real personal property'
household income.

"Household, low income" means a household earning le
median income based upon information provided by the U
Urban Development.

"Household, moderate income" means a household earni
County median income based on information provide
Housing and Urban Development.

"Inner court" means an open area with no roof that is
structure which, on each of those sides, contains "floor a

Inoperable Vehicle. See "vehicle, inoperable."

"Interior accessory dwelling unit" is an accessory dwellir
within the existing legal space of a primary dwelling uni
family dwellings, is an accessory dwelling unit that is en
space of an accessory structure. An interior accessory
access, and side and rear setbacks sufficient for fire safet

Involuntary Demolition. See "demolition, involuntary."

"Junior accessory dwelling unit" means a unit that is n
contained entirely within a proposed or legally existing si
dwelling unit may include separate sanitation facilities c
existing structure.

"Kitchen" or "kitchen facilities" means any appliances
preservation of food, including but not limited to gas
microwave ovens, sinks and adjacent counters (located ir
room), refrigerators of more than five cubic feet capacity
or other small counter/sink arrangements unless they are
outside. Also does not include specialized home canning

"Landscape, major" means landscaping in the public rigl
has the potential to impair outlying views or views of
intersection of two or more vehicular ways.

"Lane, pedestrian" means a public right-of-way for use b
a roadway or street.

"Laundries and dry cleaning plants" means service es
volume laundry and garment services, including: Po
garment pressing and dry cleaning; linen supply; diaper

upholstery cleaners. Does not include coin-operated laundries or dry cleaning pick-up stores without dry cleaning equipment, which are classified in "personal services." (SIC: Group 72.)

"Laundry room" means a room or area of a residential structure containing electrical and plumbing hook-ups for a washing machine and dryer.

"Libraries and museums" means permanent public or quasi-public facilities generally of a noncommercial nature which are intended to provide historical, cultural, literary, artistic and/or educational displays and information. Such uses may include, but are not limited to: Libraries, museums, art exhibitions, planetariums, aquariums, botanical gardens, and arboretums. Also includes historic sites and exhibits. (SIC: Group 84.)

"Light manufacturing" means manufacturing, assembly, packaging, and associated storage and transportation of finished goods not requiring major refinement or raw material preparation. May include food-related manufacturing; apparel manufacturing; furniture and fixture manufacturing; printing, publishing and allied industries; professional and scientific instruments; textile mill products; craft industries, or other uses that create minimal noise, vibration, smoke, dust or any other particulate matter, toxic or noxious matter, humidity, heat or glare at or beyond any lot line of the parcel on which it is located.

"Liveaboard" means a navigable vessel, as regulated in SMC § 10.44.170, with liveaboard residential occupant(s) for harbor or marina security purposes. See also "marine service vessels."[9]

"Lot or parcel" means a portion of land shown as a unit on a recorded subdivision map or an approved minor subdivision map, parcel map or otherwise existing as of record with the office of the Recorder of the County of Marin.

"Low- and very low income households" means the same as "lower income households" as defined in Cal. Health & Safety Code § 50079.5.

"Low barrier" means best practices to reduce barriers to entry, and may include, but is not limited to, the following:

1. The presence of partners if it is not a population-specific site, such as for survivors of domestic violence or sexual assault, women, or youth.
2. Pets.
3. The storage of possessions.
4. Privacy, such as partitions around beds in a dormitory setting or in larger rooms containing more than two beds, or private rooms.

"Low barrier navigation center" means a housing first, low barrier, service-enriched shelter focused on moving people into permanent housing that provides temporary living facilities while case managers connect individuals experiencing homelessness to income, public benefits, health services, shelter, and housing.

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[9] ~~**Definition also in the marinship specific plan.**~~

"Low income household" means a household whose gross annual income does not exceed 80 percent of the Marin County median income adjusted for family size as set forth from time to time by regulation of the California Department of Housing and Community Development, pursuant to California Health and Safety Code Section 50093.

"Manufactured home" has the same meaning as manufactured home as defined by Cal. Health & Safety Code § 18007. "Manufactured home" means a structure that was constructed on or after June 15, 1976, is transportable in one or more sections, is eight body feet or more in width, or 40 body feet or more in length, in the traveling mode, or, when erected on site, is 320 or more square feet, is built on a permanent chassis and designed to be used as a single-family to two-unit dwelling with or without a foundation when connected to the required utilities, and includes the plumbing, heating, air conditioning, and electrical systems contained therein. "Manufactured home" includes any structure that meets all the requirements of Cal. Health & Safety Code § 18007 except the size requirements and with respect to which the manufacturer voluntarily files a certification and complies with the standards established under the National Manufactured Housing Construction and Safety Act of 1974 (42 U.S.C. § 5401, and following).

"Marine commercial service" means convenience goods and consumer service establishments to service the maritime needs of the community.[10]

1. Bait and tackle shops, including a limited amount of accessory provisioning of food and beverages, ice dispensers.
2. Boat sales, rentals, charters.
3. Chandlery.
4. Diving equipment, lessons and services.
5. Engine sales, repair and service.
6. Marine electronics sales, service and repair.
7. Marine equipment and supplies sales (including provisioning of food and beverages).
8. Marine equipment sales, manufacturing, service and repair.
9. Marine miscellaneous services (mail services, compass adjuster, provisioning, etc.).
10. Sports fishing facilities.
11. Yacht sales and delivery.

Marine Industrial. Marine industrial uses should be consistent with the protection of the waterfront area and promotion of marine-oriented businesses. Permitted uses include a wide range of relatively small scale, low intensity, nonpolluting, low traffic generating, light marine industrial research and development activities, and arts uses consistent with those found in the marinship district considered to be of need or asset to the community, other marine services, and a working waterfront. Marine service commercial uses are listed separately below. Several marine service uses that could be included under this designation are listed in the maritime category.

1. Boat building and repair.

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[10] ~~**Definition also in the marinship specific plan.**~~

2. Boat engine repair.
3. Boat maintenance.
4. Boat measuring and surveying.
5. Boat restoration.
6. Boat towing.
7. Engine repair and service.
8. Houseboat construction.
9. Marine carpentry, cabinet making, woodworking.
10. Marine electronics service and repair.
11. Marine mechanical systems.
12. Marine equipment manufacturing, service and repair.
13. Marine research laboratories.
14. Marine salvage.
15. Marine welding and fabricating.
16. Rigging.
17. Sail, canvas construction and repair.
18. Sewer ejection systems.

"Marine service harbor" means a part of a body of water protected and deep enough to furnish anchorage or mooring of boats or similar floating vessels used in the performance of a marine industrial activity or service conducted on the vessel or nearby on the land.[11]

"Marine service vessels" means a boat, vessel, or berth for a boat used in the performance of a marine industrial activity or service conducted on the vessel or nearby on the land. Liveaboard use of the vessel is acceptable where it can be demonstrated, to the Community Development Director's satisfaction, that such residential use is necessary to provide the maritime service.[12]

"Medical marijuana dispensary" is any facility or location where marijuana is made available for medical purposes and/or distributed to a primary caregiver, qualified patient, or person with an identification card. The terms "primary caregiver," "qualified patient," and "person with an identification card" shall be as defined in Health and Safety Code Sections 11362.5 and 11362.7 et seq.

"Medical services — clinics and laboratories" means service establishments primarily engaged in furnishing outpatient medical, mental health, surgical and other personal health services including: Medical, dental, and psychiatric offices (mental health-related services including various types of counseling practiced by licensed individuals other than medical doctors or psychiatrists, or

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[11] ~~**Definition also in the marinship specific plan.**~~
[12] ~~**Definition also in the marinship specific plan.**~~

unlicensed individuals, are included under "offices"); medical and dental laboratories; outpatient care facilities; opticians and optometrists; and allied health services. Associations or groups primarily engaged in providing medical or other health services to members are included.

"Medical services — hospitals and extended care" means hospitals and similar establishments engaged primarily in providing diagnostic services, extensive medical treatment including surgical and other hospital services; such establishments have an organized medical staff, inpatient beds, and equipment and facilities to provide complete health care. May include accessory retail pharmacies. Also includes residential establishments providing nursing and health related care as a principal use with inpatient beds, such as: Skilled nursing facilities (facilities allowing care for physically or mentally disabled persons, where care is less than that provided by an acute care facility); extended care facilities; convalescent and rest homes; board and care homes. Long-term personal care facilities that do not emphasize medical treatment are classified in "residential care homes." (SIC: Groups 80, 805.)

"Medical services — veterinary clinics and hospitals" means office and medical treatment facilities used by veterinarians, including large and small animal veterinary clinics, and animal hospitals.

"Mixed use" means the combination of various uses, such as office, commercial, institutional, and residential, in a single building or on a single site in an integrated development project with significant functional interrelationships and a coherent physical design. A "single site" may include contiguous properties.

"Mobile home" has the same meaning as mobile home as defined by Cal. Health & Safety Code § 18008. "Mobile home" means a structure that was constructed prior to June 15, 1976, is transportable in one or more sections, is eight body feet or more in width, or 40 body feet or more or length, in the traveling mode, or when erected onsite, is 320 or more square feet, is built on a permanent chassis, and designated to be used as a dwelling with or without a foundation system when connected to the required utilities, and includes the plumbing, heating, air conditioning, and electrical systems contained therein. "Mobilehome" includes any structure that meets all the requirements of this paragraph and complies with the state standards for mobilehomes in effect at the time of construction. "Mobilehome" does not include a commercial modular, as defined in Cal. Health & Safety Code § 18001.8, factory-built housing, as defined in Cal. Health & Safety Code § 19971, a manufactured home, as defined in Cal. Health & Safety Code § 18007, a multifamily manufactured home, as defined in Cal. Health & Safety Code § 18008.7, or a recreational vehicle, as defined in Cal. Health & Safety Code § 18010.

See SMC § 10.44.060 (Mobile home/manufactured housing standards) for specific use requirements applicable to mobile homes.

"Moderate income household" means a household whose gross annual income does not exceed 120 percent of the Marin County median income adjusted for family size as set forth from time to time by regulation of the California Department of Housing and Community Development, pursuant to California Health and Safety Code Section 50093.

"Monopole" means a structure composed of a single spire used to support communications equipment.

MUP or Minor Use Permit. See Chapter 10.58 SMC (Minor Use Permits). Multiple-Family Dwellings. See "dwelling, multiple-family."

"Musician" means a person who engages, as a profession, in the performance or composition of music.

"Natural grade" means the vertical location of the ground surface, also known as the existing grade, as determined by the established ground contours that existed in 1968. When a topographic survey of the site is required, the survey may be compared with the 1968 Photometric Maps of the City of Sausalito as a guide in determining major ground contour modifications.

"Nurseries" means commercial agricultural establishments engaged in the production of ornamental plants and other nursery products, grown under cover or outdoors. Also includes establishments engaged in the sale of such products (e.g., wholesale and retail nurseries) and commercial scale greenhouses (home greenhouses are included under "residential accessory uses"). The sale of houseplants or other nursery products entirely within a building is also included under "retail stores, general merchandise."

"Occupant" means the person occupying, or otherwise in real or apparent charge and control of, premises affected by any enforcement action taken pursuant to Chapter 10.86 SMC (Enforcement).

"Offices" means professional or government offices including:

1. Accounting, auditing and bookkeeping services.
2. Advertising agencies.
3. Architectural, engineering, and surveying services.
4. Attorneys.
5. Banks and financial institutions that are not retail (see "banks and financial services, retail").
6. Counseling services.
7. Computer software designers.
8. Data processing and computer services.
9. Detective agencies and similar services.
10. Educational, scientific and research organizations.
11. Interior decorators.
12. Employment, stenographic, secretarial and word processing services.
13. Government offices including agency and administrative office facilities.
14. Management, public relations and consulting services.
15. Photography and commercial art studios.

16. Post offices (not including bulk mailing distribution centers).

17. Real estate agencies.

18. Writers' and artists' offices outside the home.

Does not include: Medical offices, which are allowed under "medical services — clinics and laboratories;" or offices that are incidental and accessory to another business or sales activity that is the principal use. Incidental offices that are customarily accessory to another use are allowed in any zone as part of an approved principal use.

"Offices, temporary" means a mobile home, recreational vehicle or modular unit used as a temporary business or construction office during construction of permanent facilities on the same site or as an office on the site of a temporary off-site construction yard; a temporary on-site real estate office for a development project; or a temporary business office in advance of permanent facility construction.

"Outdoor commercial recreation" means facilities for various outdoor participant sports and types of recreation, including: Kiddie parks; golf driving ranges independent from golf courses; miniature golf courses; skate board parks; recreation equipment rental (e.g., bicycles and roller skates); tennis courts, swim and tennis clubs.

"Outdoor festivals/concerts" means commercial recreational events held out-of-doors which are of limited duration and do not require permanent improvements or construction. Such events are usually single-performance or single-day occurrences involving the assembly of large groups of people (e.g., musical concerts, arts and crafts fairs, etc.).

"Owner" means the person or persons, firm, corporation or partnership that is the owner of record of a property.

"Parcel depth" means the horizontal distance between the front and rear parcel lines from the midpoint of the front parcel line and measured in the mean direction of the side parcel lines.

"Parcel size, net" means total area of a parcel measured in a horizontal plane within the lot lines bounding the parcel. The following features do not contribute to the net of the parcel area:

1. The area within easements for streets, driveways, parking, pedestrian and bicycle access ways and navigation channels which are not for the exclusive use of the parcel on which any such easement is located;

2. Any portion of an individual access way, in excess of five percent of the minimum parcel or building site area required in the district;

3. Any portion of a parcel which extends beyond a pierhead line as shown in the Sausalito General Plan or on the zoning map referenced in SMC § 10.10.020 (Adoption of zoning map).

"Parcel width" means the average horizontal distance between the side parcel lines, measured at right angles to the lines followed in measuring parcel depth.

"Parks and playgrounds" means public and private parks, play lots, playgrounds and athletic fields (nonprofessional); bathing beaches, bathhouses, and public restrooms.

"Person" means any individual, firm, copartnership, corporation, company, association, joint stock association; City, County, State, or district; and includes any trustee, receiver, assignee, or other similar representative thereof.

"Personal services" means establishments providing nonmedically related services, including automated teller machines (ATMs) independent from banks and financial institutions; beauty and barber shops; shoe shining and repair shops; picture framing; locksmith shops; tanning salons; laundromats (self-service laundries); laundry and dry cleaning pick-up stores and small-scale dry cleaners without pick-up and delivery services; garment pressing, repair and alterations; rug cleaning and repair; tailor and dressmaking shops; clothing and costume rental; photocopying; travel agencies; dating and escort services. These uses may also include accessory retail sales of products related to the services provided.

"Personal structure" means a structure such as a sculpture that generally requires no building permit and is either a landscape element or a functional element for use by the person who owns the land on which the structure is placed.

"Pier" means a platform located above the water surface and integrally attached to pilings, allowing no vertical movement.

"Pipelines and transmission lines" means transportation facilities for the conveyance of: Crude petroleum; refined petroleum products such as gasoline and fuel oils; natural gas; mixed, manufactured or liquefied petroleum gas; or the pipeline transmission of other commodities. Also includes pipeline surface and terminal facilities, including pump stations, bulk stations, surge and storage tanks. Power transmission includes facilities for the transmission of electrical energy for sale, including transmission lines for a public utility company. Also includes telephone, telegraph, cable television and other communications transmission facilities utilizing direct physical conduits. Does not include offices or service centers (classified under "offices"), distribution substations (classified under "public utility facilities"), or power plants. (SIC: Groups 461, 491.)

"Planned development" means a development project that has been granted flexible development standards that differ from those of the underlying district, subject to the permit process and findings described in SMC § 10.28.060.

"Primary dwelling unit" means a dwelling unit to which the accessory dwelling unit is accessory.

"Primary dwelling unit parcel" means a single parcel on which the primary dwelling unit is situated.

"Printing and publishing" means establishments engaged in printing by letterpress, lithography, gravure, screen, offset or other common process including electrostatic (xerographic) copying and other "quick printing" services; and establishments serving the printing trade such as bookbinding, typesetting, engraving, photoengraving and electrotyping. This group also includes establishments that publish newspapers, books and periodicals, whether or not they do their own printing; and establishments manufacturing business forms and binding devices. (SIC: Group 27.)

"Private clubs or recreation facilities" means permanent noncommercial meeting facilities for organizations operating on a membership basis for the promotion of the interests of the members, including facilities for civic, social and fraternal organizations (not including lodging). Excludes headquarters-type facilities for business associations; professional membership organizations; labor unions and similar organizations; political organizations, and other membership organizations that are defined as "offices."

"Property lines" means the recorded boundaries of a lot of record, as follows:

1. "Front property line" means the line separating the parcel from the street. In case a lot abuts on more than one street, the parcel owner may elect any street parcel line as the front parcel line; provided, that such choice in the opinion of the Community Development Director will not be injurious to adjacent properties.
2. "Rear property line" means, ordinarily, that line of a parcel that is opposite and most distant from the front line of the parcel. In the case of a triangular or gore-shaped parcel, a line 10 feet in length within the parcel parallel to and at a maximum distance from the front parcel line shall be deemed to be the rear parcel line for the purpose of determining the depth of rear yard.
3. "Side property lines" are recorded lot boundaries that are neither front nor rear property lines, which extend between front and rear property lines. On a corner lot, there will be one side parcel line and one rear property line.

"Public safety facilities" means facilities operated by public agencies including fire stations, fire prevention and fire fighting facilities, and police stations, including interim incarceration facilities.

"Public utility" means a company regulated by the California Public Utilities Commission or a governmental or quasi-governmental entity with an elected governing body which provides utility services.

Public Utility Facilities, Major. These uses include any of the following facilities that are not exempted from land use permit requirements by California Government Code Section 53091: Public water system wells, treatment plants and storage; and community wastewater treatment plants, settling ponds and disposal fields.

"Public utility facilities, minor" means fixed-base structures and facilities serving as junction points for transferring utility services from one transmission voltage to another or to local distribution and service voltages; electrical substations and switching stations; telephone switching facilities; and natural gas regulating and distribution facilities. These uses do not include offices or customer service centers (classified in "offices").

"Publisher" means a person or business whose business is publishing (making a form of media publicly known).

Reconstruction. See "replication."

"Recreation and fitness centers" means indoor establishments providing amusement, entertainment, or physical fitness services for a fee or admission charge, such as: Arcades

containing coin-operated amusements and/or electronic games (five or more such games or coin-operated amusements in any establishment constitutes an arcade pursuant to this definition, four or less are not considered a land use separate from the primary use of the site); card rooms and billiard and pool halls; dance halls, clubs and ballrooms which are principal uses rather than being subordinate to an eating or drinking place; fitness centers, gymnasiums, and health and athletic clubs including indoor sauna, spa or hot tub facilities; tennis, handball, racquetball, indoor archery and shooting ranges and other indoor sports activities.

"Recreational vehicle" means a motor home, travel trailer, truck camper, or camping trailer, with or without motive power, originally designed for human habitation for recreational or emergency occupancy with a living area of 320 square feet or less, and bearing the State or Federal insignia of approval for recreational vehicles.

"Recyclable material" means reusable material including but not limited to metals, glass, plastic and paper, which are intended for reuse, remanufacture, or reconstitution for the purpose of using the altered form. Recyclable material does not include refuse or hazardous materials. Recyclable material may include used motor oil collected and transported in accordance with Sections 25250.11 and 25143.2(b)(4) of the California Health and Safety Code or its successor.

"Recycling collection station" means a center for acceptance by donation, redemption, or purchase of recyclable materials from the public. Includes temporary accumulation and storage of recyclable materials for later transportation to processing facilities. Includes sites for implementing the California Beverage Container Recycling Act (AB 2020), which may involve reverse vending machines, mobile collection units, and other attended and unattended collection facilities. Does not include automobile wrecking yards or any recycling processing facilities. Does not include temporary storage of toxic or hazardous waste materials. See SMC § 10.44.200 (Recycling collection stations) for specific use requirements applicable to recycling collection stations.

"Religious institutions" means religious organization facilities operated for worship or promotion of religious activities, including churches and religious Sunday-type schools; and accessory uses on the same site, such as living quarters for ministers and staff, child day care facilities where authorized by the same type of land use permit required for the church itself, and parish houses. Other establishments maintained by religious organizations, such as full-time educational institutions, hospitals and other potentially related operations (such as recreational camps) are classified according to their respective activities.

Remodel, Substantial. As used in Chapter 10.62 SMC, a substantial remodel is any exterior remodel that does not classify as a "replication."

"Repair and maintenance — accessory to sales" means the repair of vehicles, equipment or other products on the same site as the retail sales of such vehicles, equipment or other products as a service to purchasers, that is incidental and accessory to the sales operation.

"Repair and maintenance — consumer products" means service establishments where repair of consumer products is the principal business activity, including: Electrical repair shops; television and radio and other appliance repair; watch, clock and jewelry repair; reupholstery and furniture

repair, and bicycle repair. Does not include shoe repair (included under "personal services"). Does not include repair or services incidental and accessory to retail sales. Does not include businesses serving the repair needs of heavy equipment, which are included under "business support services." (SIC: Group 76.)

"Repair and maintenance — vehicle" means the repair, alteration, restoration, towing, painting, cleaning (including self-service and attended car washes), or finishing of automobiles, trucks, recreational vehicles, boats and other vehicles as a principal use, including the incidental wholesale and retail sale of vehicle parts as an accessory use. Does not include: Automobile parking (see "vehicle storage"), service stations, which are separately defined; or automobile wrecking yards. (SIC: Groups 751, 753, 754.)

"Replication" means replacement of a demolished structure which replicates the original architectural design, bulk, materials, and arrangement of doors, windows, roof lines, and significant architectural features of the demolished structure as much as possible, as determined by the Community Development Director. Exact replication may not be possible due to the unavailability of matching materials and/or the necessity to meet current Building Code requirements.

"Required off-street parking areas" means and refers to areas of the City where the street width to which a parcel is accessed from is less than 16 feet, reflecting the areas in the City where the impact of on-street accessory dwelling unit parking would cause a significant impact on traffic flow, and threaten the public safety and welfare by impeding fire and emergency access due to factors such as substandard street widths. Street widths shall be determined using data in the City's pavement management system.

"Residential accessory uses" includes any use that is customarily part of, and clearly incidental and secondary to, a residence and does not change the character of the residential use. Such uses include accessory structures such as swimming pools, spas and hot tubs, workshops, studios, greenhouses, garages, solar panels, propane tanks, and similar equipment. Includes home receiving antennas for earth-based TV and radio broadcasts. The storage of automobiles (including their incidental restoration and repair), personal recreational vehicles and other personal property is included under the definition of "storage, accessory." See SMC § 10.44.020 (Accessory uses and structures) for specific use requirements applicable to residential accessory uses.

"Residential care homes" means facilities providing residential social and personal care for children, the elderly, and people with some limits on their ability for self-care, but where medical care is not a major element. Includes: Children's homes; halfway houses; orphanages; rehabilitation centers; self-help group homes. (SIC: Group 836.)

"Residential density bonus" means an increase in density (number of dwelling units allowed per acre or parcel), above that normally allowed by the applicable zoning district, in exchange for a public benefit (e.g., provision of affordable housing or senior housing). See SMC § 10.40.130 (Residential density bonuses and incentives).

"Residential occupancy" means occupancy of residential structures or dwelling units for a permanent period of 30 days or greater.

"Restaurants" means restaurants and other establishments selling prepared foods for on-premises consumption, as well as facilities for dancing and other entertainment that are secondary and subordinate to the principal use of the establishment as an eating and drinking place. Restaurants, lunch counters, and drinking places operated as subordinate service facilities within other establishments are not included here unless they are operated as leased departments by outside operators. Includes catering services incidental to food preparation for on-site consumption. This category does not include establishments that primarily serve alcohol that are defined separately as drinking establishments. See SMC § 10.44.210 (Restaurants) for specific use requirements applicable to restaurants and SMC § 10.44.220 (Restaurants — Outdoor dining areas) for specific use requirements applicable to restaurants with outdoor eating areas. (SIC: Group 58.)

"Retail stores, general merchandise" means retail trade establishments selling many lines of new merchandise directly to the ultimate consumer. Such types of stores and lines of merchandise include but are not limited to:

1. Antique stores.
2. Artists' supplies.
3. Auto parts (not repair or machine shops).
4. Bakeries, provided no on-site seating is provided.
5. Bicycle sales and repair.
6. Books and rental libraries.
7. Candy stores, provided not visitor serving.
8. Cameras and photographic supplies.
9. Clothing and accessories.
10. Department stores.
11. Drug stores.
12. Electronic equipment.
13. Fabrics and sewing supplies.
14. Florists and houseplant stores.
15. General stores.
16. Handcrafted items (stores may include crafting operations subordinate to sales).
17. Hardware.
18. Hobby materials.
19. Household accessories.
20. Luggage and leather goods.
21. Medical supplies.

22. Music stores (CDs, tapes, records).
23. Musical instruments, parts and accessories.
24. Newsstands.
25. Office supplies.
26. Pet supplies.
27. Religious goods.
28. Shoes.
29. Small wares.
30. Software.
31. Sporting goods and equipment.
32. Stationery.
33. Toys and games.
34. Video sales and rentals.

"Reverse vending machine(s)" means an automated mechanical device which accepts at least one or more types of empty beverage containers including aluminum cans, glass and plastic bottles, and issues a cash refund or redeemable credit slip with a value not less than the container's redemption value as determined by the State.

"Rooming or boarding house" means a building containing a single dwelling unit and not less than two bedrooms where lodging is provided for compensation with or without meals.

"Satellite dish antenna" means an antenna and appurtenant equipment for the purpose of receiving communication or other signals from orbiting satellites or extra-terrestrial sources by a single site. Community receiving and/or transmitting antennas are included under the definition of "antennas, communications facilities."

"Schools — elementary" means elementary and junior high schools serving grades one through eight, including denominational and sectarian, attendance at which satisfies the compulsory education laws of the State of California. Kindergartens are also included. Preschools and child day care are included under the definitions of child day care centers and family care homes. (SIC: Group 821.)

"Schools — specialized education and training" means business schools, secretarial schools and vocational schools offering specialized trade and commercial courses. Includes specialized non-degree-granting schools such as: Music schools; dramatic schools; language schools; driver education schools; sailing schools; ballet and other dance studios; seminaries and other establishments exclusively engaged in training for religious ministries; and establishments furnishing educational courses by mail. Facilities, institutions and conference centers are included that offer specialized programs in personal growth and development (including fitness, environmental awareness, arts, communications, and management, as examples). (SIC: Groups 834, 829.)

"Search ring" means a geographic area identified by the communications service provider as necessary to locate a wireless facility within to enhance or expand service.

"Secondhand stores" or "thrift stores" means indoor retail establishments that buy and sell used products, including but not limited to books, clothing, furniture and household goods.

"Senior housing projects" means multifamily residential projects where occupancy is limited to people of 55 years or older (except in the case of double occupancy of a unit where only one resident need be 55 or older) and no persons under 18 years of age are permitted as residents. Senior housing projects include senior independent living centers (referred to as SILCs) and senior apartments, as follows:

1. "Senior Independent Living Centers (SILCs)" means a senior housing project that consists of, but is not limited to, individual apartment units, community dining centers, and common recreation areas. The facilities must be physically accessible to elderly citizens, and the project is intended to provide a comfortable standard of living for its residents.
2. "Senior apartments" means a senior housing project designed to meet the needs of citizens of 55 years of age or older. The dwelling units are independent and self-contained, and easily accessible to elderly citizens.

See SMC § 10.44.120 (Senior housing projects) for specific use requirements applicable to senior housing projects.

"Service stations" means retail establishments selling gasoline, which may also provide lubrication, oil change and tune-up services and the sale of automotive products incidental to gasoline sales. May also include accessory towing, mechanical repair services and trailer rental, and the accessory sales of food, gifts, etc., but does not include storage of wrecked or abandoned vehicles, paint spraying, body and fender work. The sale of alcoholic beverages is not permitted. See SMC § 10.44.260 (Service stations) for specific use requirements applicable to service stations. (SIC: Group 554.)

"Setback" means an area on a lot where no buildings, structures, or additions may be located, and which thereby becomes a yard area.

"Setback, rear" means an area formed by a line parallel to the rear property line.

"Setback, side" means an area formed by a line parallel to the side property lines of a lot (property lines that are neither front nor rear property lines), that extends between front and rear setback areas. Side setbacks are measured at right angles to the side property lines.

"Shared-location" means, in Chapter 10.45 SMC, two or more wireless communications facility structures used to support multiple antennas operated by the same or different carriers where such structures are located on the same parcel or within 300 feet of one another.

"Sign." See SMC § 10.42.030 for definitions of various types of signs.

"Single-family dwelling" means a building designed for and/or occupied exclusively by one household. Also includes factory-built housing (modular housing), manufactured housing (mobile

homes), and the rental of bedrooms within a single-family dwelling to no more than two boarders or renters. More than two boarders or renters constitute a boarding house that is included within the definition of "multiple-family dwelling."

"Single room occupancy housing (SRO)" refers to a residential facility where individual secure rooms are rented to a one or two person household. Rooms are generally 150 to 375 square feet in size and include a sink, closet and toilet, with shower and kitchen facilities typically shared. SRO units are rented to tenants on a weekly or monthly basis.

Special Interest Vehicle. See "vehicle, special interest."

"Stealth" means any telecommunications facility which is designed to enhance compatibility with adjacent land uses, including, but not limited to, architecturally screened roof-mounted antennas, antennas integrated into architectural elements, and telecommunications towers designed to look other than like a tower such as light poles, power poles, and trees. The term "stealth" does not necessarily exclude the use of uncamouflaged lattice, guyed, or monopole tower designs.

"Stock cooperative" is defined as set forth in California Business and Professions Code Section 11003.2. Stock cooperatives shall be subject to the same restrictions and conditions as condominiums.

"Storage, accessory" means the indoor or outdoor storage of various materials on the same site as a principal building or land use that is other than storage, which supports the activities or conduct of the principal use. Includes the storage of automobiles (including their incidental restoration and repair), personal recreational vehicles and other personal property, accessory to a residential use. See SMC § 10.44.050 for specific use requirements applicable to accessory storage.

"Storage, mini-storage facilities" means individual locker storage facilities (frequently with some accessory outdoor vehicle/boat storage) primarily for the benefit of residential or small business users in which are kept household items, business records, vehicles, recreational equipment, etc.

"Storage yards" are service establishments primarily engaged in the outdoor storage of containers, motor vehicles, construction equipment, materials or supplies, machinery or industrial supplies on a lot or portion of a lot greater than 300 square feet in area.

"Store" or "grocery store" means a store selling food for home preparation and consumption, including retail bakeries, delis and catering services that are subordinate to on-site food sales. (SIC: Groups 54, 592.)

"Store, liquor" means a store selling packaged alcoholic beverages for consumption off the premises.

"Street" means a right-of-way, easement or prescriptive right-of-way dedicated to, and under the authority of, the City of Sausalito; a State highway; a private road, easement, or prescriptive right-of-way; and which is customarily used for automobile travel and for providing vehicular access to abutting property.

"Structure" means anything constructed or erected on the ground, the use of which requires attachment to the ground, or over 120 square feet in area or over six feet in height, or any structure that requires a building permit, including any building, but not including fences or walls six feet or less in height, or concrete flat work such as driveways, patios or planters less than 12 inches in height. Includes permanent tents.

"Supportive housing" means permanent affordable housing with no limit on length of stay that is occupied by the target population as defined in the Health and Safety Code Section 53260(d), and that is linked to on- or off-site services that assist the supportive housing resident in retaining the housing, improving his or her health status, and maximizing his or her ability to live and, when possible, work in the community. (Health and Safety Code Section 50675.14(b))

"Swimming pool" means any constructed or prefabricated pool used for swimming or bathing, 24 inches or more in depth.

"Target population" means persons with low incomes who have one or more disabilities, including mental illness, HIV or AIDS, substance abuse, or other chronic health condition, or individuals eligible for services provided pursuant to the Lanterman Developmental Disabilities Services Act (Division 4.5 (commencing with Section 4500) of the Welfare and Institutions Code) and may include, among other populations, adults, emancipated minors, families with children, elderly persons, young adults aging out of the foster care system, individuals exiting from institutional settings, veterans, and homeless people.

"Temporary outdoor retail sales" means temporary retail operations which are not associated with permanent retail shops including: Farmers' markets; sidewalk sales; seasonal sales of Christmas trees, pumpkins or other seasonal items; semi-annual sales of art or handcrafted items in conjunction with community festivals or art shows. Includes flea markets and swap meets. See SMC § 10.44.300 (Temporary outdoor retail sales) for specific use requirements applicable to temporary outdoor retail sales.

"Temporary uses and events" means any use of a structure or land for an event for a limited period of time where the site is not to be permanently altered by grading or construction of accessory facilities. Events include but are not limited to elections, art shows, circuses, outdoor festivals and concerts. See SMC § 10.44.310 (Temporary uses and events) for specific use requirements applicable to temporary uses and events.

"Tent" means any enclosed structure or shelter fabricated entirely, or in major part, of cloth, canvas, or similar flexible material.

"Theaters and meeting halls" means indoor facilities for public assembly and group entertainment, other than sporting events, such as: Public and semi-public auditoriums; exhibition and convention halls; civic theaters, meeting halls and facilities for "live" theater and concerts; motion picture theaters; meeting halls for rent and similar public assembly uses.

"Transient occupancy" means occupancy of residential structures, hotel rooms, or dwelling units on a temporary period of less than 30 days.

"Transit stations and terminals" means passenger stations for vehicular and ferry mass transit systems. Includes buses, taxis, and ferries. (SIC: Group 41.)

"Transitional housing and transitional housing development" means buildings configured as rental housing developments, but operated under program requirements that call for the termination of assistance and recirculation of the assisted unit to another eligible program recipient at some predetermined future point in time, which shall be no less than six months. (Health and Safety Code Section 50675.2(h)). The housing may take several forms such as group housing and multi-family units and may include supportive services to allow individuals to gain necessary life skills in support of independent living.

"Triplex" means a single residential building containing three dwelling units.

"Use" means the purpose for which land or a structure is arranged, designed or intended, or for which either land or a structure is or may be occupied or maintained.

"Use by right" has the meaning defined in Cal. Gov't. Code § 65583.2(i).

"Use, conditional" means a land use that is identified as allowed, subject to minor use or conditional use permit approval in a particular zoning district by Chapters 10.20 through 10.28 SMC (Zoning Districts Regulations).

"Use, nonconforming" means a use of land that was lawfully established, but that is no longer identified as an allowable use by Chapters 10.20 through 10.28 SMC (Zoning Districts Regulations) and which does not conform to the regulation for the zoning district in which it is located, as set forth in this title.

"Use, permitted" means a land use that is allowed by Chapters 10.20 through 10.28 SMC (Zoning Districts Regulations) without a use permit, subject to compliance with all applicable provisions of this title, and subject to obtaining any building or other permits required by the Sausalito Municipal Code. Permitted uses require a zoning permit.

"Use, principal or main" means the primary purpose for which a building, structure or lot is designed, arranged or intended, or for which they may be used, occupied or maintained under this title.

"Vehicle, inoperable" means any car, boat or commercial vehicle that is not currently registered and/or is not operable and clearly cannot be readily made operable, because of damage, missing parts or any other condition that precludes its use. In the case of a sailboat, all sails must be in place and operable to be considered an operable vehicle. Such vehicles shall be considered operable if they are in a condition to be currently registered and capable of driving on a public roadway.

"Vehicle storage" means service establishments in the business of storing operative cars, buses and other motor vehicles for clients. Includes both day use and long-term public and commercial garages, parking lots and structures, except when accessory to a principal use. (All principal uses are considered to include any customer or public use off-street parking required by SMC § 10.40.110, Parking space requirements by land use.) Includes sites where vehicles are stored for

rental or leasing. Does not include wrecking yards. Does not include the storage of operative vehicles accessory to or used by another use, which is included under "storage, accessory." (SIC: Group 752.)

"Very low income household" means a household whose gross annual income does not exceed 50 percent of the Marin County median income adjusted for family size as set forth from time to time by regulation of the California Department of Housing and Community Development, pursuant to California Health and Safety Code Section 50105.

"View" means, for the purposes of this title, any view of the Sausalito Waterfront, San Francisco Bay, Mt. Tam, Strawberry Point, Tiburon, Belvedere, Angel Island, East Bay, and/or the City of San Francisco or any view greater than 300 feet distance and/or including significant aesthetic, cultural, natural, or historical features. The term "view" does not mean an unobstructed panorama of all or any of the above.

"View, primary" means any view distance from primary viewing areas of a dwelling such as the living room, dining room, kitchen, master bedroom, and deck or patio spaces serving such living areas. A secondary view shall be any view from bathrooms, accessory bedrooms, passageways and utility areas.

"View, public" means any view from a public right-of-way, including from a public road, street, sidewalk, pedestrian lane or stair, trail, or pathway.

"View shed" means the area within view from a defined observation point.

Visitor Serving Stores. The following uses are defined as visitor serving and are subject to the requirements of SMC § 10.44.230 (Visitor serving stores in the CC district and art galleries in the CR district):

1. Apparel stores which inventory and sell tee shirts, fleece wear, baseball caps, and other similar apparel.
2. Art dealers including any store that engages in retail sales of art objects, including but not limited to paintings, graphic arts, sculpture or glass but excluding any art dealer primarily engaged in the sale of original art objects.
3. Camera stores.
4. Candy stores.
5. Eating places selling frozen dessert products including any eating place that sells as a primary product dessert products made of ice cream, frozen yogurt, freezes, ices, gelato and frozen custard.
6. Gift, novelty and souvenir stores engaged in the sale of any or a combination of the following: Balloons, curios, novelties, postcards, souvenirs or any items bearing local place names.
7. Jewelry stores primarily engaged in the sale of costume jewelry.

8. Miscellaneous amusements including astrologers, palm readers, phrenologists, and fortunetellers.

9. Miscellaneous personal services including spas, health clubs, steam baths, tattoo parlors and Turkish baths.

10. Photo supply stores.

11. Photofinishing laboratories.

"Warehousing" means facilities for the storage of furniture, household goods, or other commercial goods of any nature for later distribution to wholesalers and retailers. Includes cold storage. Also includes warehouse, storage or mini-storage facilities offered for rent or lease to the general public. Does not include warehouse facilities where the primary purpose of storage is for goods for wholesaling and distribution![13]

"Watercourse" means the normal channel or limits of an intermittent or perennial stream, or other body of water that collects, concentrates or transports water or storm water to creeks, wetlands or water bodies.

"Wholesaling and distribution" means establishments engaged in selling merchandise to retailers; to industrial, commercial, institutional, or professional business users; or to other wholesalers; or acting as agents or brokers in buying merchandise for or selling merchandise to such persons or companies. Includes such establishments as: Merchant wholesalers; agents, merchandise or commodity brokers, and commission merchants; assemblers, buyers and associations engaged in the cooperative marketing of agricultural or fishery products; stores primarily selling electrical, plumbing, heating and air conditioning supplies and equipment; bottling works. (SIC: Groups 50, 511 — 516, 517, 518, 519.)

"Wireless communications facilities" means a land use that sends and/or receives radio frequency signals, including antennas, microwave dishes or horns, structures or towers to support receiving and/or transmitting devices, accessory development and structures, and the land on which they are situated. Those facilities defined as personal wireless facilities under Section 704 of the Telecommunications Act of 1996 and those facilities considered by the Wireless Telecommunications Bureau (WTB) of Federal Communications Commission. Does not include:

1. Home television and radio receiving antennas, which are included under "residential accessory uses."

2. Telephone, telegraph and cable television transmission facilities utilizing hard-wired or direct cable connections, which are included under "pipelines and transmission lines."

"Zoning map" means a map of the City of Sausalito, adopted by the City Council of Sausalito, which identifies the zoning districts throughout the City.
(Ord. 1167 § 2, 2003; Ord. 1185 § 4, 2007; Ord. 1194 § 5, 2009; Ord. 1205 §§ 49, 50, 2012; Ord. 1209 §§ 4, 5, 2012; Ord. 1220 § 2, 2014; Ord. 1221 § 2, 2014; Ord. 1223 § 6, 2014; Ord. 1267 § 3, 2019; Ord. 1251 § 1 (Att. 1), 2018; Ord. 1268 § 3, 2019; Ord. 1281 §§ 5, 6, 7, 2020; Ord. 06-2025-A, 12/2/2025)

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[13] ~~**Definition also in the marinship specific plan.**~~

* * *

SECTION 5: Amendment to Marinship Specific Plan.

The Marinship Specific Plan is hereby deleted in its entirety.

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2. HOW TO USE THIS DOCUMENT

The Marinship Specific Plan document has been divided into a number of sections, each addressing a different aspect of the plan and its standards. Policies and standards affecting each Marinship area parcel are found throughout this document. It will therefore be necessary to refer to each document section to be assured that all aspects of the plan are identified.

The following is a recommended procedure to locate the relevant document sections affecting a particular parcel.

Step 1: Locate the desired Parcel

The Marinship area has been subdivided, for planning purposes, into planning zones (no relation to Zoning Categories or boundaries), planning areas and planning parcels. (See Section I.B.) The Specific Plan document refers to these Parcels by number. The attendant name is a commonly known description of the parcel provided solely as a reference convenience.

To locate a desired parcel examine Diagram # 2: Planning Parcels, Areas, and Zones. A list of the Assessor Parcel Numbers corresponding to each Planning Parcel is provided in Appendix- D. The existing zoning category for each Parcel can be found in Appendix- E.

Step 2: Examine the Development Objectives

This section provides an overview of Plans, Goals and Objectives. The Goal and Objective statements provided in Sections II and III supersede all other Specific Plan references or standards. Where conflicts occur between standards the relevant Objective statement will govern.

Supplementing the overall Objective material are individual intent statements throughout Section III: Development Standards, which again supersede the specific guidelines.

Step 3: Examine the Development Program and Standards

Section III: Development Programs set forth the guidelines for permitted development. An overview is provided describing any specific objectives for each zone and outlining the methods to be used in calculating the allowable development. This is followed by specific standards for each zoning category, including site-specific exceptions. The definitions of the permitted uses are provided in Appendix- B: Glossary of Terms.

Section IV: Development Standards describe the specific standards for the non-development program plan elements. The overall standards for Marinship circulation, individual

parcel access, standards for streets and ways, and the responsibility of individual parcel owners to provide these and other elements, are described in Section IV.A: Circulation, Access, Streets and Ways.

The policies and standards for parking, setbacks, site coverage, building heights and bulk, as well as other special requirements are outlined in Sections IV.B-G.

Appendix- C: Traffic Trip Generation Rates, contains useful information regarding traffic standards associated with the permitted uses. This information should be used when evaluating the development potential of a parcel (see Section III.A: Development Program, Overview.

Step 4: Review the List of Public Projects and Specific Plan Implementation Sections

A list of public projects, including those private projects for which the City may consider providing support, is provided in Section V: Public Projects. The major implementation funding options for public and private projects are described in Section VI: Specific Plan Implementation.

B. PLANNING ZONES, AREAS AND PARCELS

To simplify the planning analysis the Marinship has been divided into planning zones, areas and parcels. These have been created only as a planning convenience and do not necessarily reflect the zoning or use boundaries. A map locating these planning elements and a list of the study parcels is included at the end of this section.

1. PLANNING ZONES

The Marinship has been divided into planning zones: 1, 2 and 3. These correspond to the different traffic distribution zones as defined by DKS Associates, traffic consultants.

Zone 1 is the southernmost portion of the Marinship. It is bounded on the north by Spring Street and extends from Bridgeway to Richardson Bay. Zone 1 assumes that 60% of all weekday p.m. peak traffic will travel north while 40% will travel south.

Zone 2 is the central portion of the Marinship. It is bounded by Spring Street, Bridgeway, Harbor Drive and the bay. Zone 2 assumes that 70% of all weekday p.m. peak traffic will travel north while 30% will travel south.

Zone 3 is the northern portion of the Marinship. It is bounded by Harbor Drive, Bridgeway, and the northern city and

study limits. Zone 3 assumes that 80% of all weekday p.m. peak traffic will travel north while 20% will travel south.

2. PLANNING AREAS

Planning Areas were created to further subdivide the Marinsnio into manageable study portions. Like the Planning Zones, these do not necessarily reflect zoning or land use boundaries. The Planning Areas were subjectively evaluated by the planning team and divided into separate areas based on their current use, character identity, land form, and/or ownership.

3. PLANNING PARCELS

Each Planning Area has been subdivided into Planning Parcels. These parcels consist of existing individual assessor parcels under a single ownership (See Appendix- D: Planning Parcel Equivalent Assessor Parcel Numbers). When the ownership was not continuous or contiguous a separate planning parcel was created. The development programs will frequently refer to designations or restrictions at the Planning Parcel level of detail.

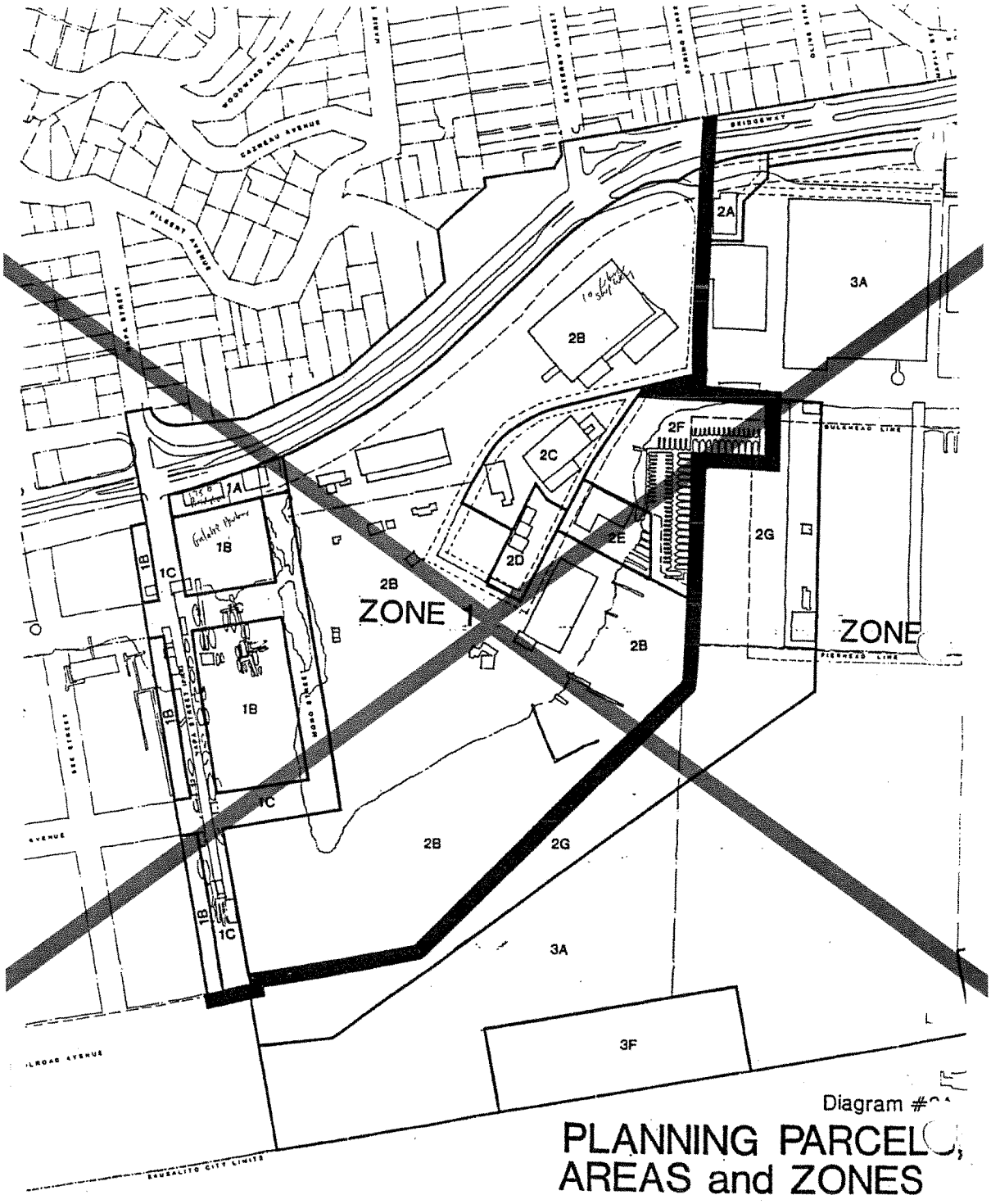


Diagram #

PLANNING PARCEL, AREAS and ZONES

TABLE A
LIST OF PLANNING PARCELS,
by Planning Area and Zone

ZONE 1

Planning Area 1:
- 1A "1750 Bridgeway"
- 1B Terra Landing
- 1C City of Sausalito

Planning Area 2:
- 2B Schoonmaker Point
- 2C Vincent Whitney-Interbay Lumber
- 2D Cement Gun Property
- 2E Easom's Boatyard
- 2F Clipper Yacht Harbor #1

ZONE 2

Planning Area: 2
- 2A Burkell Property (parcel north of Schoonmaker)
- 2G Annicelli (Sea K Fish)

Planning Area: 3
- 3A Army Corps of Engineers, Bay Model
- 3B Record Plant
- 3C SWA Offices
- 3D Office (Duryee)
- 3E Marinship Park
- 3F City of Sausalito

Planning Area: 4
- 4A Marina Plaza

Planning Area: 5
- 5A "Gerhardt" parcel west of Arques
- 5B Arques Shipyard, Gate #3

Planning Area: 6
- 6A "2401 Marinship Way"
- 6B Big "G" Super Market
- 6C Post Office site

Planning Area: 7
- 7A "150/180 Harbor Drive"

Planning Area: 8
- 8A Clipper Yacht Harbor #2, #3 & #4
- 8B Storage Area (west of 8C)
- 8C Spaulding Boatworks

TABLE A, continued

LIST OF PLANNING PARCELS,
by Planning Area and Zone

ZONE 3

Planning Area: 6
- 6D "One Harbor Drive"
- 6E Feng Nian Restaurant
- 6F Commercial / Office Area (Bridgeway at Coloma)

Planning Area: 7
- 7B Industrial Center Building
- 7C Heath Ceramics
- 7D Restaurant / Commercial Area (Saus. Food Co.)
- 7E "475 Gate 5 Road"

Planning Area: 9
- 9A Coloma Industrial Area
- 9B "200 & 150 Gate 5 Road Area"
- 9C Auto Repair Area (Swiss Garage, etc.)
- 9D Auto Repair Area (Paul's Cabinets, etc.)
- 9E Joe Ray Auto Body
- 9F Auto Storage Area (Jagger Enterprises)
- 9G Clipper Property (at Varda Landing Rd)
- 9H Varda Landing Studios (York)
- 9I Planeaway Sailboards, etc.
- 9J Small Boat Center (Gordy Nash)
- 9K Gate 5 Road Industrial (north of 9J)
- 9L Office / Retail / Storage (York)

Planning Area: 10
- 10A Houseboat Area (Anshen)
- 10B Houseboat Area (Kingman Prop. Co.)
- 10C Houseboat Area (Onslow-Ford, Vallejo)
- 10D Houseboat Area (Veit)

Planning Area: 11
- 11A Winblad Property (Bullard)
- 11B "3000 Bridgeway"
- 11C Health Club and Offices
- 11D "3030 Bridgeway"
- 11E "4000 Bridgeway"

C. LAND USE AND ZONING

The existing zoning categories, boundaries and much of the Zoning Ordinance remain unchanged in the Marinship Specific Plan. The Marinship Specific Plan does, however, focus the industrial and maritime orientation of the area by eliminating or severely limiting commercial office, retail, restaurants and residential uses. These have been determined to be either inconsistent with the industrial activities or generators of peak hour traffic, disproportionate to other preferred uses.The Marinship Specific Plan maintains the existing zoning category boundaries (see Diagram # 3). The list of permitted uses, however, will change (see Appendix -B, Glossary of Terms).

The major use changes, by zone, include:

- Industrial ("I") Zone:

New commercial office is no longer a permitted use; existing office buildings and uses may remain as permitted uses; only limited types of commercial uses and new full-service restaurants are allowed. Arts uses are distinguished from other industrial space, especially those considered Applied Arts.

- Waterfront ("W") Zone:

Currently considered a Commercial District, the Specific Plan distinguishes between industrial and commercial uses in this zone in the same manner as in the "I" zone; no retail or business service commercial use is permitted; no new pleasure boat harbors and only limited expansion of existing harbors will be allowed; marine service boat harbors are permitted; the definition of marine service boats is expanded to reflect Sausalito's traditional waterfront uses; live-aboard use of marine service and pleasure boats is allowed, and houseboats are permitted in the "H" zone, and those houseboats that existed on or before July 1, 1985 may be legalized with a Conditional Use Permit.

- Houseboat "H" Zone: no use changes.

- Shopping Center ("CS") Zone:

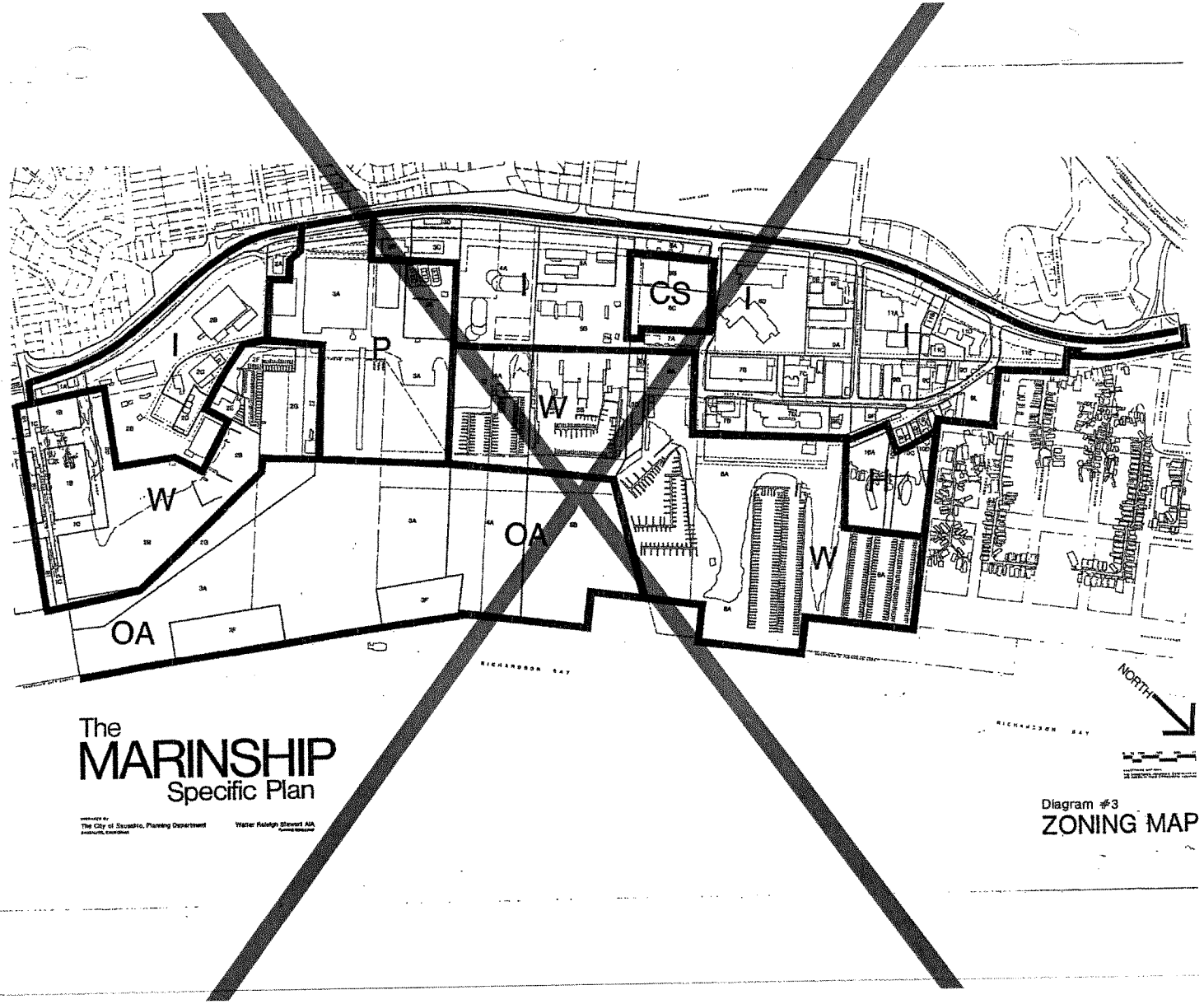
The only permitted uses in this zone are: full service supermarket, warehousing, lumberyards, and dry boat storage.

- Public ("P") Zone: no use changes.

- Open Space ("OA") Zone: no use changes.

Use Designations: Table B: Use Designations summarizes the use assignments for each Marinship Planning Parcel. See Section III, Development Programs for detailed information.

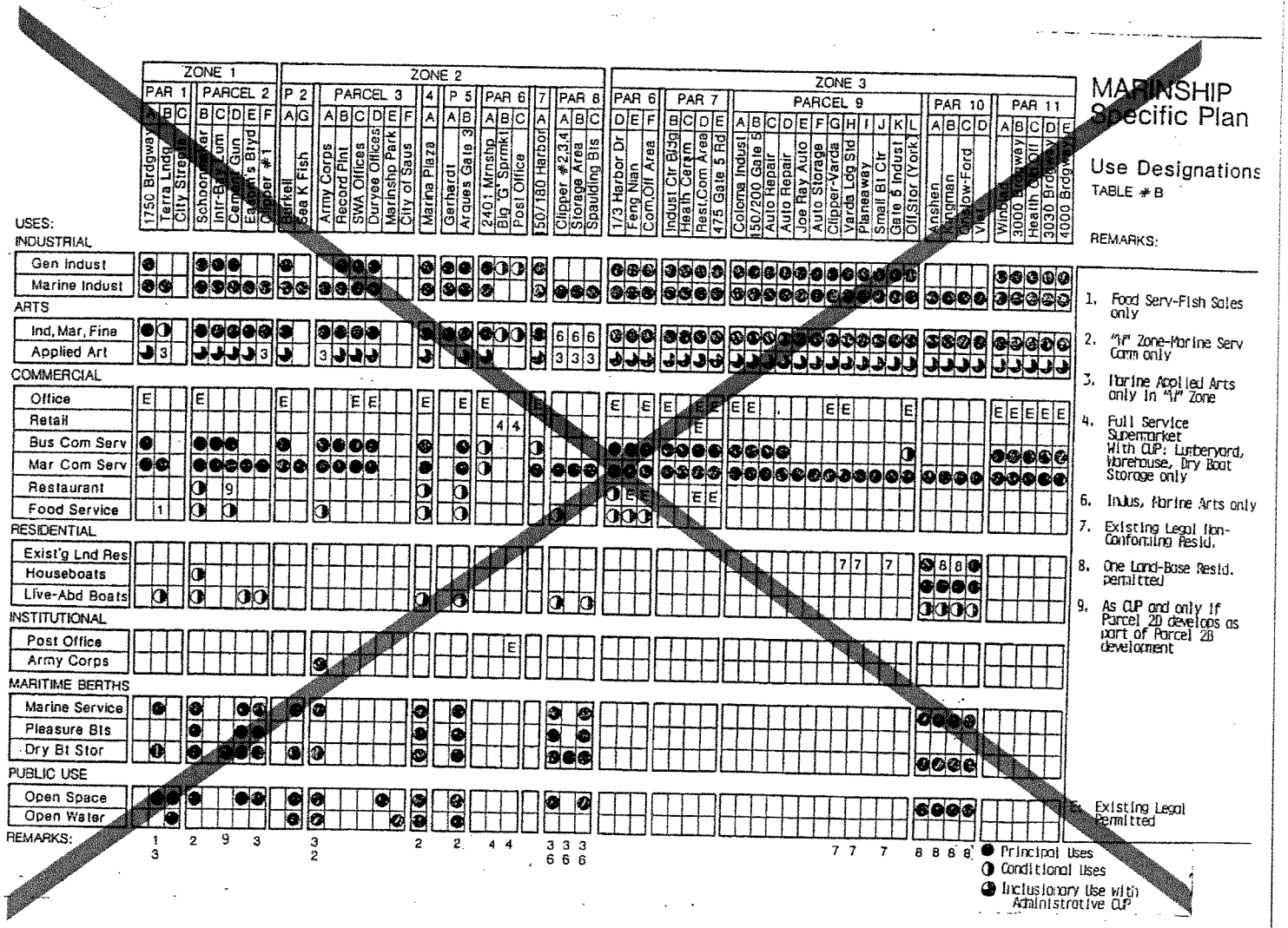
The
MARINSHIP
Specific Plan
NORTH
Diagram #1:
SITE LOCATION



The
MARINSHIP
Specific Plan

Prepared by:
The City of Sausalito, Planning Department
Walter Raleigh Stewart AIA

Diagram #3
ZONING MAP


MARINSHIP
Specific Plan
Use Designations
TABLE # B
REMARKS:
1. Food Serv-Fish Sales only
2. "M" Zone-Marine Serv Comm only
3. Marine Applied Arts only in "M" Zone
4. Full Service Supermarket With CUP: Lumberyard, Warehouse, Dry Boat Storage only
6. Indus, Marine Arts only
7. Existing Legal Non-Conforming Resid.
8. One Land-Base Resid. permitted
9. As CUP and only if Parcel 2D develops as part of Parcel 2B development
E. Existing Legal Permitted
Principal Uses
Conditional Uses
Inclusionary Use with Administrative CUP

II. DEVELOPMENT OBJECTIVES

A. GENERAL INTENT

It is the Marinship Specific Plan development objective to retain, yet focus, the 1970 Sausalito General Plan objectives (PART V, Division 1, Section 2101):

"1. To promote the waterfront area and promote diversified water-dependent uses.

"2. To promote the development of other lands in the Marinship with industrial uses and uses compatible with an industrial area."

B. MARINSHIP SPECIFIC PLAN GOALS

To accomplish the General Intent the following shall serve as a list of goals to be considered when evaluating proposed development in the Marinship.

1. Preserve and enhance the maritime history and character of the Marinship. This shall include giving, to the extent determined reasonable, development preference to marine uses and maritime industries.

2. Preserve and enhance the industrial character and use of the Marinship.

3. No new commercial office development will be allowed in the Marinship. Office use, determined to be accessory to a permitted use, will be allowed. Existing or approved office buildings and uses may remain as permitted uses.

4. It is the intent of the plan to preserve the Marinship as an area primarily oriented to the use and service of Sausalito residents, not tourists.

5. It is the intent of the plan to discourage the development of non-industrial commercial businesses that are determined by the City to displace industrial and marine businesses, or that would disproportionately contribute to the traffic generation.

6. It is the intent of the plan to encourage development that produces low levels of traffic generation.

7. It is the intent of the plan to encourage, to the extent possible, mixed use rather than single use development, especially on larger parcels.

8. The amount of commercial service use permitted on a site should be significantly limited in comparison to the amount of industrial use.

9. The amount of restaurant and food service use in the Marinship should be linked to the local working population it would serve and be no more than the minimum size needed to serve that projected population.

10. Additional houseboat development in the Marinship is not allowed outside of the "H" zone. Houseboat use, as approved by the City and BCDC, will be permitted under the following circumstances:

a) On "H" zone parcels;

b) Houseboats existing in permitted recreational marinas, on or before July 1, 1985 and in residential use, on July 1, 1985, may be legalized with a Conditional Use Permit; and

c) Other houseboats existing in Sausalito on or before July 1, 1985 and in residential use as of that date may be legalized with a Conditional Use Permit, provided the applicant demonstrates to the City's satisfaction that the houseboats will be a necessary and integral part of a working waterfront and will fulfill the requirements of the public trust doctrine, the Richardson Bay Special Area Plan, and the San Francisco Bay Plan.

11. Maintain an urban rather than suburban character in the Marinship. This shall apply to considerations of use, building style and treatment, landscaping, and support elements.

12. Development plans should recognize the aesthetic and social value of small-scale, individual activities as a vital component in the overall composition of the Marinship.

13. Uses and development plans that permit and encourage public access and use of the water and waterfront shall have preference over those that do not.

14. Waterfront parcels shall provide approved public access to and from the water, including (where determined possible) limited amounts of temporary public small boat tie-up space.

15. Development plans should give special attention to the establishment and enhancement of the pedestrian and bicycle pathways to and through the Marinship.

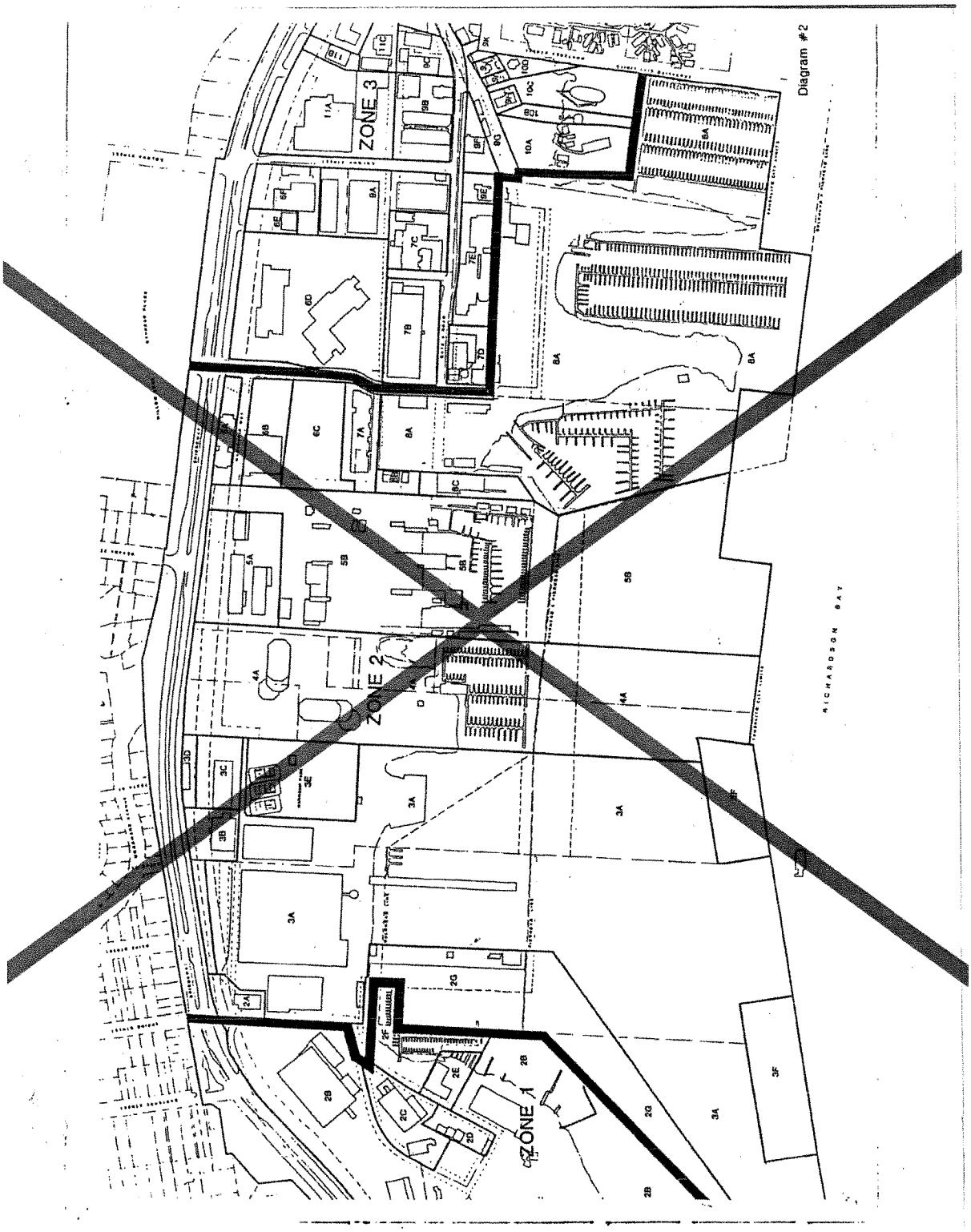
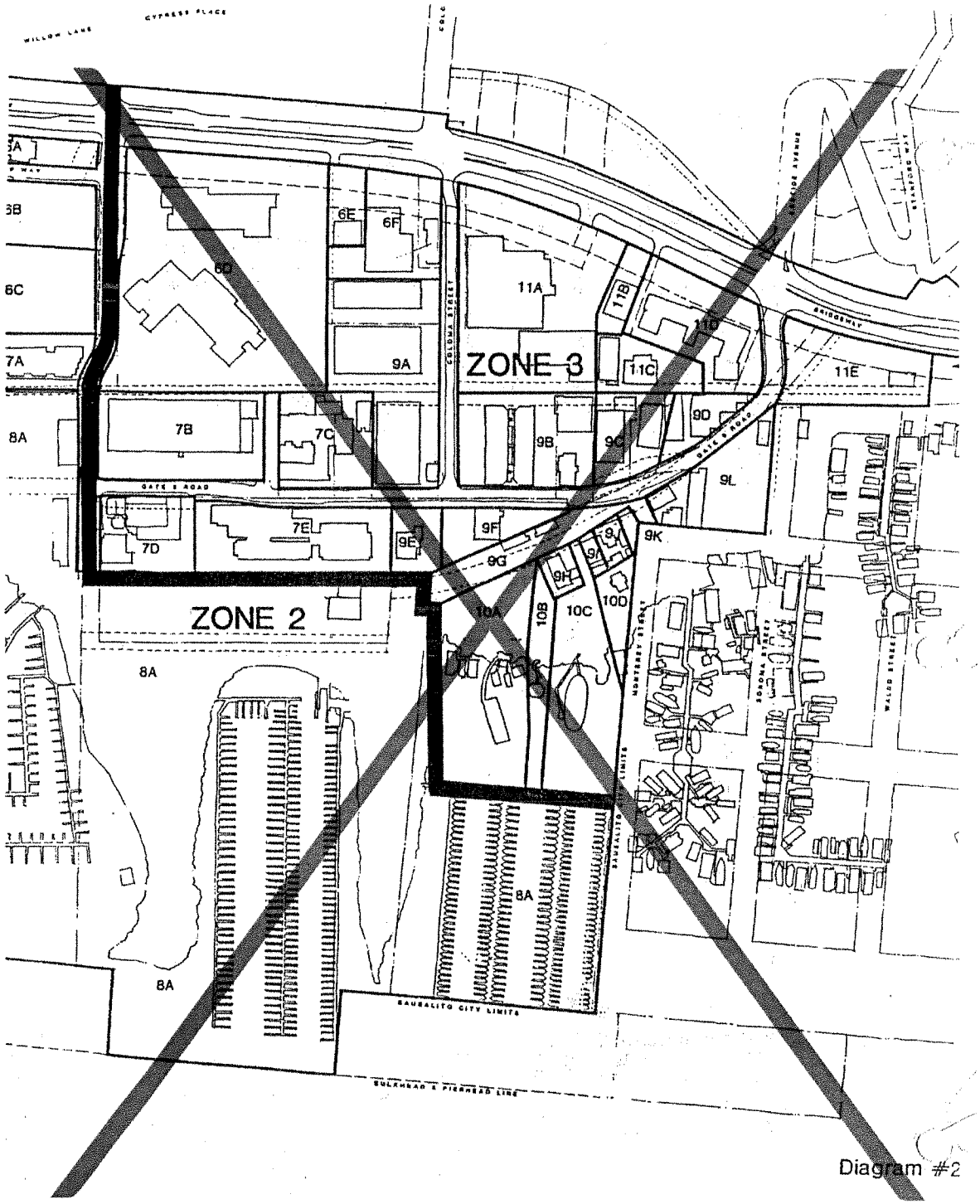


Diagram #2
ZONE 3
ZONE 2
ZONE 1
RICHARDSON BAY


ZONE 3
ZONE 2
6E
6F
6D
11A
11B
11D
11E
11C
9A
9B
9C
9D
9L
7A
8A
7B
7C
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7E
9E
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9J
9K
10A
10B
10C
10D
8A
8A
8A
GATE 5 ROAD
COLOMA STREET
SAUSALITO CITY LIMITS
RICHARDSON

Diagram #2

16. An intent of the plan is to maximize the amount of real and effective open water and shoreline area.

17. Development plans shall preserve and enhance both the identified view corridors (see Diagram #6) and, to the extent possible, other view opportunities to and through the area.

18. It is the intent of the plan to preserve and enhance the viability of the commercial fishing industry in Sausalito and the Marinship.

19. The plan shall preserve and enhance public navigational channels in the Marinship.

20. It is the intent of the plan to improve the water quality of the Richardson Bay by restricting any potential pollution by Marinship developments. Development proposals will be evaluated with regard to their pollution control techniques, such as controlling runoff, and restricting uses to non-polluting uses as provided in the Richardson Bay Special Area Plan.

21. Any proposed Marinship development shall identify the nature and scope of any natural hazards, such as soils or geological conditions, and satisfactorily mitigate such hazards before construction. The City may determine that some uses or types of construction are considered not to be in the public's interest and safety to permit. Justification of any such use or development will be the responsibility of the applicant.

III. DEVELOPMENT PROGRAMS

A. OVERVIEW

The following Development Programs are listed by the corresponding zoning category. Zoning categories are created in response to General or Specific Plans, not vice versa. However, the 1985 Sausalito Traffic Initiative fixed the existing boundary lines in their current locations and does not permit the realignment of those boundaries or zone designations except when changing to a less development intensive category.

The following Development Programs are intended to be consistent with the Development Objectives. Where conditions arise that are not spelled out in this plan, or it is necessary to interpret the intent of the plan, any objective or intent statement shall be used as the basis of evaluation. Unless otherwise noted the standards are derived from or relate to the existing City of Sausalito standards.

Unless noted otherwise, the typical method for determining the development capacity, or permitted "Floor Area" (see Zoning Ordinance, Section 10.102), of a Marinship parcel is to multiply the "Parcel Area" (Gross parcel area exclusive of certain easements, ways, etc. See Zoning Ordinance Section 10.201) times the maximum "Floor Area Ratio (FAR)" (see Zoning Ordinance, Section 10.102).

The development program described below was prepared in response to, among other factors, the limitations of the current zoning. The current Floor Area Ratio (FAR) standards in the Zoning Ordinance were approved by the voters of Sausalito in the 1985 Traffic Initiative and cannot be exceeded without another majority vote of Sausalito voters.

Several Marinship Specific Plan designations incorporate the concept of inclusionary development requirements (See Appendix-B: Glossary of Terms). These are in the form of maximum development intensity ratios that would be permitted, as a function of another use ratio. For example:

- Use "A" is permitted a maximum Floor Area Ratio (FAR) value of "x%";

- Use "B" is an inclusionary use and is permitted only when developed with use "A". The FAR for use "B" is defined as being no more than "y%" of use "A's" as built "x%" FAR.

One of the Specific Plan guidelines is to limit the potential northbound traffic increases in the area, especially on Bridgeway, during the weekday evening Peak Hour. The traffic impacts associated with the permitted uses should be major factors in determining the permitted development intensities.

To this end, the Marinship Specific Plan has established maximum development intensity standards based upon, among other things, the relative traffic impact of uses compared to general industrial development. New development and redevelopment applications in the Marinship shall conform to the standards contained in this plan.

One goal of the Marinship Specific Plan is to reduce the potential traffic impact of future Marinship developments by designating largely low traffic generating uses. Many existing parcels contain comparatively high traffic generating uses, such as office and other commercial businesses. These particular existing uses produce a disproportionately greater amount of traffic than do the preferred industrial businesses.

Many of these existing commercial uses also occur at FAR levels higher than would be permitted by the Specific Plan. Even though these parcels contain "excessive" amounts of commercial floor area they would be allowed to develop additional industrial floor area under the conditions of the existing zoning.

For example, an industrial parcel is allowed a 40% FAR. The parcel may contain only office use and is developed to the former 25% FAR maximum level for commercial use. Under the current zoning the parcel would be permitted to develop an additional 15% FAR in industrial uses.

The provisions in the Marinship Specific Plan seek to address the equity of potential traffic impacts among the parcels. The proposed solution is to establish general industrial traffic generation as the common denominator for evaluating the effective Floor Area Ratios (FAR) for existing development.

The Marinship Specific Plan proposes to convert the FAR for those existing commercial uses generating northern bound PM peak hour traffic (the most critical traffic condition) greater than general industrial uses into an equivalent industrial FAR, based upon their relative traffic generation characteristics.

This is accomplished by evaluating the existing parcel development, determining the actual FAR ratios for the various uses, focusing upon those existing uses that generate greater traffic than does general industrial, and identifying the increment of FAR for those uses that exceed the limits proposed in the Specific Plan. That FAR increment above the proposed level is converted to its industrial Traffic Trip Generation Equivalent FAR and then added to the other FAR values for the parcel. The adjusted total is then compared with that allowed to determine if additional development would be permitted.

The following examples demonstrate the development FAR evaluation that would occur using this analysis technique:

Example 1:

Parcel "A": Industrial zone,
maximum FAR = 40%

Assume:
- Existing Industrial use equals 10% FAR;
- Existing Commercial use equals 25% FAR;
- Commercial uses can not exceed 15% FAR;
- The northbound, weekday PM Peak hour trip generation rate of this particular Commercial use is less than or equal to the rate for general industrial use;

Question:
- How much, if any, development would be allowed?

Solution:
- Since the commercial use generates less critical traffic than industrial the full value of the existing FAR can be used.

Therefore:
- Allowable FAR = 40% - (Ind: 10% + Com: 25%)
= 40% - 35%
= 5%

An additional 5% FAR in industrial development would be permitted.

Example 2:

Parcel "B" Industrial zone,
maximum FAR = 40%

Assume:
- Existing Industrial use equals 10% FAR;
- Existing Commercial use equals 25% FAR;
- Commercial uses cannot exceed 15% FAR;
- The northbound, weekday PM Peak hour trip generation rate of this particular Commercial use is three times the rate of general industrial use;

Question:
- How much, if any, development would be allowed?

Solution:
- Since the Commercial use has a greater traffic generation rate than general industrial, its industrial equivalent must be analyzed and then the effective FAR determined.

Therefore: - Excess Commercial FAR = 25% - 15%
= 10%

Industrial traffic equivalent = 10% x 3
= 30%

Non-Industrial FAR = allowable + equivalent
= 15% + 30%
= 45%

Allowable FAR = 40% - (Ind: 10% + Com: 45%)
= 40% - 55%
= -15%

No additional development would be permitted because the existing development is considered to already exceed the allowable FAR.

This development analysis method would have a significant impact upon several parcels. For example, Marina Plaza, One/Three Harbor Drive, SWA, Feng Nian Restaurant, and other parcels have developed only the commercial portion of the allowable FAR. Though they have more commercial development than would be allowed under the Specific Plan they would be permitted additional industrial development under the current zoning. They would not be permitted additional development using the Traffic Trip Generation Equivalent analysis technique based on current trip generation rates.

The trip generation rates for the permitted use classifications are provided in Appendix C. These rates were provided by DKS Associates, traffic engineers. The City should periodically reevaluate these rates to insure their accuracy and relevance to the Marinship.

B. DEVELOPMENT PROGRAMS

The permitted uses listed below are defined in APPENDIX: B. Glossary of Terms, in this document.

1. INDUSTRIAL ("I") ZONE

GENERAL INTENT

It is the objective of this zoning category to provide for industrial, service and arts uses, with the necessary support elements considered important to the City of Sausalito. This objective includes the general exclusion of commercial uses such as office, which could instead be designated in other areas of the City.

Uses in the Marinship area should be limited to the following, and similar general types of uses as approved by the City, consistent with the goals, objectives and functional organization of the Marinship Specific Plan.

Non-polluting, low traffic generating, low intensity industrial uses, and the following uses to the extent they are compatible to an industrial area: warehousing; wholesale trade establishments; light manufacturing; office service and supply and industrial service and supply; art, including Fine Arts, Maritime Arts, Industrial Arts and Applied Arts, and craft workshops (no retail sales); industrial or marine-oriented research and development laboratories; small-scale appliance and equipment repair and service; boat storage, yacht clubs; wholesale and retail fish sales; employee eating establishments (independent eating establishments should be permitted only after review to determine the need for such a facility to serve the needs of the employees in the Marinship area and determination that the location and signing does not encourage use by persons outside the Marinship area).

Furthermore, the "I" zone shall:

- Permit existing office buildings and uses to remain:

- Prohibit general retail sales, except as a part of a commercial service business (one serving the needs of, and complementary to, the needs of the Marinship, such as a chandlery);

- Permit performing arts theater studio and rehearsal use. Occasional live performance presentation and film uses may be permitted with the approval of a Conditional Use Permit.

a. **TYPICAL CONDITION**

The Industrial ("I") zone is the Marinship's largest and includes the widest variety of permitted uses. To the extent possible, especially on the larger sites, a mixture of uses is to be encouraged.

Unless noted otherwise, the typically permitted uses in the "I" zone parcels include: general industrial, marine industrial, arts, commercial service, limited amounts of restaurant and food service, and dry boat storage uses categories. Existing legal office, full service restaurant, and residential uses may remain as permitted uses, as noted elsewhere in this document.

The uses permitted in the "I" zone are defined in Appendix- B: Glossary of Terms. These are further qualified by the following standards:

Arts:

It is the intent of the Arts designation to allow art studio space, not retail art galleries. It is not the intent, however, to prohibit a limited number of "sales events" on-site, featuring the sale of art creations by the artist. The amount of permitted studio space dedicated to formal art display shall be limited. Signage or advertisement of the retail activity, if done on a regular basis, is prohibited. The sale of art work is to be by the actual artist or by a temporary assistant or employee.

Applied Arts:

Applied Arts is to be an inclusionary Arts use (e.g., it is only permitted in association with other Arts uses on a specific parcel). Applied Arts is not to exceed 50% of all Arts use on a parcel, and will be allowed only with the approval of a Conditional Use Permit.

Commercial Office:

The only new office use permitted in the Marinship will be limited to accessory office use (the small amount of office activity needed to administer the operations of an approved use). No new Commercial Office use will be permitted in the Marinship. Existing office buildings and uses may remain as permitted uses.

Commercial Retail:

No new Commercial Retail areas will be permitted in the Marinship. Commercial Retail will be permitted in the form of a full-service supermarket (in the CS Zone) or on parcels, and in amounts, where retail use has been previously approved by the City.

Commercial Restaurants:

A limited number of Commercial Restaurants will be permitted in the Marinship. Existing Restaurant use will continue to be permitted on parcels, and in amounts, where restaurant use has been previously approved by the City. A limited number of small restaurants (limited dining on the premises) will be permitted in the "I" zone within the Marinship. Restaurants with up to 40 seats may be permitted with a Conditional Use Permit on planning parcels of at least four acres. Applications for new restaurants shall require an analysis of the need for such a facility to serve

the needs of employees in the Marinship. A determination shall be made that the location and signing does not encourage use by persons outside the Marinship.

Commercial Food Service:

Commercial Food Service (no dining on the premises) will be permitted with a Conditional Use Permit in the Industrial Zone within the Marinship. The amount of food service square footage permitted on a parcel shall be determined after an analysis of the need for such a facility to serve the needs of employees in the Marinship. A determination shall be made that the location and signing does not encourage use by persons outside the Marinship.

Residential:

No new residential use will be permitted in the "I" zone. Existing, legal, residential use may remain as a permitted use on parcels, and in amounts, as have been previously approved by the City.

Public Access:

All shoreline parcels in the Marinship shall provide for the temporary tie-up of small boats, as required by the City. The number of such spaces shall be a minimum of one per parcel or 2% of the total number of berths in the harbor, whichever is greater, unless otherwise approved by the City.

The allowable development program for the "I" zone shall be as provided in the zoning ordinance, subject to the additional requirements and limitations of this plan. The zoning ordinance shall identify the maximum allowable Floor Area Ratio (FAR) as well as any specific ratios between the amounts of permitted uses. (Currently, the zoning ordinance FAR is 40% with no more than 15% in commercial use).

To maintain the industrial emphasis of this zone, no more the 40% of the permitted FAR shall be allowed for commercial uses. Such commercial use refers to commercial offices, commercial services, restaurants and food services. Accessory office use is not included in this consideration. Commercial uses shall be permitted when developed with approved non-commercial uses.

Dry Boat Berths

The number of dry boat berths shall not exceed 100 berths per acre.

b. SITE-SPECIFIC EXCEPTIONS

The following are site-specific exceptions to the typical "I" zone program standards described above.

ZONE 1

Planning Area 2:

2B Schoonmaker Point

The collection of parcels constituting what is frequently referred to as "Schoonmaker Point" represents one of the largest planning areas in the Marinship. This condition lends itself to a mixed use development concept. Sufficient amount of industrial and arts uses may create a demand for additional uses, such as commercial services and food services.

Though not required to do so, to the extent it is feasible, the major original buildings, the Three Bay "Schoonmaker Building" and the "55 Foot Tall" Building, should be maintained and used in an adaptive reuse development program. These buildings appear to be well suited for industrial and arts uses.

Limited views of Richardson Bay from the Bridgeway corridor are currently possible through the site. Future building development and landscaping should attempt to minimize view blockage.

2D Cement Gun Property

This property is currently owned by many of the same investors as Parcel 2B, Schoonmaker Point, and is virtually surrounded by the same. It may be useful to consider it within the same context when evaluating the potential mix of uses in this area. Restaurant and food service is permitted on this parcel if developed as a part of the larger surrounding parcel group (e.g., Schoonmaker Point).

ZONE 2

Planning Area: 3

3B Record Plant

The existing recording studio and blueprint service uses on this parcel contribute to the area. In addition to any industrial development, expanding the art and service use of this parcel is desirable. Any additional development on this parcel is likely to occur at a second level or upon the Bridgeway embankment. No floor or roof area of the any future structure should have an elevation above the Bridgeway curb at this parcel boundary.

3C SWA Offices

This parcel has been the site of local design firms for many years. Given the size and nature of the individual businesses on this parcel, the primary use could be considered to be Applied Arts. Currently, however, the combined traffic effect results in a parcel that more closely resembles office use. For this reason, the existing use is assumed to be commercial office.

3D Office (Duryee)

The only Applied Arts use that will be permitted is Marine Applied Arts.

Planning Area: 4

4A Marina Plaza

The collection of assessor's parcels constituting what is currently referred to as "Marina Plaza" is one of the larger planning parcels in the Marinship. This condition lends itself to a mixed-use development concept. Sufficient amounts of industrial and arts uses may make it possible to support such additional uses as commercial services and restaurant and food services.

Planning Area: 5

5A "Gerhardt" (parcel west of Arques)

This central Marinship site is well located for industrial use. To the extent possible the development plan should coordinate its mix of uses and building siting to take advantage of its proximity to the to the larger adjacent Parcel 5B: (Arques Gate 3). No Applied Arts, Commercial Service, Food Service, or Dry Boat Storage use will be permitted on this parcel.

5B Arques Shipyard, Gate #3

This parcel is large, has remained in a single ownership for many years, and with its water access, represents the greatest remaining opportunity in the Marinship to create a significant marine service center. The development objective for this parcel is that it be used for a mixed-use development concept focusing upon industrial and art uses, especially those oriented to, and complementary to, marine services. Its central Marinship location, as well as the potential for significant amounts of industrial and arts uses, justifies such additional uses as commercial services and food services.

Planning Area: 7

7A "150/180 Harbor Drive"

Retail sales of art and business supplies are not permitted.

ZONE 3

7B Industrial Center Building (ICB)

The Industrial Center Building contains a unique mix of arts uses including Industrial, Marine, Fine and Applied Arts, as well as manufacturing and commercial activities. It is the objective of the Specific Plan to preserve this type of arts-based use on this site.

7E "475 Gate 5 Road"

This parcel contains a mix of industrial, office, commercial and restaurant uses. Maintaining a mix of uses is the development objective.

Planning Area: 9

9A Coloma Industrial Area
9B "200 & 150 Gate 5 Road Area"
9C Auto Repair Area (Swiss Garage, etc.)
9D Auto Repair Area (Paul's Cabinets, etc.)
9E Joe Ray Auto Body
9F Auto Storage Area (Jagger Enterprises)
9G Clipper Property (at Varda Landing Rd)
9H Varda Landing Studios (York)
9I Planeaway Sailboards, etc.
9J Small Boat Center (Gordy Nash)
9K Gate 5 Road Industrial (north of 9J)
9L Office / Retail / Storage (York)

This group of parcels constitutes a significant collection of industrial and service uses in the Marinship. The combined effect is a true mixed-use neighborhood. Most parcels are developed in excess of the FAR limits in the current Zoning Ordinance. Many of the buildings, especially those along Gate 5 Road, are older, need rehabilitation, and therefore represent a special problem when considering the issues of code compliance and conversion to new uses. Because of the low elevations, most parcels along the eastern edge of Gate 5 Road are subject to periodic flooding.

9E Joe Ray Auto Body
9F Auto Storage Area (Jagger Enterprises)
9G Clipper Property (at Varda Landing Rd)

9H Varda Landing Studios (York)
9I Planeaway Sailboards, etc.
9J Small Boat Center (Gordy Nash)
9K Gate 5 Road Industrial (north of 9J)

The only Commercial Service allowed on these parcels is Marina Commercial Service.

9L Office / Retail / Storage (York)

Retail Sales of art and business supplies are not permitted.

Planning Area: 11

11E "4000 Bridgeway"

This site is located at the gateway to Sausalito and the Marinship. New development including a mix of uses, building scale, variety of texture, visual quality, parking treatment, and open space was constructed in 1987. The development objective for this parcel is the same as for other adjacent Bridgeway frontage parcels except that the final expression of this mix is of greater importance, given its high visibility.

2. WATERFRONT "W" ZONE

GENERAL INTENT

Uses in this area should be limited to the following and similar general types of uses as approved by the City, consistent with the goals, objectives and functional organization of the General Plan and Specific Plan.

Development in this zone should reinforce and support the Marinship's maritime trades and industries. The Marinship Specific Plan intent for the "W" Zone includes the following marine-oriented uses: boat harbors, piers, wharves, and launching ramps; boat storage; boat sales, rental, building, repair and service; commercial and sport fishing facilities; wholesale and retail fish sales; marine equipment sales, manufacture, service and repair; tax-exempt yacht clubs; marine research laboratories. A terminal for a ferry or similar marine transportation shall not be located in the Marinship area.

Further "W" zone requirements shall include:

No new recreational boat harbors will be permitted in the Marinship area. Existing harbors can be redeveloped and improved. These harbors may also be expanded on the same Planning Parcel by no more than 10% of the number of berths existing or approved by the City at the time of plan adoption,

and as allowed and permitted under the Zoning Ordinance. Any new harbor development in the Marinship must be developed for marine service, not recreational boat use. All harbor plans must be reviewed and approved by the City's Design Review Board.

Harbor plans approved by DRB

- Every harbor shall have a maximum feasible percentage of its water area in an open, contiguous, regularly shaped configuration. The open water area should make it possible to clearly view Richardson Bay from the shoreline. The percentage of open water area to be required shall be decided by the City.

- Every harbor should have at least one pump-out facility available to the public.

- All harbor plans shall be reviewed and approved by the City and the City's Design Review Board.

- When reviewing a harbor development application the City should consider the potential use of toxic materials and apply relevant standards and City policies if applicable.

- The proportion of food provisioning in marine supply businesses to other marine supply elements should remain small enough that it will qualify as "limited accessory food provisioning" and not characterize the nature of the business.

- Yacht clubs are to be carefully controlled. Only tax-exempt, public service or use facilities, or limited size facilities to accommodate the temporary need of transient boaters will be considered.

- Houseboat marina development outside the "H" zone is not permitted. Houseboat use in the "W" zone, as approved by the City and BCDC, will be allowed with a Conditional Use Permit under the following circumstances:

1) Houseboats existing in permitted recreational marinas, and in residential use, on or before July 1, 1985, may be legalized after meeting the conditions of the City and BCDC; and

2) Other houseboats existing in Sausalito on or before July 1, 1985 and in residential use as of that date may be legalized, provided the applicant demonstrates to the City's satisfaction that the houseboats will be a necessary and integral part of a working waterfront and will fulfill the requirements of the public trust doctrine, the Richardson Bay Special Area Plan, and the San Francisco Bay Plan.

a. TYPICAL CONDITION

The Waterfront ("W") zone has been a major focal point of the Marinship Specific Plan effort. The existing "W" zone is

considered to be a Commercial District. As such, all uses in this zone are considered to be commercial. One element of the Specific Plan, in this zone, has been to distinguish between permitted industrial and commercial uses in the same manner as is currently done in the "I" zone. To this end the definition of Marine industrial use has been narrowed to focus upon the industrial and service uses, relocating the marine commercial service uses to the Commercial Service use category where they are separately controlled.

Unless noted otherwise, the typically permitted uses in the "W" zone include: marine industrial, arts, marine commercial service, food service, houseboats (no new houseboats allowed--existing houseboats may be legalized with a Conditional Use Permit), live-aboard use of marine service and pleasure boats, dry boat storage, marine service berths, pleasure boat berths, and open space. The uses permitted in the "W" zone are defined in Appendix- B, Glossary of Terms. These are further qualified by the following standards:

Applied Arts:

Applied Arts shall be limited to those uses listed in the marine applied arts sub-category and will be allowed only with the approval of a Conditional Use Permit.

Commercial Service:

Only Marine Commercial Service is permitted in the "W" zone.

Commercial Food Service:

Commercial Food Service (no dining on the premises) and small-scale Eating Establishments (with limited dining on the premises, not to exceed 20 seats) will be permitted with a Conditional Use Permit on "W" Zone sites. The amount of food service square footage permitted on a parcel shall be determined after an analysis of the need for such a facility to serve the needs of employees in the Marinship. A determination shall be made that the location and signing does not encourage use by persons outside the Marinship.

Residential:

No new land-based residential use shall be permitted in the "W" zone.

Houseboats:

No new houseboat marinas will be permitted in the Marinship. Houseboat use in the "W" zone, as approved by the City and BCDC, will be allowed with a conditional use permit under the following circumstances:

1) Houseboats existing in permitted recreational marinas, and in residential use, on or before July 1, 1985, may be legalized after meeting the conditions of the City and BCDC; and

2) Other houseboats existing in Sausalito on or before July 1, 1985 and in residential use as of that date may be legalized, provided the applicant demonstrates to the City's satisfaction that the houseboats will be necessary and integral part of a working waterfront and will fulfill the requirements of the public trust doctrine, the Richardson Bay Special Area Plan, and the San Francisco Bay Plan.

Liveaboard Residential Use of a Pleasure Boat:

The number of liveaboard boats in a pleasure boat harbor is strictly limited by both the Marinship Specific Plan and BCDC. The intent of this standard is to prohibit the multi-family or commercial use of these liveaboard recreational boats.

Liveaboard Residential Use of a pleasure boat will be permitted in an approved harbor with a Conditional Use Permit, where it can be demonstrated to the City's satisfaction that such liveaboard use is needed for security purposes in an approved harbor. Liveaboard use of an individual boat will require an Occupancy Permit. Any liveaboard use must satisfy the requirements of BCDC, the provisions of Sausalito's adopted version of the Richardson Bay Special Area Plan, and either be connected to an approved sewer system or have an acceptable sewerage holding tank with an adequate ejection system. All marinas with liveaboard boats shall also have onshore restrooms and showers approved by the Marin County Health Department and at least one pump-out station available on a regular basis for the benefit of the marina users. It is the intent of the City to develop a water quality monitoring program in marinas with liveaboard use. If the water quality in a marina is found to be unacceptably low, the City may require the installation of additional pumpout facilities.

The number of liveaboard pleasure boats permitted in a Marinship recreational marina shall be determined at the time the Conditional Use Permit is

approved, and shall not exceed 10% of the number of berths in the marina. It is City policy that a percentage of the recreational liveaboard berths should be reserved for persons of low and moderate income. As a policy guideline, this percentage should be 50%, so that half of whatever number of liveaboards exist in a recreational marina should eventually be reserved for persons of low and moderate income. In existing marinas, this policy should be implemented on the basis of attrition. For marinas receiving approval for expansion, one-half of all new liveaboards allowed should be reserved for low and moderate income persons. Criteria for low and moderate incomes shall be designated by the City Council from time to time.

Pleasure Boat Berths:

No new pleasure boat harbors will be permitted in the Marinship. Existing or previously approved harbors may continue to exist, be upgraded, remodeled and redeveloped. The number of pleasure boat berths is restricted to the limits of the zoning standards. The number of pleasure boat berths may be expanded, within Zoning Standard allowances, up to 10% of approved or existing berths, with approval of a Conditional Use Permit.

Marine Service Berths:

Marine Service berth harbor is the preferred type of harbor in the Marinship.

Marine Service Live-Aboards:

Marine service use is one of the most desired uses in the Marinship. Residential use of the boat is only permitted when it can be demonstrated that it is necessary to provide the marine service. Any liveaboard use must satisfy the requirements of BCDC, the provisions of Sausalito's adopted version of the Richardson Bay Special Area Plan, and either be connected to an approved sewer system or have an acceptable sewerage holding tank with an adequate ejection system. All marinas with liveaboard boats shall have onshore restrooms and showers approved by the Marin County Health Department and at least one pump-out station available on a regular basis for the benefit of the marina users.

Public Access:

Public access policies of the Richardson Bay Special Area Plan should be followed, insofar as they are consistent with this plan. All shoreline parcels in the Marinship shall provide for the temporary tie-up of small

boats, as required by the City. The number of such spaces shall be a minimum of one per parcel, or 2% of the total number of berths in the harbor, whichever is greater, unless otherwise approved by the City.

Yacht Clubs:

The only Yacht Clubs permitted in the Marinship are tax-exempt Yacht Clubs (those Yacht Clubs receiving less than 15% of their gross receipts from non-members). Such Yacht Clubs shall provide public service or use facilities, or limited size facilities to accommodate the temporary needs of transient boaters and shall provide a harbor service facility intended to meet the needs of Sausalito harbors and local residents. It is not the objective to permit facilities created to serve as largely commercial enterprises oriented to non-Sausalito harbor users. The facility shall be limited in size, have limited dining and beverage services, including alcoholic beverages, and shall not provide for overnight accommodations.

The allowable development program for the "W" zone shall be as provided in the zoning ordinance, subject to the additional requirements and limitations of this plan. The zoning ordinance shall identify the maximum allowable Floor Area Ratio (FAR) as well as any specific ratios between the amounts of permitted uses. To maintain the marine and marine industrial emphasis of this zone, no more than 40% of the permitted FAR shall be allowed for commercial uses. Such commercial use refers to marine commercial services and food services. Accessory office use is not included in this consideration. Commercial uses shall be permitted when developed with approved non-commercial uses. The number of dry boat berths shall not exceed 100 berths per acre.

b. SITE SPECIFIC EXCEPTIONS

The following are site specific exceptions to the typical "W" zone treatment described above.

ZONE 1

Planning Area 1:

1B Terra Landing (land and water areas)

The primary development objective is to preserve the maritime use and heritage of the Sausalito waterfront. This particular site has a tradition of mixed maritime, art and live-aboard uses. The land and water portions of the parcel should be

developed together to create a working waterfront project, possibly with marine craftsmen and artists serving as focal point for the area. Permissible uses on this parcel include a veterinary clinic when associated with or incidental to an on-site marine research facility.

This site has been mentioned as a possible commercial fishing site. The site may provide very limited, occasional, transient berthing facilities for commercial fishing boats along with the marine service facilities. Should the marine service facilities not be feasible or approved, it may be acceptable to expand the scope of commercial fishing use of the land and water portions of the site, or the City could consider acquiring the parcel for an open space extension of Dunphy Park.

Food Service is limited to fish sales.

Applied Arts use is limited to Marine Applied Arts use only.

This parcel has been identified as a potential commercial fishing facility. This is an acceptable use on this parcel.

1C **City of Sausalito** (includes street rights-of-way and the Napa Street Pier):

This site includes several street rights-of-way, most under water, and the Napa Street Pier. The development objective for this parcel is that it should be used to enhance the public access of the water and shoreline by maintaining open space, while assisting the adjacent parcels in their efforts to do the same.

The Napa Street Pier is in very poor condition and should be rebuilt. Consideration should be given to both a fixed pier and a combined fixed and floating pier. The fixed portion should be similar to its existing height and width. The Pier should be designed to provide public access onto the water, as well as facilities for the temporary tie-up of small boats and, when needed, a small number of marine service or commercial fishing boats on the north side of the pier.

Note: The Dunphy Park Plan, currently being revised, calls for the relocation of the Sausalito Cruising Club to a site north of the Napa Street Pier. The bond issue passed by the Sausalito voters to buy Dunphy Park prohibits structures, such as the Cruising Club, in Park waters.

Uses on this parcel shall be limited to the following:

- Open Space and Open Water;
- Public Pier;
- Public small boat launch;
- Access and circulation (automobiles, boats, bikes, and pedestrians: only city maintenance vehicles permitted on the Napa Street Pier);
- Berths: the temporary tie-up of small pleasure boats and marine service boats, including commercial fishing boats; *

Note: The City should designate different types of "temporary tie-up" space. One type should be for relatively short term use (less than a day) and another longer term use (less than a month) and controlled through a City or Harbor-Master permit process.

- Rental boats with boating school;
- Public, non-profit, community serving meeting facility.

Planning Area 2:

2B **Schoonmaker Point**

The development objective for this parcel has been introduced in the "I" zone discussion above. Many of the same objectives apply to the "W" zone portion.

Development in conformance with a recently approved water and shoreline plan for the property was nearly complete at the time of plan adoption. The plan includes a 165-berth recreational boat marina, commercial space, and public access to the Schoonmaker beach. Under the Conditional Use Permit process, and in conformance with BCDC approvals, the City will allow twenty of the berths to be used by houseboats and liveaboards. All houseboats must also meet the requirements for houseboat use outside the "H" Zone, as stated elsewhere in this plan. The City should encourage the property owner to give preference for occupancy of the first ten of these twenty houseboat and liveaboard berths to members of the Galilee Harbor Community Association.

2F **Clipper Yacht Harbor #1**

The intense pleasure boat marina use on this parcel exceeds the level allowed by the current Zoning Ordinance (a maximum of 20 berths per acre). However, it presently provides berthage for many Sausalito residents owning relatively small sailing boats.

Applied arts uses shall be limited to Marine Applied Arts only.

ZONE 2

Planning Area: 2

2G Annicelli (Sea K Fish)

This parcel is currently the site of Sausalito's only significantly sized commercial fishing operation. The development objective for this parcel is to preserve and enhance this use.

Note: This parcel currently creates a significant parking problem in the area during the primary fishing season since the site has inadequate space to park the cars of transient commercial fishermen. Furthermore, truck access is significantly impaired given the existing design of the Easterby intersection and ramp.

No Arts uses will be permitted.

No pleasure boat berth, including liveaboard use is permitted on the parcel (marine service liveaboard is permitted).

Planning Area: 5

5B Arques Shipyard, Gate #3

As mentioned in the "I" zone material above, this site represents the greatest opportunity to create a significant marine service center in the Marinship. The parcel is large, has good water access, and has been in this type of use since World War II. The objective for this parcel is that it should be developed into a full service marine center, complete with all necessary support uses and facilities.

This parcel is also one of the Marinship's largest, and should be capable of supporting a variety of mixed-uses including commercial services and food services.

This parcel has been mentioned as a potential site for limited commercial fishing facilities. This could include berthage, loading and unloading dockage, and associated support uses. If this use is determined to be feasible, it could be considered as an element of this site's development program.

Planning Area: 8

8A Clipper Yacht Harbor #2, #3 & #4

The Clipper Yacht Harbors are the largest and among the oldest in the Marinship. The land portions of the parcel have been used for a variety of marine and commercial services for years. This parcel has the city's only fuel dock, the best boat ramp and trailer parking facilities and is home to many commercial sport-fishing boats. Furthermore, the sandy peninsula between basins #2 and #3 have been used by the public as open space, offering spectacular views of the bay and San Francisco.

It is the development objective for this property to maintain and enhance the marine service and public access uses. Though there is a plan preference for marine service use of the water in lieu of additional pleasure boats, this site is likely to remain in pleasure boat use for many years. The boats contribute to the viability of the land-based marine service.

8B Storage Area (west of 8C)

8C Spaulding Boatworks

Arts uses are limited to Industrial and Marine Arts, and with a Conditional Use Permit, Marine Applied Arts.

3. HOUSEBOAT ("H") ZONE

GENERAL INTENT

This planning area has been in houseboat use for many years and is currently so designated in the existing General Plan. It is the site of the only strictly residential use designation in the Specific Plan. It is likely that this use will remain for some time into the future. However, residential use of the water is not permitted under the Public Trust Doctrine. Should the residential use change or no longer be permitted by the State Lands Commission or BCDC, it would be necessary to designate another use. It is the objective of this plan to anticipate this possible change in use and bring the property into conformance with other Marinship designations, requiring a change to a Waterfront ("W") zone.

Should the residential parcels be converted to maritime service uses it will be necessary to secure a navigational easement to the bay. The City therefore reserves a navigational easement consisting of the 60 (sixty) feet on the bayward edge of parcels 10A, 10B and 10C.

a. TYPICAL CONDITION

The Houseboat ("H") zone is the only residential district in the Marinship. Except as noted below, this residential use is permitted on these parcels. Should residential use no longer be permitted in the "H" zone, the district shall be changed to a Waterfront "W" zone designation and be bound by the same standards.

The existing standards for the "H" zone shall be modified as follows:

Arks:

Arks are neither defined nor permitted in the Marinship under the current Zoning Ordinance. BCDC is in the process of evaluating the use and treatment of Arks within their jurisdiction.

An Ark in the Marinship Specific Plan is defined in Appendix B.1. No new Ark use will be permitted in the Marinship. Any Arks that predate the City's General Plan Adoption and BCDC control are to remain as permitted structures. Currently only one such structure, considered to be an Ark and meeting the above criteria, is found in the Marinship area, the Anshen residence, located on Parcel 10A.

Public Access:

All shoreline parcels in the Marinship shall provide for the temporary tie-up of small boats, as required by the City. The number of such spaces shall be a minimum of one per parcel or 2% of the total number of berths in the harbor, which ever is greater, unless otherwise approved by the City.

b. SITE-SPECIFIC EXCEPTIONS

The following are site-specific exceptions to the typical "H" zone treatment described above.

Planning Area: 10

10A Houseboat Area (Anshen)

This parcel contains a residential structure on pilings located over the water portion of the site. Since this unit is no longer a floating vessel it is not considered a houseboat according to the definitions used by BCDC or this Specific Plan document. Its physical condition most closely resembles an "Ark".

10C Houseboat Area (Onslow-Ford, Vallejo)

The City desires to retain as a historical landmark the ferry "Vallejo" and its site, which has been used for a variety of cultural, artistic and residential uses for over 30 years. The City may want to consider acquiring this parcel for open space or public use.

4. SHOPPING CENTER ("CS") ZONE

GENERAL INTENT

The Marinship Specific Plan objective for this parcel is that the full-service supermarket use in this zone be retained to serve the needs of Sausalito residents. The plan recognizes that a new postal facility is under construction on Parcel 6C. Since this is a federal government agency and does not require City or Plan approval, it does not appear in this plan as a designated use. Should the full-service supermarket use no longer be viable on these parcels, the plan objective would be to allow very limited industrial and marine uses. These are limited to: warehousing, lumberyards, and dry boat storage.

a. TYPICAL CONDITION

The original objective of the Shopping Center "CS" zone was to designate an area with uses that would provide Sausalito residents a place to obtain frequently purchased household goods. This purpose has narrowed in the Specific Plan process to preservation of the existing full service supermarket use on Parcel 6B.

The United States Postal Service has recently purchased Parcel 6C and is developing a new local-serving postal facility on that site.

The non-supermarket and Post Office uses that would be permitted in the "CS" Zone are: lumberyard, warehousing, and dry boat storage. These uses are defined in Appendix- B: Glossary of Terms.

Commercial Retail:

The only permitted commercial retail use is a full-service supermarket.

Institutional- Post Office:

The Postal Authority does not require Plan approval from the City.

Lumberyard: Permitted with a Conditional Use Permit.

Warehousing: Permitted with a Conditional Use Permit.

Dry Boat Storage: Permitted with a Conditional Use Permit.

5. PUBLIC ("P") ZONE

GENERAL INTENT

The Marinship Specific Plan objectives include the following:

The City of Sausalito wishes to maintain the Army Corps of Engineers operations on this property (Parcel 3A). Should the current use of the property change, and/or the Corps vacate the site, the property could be used for open space, public access, and/or such maritime uses as would be consistent with the other Marinship designations along the waterfront in this plan.

a. TYPICAL CONDITION

The "P" zone currently includes the Army Corps of Engineers facilities, Parcel 3A, and Marinship Park, Parcel 3E. Since these are both owned by public agencies no private development program is required.

Should Parcel 3A no longer be used by the Corps the site area should be rezoned to a combination of Public ("P") and Waterfront ("W") zones and be treated in the same manner as adjoining parcels utilizing the open space and industrial capabilities of the site.

b. SITE-SPECIFIC EXCEPTIONS

The following are site-specific exceptions to the typical "P" zone treatment described above.

ZONE 2

3A Army Corps of Engineers, Bay Model

Should the parcel ever be rezoned, the designation should include a combination of Public "P" and Waterfront "W" uses, including: marine industrial, arts, marine commercial service, food service (CUP), maritime berths, dry boat storage, open space and open water.

Public access through the area would be improved by opening the shoreline portions of the site at the northern and southern borders (Parcels 2G: Sea "K" Fish and 3E: Marinship

Park). This would make it possible to link the areas north and south of the Bay Model.

Note: The City does not desire to compromise the important dredging operations by the Corps. However, shoreline access and usage would be significantly enhanced if Marinship Park had access to the Bay.

6. OPEN SPACE ("OA") ZONE

GENERAL INTENT

It is the objective of the Specific Plan to preserve the areas outboard of the existing Pierhead line as undeveloped open water areas. This intent recognizes that much of this area has been declared a Federal Anchorage area which permits the temporary mooring of boats as a safety refuge. Furthermore, the Sausalito approved version of the Richardson Bay Special Area Plan policies should be incorporated into the objectives for this area, as should the Rules and Regulations for Anchoring and Mooring in Richardson Bay as adopted by the Richardson Bay Regional Agency.

a. TYPICAL CONDITION

This zone is located outside (east) of the Pierhead - Bulkhead lines in the Marinship. It is intended that this remain as open water and that some of the area be designated as an anchorage as described by the Richardson Bay Regional Agency. It is not to be used other than as an anchorage.

Temporary mooring, under the guidelines of BCDC, the Federal Anchorage program, the U.S. Coast Guard, and the Richardson Bay Special Area Plan recommendations is permitted. This zone contains several very important public and private navigational easements which are to remain open.

SITE SPECIFIC COMMENTS

ZONE 2

Planning Area: 2

2G Annicelli (Sea K Fish)

The open water portion of this parcel provides needed navigational access to Richardson Bay for several Marinship parcels. It is a plan objective to maintain this access.

Planning Area: 3

3A Army Corps of Engineers, Bay Model

The open water portion of this parcel provides needed navigational access to the bay for several Marinship parcels. It is a plan objective to maintain this access. Additionally, the Army Corps operations currently maintain the channel and turning basin. This very important service provides safe and reliable access for Marinship boats and maritime services.

3F City of Sausalito

This water parcel should remain an undeveloped, open water area.

Planning Area: 4

4A Marina Plaza

This open water portion of this parcel provides needed navigational access to the bay for several Marinship parcels. It is a plan objective to maintain this access.

Planning Area: 5

5B Arques Shipyard, Gate 13

The open water portion of this parcel provides needed navigational access to the bay for several Marinship parcels. It is a plan objective to maintain this access.

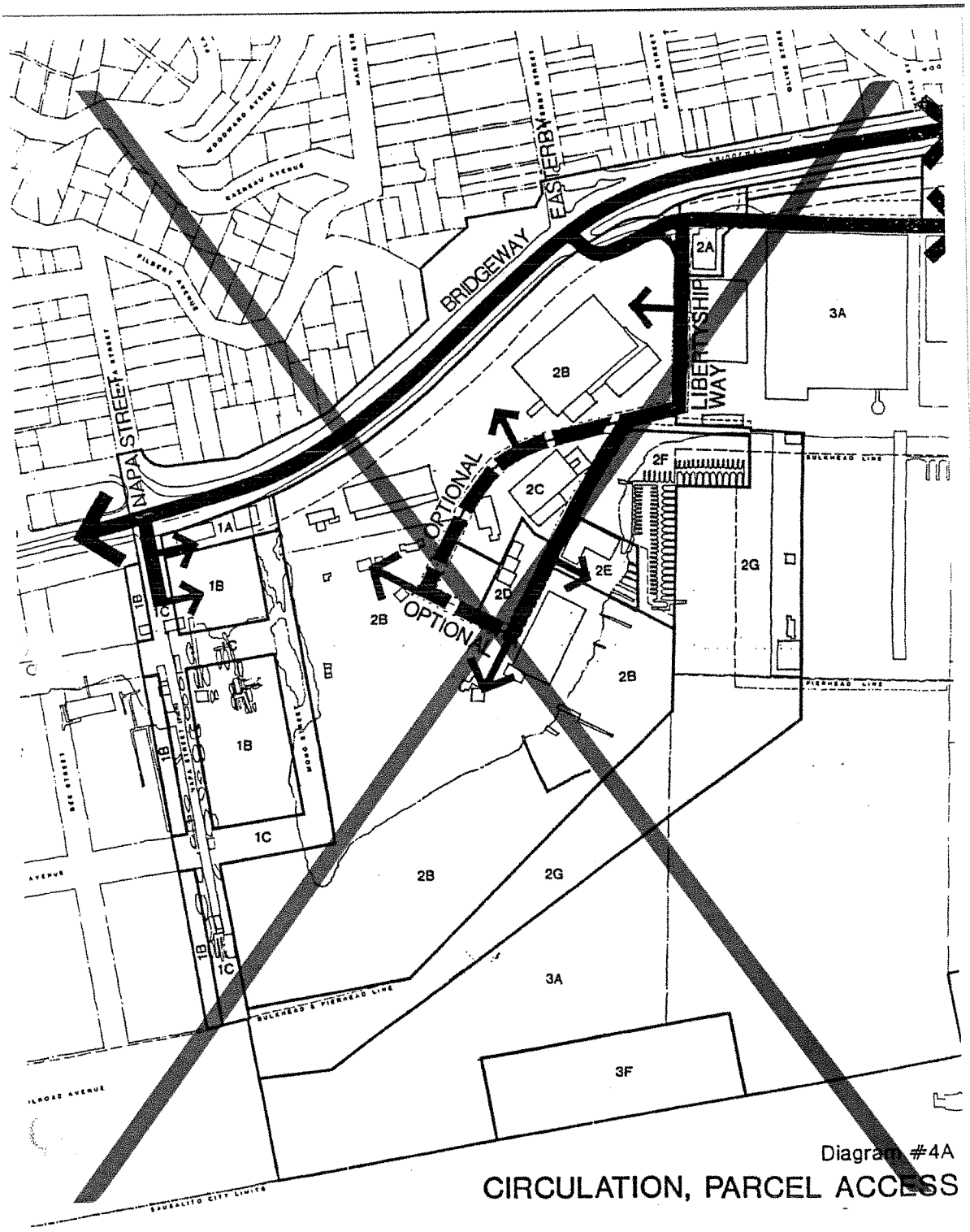


Diagram #4A

CIRCULATION, PARCEL ACCESS

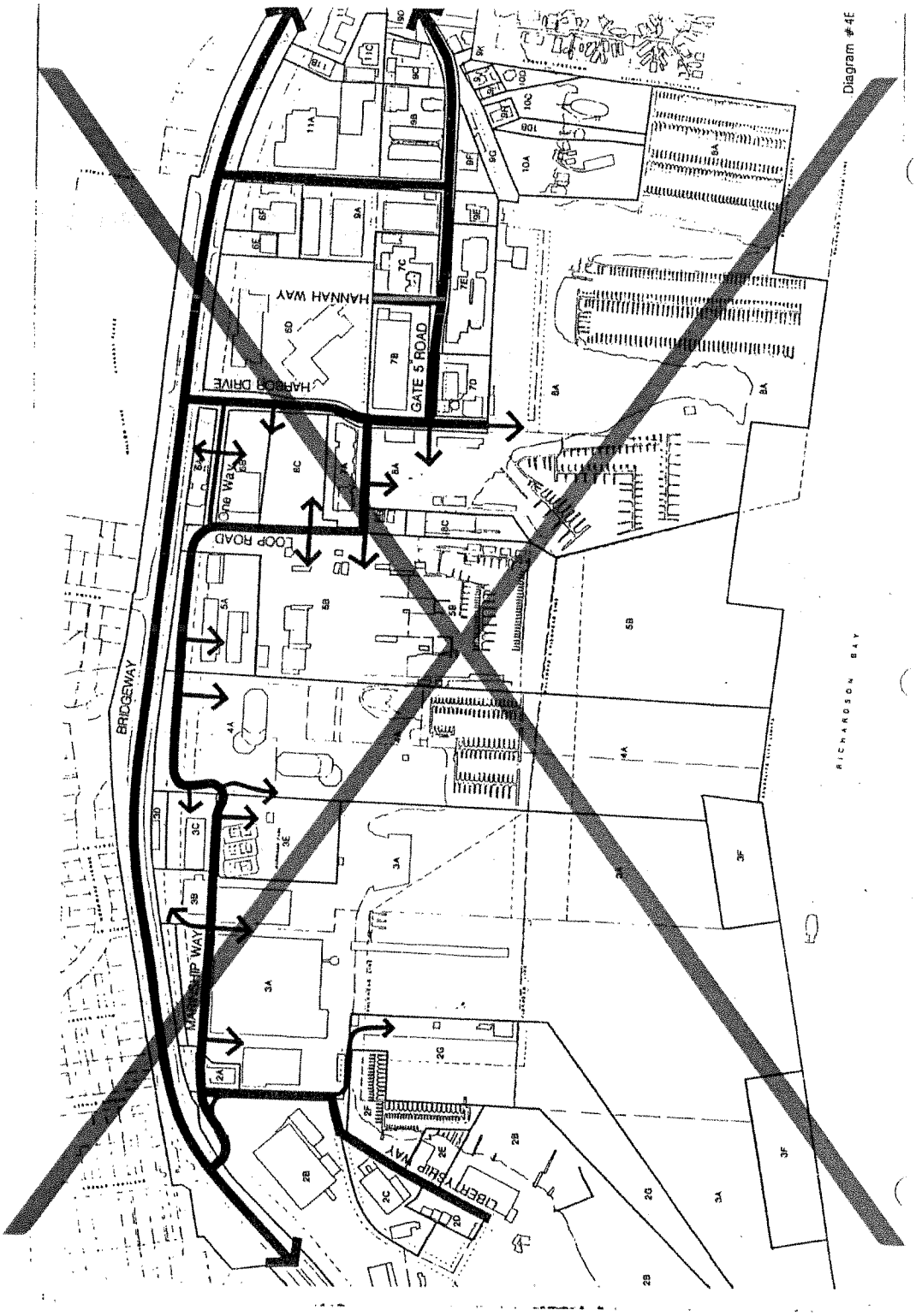
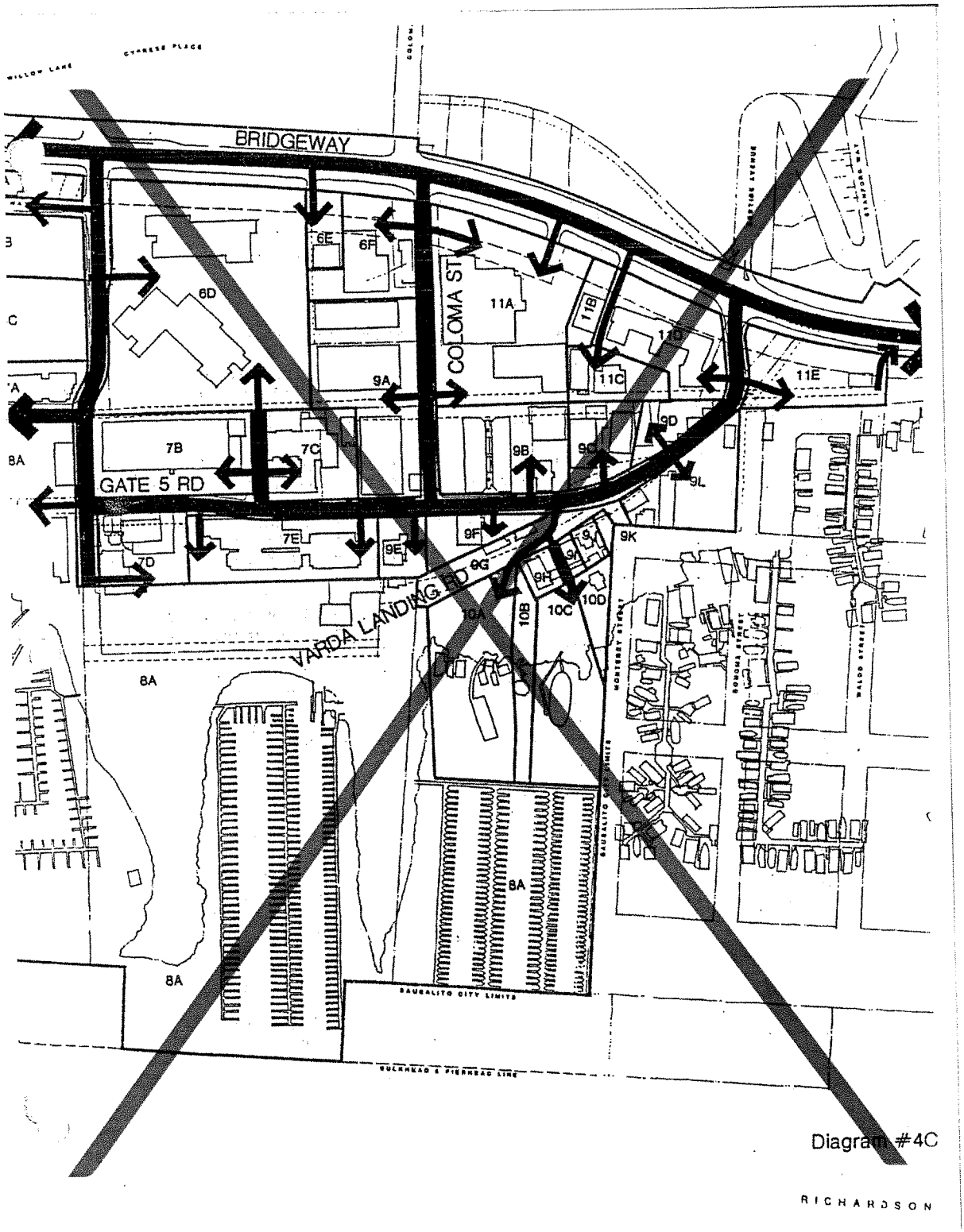


Diagram #4E
HANNAH WAY
HARBOR DRIVE
GATE 5 ROAD
LOOP ROAD
BRIDGEWAY
MARSHIP WAY
CHERYSHIP WAY
RICHARDSON BAY


BRIDGEWAY
COLOMA ST
GATE 5 RD
VARDA LANDING RD
6D
6E
6F
7B
7C
7D
7E
8A
9A
9B
9C
9D
9E
9F
9G
9H
9J
9K
9L
10A
10B
10C
10D
11A
11B
11C
11D
11E
SAUSALITO CITY LIMITS
BULKHEAD & PIERHEAD LINE
Diagram #4C
RICHARDSON

IV. DEVELOPMENT STANDARDS

The following sections contain the detailed Development Standards for the Marinship.

A. CIRCULATION, ACCESS, STREETS AND WAYS

1. CIRCULATION

a. Marinship Specific Plan Approach

The Marinship Specific Plan circulation plan utilizes the original General Plan approach. Many of the General Plan directives have been implemented. The only Specific Plan change affects the alignment of the Marinship Loop Road.

Alternative alignments were analyzed in the EIR. The City Council reduced these alternatives which are illustrated on Diagram #4: Circulation and Parcel Access. As shown on the diagram, it is no longer the City's intent to bisect Parcels 3B and 3C. The routing onto Parcels 4A, 3C and 3E is intended to reduce the hazardous traffic conditions associated with the sharp turns in this area.

Marinship circulation, as well as that for the entire city, would be improved significantly by improving the efficiency of the Bridgeway intersections. Relatively modest improvements at most Marinship intersections, especially at Gate 6 Road, would make measurable improvements to the Service Levels. These are described and analyzed in EIR. These improvements have been assigned to the private sector with the exception of the Harbor Drive and Gate 6 Road intersections with Bridgeway, which are to be public projects.

2. PARCEL ACCESS

Much of the Marinship's access problems are caused by ill-defined roadways and parking lots. The Specific Plan requires that streets, both public and private, should be designed to maximize traffic safety, access to industrial structures and areas, and have good drainage and that parking requirements be satisfied on-site in designated lots.

Due to the shortage of public streets in the Marinship, individual parcel access is frequently via an access easement. The status of these access easements appears to be sufficiently clear. The need is therefore to formalize the access, implementing a paved, or equally well defined driveway treatment serving each parcel. The most noticeable areas in this regard are in Zone 1, near the Schoonmaker area parcels, and along Varda Landing Road.

Acceptable parcel access points are illustrated on Diagram #4. The access arrows are diagrammatic and are intended to represent the most reasonable access points. Of particular interest are the access limitations summarized as follows:

- Parcels 1A-C: via Napa Street;

- Parcel 2B: via Liberty Ship Way. No vehicular access will be permitted across Mono Street.

- Parcel 6B: via Marinship Way and Marinship Loop Road; egress only onto Harbor Drive;

- Parcel 11E: Access via Gate 5 Road (the distance between the access point and Bridgeway should be sufficiently great for the safe and effective operation of the intersection); egress only onto Bridgeway near the northern parcel boundary.

The parcel access depicted in the plan documents should be required, when reasonable, as part of any development plan that:

- involves reconfiguration or relocation of more than 50% of the parking spaces;
- increases the Floor Area by 25% above its existing levels;
- redevelops or remodels the existing facilities in excess of 25% of their market value;
- requires an improved parcel access to protect the health and safety of the public.

Note: This consideration shall include the combined total of all improvement increases during any five year period contiguous with the date of the current development application.

3. **STREET AND DRIVEWAY STANDARDS**

a. **Property Owner Responsibilities**

The construction of the following streets is the responsibility of the parcel owners as noted:

- Marinship Way (one-way portion) between Parcel 6B and 2401 Marinship Way:
  Parcels 6A, 6B and 6C.

- Marinship Loop Road (behind Parcel 6B, Post Office and 150/180 Harbor:
  Parcels 5B, 6B, 6C, 7A, 8A and 8B.

- Marinship Way between the Parcel 6B and Marina Plaza:
  Parcels 5A and 5B

- Smooth curve at Marina Plaza: City of Sausalito.

- Marinship Way between SWA and Marinship Park - Corps: Parcels 3A, 3B, 3C and 3E (City of Sausalito)

- Easterby Ramp: Parcels 2A-G and 3A.

The construction and dedication of the following Bridgeway intersection improvements are the responsibility of the parcel owners as noted:

- at Harbor Drive: City of Sausalito

- at Coloma Street: Parcels 6F, 9A, 9B and 11A

- at Gate 5 Road: Parcels 11D and E

- at Gate 6 Road: City of Sausalito

The construction of the following street improvements are the responsibility of the parcel owners as noted:

- Liberty Ship Way: Parcels 2A-G, 3A.

Except as noted below, all of the street, intersection, driveway, sidewalk, landscaping and lighting construction projects shall be implemented as follows:

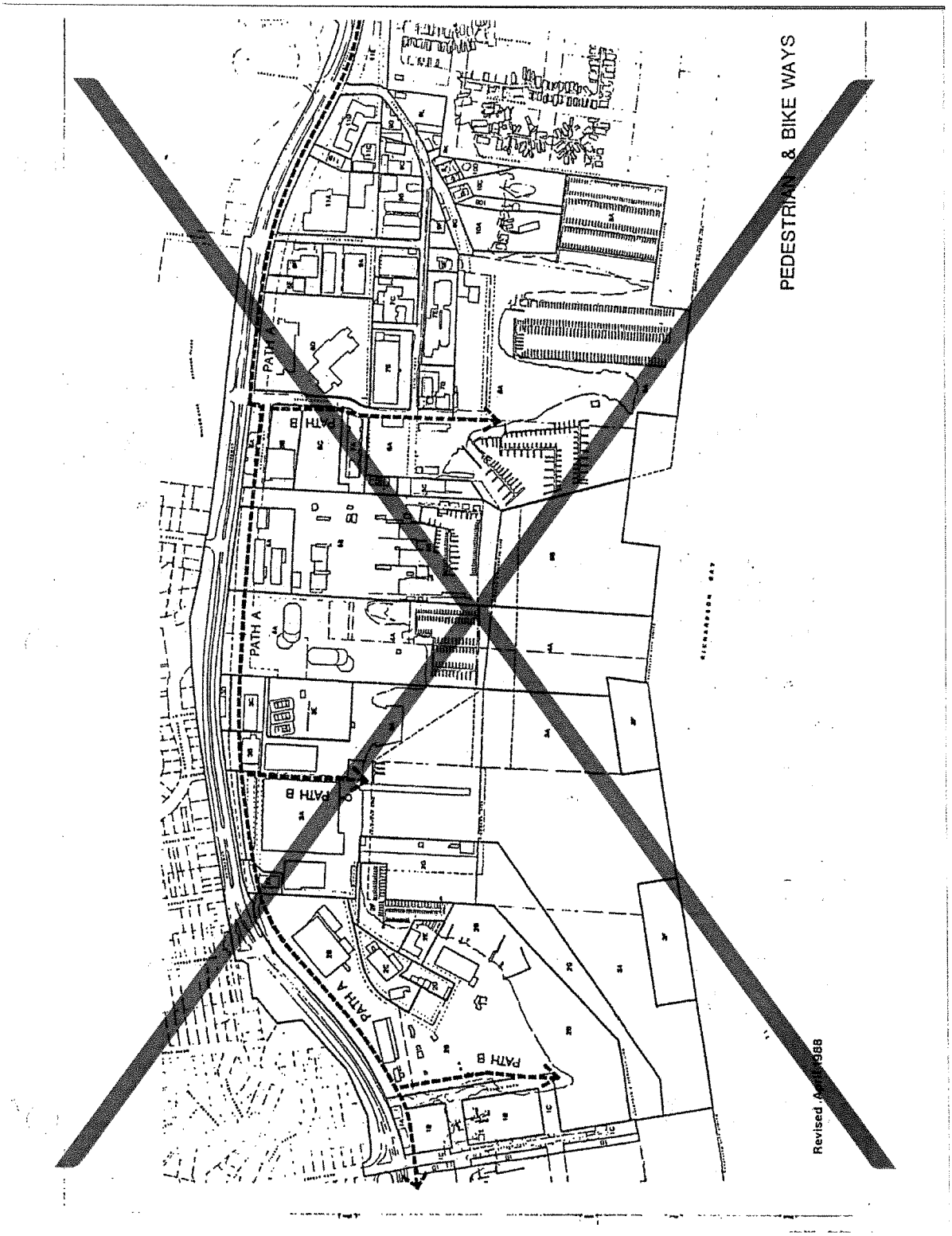
The City may assist in the formation of one or more assessment districts to implement the required improvements. If this is not possible, or the City decides the improvement is needed prior to the formation of an assessment district, then the City should redesignate the improvement as a public project. In that instance the City would be responsible for the improvement costs.

The City may require cash deposits or cash equivalent, at the discretion of the City Manager, to be held on account to pay for required improvements when it is not reasonable to install or complete the required improvement at the time of development plan approval.

Any improvement identified as the sole responsibility of the City of Sausalito does not require an assessment district.

b. Street and Driveway Widths

In keeping with the industrial character of the Marinship, street design should maximize traffic safety, access to industrial structures and areas, and good drainage. Curbs, gutters, and traffic control devices may be required, as may


PEDESTRIAN & BIKE WAYS
PATH A
PATH B
PATH B
PATH A
PATH B
Revised April 1988

walkways or sidewalks where appropriate. All designs shall be approved by the City of Sausalito Department of Public Works.

c. Sidewalks

Unless noted or approved otherwise, sidewalks along all streets, public and private, are to be concrete, at least 5 feet in width, and shall be installed along each right-of-way line.

d. Landscaping

The property owner shall at his own expense provide and install such street trees and other landscaping as may be required by the City of Sausalito and approved by the Public Works Department. Plant materials will be selected for, among other considerations, their ability to minimize water demands and maintenance, as well as resistance to salt water.

e. Lighting

Area lights shall be provided and installed by the property owner, and shall be of a design and illumination as approved by the Public Works Department. Lights shall be directed and/or shielded in such a manner as to prevent glare or direct illumination on public street and adjacent property and shall be maintained as installed.

4. PUBLIC ACCESS (land and water)

a. Requirements

Public access shall be required as part of any development or redevelopment plan in the Marinship providing public access on all public and private streets, pedestrian and bicycle ways, and as may be required by the City.

b. Treatment

The treatment of public access areas is to be in a manner consistent with maintaining and encouraging the industrial and maritime character of the Marinship and consistent with the desire to enhance public use and access of the Marinship area, especially its shoreline. Treatment of public access areas will be as approved by the City and may include rest areas, furniture, lighting, signing, and landscaping as determined appropriate by the City.

5. PEDESTRIAN WAYS (other than sidewalks)

The Marinship Specific Plan includes, as an important ingredient, a pedestrian path system providing public access to the Marinship waterfront.

There are frequently public safety problems associated with allowing free public access across active marine industrial areas. When such a conflict is identified it is advisable to have a path detour around the marine industrial activity. Such detours may be of any length and can cross zoning district boundaries. Should the marine industrial activity or the potential threat to public safety cease to exist then the detour should be eliminated and the path route returned to its ideal alignment.

Currently in the Marinship there are several sites where the current marine industrial use warrants such detours. These include the Schoonmaker, Easom, Annicelli, Arques, Spaulding, and Clipper (8A: at Anderson's Boatyard) parcels.

The 1970 Sausalito General Plan includes the following:

"Pedestrian Way:

"A 20 foot wide pedestrian way, lying 10 feet on each side of the property lines, is provided from Coloma extension to Harbor Drive parallel to Gate Five Road (This runs west of the ICB and Heath Ceramics)."

The Marinship Specific Plan requires the following:

a. **Requirements**

Pedestrians ways, accessible to the public shall be provided as follows (See Diagram #5):

- Path "A":

Along the foot (toe of slope) of Bridgeway (between Parcels 1A and 1B, western edges of Parcels 2A, 2B, 3A, 3B, between Parcels 3C and 3D, the western edge of Parcels 5A, 5B, and the eastern edge of Parcel 6A). North of this location the path shall follow the existing alignment to the northern City limits.

- Path "B":

Pathways, accommodating both pedestrians and bicycles, shall be provided along Harbor Drive (south side of the street) at the Army Corps of Engineers (Parcel 3A), and along the northern edge of or near Mono Street, in locations considered to avoid potential negative impacts to the marsh restoration project.

The implementation of the Pedestrian Paths (A and B) and Bike Paths shall be required, when reasonable, as part of any development or redevelopment plan for Marinship parcels along one or more of the paths if the development plan would increase the Floor Area or market value of the parcel improvements by 25%.

Note: This consideration shall include the combined total of all improvement increases during any five year period continuous with the date of the current development application.

Increases of less than 25% would require that a cash deposit, or cash equivalent, at the discretion of the City Manager, be obtained to guarantee the cost of the path system prorated to the percentage of development square footage increase. This deposit is to be used by the City in the eventual implementation of the path system.

b. Treatment

Unless otherwise approved by the City, the pedestrian ways shall be constructed as follows:

- Path "A":

Shall be an asphaltic concrete or concrete paved combination pedestrian and bicycle path, as approved by the Planning Director.

- Path "B":

The paths shall be constructed in a manner compatible with the adjacent pathways, with matching materials and paving widths, as approved by the Planning Director.

All paths shall be landscaped in a manner compatible with the surrounding conditions, providing shade and seating areas as appropriate, and as approved by the Planning Director.

c. Dimensions:

The pedestrian ways shall have the following minimum widths, unless otherwise approved by the Planning Director.

- Pedestrian way or sidewalk (no bicycles): 5 ft.
- Combination pedestrian and one-way bicycle path: 8 ft.
- Combination pedestrian and two-way bicycle path: 12 ft.

6. BIKEPATHS

a. Requirements

Currently the Marinship has a designated bike path along Bridgeway. A commitment has been secured from the property owners of Schoonmaker Point (Parcel 2B) to construct and dedicate a bike path along their portion of Path "B" described above. To date, the path along their property has been dedicated and is scheduled for construction.

The Marinship portion of the bike paths should be located as follows (see Diagram #5):

-Along Bridgeway:

The path shall extend between the northern City limits and Napa Street, connecting at either end with the non-Marinship portions of the path system. The existing portion along the eastern edge of Bridgeway between the northern City limits and Harbor Drive should be redeveloped, and widened, with the pedestrian path relocated inboard of the bike path. The bollards, not trees, should be removed.

At Harbor Drive the path should connect with Marinship Way, running along the western right-of-way until it reaches Parcels 3C and 3D. From this point it should run along the toe of the Bridgeway embankment bisecting Parcel 3B, then along the western edge of Parcels 3A and 2A to the Easterby Ramp intersection at the Foot of Spring Street. From this point the path should continue along the toe of the Bridgeway embankment on the western edge of Parcel 2B, to Mono Street at which point it routes between Parcels 1A and 1B to Napa Street.

- Paths connecting with the shoreline:

The Specific Plan designates several points along the primary bike path which intersect with paths which connect with the shoreline. These include: a route along the southern edge of Harbor Drive between Bridgeway and Parcel 8A (Clipper Harbor); a route at or near Parcel 3A (Army Corps of Engineers); and between Mono Street at Bridgeway and Schoonmaker Point at the tip of Parcel 2B. All combination pedestrian and bicycle paths should be designed for safe speed (casual and leisurely) bicycling, rather than high speed bicycling.

b. Treatment

The final design of the paths and system shall be as approved by the Planning Director. Where bike and pedestrian paths coexist the bike path should be located along the street edge with the pedestrian path located away from the

street traffic. To the extent possible the existing trees along the path shall be maintained to provide shade for the path users.

c. Dimensions:

The bikepaths in the Marinship shall have the following minimum widths, unless otherwise approved by the Planning Director:

- One-way bikepath:	5 ft.
- Two-way bikepath:	10 ft.
- Combination one-way bike path and pedestrian way:	8 ft.
Combination two-way bike path and pedestrian way:	12 ft.

7. SMALL BOAT LAUNCH

a. Requirements

The Specific Plan includes provisions for small boat launch facilities in the Marinship. The intent is to provide opportunities for Sausalito residents to launch small boats into the bay. These small boat launches are to be distinguished from the larger boat launch opportunities that currently exist, typically as private marine service sites.

At least one small boat launch site shall be provided at each of the following locations:

- All City owned shoreline sites (Napa Street and potentially, Marinship Park);

- All public or private recreational harbors.

The boating industry generally refers to "small boats" as those under 30 feet in length. This would characterize a much larger boat than is intended by the same reference in the Specific Plan. In the Specific Plan small boats are referred to within the context of small boat launches intended to provide residents the opportunity to carry their craft to the waters edge and make use of the Bay resource.

For this reason a Marinship Specific Plan "small boat" does not require a trailer to be transported, can be hand carried to and from the water by several persons, and does not require any special equipment to launch or haul out the craft. Such boats could include rowing boats, canoes, small kayaks, and very small sail boats. Such boats are likely to weigh about 100 pounds or less.

Note: Small boats over 100 pounds will frequently require a trailer to transport them which significantly increases the parking requirements associated with providing a small boat launch. Similarly, boats over 100 pounds will likely require some type of hoist or equipment to launch or haul them out of the water. This needed equipment sufficiently complicates the intent of the Marinship "small boat launch" that only boats not requiring such devices are described in the plan.

b. Treatment

A variety of launch facility treatments will be permitted. At a minimum, a small boat launch should include, unless otherwise approved by the City: a ramp, way or dock space suitable for persons to hand launch up to a 100 pound small boat. This would likely require a dock area of between 200 and 300 square feet, preferably at least 30 feet long with easy access from at least one end. There should also be temporary tie-up space, nearby automobile access needed to load and unload the small boats, and nearby parking spaces for the temporary use by small boaters.

The City review of the launch facilities should consider the ability of the particular parcel and project to provide these facilities, the actual physical requirements of the launch, and capability of nearby public parking or other facilities to supplement the boat launch needs.

B. PARKING AND LOADING

1. PARKING REQUIREMENTS

Off-street parking shall be provided according to the standards outlined in the Sausalito Zoning Ordinance. Following the adoption of the Marinship Specific Plan this ordinance should be reviewed to evaluate the adequacy of the parking standards.

All development, redevelopment and remodeling plans, as well as plans to make any changes in use, shall satisfy the City's current parking requirements. Any and all existing parking deficiencies shall be eliminated in the new plan.

The provisions of the Zoning Ordinance shall apply to the granting of any variances to this standard.

The allowable ratio of compact to standard size parking spaces shall be determined by the City using the current ratio of compacts to standard car registrations based on the most localized data available, preferably for the City of Sausalito or Marin County.

Parking spaces for handicapped persons shall be provided as determined by the Uniform Building Code. These spaces are to be located directly adjacent to a walkway and away from other vehicular circulation.

In addition to automobile parking, motorcycle and bicycle parking spaces shall be provided in compliance with the requirements of the Planning Director.

During the Specific Plan study several new uses were introduced which are not currently addressed in the existing parking standards. The following uses are not, or are inadequately, addressed in the existing Zoning Ordinance and should have parking and loading standards assigned/reevaluated:

- Industrial: Research and Development:

Note: A research and development use category can be very difficult to define. It is important that the Zoning Ordinance distinguish between those uses which are industrial laboratory in nature and those that perform like commercial uses. In the Marinship Specific Plan study there has been no documented evidence to support the suggestion that computer related industrial uses as found in the Marinship area, should be assigned separate or higher parking standards.

No new standard is recommended.

- Arts: Fine Arts, Industrial Arts, Marine Arts and Applied Arts:

These uses are considered industrial uses in the existing Zoning Ordinance. They are characterized by their low traffic generation, irregular hours and relatively low parking requirements.

New standard: 1 parking space per 500 square feet of gross floor area (same as for industrial space).

- Service Commercial: Business Service, Marine Service:

Note: These businesses are intended to serve the needs of Marinship area businesses and residents. They are characterized by their low traffic generation, especially during the PM Peak hour, and relatively low parking

requirements since they are frequently within walking distance of those they serve.

New standard: 1 parking space per 500 square feet of gross floor area (same as for industrial space).

- Food Service (no dining on the premises):

These businesses are intended to serve the needs of the Marinship area. Since no dining on the premises is permitted, the parking standard reflects the short term requirements and that many users are easily within walking distance. This use is assumed to have a very low traffic generation rate during the PM Peak Hour.

New standard: 1 parking space per 250 square feet of gross floor area (same as retail space).

- Liveaboard Recreational Boats:

This is not a permitted use in the existing Zoning Ordinance. The characteristics of Liveaboard Boat use are considered sufficiently different from Houseboat and Pleasure Boat use that the same standards should not apply.

As a part of the Zoning Ordinance revisions, appropriate parking standards should be developed. Liveaboard parking requirements should be calculated separately from those for the pleasure boat berths in the same marina, and should not be included in any joint use parking calculations.

- Maritime Berths:

Maritime Service boats (including commercial fishing boats), Marine Craftsmen Boats, Water-Based Art Use Boats, Historic Boats, and Institutional Boats (assume liveaboard use is permitted):

These uses are not currently addressed in the existing Zoning Ordinance. Due to the wide range of potential expressions of these uses it is difficult to establish a fixed standard for all conditions. Any standards should be sufficiently flexible in recognition that several of these may be seasonal, require truck access and loading, and client parking.

and may have liveaboard uses. Joint use of parking between the residential and business aspects of these uses is assumed.

- Pleasure Boats:

Marina use (wet boat storage) is considered one of the lowest traffic generating uses in the Marinship. During the study the parking standard for this use was questioned and should be reevaluated based upon a survey of the existing marina operations in the Marinship (non-Marinship marinas may provide useful information but are not subject to the same conditions) to determine the adequacy or abundance of available parking. Any standard should reflect the weekend and evening characteristics of this use and its potential for joint use of parking with daytime weekday uses.

- Dry Boat Storage:

Dry Boat Storage is similar to the wet boat storage use discussed above, except that it is assumed to have an even lower traffic and parking rates. The Zoning Ordinance should reflect this condition.

- Public Use: Open Space, Public Access:

The standards for this type of use should be sufficiently flexible to accommodate its various expressions, including distinct public use or park areas, shoreline access pathways, lookout points, small boat launch, temporary small boat tie up, etc. Similarly, the standards should reflect the off peak nature of the use and consider the potential for joint use of parking with weekday 8 a.m. to 5 p.m. uses.

Currently very little on-street parking is available in the Marinship. Formal designations can be found largely along Gate 5 Road. With many private and poorly defined streets in the Marinship, on-street parking has been difficult to control. Unless approved otherwise by the City, all streets and driveways shall be clearly defined and identifiable. All parking requirements in the Marinship shall be satisfied off-street in well-defined and approved parking areas on each parcel.

The location of on street parking along Gate 5 Road should be reevaluated with consideration given to relocating it along the east/north curb.

Given the neighborhood scale of the Marinship, the opportunities for pedestrian circulation, and mixture of Marinship serving uses, found in the immediate area, it is reasonable to expect that parking standards may be lower than those typically applied to other areas.

2. LOADING REQUIREMENTS

Loading areas shall be provided according to the Sausalito Zoning Ordinance. Following the adoption of the Marinship Specific Plan this ordinance should be reviewed to evaluate the adequacy of these standards.

Several issues should be considered in those Zoning Ordinance evaluations. These include:

- Acceptable on-street loading areas;

  Note: Much of the existing truck loading in the Marinship occurs on streets and in driveways. This condition can prove a traffic hazard but is not inconsistent with loading areas found in most industrial areas. Truck parking and loading perpendicular to and blocking or partially blocking the street shall not be allowed.

- Off-street loading areas;

  Note: Plans for off-street loading should provide both adequate space for the loading and unloading of trucks, and their reasonable circulation on the parcel. Several examples exist in the Marinship where off-street loading space is provided but is not utilized due to inadequate truck maneuvering space.

- Truck circulation.

  Note: The design of streets and driveways in the Marinship should provide reasonable circulation and maneuvering space required by the trucks anticipated to serve the area.

All development, redevelopment and remodeling plans, as well as plans to make any change in use, shall satisfy the City's current loading requirements. Any and all existing loading deficiencies shall be eliminated.

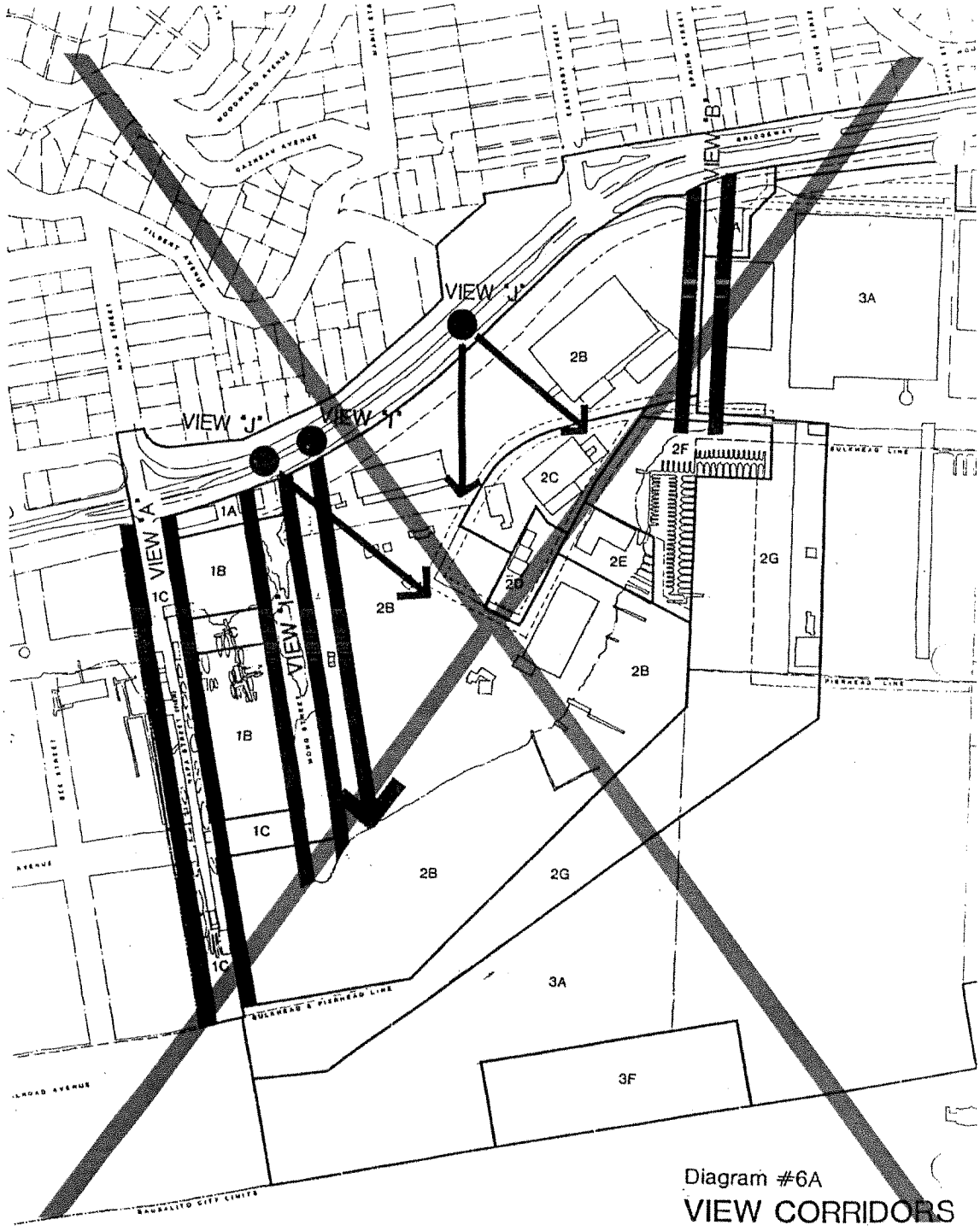


Diagram #6A
VIEW CORRIDORS

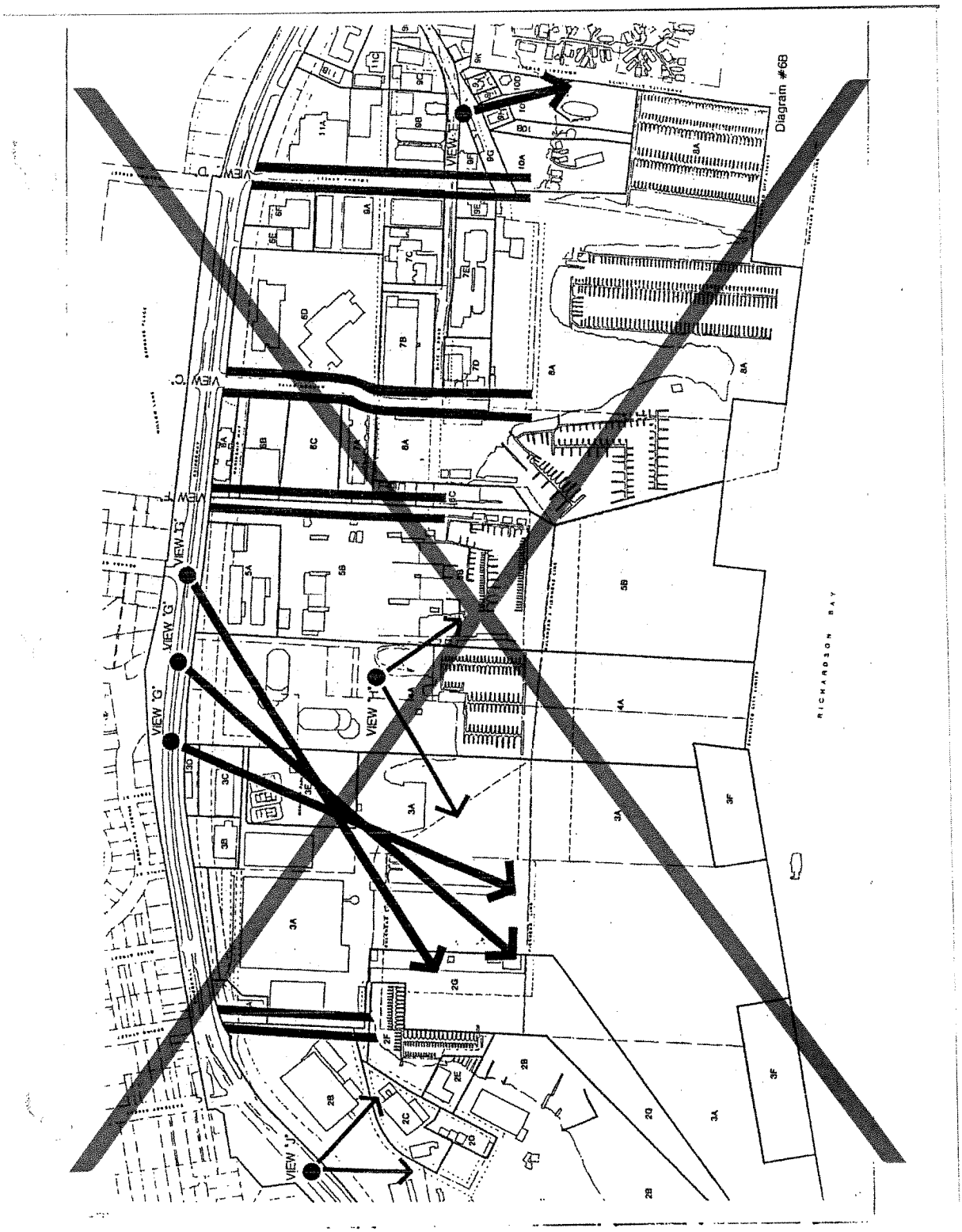


Diagram #6B
VIEW 'C'
VIEW 'D'
VIEW 'E'
VIEW 'F'
VIEW 'G'
VIEW 'H'
VIEW 'J'
RICHARDSON BAY

The provision of the Zoning Ordinance shall apply to the granting of any variances to this standard.

C. **VIEW CORRIDORS**

1. **VIEW CORRIDOR IDENTIFICATION**

The identification, preservation and/or enhancement of view corridors through the Marinship is one of the original plan goals. Although a variety of corridors are potentially identifiable, the plan focuses upon those providing Richardson Bay views through the Marinship, typically from Bridgeway. (See Diagram #6).

Implementation of all View Corridors shall be required, when reasonable, as part of any development or redevelopment plans that would increase the Floor Area or market value of the parcel improvements by 25%. The City may elect not to require that existing structures be removed to implement a View Corridor if:

- suitable alternatives can be implemented;
- the structure is considered by the City to be of historical, cultural or social significance;
- the removal causes undue hardship upon the structure's owner or occupants.

View Corridors fall into two basic categories: those along street rights-of-way and those crossing Marinship parcels.

The street corridors include those identified in the Marinship Specific Plan EIR. These are:

View Corridor A: Napa Street, including the pier;
View Corridor B: Liberty Ship Way;
View Corridor C: Harbor Drive;
View Corridor D: Coloma Street;

Other EIR-identified corridors do not provide bay views but rather views into or along portions of the Marinship area. These corridors, along Nevada Street (looking east) and Marinship Way (looking north and south) are down existing streets and are not significantly impacted by development occurring along the rights-of-way.

The alignment of the View Corridors indicated in the Specific Plan document illustrates an ideal visual configuration of the corridor. If it can be demonstrated to the City's satisfaction that a realignment or configuration of the corridor effectively accomplishes the original visual intent of the corridor then such a realignment should be permitted. It may be

possible to adjust the corridor to coincide with various existing easements and thereby relieve the parcel owner from an additional reduction in the usable parcel area.

The Specific Planning process has identified additional corridors that provide important views of Richardson Bay and Sausalito maritime activities. These traverse parcel boundaries rather than street rights-of-way and include:

View Corridor E: Parcel 10C: view to bay from Varda Landing Road;

View Corridor F: Parcels 5B, 6A-C, 7A, 8B and 8C: view to bay from Bridgeway largely along the Marinship Loop Road route;

View Corridor G: Parcels 3A, 3E, 4A and 5A: view of maritime activity at the Army Corps pier, commercial fishing at Parcel 2G, and bay from Bridgeway;

View Corridor H: Parcel 4A: view of maritime activity at the Army Corps pier, commercial fishing at Parcel 2G, and bay from the marsh area of Parcel 4A;

View Corridor I: Parcels 1A, 1B and 2B: view of bay, Schoonmaker Point, and Mono Street marsh from Bridgeway at Mono Street;

View Corridor J: Parcels 2B-F: views of the Marinship industrial activity and where possible, views of the bay from Bridgeway between the Schoonmaker Building and the "55-Foot Tall" historic building.

View Corridors have been prioritized in the Marinship Specific Plan. These are:

- "Required Corridors": Views are to be maintained open, free of structures or landscaping that measurably obstruct views of Richardson Bay (or in specific cases, views of Richardson Bay maritime activity).

- "Desired Corridors": Permit a limited amount of view obstruction within the corridor (significant portions of the view are to be maintained).

- "Suggested Corridors": Occur in areas where achieving unobstructed views of Richardson Bay is difficult or may cause undue hardship upon the parcel owner's ability to develop the site without significant view blockage. In these instances, the building design and siting should attempt to create or maintain Richardson Bay views to the maximum extent considered reasonable by the City.

The Marinship View Corridors are prioritized as follows:

Required Corridors:

View Corridors A, B, C, D, F, and the Mono Street portion of Corridor I.

Desired Corridors:

View Corridors E, and G and the non-Mono Street portion of Corridor I.

Suggested Corridors:

View Corridors H and J.

2. VIEW CORRIDOR TREATMENT

Each view corridor listed above will require a different type of treatment. The purpose of each treatment is to maximize views to and through the Marinship, affording the maximum opportunities to see the bay and its maritime shoreline activity. The treatment of each view corridor shall be as follows:

View Corridor A: Napa Street, including the pier:

The intersection improvements at Bridgeway, redevelopment of the Napa Street pier and surrounding areas shall be designed to enhance, not interfere with, the view along Napa Street to the bay. Use of the pier for temporary boat tie-up will be permitted as along as the boat size and massing does not significantly obstruct the views. No permanent berthage will be permitted within the street right-of-way. No buildings should be located on the Pier or within the right-of-way.

View Corridor B: Liberty Ship Way:

This is not a dedicated public street but is an important access and view corridor. The landscaping treatment along its edges (between Schoonmaker and the Corps: Parcels 2A, 2B, 3A) is important to the view clarity and should be installed and maintained in a manner to preserve the water views along this short street segment. No structures or landscaping shall be located on Parcels 2F and 2G that will significantly obstruct water views from Bridgeway along Liberty Ship Way.

View Corridor C: Harbor Drive:

Due to a jog in the street alignment only a small portion of the shoreline marine activity is visible from Bridgeway. The most critical view impact consideration is the landscaping treatment within the Harbor Drive right-of-way. Plant selection and maintenance programs should preserve this narrow corridor.

View Corridor D: Coloma Street:

Given the sight line distances and topography, no shoreline view is likely down this northern Marinship street. However, by prohibiting the placement of structures and landscaping within a zone the width of the Coloma Street right-of-way between Gate 5 Road and the shoreline that would significantly obstruct views of the shoreline maritime activities from Coloma Street, it will be possible to provide views of the marine activity along the shoreline.

View Corridor E: Parcel 10C: view to bay from Varda Landing Road:

The Varda Landing Road access point for Parcel 10C (Onslow-Ford) currently affords a small view "window" to the houseboat, marina and open water areas. No structure or landscaping element should be located or treated in a manner that would significantly obstruct this view opportunity from Varda Landing Road.

View Corridor F: Parcels 5B, 6A-C, 7A, 8B and 8C: view to bay from Bridgeway largely along the Marinship Loop Road route:

The creation of the Marinship Loop Road along the property lines between the Parcels 5B, 6B, 6C and 7A (Arques, Big "G", Post Office and 150/180 Harbor) is a part of these Specific Plan designations. A view corridor opportunity exists along this new street axis, making it possible to see the shoreline marine activities from Bridgeway. Therefore, no structure or landscaping element should be located or treated in a manner that would significantly obstruct the shoreline activity view opportunity from Bridgeway.

View Corridor G: Parcels 3A, 3E, 4A and 5A: view of maritime activity at the Army Corps pier, commercial fishing at Parcel 2G, and bay from Bridgeway:

A major view of Angel Island, Richardson Bay, the commercial fishing boats at Parcel 2G, and the maritime activities associated with the Army Corps operations (Parcel 3A) exists along a stretch of Bridgeway fronting on Parcels 4A and 5A. Given the elevation differences between Bridgeway and these two parcels it is not necessary to prohibit locating structures within this view corridor. The structures on these parcels should be located either along the edges of this corridor or be limited to heights that do not significantly interfere with views of the Parcel 3A shoreline and maritime activities of Parcel 2G. The landscaping treatment of these parcels should not significantly interfere with the same.

View Corridor H: Parcel 4A: view of maritime activity at the Army Corps pier, commercial fishing at Parcel 2G. and bay from the marsh area of Parcel 4A:

A public access open space and marsh has been developed on Parcel 4A's shoreline making it possible to enjoy views of the surrounding maritime activities. The location of any future structures or landscaping elements should not significantly obstruct the view of the surrounding shoreline marine activities, especially those occurring on Parcels 2G and 3A from the pedestrian walk and adjacent to the marsh area.

View Corridor I: Parcels 1A, 1B and 2B: view of bay, Schoonmaker Point, and Mono Street marsh from Bridgeway at Mono Street:

A relatively narrow view corridor between Bridgeway and Schoonmaker Point exists along Mono Street. This view opportunity should be preserved and enhanced. Therefore, no structures or landscaping element should be located or treated in a manner that would significantly obstruct the Schoonmaker Point view opportunity from Bridgeway along Mono Street, and to the extent possible, within 60 feet of Mono Street's northern right-of-way line.

View Corridor J: Parcels 2B-F: views of the Marinship industrial activity and where possible, views of the bay from Bridgeway between the Schoonmaker Building and 55' tall historic building:

It is currently difficult to see the bay, shoreline and industrial activity occurring within much of Planning Area 2 from Bridgeway due to the positioning of several large existing structures and the landscaping condition along the Bridgeway right-of-way and median.

To prohibit the placement of structures within this corridor would severely limit, and in some instances unfairly eliminate, development on several parcels. Such a prohibition is not the intent of this plan. It is the intent of this plan to review the placement, height and bulk of future structures in this area to evaluate their potential view impact with the purpose of providing the largest reasonable view of the bay, shoreline, and industrial activity associated with Planning Area 2 from Bridgeway.

Furthermore, the tree and ground cover plantings along the Bridgeway frontage and median should be maintained in such a manner that unobstructed views of Planning Area 2 and the shoreline are possible between the heights of 2.5 feet and 8 feet above the eastern curb elevation, along the eastern edge of Bridgeway, and between Napa and Spring Streets.

Bridgeway views toward the bay:

Consistent with the above remarks, the landscaping treatment along the entire length of Bridgeway, between Napa Street and the northern City Limits, should be designed and maintained in a manner to enhance the shoreline oriented view opportunities, as well as views into the Marinship area in general. No significant amount of landscaping should be permitted within a view "window" above 2.5 feet and below 8 feet in elevation above the eastern curb height, along the eastern edge of Bridgeway, unless otherwise approved by the City.

The corridors listed in this section are considered the primary view corridors in the Marinship. They are not, however, the only opportunities to view the Richardson Bay or the many focal points throughout the area.

Marinship development plans must be reviewed to evaluate their impact upon the view opportunities associated with each parcel. These view opportunities are intended to provide "windows" to and through each parcel, form orientation corridors, and reinforce the identification of various Marinship focal points. To the extent possible, buildings should be clustered and/or aligned in such a manner that the organization maximizes open space, views and continuity of both building form and open space. Property owners are encouraged to work with the Planning Department regarding the identification and treatment of these view opportunities.

In addition to the corridors described above, there are many locations throughout the Marinship that offer desirable views to the area's unique qualities. The design of open space, public access areas and pathways should attempt to incorporate these special view points into their route and design. These view points include:

- Napa Street Pier (Parcel 1C): bay and hillside views;
- Schoonmaker Point (Parcel 2B): bay and hillside views;
- Promenade at Onshore Marine Building (Parcel 2B): harbor views;
- Liberty Ship Way (Parcels 2F and 2G): views of bay, marina and fishing boats;
- Bay Model (Parcel 3A): views of the bay, fishing boats, Corps operations, marinas, shoreline and hillsides;
- Marina Plaza, southeast corner (Parcel 4A): views of Corps operations, fishing boats, marinas, bay and hillsides;
- Marina Plaza, marsh (Parcel 4A): views of marsh, bay, marina, Corps operations and fishing boats beyond;

- Caruso's Deck (Parcel 8A): view of bay, marina, boat launch and maritime activity;
- Sandy Point, between Clipper #2 and #3 (Parcel 8A): views of San Francisco, the bay, marina, Corps operations, fishing boats, houseboats, and hillside;
- Sandy Point, between Clipper #3 and #4 (Parcel 8A): similar to Sandy Point described above;
- Clipper #4 access point (Parcel 8A): views of marina and houseboats;
- Vallejo Ferry Site (Parcel 10C): views of houseboats and bay.

D. SETBACKS AND EASEMENTS

1. BUILDING SETBACKS AND EASEMENTS

The building setbacks for Marinship parcels shall be as required in the Zoning Ordinance, and as provided in this section. Evaluation of setback and easement requirements of any development proposal should include consideration of: public safety, use separation/integration, public access, view corridors, and support of the urban industrial character of the Marinship.

Building setbacks should adequately protect the public safety by separating buildings whose use or construction poses a threat to one another.

Building placement on a parcel should be clustered to the extent possible to optimize open space while providing definable urban forms, especially along street frontages. An "urban" rather than "suburban" treatment of building placement is preferred. In this context, buildings should define space rather than become points in space. [Zero setbacks along streets and property lines are intended to encourage the placement of structures along the street to give the street definition and continuity.] To the extent possible, or unless otherwise noted, buildings should not be set back from the street to provide space for parking lots. Instead, parking should be located behind or alongside the buildings.

The building placement on a parcel should respect the intent to provide public access, to provide views of Richardson Bay as well as views through the Marinship, and to create public and private open space areas.

These standards shall be required, when reasonable, as part of any new construction, redevelopment, or exterior building remodeling involving at least 25% of the existing Floor Area or representing 25% of the market value of the Parcel improvements. Existing structures, or undisturbed portions of existing structures, may remain in their existing locations, providing such positioning does not cause a threat to public safety.

To the extent possible, buildings in the Marinship should be sited and oriented in a manner that minimizes view blockage of the bay. Typically this will result in structures oriented perpendicular to the bay, positioned in front of each other in lines creating view corridors to the water. Typically building placement should not be permitted to unreasonably obstruct the water views from other buildings.

The Marinship building setbacks should be as follows:

a. **At Public Streets**: 0 (zero) feet.
Note: This is the existing setback standard. It is the preference of this plan that, to the extent possible, buildings be located at the street (public or private) right-of-way line.

b. **At Property Lines**:
All "I", "W" and "CS" parcels: 0 (zero) feet, except as follows: That portion of a parcel adjacent the "H" or "P" zones the required yards shall be:
- Adjacent to "H" zone: 20 feet;
- Adjacent to "P" zone: 30 feet.

c. **At Shorelines**:
As determined by the Planning Director.
Note: It is the intent of the Specific Plan to enhance the viability of Marinship maritime uses. It is also the intent of the Plan to provide reasonable physical and visual access to the bay.

The Planning Director should evaluate the existing site conditions, the proposed use or activity, the character and feasibility of public access, including such concepts as: marine uses frequently need direct access to the water, the quality of public access is not necessarily diminished by the location of buildings immediately adjacent to a pathway or shoreline, buildings may need to be sufficiently removed from the shoreline to create, protect or enhance existing or potential water views or use, protection of the bay water or environmental quality may or may not be harmed by a particular building placement.

d. **At View Corridors**:
As determined by the Planning Director.
Note: The Marinship Specific Plan identifies several important view corridors, primarily along public streets, offering views of the bay from Bridgeway (see Diagram #6: View Corridor Map).

Buildings along the streets will not conflict with these corridors, in fact they should further define them. Other view corridors have also been identified and these generally represent view opportunities through the Marinship to the bay that cross privately owned parcels. It is not the intent of the Specific Plan to prevent the placement of structures within these view corridors but rather to minimize their potential impacts. In some cases the height of a building should be controlled to prevent view interference. In others, potential structures should be re-oriented, re-positioned or re-designed to minimize their view impacts. Property owners of those parcels where view corridors have been identified are encouraged to meet with the Planning Director to discuss the setback issues and criteria.

Additionally, development plans must be reviewed by the City to evaluate the plan's conformance with the Specific Plan intent to provide view corridors and opportunities to and through the Marinship, as well as within individual parcels.

e. At Public Open Space:
- Dedicated Public Open Space: 30 feet;
- Public Open Space Easements: 30 feet;

Note: The City may consider reductions in these setback requirements if it can be demonstrated, to the City's satisfaction, that such reduction will enhance the use and quality of the open space.

2. **PARKING SETBACKS**

The parking setbacks for Marinship parcels shall be as required in the Zoning Ordinance. Any evaluation of setbacks should recognize the industrial use and urban character of the Marinship.

a. At Public Street and Pathways:
- No parking should occur within 5' of a public street right-of-way.
- No parking should occur within 5' of a designated pedestrian or bicycle path or easement.

b. At Property Lines: 0(zero) feet.

c. At Shorelines: 50' feet, unless otherwise approved by the Planning Director.

Note: See building setback at a shoreline note above for similar considerations.

d. At View Corridors:

Unless otherwise directed by the Planning Director there are no parking setback requirements within a designated view corridor. However, the Planning Director will evaluate proposed development plans to ensure that the parking areas do not significantly interfere with the effectiveness of the view corridor.

- Where parking occurs at street oriented view corridors the setback shall be the same as for the street (see item a. above).

e. At Public Open Space 10 (ten) feet.

f. At Buildings: 0 (zero) feet.

E. SITE COVERAGE, OPEN SPACE AND LANDSCAPING

The following standards shall be required, when reasonable, as part of any new construction, redevelopment, or exterior building remodeling involving at least 25% of the existing Floor Area or representing 25% of the market value of the Parcel improvements. Existing structures, or undisturbed portions of existing structures, may remain in their existing locations, providing such positioning does not cause a threat to public safety.

1. SITE COVERAGE

The building coverage limit for each zone is provided in the Sausalito Zoning Ordinance.

It is the intent of the Specific Plan to encourage the consolidation of building coverage on each parcel to enhance the opportunities of creating open space. To the extent possible, and where views are determined by the City to be enhanced rather than hindered, parcels should consolidate their development square footage on the smallest possible building footprint, e.g., construct multilevel rather than single level structures.

2. OPEN SPACE

a. Public Open Space
1) Requirements

Public access to designated open space areas should be required of all Richardson Bay frontage parcels in the Marinship. Public access to designated open space areas will be required of all Marinship parcels associated with the

development of pedestrian and bike paths systems, or as indicated in this plan document, or as required by the City.

2) Treatment

Pedestrian ways should be developed as described in Section III.C.6 of this document, or as directed by the Planning Director.

Bicycle paths should be developed as described in Section IV.A of this document, or as directed by the Planning Director.

The design of public open space areas should be approved by the Design Review Board. Improvements may include both hardscape and softscape materials, furniture, lighting, irrigation, signage, parking, and maintenance. The open space should be designed to include a variety of active and passive uses, including places to rest. When required by the City, waterfront open space will provide for water access, including small boat launch and/or tie-up.

b. Private Open Space

1) Requirements

Minimum Landscaped Area: 10% of Floor Area. The minimum landscaped area shall be increased to include all areas which are not covered by building area, paving or approved unenclosed areas.

2) Treatment

The open space should be designed to include a variety of active and passive uses, including places to rest and eat.

3. LANDSCAPING

a. Overview

The Marinship is a unique mixture of uses, physical environs and developed forms. It enjoys a spectacular shoreline, with views of Richardson Bay and surrounding hills. It is also an industrial area complete with all the associated textures, materials and activities. It is commercial with a wide variety of retail and service uses. No one landscaping approach can be applied to the entire area.

One overall concept can, however, be applied to the vast majority of landscape opportunities. That is of an urban, industrial neighborhood. In the Marinship, the most

successful landscape treatments are those that support the working waterfront or industrial nature of the area. This means that a great deal of the area should have hard surface materials, in the urban or industrial tradition, rather than soft surface materials in the suburban office or industrial park vernacular.

The landscape design of open space and pathway areas should include both hard and soft characteristics, as appropriate. Shoreline walks may vary from peaceful, green shoreline pathways to hard surface promenades along marine service or commercial areas. The pedestrian and bike paths should have suitable paving materials (no gravel on bike paths) and be bordered with softscape featuring trees for shade and visual interest.

Landscape materials should be selected recognizing the Marinship mix of uses and physical environment. Plants should be appropriate for the local climate, soil conditions, water table, water quality, maintenance, water consumption and ability to withstand the rigors of an industrial area. Paving designs and materials, especially in such transition areas as building entrances, level changes, parking lots and sidewalks, should accommodate the differential settlement anticipated on most parcels in the Marinship.

A significant issue in the Marinship is the control of drainage runoff, a frequent source of bay water pollution. The development plan for each Marinship parcel should utilize the potentials associated with good landscape design to control site drainage, and to the extent possible capture and filter the runoff prior to its leaving the parcel (not necessarily mechanical filters).

F. BUILDING HEIGHT AND BULK

Building heights and bulk should be compatible with the surrounding developments. Generally buildings should be lower along the shoreline to facilitate bay views from the inland areas. Where this is not possible, strategically placed separations between buildings should be provided. New buildings on the shoreline should be less than 32 feet high, unless it can be demonstrated that a 32-foot height is required because of the industrial nature and use of the building.

The structures should not exceed 3 stories or 32 feet in height, above grade, without approval of variances by the City. Building masses are to be modulated in plan, elevation and profile to avoid monotony of form and character, supporting the concept of the Marinship as an area with a mixture of uses and activities. Buildings taller than 32 feet may be considered by the City for any of the following reasons:

- **Heavy Marine Industrial uses** may require structures taller than 32 feet to adequately sustain the viability of a marine service considered important to Sausalito. Such a structure must be sited in such a manner that its location and form do not unreasonably obstruct views of the bay, especially from adjacent parcels. If these factors can be resolved, to the satisfaction of the City, such a structure should be considered with a Conditional Use Permit.

An existing structure, deemed of historic interest by City of Sausalito and currently taller than 32 feet, may be remodeled but not replaced, with a Conditional Use Permit.

G. SPECIAL REQUIREMENTS

1. GEOLOGY

One of the most important development suitability considerations in the Marinship relates to the generally poor geological condition of the area. The majority of the Marinship land area was created by the Federal Government during World War II by excavating what was then referred to as Pine Point and filling the bay, in some areas, with over a hundred feet of fill. This fill sits upon bay mud creating a poor foundation for most building types. Generally, the areas nearer the hillside have better soil conditions than those located near the bay edge. The area continues to settle and will continue to do so for the next two hundred years. The settlement stabilization problem is compounded by the addition of new structures and land fill.

The geological conditions in the Marinship have been studied over the years. During the Specific Plan Environmental Impact Analysis process the firm of EIP Associates, San Francisco, compiled important elements from the available geological studies and produced a summary report entitled "Geological Background Report, Marinship Area Plan", dated December 1985. The report includes among other things:

- a generalized geological map;
- tables indicating the ultimate amount of settlement of fills over mud and percent settlement of fills over time;
- a relative land stability map;
- known ecological hazards;
- a risk matrix.

All Marinship development applications will be required to provide and analyze, to the City's satisfaction, the geological suitability of the site to support the proposed improvements.

The following major points from the Geological Background Report should be noted regarding these analyses:

Geological Report

- An increase of liquefaction potential toward the bay related to clay-free sand layers occurs most commonly because of thin sand layers separating the bay mud within the younger bay sediments.

- An increase in settlement potential toward the bay related to the depth of bay mud and the amount and rate of new fill placed on the mud.

- Pockets of liquefiable sediments more than 50 feet below ground surface would have little effect on surface structures. Pockets of clean sand within 30 feet of the surface should be tested for blow count values and either removed or avoided during construction if they are liquefiable. Removal will be difficult because of the high water table.

- Thicknesses of bay mud less than 10 to 12 feet would need about three years to stabilize after new fill was added before construction could begin. Settlement time increases almost exponentially with depth of mud (50 feet of mud needs about 200 years to stabilize after filling). Pile foundations should be considered when mud thickness is shallow enough to allow their economical use.

- For most structures one- or two-stories high the danger posed by potential settlement is moderately low. Fifty-foot deep bore holes with standard penetration tests would be adequate for siting these structures. In most cases, standard foundation investigations are all that would be necessary (Risk Level I-1).

- Specific construction recommendations would vary with each building site, but some general recommendations can be made. Structural design should take into account anticipated seismic groundshaking. Seismic design parameters set forth in the Uniform Building Code (1980) should be minimum guidelines. Surcharging the area with structural fill would aid densification of underlying mud and sand layers, but would increase the rate of settlement. This increase is not necessarily undesirable, but the amount of settlement should be analyzed as part of the development proposal and incorporated in the structural design.

- Seismic risk generally can be reduced beyond UBC standards by using the Association of Professional Engineers of California Seismic Recommendations (1981) as basic standards for internal/dynamic loads.

Given the fluid nature of the Marinship, adding significantly to the existing dead load of one area can cause an elevational change to another. When reviewing a development application, the City will consider the potential impact on any adjacent parcels.

2. DRAINAGE

Currently two-thirds of the Marinship area does not drain into the existing stormwater system but drains directly into Richardson Bay. Additional development of buildings, streets and parking areas in the Marinship will increase the amount of impermeable surface, thereby potentially increasing stormwater runoff.

The bayside half of the Marinship is within the 100-year flood zone. The closer drainage lines are to sea level, the more difficult it becomes to achieve positive drainage without resorting to levees and lift pumps. The Marinship experiences flooding from upland drainage as well as tidal sources.

The most seriously impacted sites are at Schoonmaker, at the northern end of Varda Landing Road, and along the east side of Gate 5 Road. The Gate 5 Road sites must be raised in elevation. At Schoonmaker a larger system of drainage pipes must be designed and installed. Sedimentation has caused blockage of channels in the bay mud below the high tide line near Varda Landing Road, impeding drainage from this area at lower tides.

V. PUBLIC PROJECTS

The City of Sausalito has decided to take a relatively passive role in the realization of various infrastructure and improvement projects in the Marinship area, preferring to have the private sector provide the identified projects whenever possible.

The following Marinship projects have been identified as the responsibility of the City of Sausalito:

A. Marinship Way (partial):

That portion of this private street crossing the western edge of Parcel 4A (Marina Plaza) has been recently approved and installed by the property owner. The roadway alignment features two 90-degree turns and a blind intersection near Marinship Park. The route included in the Marinship Specific Plan would smooth the curves to improve the sightlines and thereby the traffic safety. (See Diagram #4). Reconstruction would include the demolition of the existing roadway, sidewalk, parking lot and landscaping, and the new construction of the same, locating a portion of the parking lot to the west side of the new roadway alignment.

B. Bridgeway Landscaping Project:

This extensive improvement plan, prepared by Landscape Architect Paul Leffingwell, has been delayed due to the high cost of implementation. Portions of the project could be determined to be Private Sector projects or combinations of Public and Private Sector projects.

C. Bridgeway at Gate 6 Road Intersection:

Various improvements to this intersection, including the addition of a free right turn, eastbound into Waldo Point, and lengthening the northbound left turn pocket would significantly improve the Marinship's worst weekday, PM peak hour traffic congestion problem. This intersection, and improvement, was evaluated in EIR Section 4-53.

D. Bridgeway at Harbor Drive Intersection:

Various improvements to this intersection, including the addition of a free right turn, eastbound onto Harbor Drive from Bridgeway, would significantly improve the Marinship's second most congested intersection. This intersection, and improvement, was evaluated in EIR Section 4-53.

The City has expressed the willingness to consider providing limited support for the following private projects:

- Bridgeway intersection improvements at: Gate 5 Road, Coloma Street, Easterby Street and Napa Street;
- Commercial Fishing facility creation or enhancement in association with the State Coastal Conservancy;
- The purchase or preservation of the Industrial Center Building (ICB) on Parcel 7B, for the use of Sausalito artists;
- The development of an Art Center or Institute for education, enrichment and support of local artists, including "artist in residence" programs;
- Public Use projects on private sites in the Marinship.

E. The Redevelopment of the Napa Street Pier:

The Napa Street Pier, Parcel 1C, is located adjacent to Dunphy Park, at the southern end of the Marinship. The pier is currently condemned and should be reconstructed for public use.

F. Other Potential Public Projects: Clipper Basin Sandy Point, Terra Landing, Marinship Park Extension, Industrial Center Building.

Potential public projects include the acquisition of the following areas to provide public use of the shoreline:

Clipper Basin Sandy Point: Diagram 5B, page IV.A-9, indicates a "Special Area" located between Clipper Basins #2 and #3. This privately-owned open space area has been enjoyed by the public for many years. The site offers great views of San Francisco, Richardson Bay, and Sausalito from its eastern tip.

Terra Landing: The Terra Landing site, Parcel 1B, is located adjacent to Dunphy Park and the Napa Street Pier. This area has been identified as a potential public open space site which could provide an extension of Dunphy Park to the Mono Street marsh restoration.

Marinship Park Extension: Marinship Park, Parcel 3E, is located between the Bay Model and the Marina Plaza office project. Currently, the Army Corps dredging operations separate the park from the shoreline. A potential extension of the park, along the northern edge of the dredging operation area, was identified during the planning study. Should the Corp make the parcel available to the City, it would make it possible for the Marinship Park to provide enhanced public access to the shoreline.

VI. SPECIFIC PLAN IMPLEMENTATION

A. PUBLIC PROJECTS

The following sections list the various funding methods that could be used to implement the public projects described in the Marinship Specific Plan.

1. REDEVELOPMENT

State legislation created the California Community Redevelopment Law which permits local agencies to generate tax increment financing to subsidize local project improvements. This procedure provides for selection of a survey area, analysis of the need for redevelopment, selection of a project area and preparation of a preliminary plan and preparation of a redevelopment plan. Tax increment financing can be summarized as follows: the assessed value for the project area is "frozen" and all increases in assessed value and subsequent property tax go to the Redevelopment Agency for improvements to the project area.

In November 1972, the Sausalito City Council designated itself a Redevelopment Agency. In November 1977, the City Council adopted Resolution No. 2722 designating a survey area with 260 acres, which included the Marinship. After preliminary review in 1978 the project was dropped.

2. OTHER AGENCY PROGRAMS

Included under this category would be loans and/or grants from the State Coastal Conservancy, Wildlife Conservation Board and Marin Community Foundation.

3. GENERAL OBLIGATION BONDS

Passage of Proposition 46 authorized California cities to issue general obligation bonds for the first time since 1978, when Proposition 13 limited the tax rate on real estate property to 1% of cash value.

Proposition 46 amended the California Constitution to create an exception from the property tax limitation for taxes to pay debt service on any bonded indebtedness for the acquisition or improvement of real property provided that such indebtedness is approved by two-thirds of the voters voting on the measure. General obligation bonds are bonds secured by a pledge of the issuer to levy and collect property taxes at an unlimited rate and amount to the extent other funds are not available to pay the bonds. By limiting the property tax rate, one effect of Proposition 13 was to take away from local governments the power to issue general obligation bonds.

Proposition 46 restored that power by permitting local governments to levy a property tax above the 1% limit to pay for such bonds.

Proposition 46 limits the use of general obligation bonds to "acquisition or improvement or real property." Accordingly, such bonds may be used to acquire land, to acquire or construct buildings and other facilities and structures affixed to land, and for public works such as streets, lighting and sewers.

General obligation bonds offer several advantages over other methods of debt financing:

a. General obligation bonds have always been the least expensive source of financing. Bond investors view property taxes as the most reliable source of repayment.

b. General obligation bonds usually involve much simpler documentation and procedures than other types of debt.

c. Normally, reserve funds and capitalized interest are not required for general obligation bonds.

d. Because general obligation bonds are payable from the issuer's general fund, no particular revenue stream is required to support the issuance of such bonds.

e. Property taxes and other monies used to pay debt service on general obligation bonds do not constitute "appropriations subject to limitation" within the meaning of the Gann spending limit and, consequently, do not count against the issuer's "appropriation limit". This feature will become increasingly important as local governments approach their constitutional spending limits.

The issuance of general obligation bonds must first be approved at an election, which is held in the same manner as for any other local proposition. After the required two-thirds voter approval, the governing body of the issuer authorizes the sale and issuance of specific bond issues.

4. INDUSTRIAL DEVELOPMENT (Private Activity) BONDS

The purpose of industrial development revenue bonds (IDBs) is to assist private firms and corporations in the construction, expansion, and relocation of commercial or energy related facilities.

The California Industrial Financing Act authorizes cities and counties to create industrial development revenue bond authorities which may issue tax-exempt bonds to finance assembling, fabricating, manufacturing, or energy related facilities for private enterprise. Bonds issued under the Act are repaid solely by private enterprise, with no taxes or other public monies obligated therefore.

Public entities must determine criteria for participating in IDB issues based on public benefit, e.g., creation of jobs, increase in property and sales taxes, economic growth in distressed areas, and long-range prospect of the private corporation.

5. **DISBURSEMENT FROM GENERAL FUNDS**

The City Council annually approves a Capital Improvement Program which authorizes construction of public projects such as streets and parks.

6. **PRIVATE DEVELOPMENT REQUIREMENTS**

As condition of development approval from the City, it may be possible to require that particular projects be completed by the private sector and dedicated to the City for maintenance.

7. **OTHER POTENTIAL PUBLIC PROJECTS**

The following options are available to acquire the Sandy Point area between Clipper Basins #2 and #3, Terra Landing, the Marinship Park extension, and the Industrial Center Building (see item E, page V-3) for public use:

- Purchase by the City following a Bond Issue Election;

- Requirement of dedication by the owner to the City or the Southern Marin Land Trust in conjunction with a development project;

- Purchase for public open space or use with Coastal Conservancy money;

- Seek a donation to the City or Southern Marin Land Trust to obtain a tax credit for the property owner;

- Obtain a below market sale or long term lease with conditions regarding use and development of property;

- Secure an agreement from the owner ensuring continued public access and use of the area (no transfer of ownership required).

B. PRIVATE PROJECTS - SPECIAL ASSESSMENTS

While there are a variety of special assessment practices and procedures, some principles are common to all. The principal requirements of a valid special assessment are:

- The use for which the money is raised must be for a public purpose;

- The improvement for which the assessment is levied must beneficially affect a well-defined and limited area of land;

- The total assessment must not exceed the cost of the improvement;

- The actual assessment must be proportional to the benefit received;

- The owner of the land assessed must be given an opportunity for a hearing on the extent of benefit.

Special assessments can be levied only where the land of a property owner will be specifically benefited by the improvement and/or acquisition for which the special assessment is levied.

Special assessments can be constitutionally apportioned upon any basis which will reasonably measure benefits. Apportionment usually is based on frontage, area, units, assessed value, or some combination thereof. Any formula of benefit must, however, be uniformly applied to all properties similarly benefited.

Special assessment financing is applicable when the value or benefit of the improvement can be assigned to a particular property, so special assessments should not be used where the project meets the test of a public good for an entire community. Assessments are levied in special amounts against each individual property on the basis of the benefit each one receives. An engineer is responsible for determining the allocation of benefits and assessments.

In order to determine the benefits and assessments for each parcel, the engineer may consider any or all of the following criteria: proximity of property to the project, front footage of the property, area of the property, units of use of water, number of housing units, building size, and land value.

Improvements for which special assessments may be levied are often associated with infrastructure, or the support structures necessary to a community. Examples include street paving, sidewalks, curbs, gutters, collection sewers, water services, street lighting, off-street parking, landscaping, storm drainage systems, land and easements, plus incidental engineering, legal and financing costs.

Special assessments may be used for both publicly dedicated on-site and off-site improvements. The boundaries of a special assessment district are not required to be contiguous, but the entire included area is always required to benefit from the project.

Assessment district financing is commonly initiated by the property owners to be benefited. This may mean an established community which may want to upgrade its infrastructure or it may mean a single developer who is interested in securing low interest financing for the qualifying public components serving the development.

APPENDIX: A. STUDY ROSTER

CITY COUNCIL: City of Sausalito

April 1986 to April 1988:	April 1988 to Present:
Ray Taber, Mayor 1987-88	Robert Mitchell, Mayor 1989-
Robert Mitchell	Robin Sweeny, Mayor 1988-89
Carol Peltz, Mayor 1986-87	Raymond Buddie
Lore Phillips	Lore Phillips
Robin Sweeny, Mayor 1985-86	Annette Rose

Past Council Members participating in the Specific Plan creation include:

Leon Huntting
Alice Rogers Mayor 1984-85

PLANNING COMMISSION:

April 1986 - 1988:	1988 - Present:
Robert Politzer, Chairman	Robert Politzer, Chairman
Raymond Buddie	Cameron Dorsey
Charles Lambert	Carl Krause
Pat Zuch	Charles Ruby
Dick Seashore	Dick Seashore

Past Commission Members participating in the Specific Plan creation include:

Douglas Fancher Chairman 1984-86
Patrick Nolan
Mark Scott
Vance Wilson

MARINSHIP SPECIFIC PLAN ADVISORY COMMITTEE:

Jacques Ullman, Chairman
John Blayney
Eric Elsesser
Adrienne Going
Arlene Knudsen
Lore Phillips (to City Council April 1986)
Sol Silver
Jack Tracy

Rev. 5/2/89 -72-

CONSULTANT TEAM:

Planning Consultant:

Walter Raleigh Stewart AIA

Environmental Consultant:

EIP Associates

Economic Consultant:

Recht Hausrath & Associates

Traffic Consultant:

DKS Associates

Public Hearings and Revisions:

Lynn Treais

APPENDIX: B. GLOSSARY OF TERMS

The Marinship Specific Plan document uses a variety of expressions, many of which are defined in the existing Zoning Ordinance (Section 10.102) or are commonly used planning terminology.

The Glossary of Terms is divided into two categories: terms used when describing, or referring to, the Specific Plan document contents, and the definition of the Specific Plan Uses. The terms are defined as follows:

1. SPECIFIC PLAN DOCUMENT TERMS

AFFORDABLE: The term has several applications. Affordable rent or sale price is one less than or equal to a percentage of annual personal income, typically a percentage of what is considered a Low and Moderate Marin County income level. An affordable income level is one established by the Sausalito City Council, and may relate to the Marin County Housing Authority definition of Low and Moderate income levels.

ARKS: Dwelling, Single Family Ark. A single family dwelling existing in the R-A Zoning District at the time of adoption of Title 10, or a single-family dwelling the exterior design of which is an exact replica of the structure existing at the time of adoption of Title 10.

BCDC: San Francisco Bay Conservation and Development Commission.

BERTH: A space or harbor slip for the mooring or storage of a boat. A "dry berth" refers to dry boat storage on land.

COUNCIL or CITY COUNCIL: The Sausalito City Council.

CUP: Conditional Use Permit.

DENSITY: A measure of residential intensity expressed as the number of residential dwelling units per acre (du/ac).

EASEMENTS: A variety of easements exist in the Marinship area. These include those for streets, railroads, pedestrian and bicycle ways, public access, public use, and navigational access. Of particular interest when calculating the amount of allowable development on a parcel are those described in the Zoning Ordinance, Section: 10.201.

EIR: Marinship Specific Plan Environmental Impact Report (Certified by the City Council February 4, 1986).

FLOOR AREA: see Zoning Ordinance, Section 10.102.

FLOOR AREA RATIO: see Zoning Ordinance, Section 10.102.

FULL SERVICE SUPERMARKET: Primarily a retail food store which also sells household supplies such as paper goods, cleaning supplies, and health and beauty items. May also include a small take-out deli or bakery.

GENERAL PLAN: City of Sausalito's General Plan, originally adopted in December 1970 and amended in 1979.

HARBOR: A part of a body of water protected and deep enough to furnish anchorage. Frequently interchanged with the term "marina".

HOUSEBOATS: A boat, vessel or structure in the water intended generally to be supported by means of flotation and to be maintinaed without a permanent foundation, used principally for residential purposes and generally not used for active navigation, and provided with a city-approved sewer connection.

INCLUSIONARY USE and RATIO: A use permitted in the Marinship only when another specified use accompanies its development. For example, commercial is an inclusionary use in the "I" zone and can only be developed when done so concurrently with industrial. Commercial development or construction shall not be done prior to or independently of industrial. The inclusionary ratio is the designated proportional relationship between the inclusionary uses. Using the same example, the inclusionary ratio is the amount of commercial area permitted on a parcel as a proportion of the amount industrial area in the proposed development.

INTENSITY: A measure of the amount of permitted Floor Area to the size of the development area or parcel expressed as Square Feet per acre (sf/ac). Similar to Density except that it refers to non-residential uses.

LIVEABOARD BOATS: Navigable vessel with an accessory use as a residential dwelling.

LUMBERYARDS: Commercial facility devoted to the storage and sale of lumber and other construction materials.

MARINA: Frequently interchangeable with the term "harbor". The term generally applies to harbors for pleasure boat use, while the term harbor can also include marine service berths.

MARINE SERVICE HARBOR: A part of a body of water protected and deep enough to furnish anchorage for mooring of boats or similar floating vessels used in the performance of a marine industrial activity or service conducted on the vessel or nearby on the land.

NET LAND AREA: That dry land portion of a parcel remaining after subtracting the easements stipulated in Zoning Ordinance Section 10.201 and inland of the so called "BCDC water line" (approximately elevation 5.7 feet above mean lower low water; see BCDC Standards).

PARCEL: See Zoning Ordinance, Section 10.102.

PARCEL AREA: See Zoning Ordinance, Section 10.102.

PLAN: When expressed as the "Plan" it refers to the Marinship Specific Plan.

PLANNING PARCEL: A parcel designated in the Marinship Specific Plan as a planning unit typically consisting of Assessor Parcels under a common ownership (given such notations as: Parcel 1A: "1750" Bridgeway). See Specific Plan Document Section: I.B.

RBSAP: Richardson Bay Special Area Plan, the version adopted by the City of Sausalito in the fall of 1984.

SITE: Frequently used interchangeably with the term "parcel".

SITE AREA: Frequently used interchangeably with "Parcel Area".

SMALL BOATS: Does not require a trailer to be transported, can be hand carried to and from the water by several persons, and does not require any special equipment to launch or haul out the craft. Such boats could include rowing boats, canoes, small kayaks, and very small sail boats. Such boats are likely to weigh about 100 pounds or less.

SPECIFIC PLAN: The Marinship Specific Plan.

WAREHOUSING: Commercial facility devoted to the enclosed storage of goods and materials.

YACHT CLUBS: The only Yacht Clubs permitted in the Marinship are tax exempt Yacht Clubs (those Yacht Clubs receiving less than 15% of their gross receipts from non-members).

ZONING ORDINANCE: The Sausalito Zoning Ordinance.

2. MARINSHIP SPECIFIC PLAN USE DEFINITIONS

Note: Each use definition is accompanied by a brief description of the proposed intent of the use, a definition, a list of examples for reference (not intended as a complete list of permitted uses), and attendant remarks.

Listed by major category, the uses are:

INDUSTRIAL USES:

Intent:

A primary intent of the Marinship Specific Plan is to maintain the industrial use of the area and to serve the needs of Sausalito residents. These include both general and marine industrial elements.

The intent of the industrial use designations is to focus upon the uses that are most consistent with the needs of a working waterfront and industrial area.

Art uses have in the past have been included within the industrial designations. This Specific Plan study seeks to distinguish the two only to enhance the art usage. Art uses should continue to be permitted with the industrial categories, but also have their own use designation as described herein.

Definitions:

GENERAL INDUSTRIAL:

This use includes a wide range of relatively small scale, low intensity, low traffic generating, non-polluting, light industrial manufacturing, assembly, repair, services, non-office type research and development activities, and arts uses consistent with many of those found in the Marinship and are considered of need or asset to the community. It is not the intent to provide non-industrial commercial uses, such as commercial office or retail within this category.

Examples:

The following is a partial list of potential uses which would be consistent with the intent:

Light Manufacturing, industrial research and development uses;

Warehousing;

Industrial, trade, and business service uses such as:
- -Blueprinting and photostating,
- -Building maintenance,
- -Business, professional, trade and cultural schools (CUP),
- -Cleaning and laundry plants,
- -Flat glass shops,
- -Industrial equipment sales and rentals,

-Lumberyards (CUP),
-Marine Industrial uses listed below (see Remark),
-Newspaper publications and print facilities,
-Nurseries (CUP),
-Packing and crating,
-Parcel delivery services,
-Photo finishing labs (CUP),
-Plumbing, heating and ventilating facilities,
-Recording studios,
-Repair shops (automobiles, appliances, radio and T.V., furniture),
-Sign shops.

Remarks:

All Marine Industrial and Arts uses listed below would also be permitted with the General Industrial designations.

MARINE INDUSTRIAL (land and water):

Marine Industrial uses should be consistent with the protection of the waterfront area and promotion of marine-oriented businesses. Permitted uses would include a wide range of relatively small scale, low intensity, non-polluting, low traffic generating, light marine industrial manufacturing, assembly, repair, services, marine industrial research and development activities, and arts uses consistent with those found in the Marinship and considered to be of need or asset to the community, other marine services, and a working waterfront.

Examples:
The following is a partial list of potential uses which would be consistent with the intent of this use:

-Boat building,
-Boat engine repair,
-Boat launching ramps, haul-out, dry docks (CUP),
-Boat maintenance,
-Boat measuring and surveying
-Boat repair,
-Boat restoration,
-Boat service,
-Boat storage,
-Boat towing,
-Commercial fishing facilities (not processing plants) (CUP),
-Diving equipment, lessons and services,
-Engine repair and service,
-Houseboat construction,
-Marine carpentry, cabinet making, woodworking,
-Marine electronics service and repair,
-Marine mechanical systems,
-Marine equipment manufacturing, service and repair,

-Marine Research Laboratories,
-Marine salvage,
-Marine welding and fabricating,
-Rigging,
-Sail, Canvas construction and repair,
-Sailing and marine related skills schools,
-Sewer ejection systems.

Remarks:

Marine service commercial uses are listed separately below. Several marine service uses that could be included under this designation are listed in the maritime category.

ARTS USES:

Intent:

The preservation and enhancement of arts uses in the Marinship is one of the Specific Plan goals. Arts uses are distinguished from other industrial or commercial activities by both their scale of operation (small) and design orientation. Arts development in the Marinship should seek to attain a mix of art orientations including industrial, marine, fine and applied arts uses.

Note: It will be advisable to seek the services of professional arts organizations (e.g., the Marin Arts Council) to provide a review of potential uses and/or users that might qualify for "Arts" status.

Definitions:

INDUSTRIAL ARTS:

These uses include the design, crafting and construction of unique or custom made industrial products.

Examples: The following is a partial list of potential uses which would be consistent with the intent:
-Cabinet Making,
-Metal fabricating,
-Casting (metal, concrete, plaster, plastic, etc.),
-Woodworking shop.

MARINE ARTS:

These uses include the design, crafting and construction of unique or custom made marine products.

Examples: The following is a partial list of potential uses which would be consistent with the intent:
-Boat building, fabricators,
-Marine carpentry, cabinet making, woodworking.

FINE ARTS:

These uses include the design, crafting and construction of unique, fine art products.

Examples: The following is a partial list of potential uses which would be consistent with the intent:
-Artists, such as painters, potters, sculptors, photographers, poets and authors,
-Art and craft studios,
-Publishers (CUP),
-Theatrical groups (CUP).

APPLIED ARTS:

These uses include the design, crafting and construction of unique, custom made applied art products.

Examples: The following is a partial list of potential uses which would be consistent with the intent:
-Architects, building designers,
-Commercial photographers,
-Computer software and hardware designers,
-Graphic design, including production,
-Home decorators,
-Industrial designer,
-Interior designer,
-Landscape architects, designers
-Marine applied arts such as:
-Marine graphics, illustrators,
-Marine photographers,
-Marine publishers,
-Nautical arts and photography,
-Naval architecture, designers
-Naval engineering.

COMMERCIAL USES:

Intent:

The intent of commercial use is to provide Sausalito, primarily the Marinship, adequate commercial service support to ensure a viable industrial, maritime and art community asset.

Definitions:

COMMERCIAL OFFICE:

Any future office use in the Marinship will be limited to accessory office use (the small amount of office activity needed to administer the operations of an approved use) within the same structure to which it is accessory. There shall be no separate and free standing "accessory-office buildings" except as approved by Conditional Use Permit. Existing office buildings and uses may continue as permitted uses.

RETAIL:

Community serving retail use intended to provide for the sales of frequently purchased household necessities and services required by Sausalito residents. No retail use, other than a "full service supermarket" in the CS zone will be permitted. A "full service supermarket" refers to a retail food store which also sells household supplies such as paper goods, cleaning supplies, and health and beauty items, and may also include a small take-out deli or bakery.

COMMERCIAL SERVICES:

BUSINESS COMMERCIAL SERVICE:

Convenience goods and consumer service establishments to service the needs of local businesses.

Examples: The following is a partial list of potential uses which would be consistent with the intent:

-Art and business supplies,
-Blueprint and photostat facilities,
-Printing facilities,
-Secretarial services.

MARINE COMMERCIAL SERVICE:

Convenience goods and consumer service establishments to service the maritime needs of the community.

Examples:

The following is a partial list of potential uses which would be consistent with the intent:

-Bait and tackle shops, including a limited amount of accessory provisioning of food and beverages, ice dispensers,
-Boat engine sales and repair,
-Boat charters,
-Boat sales, rentals,

-Chandlery,
-Engine sales, repair and service,
-Marine electronics sales, service and repair,
-Marine equipment and supplies sales (including provisioning of food and beverages),
-Marine fuel facility (CUP),
-Marine equipment sales, manufacturing, service and repair,
-Marine miscellaneous services (mail services, compass adjuster, provisioning, etc.),
-Sports fishing facilities,
-Veterinary clinic (allowed only as an accessory use to a marine research laboratory, CUP),
-Wholesale and retail fish sales (CUP),
-Yacht sales and delivery.

RESTAURANTS: (CUP)

Businesses providing food and drink products for sale, to be consumed on the premises, to meet the needs of Marinship workers and residents. This restaurant activity, limited dining on the premises, does not refer to what would normally be considered serving "fast food". The number of seats and hours of operation will be as determined by the City.

Examples:
-Cafe,
-Cafeteria,
-Delicatessen with dining on the premises,
-Restaurant.

SMALL SCALE EATING ESTABLISHMENTS: (CUP)

Businesses providing food and drink products for sale, to be consumed on or off the premises, to meet the needs of Marinship workers and residents. This use does not include what would normally be considered serving "fast food". The number of seats shall not exceed twenty, and the actual number of seats and hours of operation will be as determined by the City.

FOOD SERVICES: (CUP)

Businesses providing food and drink products for sale, to be consumed off premises, to meet the needs of Marinship workers and residents. This use does not include what would normally be considered serving "fast food".

Examples:

The following is a partial list of potential uses which would be consistent with the intent:

-Bakeries,
-Delicatessen (packaged beer and wine as an accessory use),
-Foodstores (packaged beer and wine as an accessory use).

RESIDENTIAL USES (Land):

No land based residential use will be permitted in the Marinship except as follows:

- That currently permitted in the Houseboat (H) zone;
- Existing legal land based units outside the "H" zone will be allowed as legal non-conforming uses.

RESIDENTIAL USES (Water):

Intent:

It is the intention of the water-based residential use designations to address the special needs of the maritime industries and services, while attempting to enhance the public's access, use and enjoyment of the water areas.

Note: Liveaboard use of Maritime boats is described separately below.

Definitions:

HOUSEBOAT:

A boat, vessel or structure in the water intended generally to be supported by means of flotation and to be maintained without a permanent foundation, used principally for residential purposes and generally not used for active navigation, and provided with a city-approved sewer connection.

ARK:

Dwelling, Single Family Art. A single family dwelling existing in the R-A Zoning District at the time of adoption of Title 10, or a single-family dwelling the exterior design of which is an exact replica of the structure existing at the time of adoption of Title 10.

PLEASURE BOAT LIVEABOARD:

Navigable vessel, in recreational use, with liveaboard residential occupant(s) for harbor or marina security purposes

MARITIME USES:

Definitions:

WET BERTH HARBORS (Pleasure and Marine Service):

Fixed or floating piers, docks, slips, and berths in a marina or harbor for the mooring of floating vessels. (See Appendix-B.1 above)

DRY BERTH HARBORS:

Storage of vessels out of the water, typically on land. (See Appendix-B.1 above)

MARINE SERVICE HARBOR: A part of a body of water protected and deep enough to furnish anchorage or mooring of boats or similar floating vessels used in the performance of a marine industrial activity or service conducted on the vessel or nearby on the land.

MARITIME SERVICE BERTHS AND BOATS including:

MARINE SERVICE BOAT or BERTH:

A boat, vessel or berth for a boat used in the performance of a marine industrial activity or service conducted on the vessel or nearby on the land. Liveaboard use of the vessel is acceptable where it can be demonstrated, to the City's satisfaction, that such residential use is necessary to provide the maritime service.

Examples:

- -Boat building,
- -Boat engine repair,
- -Boat maintenance,
- -Boat measuring and surveying,
- -Boat repair,
- -Boat restoration,
- -Boat service,
- -Boat towing,
- -Commercial fishing facilities (not processing plants) (CUP),
- -Diving equipment, lessons and service,
- -Engine repair and service,
- -Houseboat construction,
- -Marine carpentry, cabinet making, woodworking,
- -Marine educational boat,
- -Marine electronics service and repair,
- -Marine mechanical systems,
- -Marine equipment manufacturing, service and repair,
- -Marine research laboratories,

-Marine salvage,
-Marine welding and fabricating,
-Naval architecture,
-Naval engineering,
-Rigging,
-Sail, canvas construction and repair,
-Sailing schools,
-Sewer ejection systems.

MARINE CRAFTSMAN BOAT or BERTH:

A boat, vessel or berth for a boat used by craftpersons in the performance of a marine industrial activity or service conducted on the vessel or nearby on the land. Liveaboard use of the vessel is acceptable where it can be demonstrated, to the City's satisfaction, that such residential use is necessary to provide this maritime activity.

Examples:
-See list of marine industrial uses above,
-Marine Arts uses, such as:
-Boat building, fabricators,
-Marine carpentry, cabinet making, woodworking,
-Marine graphics, illustrators, sculptors,
-Marine publishers,
-Nautical arts and photography.

WATER-BASED ART USE BOAT or BERTH:

A boat, vessel or berth for a boat used by Marinship artisans in the performance of their craft on the vessel or nearby on the land, with a preference given to those in a marine activity. Liveaboard use of the vessel is acceptable where it can be demonstrated, to the City's satisfaction, that such residential use is necessary to provide this maritime activity.

Examples:
-Artists, such as painters, potters, sculptors, photographers, poets and authors.

Remarks:
The water-based art use of vessels in the Marinship has existed since the early fifties. The waterfront history is filled with such painters, poets, and writers as Vakda, Alan Watts, and Onslow-Ford who were attracted to the Marinship and its water-based residential opportunities. The City will seek the services of professional arts organizations (e.g., the Marin Arts Council) to provide a review of potential uses and/or users that qualify for "Arts" status.

HISTORIC BOAT or BERTH:

A vessel of historical significance or interest to the City of Sausalito and so designated by the Sausalito Historical Landmark Board. Liveaboard use of the vessel is acceptable where it can be demonstrated, to the City's satisfaction, that such residential use is necessary to maintain its use or condition, or provide this maritime activity.

INSTITUTIONAL BOAT BERTH:

A vessel used on a regular basis by a public institution in the performance of a maritime service or duty. Liveaboard use of the vessel is acceptable where it can be demonstrated, to the City's satisfaction, that such residential use is necessary to provide this maritime activity.

APPENDIX: C. TRAFFIC TRIP GENERATION RATES

The Traffic Trip Generation Rates used by DKS Associates to analyze the projected traffic conditions in the Marinship Specific Plan were provided in the Marinship EIR. They are based on standard trip generation rates developed by CALTRANS and the Institute of Transportation Engineers, supplemented by counts conducted in Sausalito by DKS Associates.

These are reprinted below in Table C.

TABLE C
WEEKDAY PM PEAK-HOUR TRIP GENERATION RATES FOR SELECTED LAND USES

Type of Use	Per unit	Vehicle Trips per Unit Inbound	Outbound
General Industrial	1000 sf	.41/TSF	.77/TSF
Marine Industrial	1000 sf	.15/TSF	.35/TSF
Arts	1000 sf	.40/TSF	.70/TSF
Offices	1000 sf	.39/TSF	2.42/TSF
Retail	1000 sf	1.47/TSF	1.47/TSF
Restaurant	1000 sf	3.80/TSF	2.40/TSF
Land-Based Residential	Dwelling Unit	.34/Unit	.17/Unit
Live-Work Residential	Dwelling Unit	.20/Unit	.10/Unit
Houseboats	Dwelling Unit	.34/Unit	.17/Unit
Wet Marina Berths	Berth	.09/Brth	.09/Brth
Dry Marina Berths	Berth	.06/Brth	.06/Brth

Note: The following uses were not listed in the EIR table but were included in the Traffic Analysis:

Commercial Service	1000 sf	N/A	.00/TSF
Food Service	1000 sf	N/A	.00/TSF
Liveaboard Boats	Berth		.10/Brth

Note: The following uses have not yet been assigned trip generation rates:

Post Office: this use was treated separately in the Post Office EIR.

Marine Service: water-based use, with and without liveaboard use.

Note: The Outbound Trip Rates are considered critical to Marinship traffic planning.

The Marinship Specific Plan Development Standards, Section III.A, describe the concept of assigning an industrial equivalent

FAR to uses currently above the maximum FAR limits that also produce a PM Peak hour traffic impact greater than General Industrial uses.

To establish the Outbound PM Peak-hour Trip Generation Industrial equivalent of Marinship uses it is necessary to convert the Trip Generation Ratios listed above in Table C into a form that compares all uses to General Industrial. These ratios are provided in Table D below.

TABLE D
OUTBOUND PM PEAK-HOUR TRIP GENERATION RATE
GENERAL INDUSTRIAL EQUIVALENTS

Type of Use	Per unit	Vehicle Trips per Unit Outbound	Equivalent Ratio
General Industrial	1000 sf	.77/TSF	1.00
Marine Industrial	1000 sf	.35/TSF	.45
Arts	1000 sf	.70/TSF	.90
Offices	1000 sf	2.42/TSF	3.14*
Retail	1000 sf	1.47/TSF	1.91*
Restaurant	1000 sf	2.40/TSF	3.12*
Land-Based Residential	Dwelling Unit	.17/Unit	.22
Live-Work Residential	Dwelling Unit	.10/Unit	.13
Houseboats	Dwelling Unit	.17/Unit	.22
Wet Marina Berths	Berth	.09/Berth	.17
Dry Marina Berths	Berth	.06/Berth	.08

Note: The following uses were not listed in the EIR table but were included in the Traffic Analysis:

Commercial Service	1000 sf	.00/TSF	.00
Food Service	1000 sf	.00/TSF	.00
Liveaboard Boats	Berth	.10/Berth	.13

* These uses have Outbound PM Peak-hour trip generation rates greater than General Industrial and are therefore subject to the equivalent FAR considerations required in Section III.A.

APPENDIX: D. PLANNING PARCEL EQUIVALENT ASSESSOR PARCEL NUMBERS

TABLE E
LIST OF PLANNING PARCEL
EQUIVALENT ASSESSOR PARCEL NUMBERS
(by Planning Area and Zone)

PLANNING PARCEL NUMBER		ASSESSOR PARCEL NUMBER
ZONE 1		
Planning Area 1:		
1A	"1750 Bridgeway"	64-082-02
1B	Terra Landing	64-032-01 64-081-01 64-082-01 64-083-02 64-084-05
1C	City of Sausalito	City Streets
Planning Area 2:		
2B	Schoonmaker Point	63-080-02 63-080-03 63-090-06 63-090-07
2C	Vincent Whitney-Interbay Lumber	63-090-02
2D	Cement Gun Property	63-090-03
2E	Easom's Boatyard	63-100-05
2F	Clipper Yacht Harbor #1	63-100-04
ZONE 2		
Planning Area: 2		
2A	Burkell Property (parcel north of Schoonmaker)	63-100-01
2G	Annicelli (Sea K Fish)	63-060-03 63-070-04 63-100-07

Planning Area: 3		
3A	Army Corps of Engineers, Bay Model	63-050-02 63-060-02 63-070-03 63-100-13 63-110-14
3B	Record Plant	63-110-01
3C	SWA Offices	63-110-09 63-110-11
3D	Office (Duryee)	63-110-12
3E	Marinship Park	63-110-13
3F	City of Sausalito	63-050-03 63-070-01
Planning Area: 4		
4A	Marina Plaza	63-040-02 63-050-01 63-110-03 63-110-04 63-110-05 63-110-06 63-110-07
Planning Area: 5		
5A	"Gerhardt" parcel west of Arques	63-120-01
5B	Arques Shipyard, Gate #3	63-040-01 63-120-02
Planning Area: 6		
6A	"2401 Marinship Way"	63-130-01
6B	Big "G" Supermarket	63-130-02
6C	Vacant Site (Post Office site east of 6B)	63-130-03

Planning Area: 7

7A	"150/180 Harbor Drive"	63-130-04, 06

Planning Area: 8

8A	Clipper Yacht Harbor #2, #3 & #4	
		63-010-18 Partial*
	* See Parcel 9G	63-020-01
		63-030-01
		63-140-08
8B	Storage Area (west of 8C)	63-030-02
		63-030-03
8C	Spaulding Boatworks	63-030-04

ZONE 3

Planning Area: 6

6D	"One/Three Harbor Drive"	63-140-15
		63-130-05
6E	Feng Nian Restaurant	63-140-18
6F	Commercial/Office Area (Bridgeway at Coloma)	
		63-140-20
		63-140-21

Planning Area: 7

7B	Industrial Center Building	63-140-14
7C	Heath Ceramics	63-140-04
		63-140-05
		63-140-06
7D	Restaurant/Commercial Area (Saus. Food Co.)	
		63-140-09
		63-140-10
7E	"475 Gate 5 Road"	63-140-24

Planning Area: 9

9A	Coloma Industrial Area	63-140-02
		63-140-03

9B	"200 & 150 Gate 5 Road Area"	63-152-07 63-152-08
9C	Auto Repair Area (Swiss Garage, etc.)	63-162-07 63-162-08
9D	Auto Repair Area (Paul's Cabinets, etc.)	63-162-06
9E	Joe Ray Auto Body	63-152-06
9F	Auto Storage Area (Jagger Enterprises)	63-152-95
9G	Clipper Property (at Varda Landing Rd)	63-010-16 Partial*
	* See Parcel 8A	
9H	Varda Landing Studios (York)	63-010-09
9I	Planeaway Sailboards, etc.	63-010-05
9J	Small Boat Center (Gordy Nash)	63-010-04
9K	Gate 5 Road Industrial (north of 9J)	63-010-03
9L	Office/Retail/Storage (York)	63-010-02 63-010-17

Planning Area: 10

10A	Houseboat Area (Anshen)	63-010-12
10B	Houseboat Area (Kingman Prop. Co.)	63-010-15
10C	Houseboat Area (Onslow-Ford, Vallejo)	63-010-14
10D	Houseboat Area (Veit)	63-010-06 63-010-07

Planning Area: 11

11A	Winblad Property (Bullard)	63-152-01 63-152-02
11B	"3000 Bridgeway"	63-162-04
11C	Health Club and Offices	63-162-05
11D	"3030 Bridgeway"	63-162-10 63-162-13
11E	"4000 Bridgeway"	63-162-01 63-162-12

APPENDIX E. PLANNING PARCELS BY ZONING CATEGORY

TABLE F
LIST OF PLANNING PARCELS BY ZONE

"I" ZONE
(by Planning Area and Zone)

ZONE 1

Planning Area 1:
- 1A "1750 Bridgeway"

Planning Area 2:
- 2B Schoonmaker Point
- 2C Vincent Whitney-Interbay Lumber
- 2D Cement Gun Property

ZONE 2

Planning Area: 2
- 2A Burkell Property (parcel north of Schoonmaker)

Planning Area: 3
- 3B Record Plant
- 3C SWA Offices
- 3D Office (Duryee)

Planning Area: 4
- 4A Marina Plaza

Planning Area: 5
- 5A "Gerhardt" parcel west of Arques
- 5B Arques Shipyard, Gate #3

Planning Area: 6
- 6A "2401 Marinship Way"

Planning Area: 7
- 7A "150/180 Harbor Drive"

ZONE 3

Planning Area: 6
- 6D "One Harbor Drive"
- 6E Feng Nian Restaurant
- 6F Commercial/Office Area (Bridgeway at Coloma)

Planning Area: 7

7B	Industrial Center Building
7C	Heath Ceramics
7D	Restaurant/Commercial Area (Saus. Food Co.)
7E	"475 Gate 5 Road"

Planning Area: 9

9A	Coloma Industrial Area
9B	"200 & 150 Gate 5 Road Area"
9C	Auto Repair Area (Swiss Garage, etc.)
9D	Auto Repair Area (Paul's Cabinets, etc.)
9E	Joe Ray Auto Body
9F	Auto Storage Area (Jagger Enterprises)
9G	Clipper Property (at Varda Landing Rd.)
9H	Varda Landing Studios (York)
9I	Planeaway Sailboards, etc.
9J	Small Boat Center (Gordy Nash)
9K	Gate 5 Road Industrial (north of 9J)
9L	Office/Retail/Storage (York)

Planning Area: 11

11A	Winblad Property (Bullard)
11B	"3000 Bridgeway"
11C	Health Club and Offices
11D	"3030 Bridgeway"
11E	"4000 Bridgeway"

"W" ZONE
(by Planning Area and Zone)

ZONE 1

Planning Area 1:

1B	Terra Landing
1C	City of Sausalito

Planning Area 2:

2B	Schoonmaker Point
2E	Easom's Boatyard
2F	Clipper Yacht Harbor #1

ZONE 2

Planning Area: 2

2G	Annicelli (Sea K Fish)

Planning Area: 8

8A	Clipper Yacht Harbor #2, #3 & #4
8B	Storage Area (west of 8C)
8C	Spaulding Boatworks

ZONE 3

None

"H" ZONE
(by Planning Area and Zone)

ZONE 1

None

ZONE 2

None

ZONE 3

Planning Area: 10

10A Houseboat Area (Anshen)
10B Houseboat Area (Kingman Prop. Co.)
10C Houseboat Area (Onslow-Ford, Vallejo)
10D Houseboat Area (Veit)

"CS ZONE"
(by Planning Area and Zone)

ZONE 1

None

ZONE 2

Planning Area: 6

6B Big "G" Super Market
6C Vacant Site (Post Office site east of 6B)

ZONE 3

None

"P" ZONE
(by Planning Area and Zone)

ZONE 1

None

ZONE 2

Planning Area: 3
3A Army Corps of Engineers, Bay Model
3E Marinship Park

ZONE 3

None

"OA" ZONE
(by Planning Area and Zone)

ZONE 1

None

ZONE 2

Planning Area: 2
2G Annicelli (Sea K Fish)

Planning Area: 3
3A Army Corps of Engineers, Bay Model
3F City of Sausalito

Planning Area: 4
4A Marina Plaza

Planning Area: 5
5B Arques Shipyard, Gate #3

ZONE 3

None

RESOLUTION NO. 3708

CITY OF SAUSALITO

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF SAUSALITO ADOPTING THE MARINSHIP SPECIFIC PLAN, DATED APRIL 1988

WHEREAS, the City Council referred the December 1987 draft of the Marinship Specific Plan to the Planning Commission for its review and recommendations; and

WHEREAS, the Planning Commission has reviewed and made recommendations for changes to the Marinship Specific Plan, following public meetings on February 3, 10, 24, and 29, 1988; and

WHEREAS, the Planning Commission did adopt a resolution (No. 1988-10) recommending that the City Council adopt the revised Marinship Specific Plan; and

WHEREAS, the City Council has reviewed and made changes to the Marinship Specific Plan, following public hearings on March 8, 22, 24 and April 5, 1988; and

WHEREAS, the City Council's changes have been incorporated into a final draft of the Marinship Specific Plan dated April 1988; and

WHEREAS, the proposed Marinship Specific Plan was the subject of an Environmental Impact Report certified by the City on February 4, 1986;

NOW THEREFORE BE IT RESOLVED THAT the City Council does hereby adopt the Marinship Specific Plan, dated April 1988 and as amended per Exhibit 1, which is incorporated herein by reference.

PASSED AND ADOPTED at a regular meeting of the Sausalito City Council held on April 5, 1988, by the following vote:

AYES: Phillips, Mitchell, Peltz

NOES: Sweeny

ABSTAIN: None

ABSENT: Taber

APPROVED:

Lore Phillips, Vice-Mayor

ATTEST:

City Clerk

EXHIBIT 1

Page 22:

~~-~~Permit performing arts theater studio and rehearsal use. Occasional ~~l~~live performance presentation and film uses ~~are~~ may be permitted ~~only with approval~~ the issuance of an Administrative Conditional Use Permit.

Page 32: Last sentence in second paragraph under GENERAL INTENT

... A terminal for a ferry or similar marine transportation ~~should~~ shall not be located in the Marinship area.

Page 39: Second paragraph under Yacht Clubs

... It is not the objective to permit facilities created to ~~serv-~~ice serve as largely commercial enterprises oriented to non-Sausalito harbor users. The facility ~~should~~ shall be limited in size, have limited dining and beverage services, including alcoholic beverages, and shall not provide for overnight accommodations.

Page 41: Fourth paragraph.

This parcel has been identified as a potential commercial facility, and as a potential site for a combined marine mammal research facility and veterinary clinic. ~~This is an~~ These are acceptable uses on this parcel.

Page 56: First full sentence on the page.

The parcel access depicted in the plan documents should be required, when reasonable, as part of any development plan...

Page 62: First sentence of second paragraph.

The implementation of the Pedestrian Paths (A and B) and Bike Paths shall be required, when reasonable, as part of any development or redevelopment plan...

Page 75: First sentence of second paragraph.

Implementation of all View Corridors shall be required, when reasonable, as part of any development or redevelopment ...

Page 87: First sentence on the page.

These standards shall be required, when reasonable, as part of any new construction, redevelopment, ...

Page 91: First sentence on the page.

The following standards shall be required, when reasonable, as part of any new construction, redevelopment, ...

RESOLUTION NO. 3824

RESOLUTION OF THE CITY COUNCIL OF THE CITY OF SAUSALITO ADOPTING AN AMENDMENT TO THE MARINSHIP SPECIFIC PLAN FOR THE PURPOSE OF ACHIEVING CONSISTENCY BETWEEN THE PLAN AND TITLE 10 OF THE MUNICIPAL CODE (ZONING)

WHEREAS, the Sausalito City Council, on 5 April 1988, adopted the Marinship Specific Plan and directed that an amendment to the Zoning Code, Title 10 of the Sausalito Municipal Code, be prepared to carry out and implement the policy directives of the Specific Plan;

WHEREAS, following provision of legal notice as required by state law and local ordinance, the Sausalito Planning Commission conducted public hearings on the proposed amendments to Title 10 and the Specific Plan, commencing on 12 October 1988 and concluding on 14 December 1988;

WHEREAS, in conformance with California Government Code Sections 65453 and 65350 et. seq., the City Council has received and considered the report and recommendations of the Planning Commission on the proposed amendments; and

WHEREAS, following provision of notice as required by law, the City Council has conducted public hearings on the proposed amendment, commencing on 31 January 1989, at which times all interested persons were given an opportunity to be heard.

NOW, THEREFORE BE IT RESOLVED that the City Council does hereby find, declare, and order that:

1. The proposed project is undertaken pursuant to the Marinship Specific Plan Environmental Impact Report certified by the City Council on 4 February 1986.
2. The proposed amendments are in conformity with and further the objectives and policies of the Sausalito General Plan, as amended through 5 April 1988.

3. After having considerd the matter, including the report and recommendations of the Planning Commission and the public testimony, the City Council has determined that certain changes to the proposed amendments would be appropriate.

4. The changes approved by City Council are incorporated into Exhibit A, "Amendments to the Marinship Specific Plan", attached hereto and by this reference incorporated herein.

BE IT FURTHER RESOLVED that the City Council hereby approves and adopts the amendments to the Marinship Specific Plan as stated in Exhibit A.

PASSED AND ADOPTED at the regular meeting of the Sausalito City Council on the 2nd day of May, 1989, by the following vote:

AYES: Councilmen: Buddie, Phillips, Rose, Sweeny, Mayor Mitchell

NOES: Councilmen: None

ABSENT: Councilmen: None

Robert Mitchell
MAYOR OF THE CITY OF SAUSALITO

ATTEST:

Janet F. Tracy
CITY CLERK

EXHIBIT A

Amendment to the Marinship Specific Plan
Adopted by Resolution No. 3824
May 2, 1989

Uses in the Marinship area should be limited to the following, and similar general types of uses as approved by the City, consistent with the goals, objectives and functional organization of the Marinship Specific Plan.

Non-polluting, low traffic generating, low intensity industrial uses, and the following uses to the extent they are compatible to an industrial area: warehousing; wholesale trade establishments; light manufacturing; office service and supply and industrial service and supply; art, including Fine Arts, Maritime Arts, Industrial Arts and Applied Arts, and craft workshops (no retail sales); industrial or marine-oriented research and development laboratories; small-scale appliance and equipment repair and service; boat storage, yacht clubs; wholesale and retail fish sales; employee eating establishments (independent eating establishments should be permitted only after review to determine the need for such a facility to serve the needs of the employees in the Marinship area and determination that the location and signing does not encourage use by persons outside the Marinship area).

Furthermore, the "I" zone shall:

- Permit existing office buildings and uses to remain:

- Prohibit general retail sales, except as a part of a commercial service business (one serving the needs of, and complementary to, the needs of the Marinship, such as a chandlery);

- Permit performing arts theater studio and rehearsal use. Occasional live performance presentation and film uses may be permitted with the ~~issuance~~ approval of an ~~Administrative~~ Conditional Use Permit.

a. TYPICAL CONDITION

The Industrial ("I") zone is the Marinship's largest and includes the widest variety of permitted uses. To the extent possible, especially on the larger sites, a mixture of uses is to be encouraged.

Unless noted otherwise, the typically permitted uses in the "I" zone parcels include: general industrial, marine industrial, arts, commercial service, limited amounts of restaurant and food service, and dry boat storage uses categories. Existing legal office, full service restaurant, and residential uses may remain as permitted uses, as noted elsewhere in this document.

The uses permitted in the "I" zone are defined in Appendix- B: Glossary of Terms. These are further qualified by the following standards:

Arts:

It is the intent of the Arts designation to allow art studio space, not retail art galleries. It is not the intent, however, to prohibit a limited number of "sales events" on-site, featuring the sale of art creations by the artist. The amount of permitted studio space dedicated to formal art display shall be limited. Signage or advertisement of the retail activity, if done on a regular basis, is prohibited. The sale of art work is to be by the actual artist or by a temporary assistant or employee.

Applied Arts:

Applied Arts is to be an inclusionary Arts use (e.g., it is only permitted in association with other Arts uses on a specific parcel). Applied Arts is not to exceed 50% of all Arts use on a parcel, and will be allowed only with the approval of a ~~under an Administrative~~ Conditional Use Permit.

Commercial Office:

The only new office use permitted in the Marinship will be limited to accessory office use (the small amount of office activity needed to administer the operations of an approved use). No new Commercial Office use will be permitted in the Marinship. Existing office buildings and uses may remain as permitted uses.

Commercial Retail:

No new Commercial Retail areas will be permitted in the Marinship. Commercial Retail will be permitted in the form of a full-service supermarket (in the CS Zone) or on parcels, and in amounts, where retail use has been previously approved by the City.

Commercial Restaurants:

A limited number of Commercial Restaurants will be permitted in the Marinship. Existing Restaurant use will continue to be permitted on parcels, and in amounts, where restaurant use has been previously approved by the City. A limited number of small restaurants (limited dining on the premises) will be permitted in the "I" zone within the Marinship. Restaurants with up to 40 seats may be permitted with a Conditional Use Permit on planning parcels of at least four acres. Applications for new restaurants shall require an analysis of the need for such a facility to serve

the needs of employees in the Marinship. A determination shall be made that the location and signing does not encourage use by persons outside the Marinship.

Commercial Food Service:

Commercial Food Service (no dining on the premises) will be permitted with a Conditional Use Permit in the Industrial Zone within the Marinship. The amount of food service square footage permitted on a parcel shall be determined after an analysis of the need for such a facility to serve the needs of employees in the Marinship. A determination shall be made that the location and signing does not encourage use by persons outside the Marinship.

Residential:

No new residential use will be permitted in the "I" zone. Existing, legal, residential use may remain as a permitted use on parcels, and in amounts, as have been previously approved by the City.

Public Access:

All shoreline parcels in the Marinship shall provide for the temporary tie-up of small boats, as required by the City. The number of such spaces shall be a minimum of one per parcel or 3% of the total number of berths in the harbor, whichever is greater, unless otherwise approved by the City.

The allowable development program for the "I" zone shall be as provided in the zoning ordinance/, subject to the additional requirements and limitations of this plan. The zoning ordinance shall identify the maximum allowable Floor Area Ratio (FAR) as well as any specific ratios between the amounts of permitted uses. (Currently, the zoning ordinance FAR is 40% with no more than 15% in commercial use).

To maintain the industrial emphasis of this zone, no more the 40% of the permitted FAR shall be allowed for commercial uses. Such commercial use refers to commercial office, commercial services, restaurants and food services. Accessory office use is not included in this consideration. Commercial uses shall be permitted when developed with approved non-commercial uses.

The number of dry boat berths shall not exceed 100 berths per acre.

b. SITE-SPECIFIC EXCEPTIONS

The following are site-specific exceptions to

of the Marinship Specific Plan effort. The existing "W" zone is considered to be a Commercial District. As such, all uses in this zone are considered to be commercial. One element of the Specific Plan, in this zone, has been to distinguish between permitted industrial and commercial uses in the same manner as is currently done in the "I" zone. To this end the definition of Marine Industrial use has been narrowed to focus upon the industrial and service uses, relocating the marine commercial service uses to the Commercial Service use category, where they are separately controlled.

Unless noted otherwise, the typically permitted uses in the "W" zone include: marine industrial, arts, marine commercial service, food service, houseboats (no new houseboats allowed--existing houseboats may be legalized with a Conditional Use Permit), live-aboard use of marine service and pleasure boats, dry boat storage, marine service berths, pleasure boat berths, and open space. The uses permitted in the "W" zone are defined in Appendix- B: Glossary of Terms. These are further qualified by the following standards.

Applied Arts:

Applied Arts is to be an inclusionary Arts use (i.e., it is only permitted in association with other Arts uses on a specific parcel). Applied Arts use is not to exceed 50% of all Arts use on a parcel, and shall be limited to those uses listed in the marine applied arts sub-category and will be allowed only with the approval of a Minor Administrative Conditional Use Permit.

Commercial Service:

Only Marine Commercial Service is permitted in the "W" zone.

Commercial Food Service:

Commercial Food Service (no dining on the premises) and small-scale Eating Establishments (with limited dining on the premises, not to exceed 20 seats) will be permitted with a Conditional Use Permit on "W" Zone sites. The amount of food service square footage permitted on a parcel shall be determined after an analysis of the need for such a facility to serve the needs of employees in the Marinship. A determination shall be made that the location and signing does not encourage use by persons outside the Marinship.

Residential:

No new land-based residential use shall be permitted in the "W" zone.

boats, as required by the City. The number of such spaces shall be a minimum of one per parcel, or 2% of the total number of berths in the harbor, whichever is greater, unless otherwise approved by the City.

Yacht Clubs:

The only Yacht Clubs permitted in the Marinship are tax-exempt Yacht Clubs (those Yacht Clubs receiving less than 15% of their gross receipts from non-members). Such Yacht Clubs shall provide public service or use facilities, or limited size facilities to accommodate the temporary needs of transient boaters and shall provide a harbor service facility intended to meet the needs of Sausalito harbors and local residents. It is not the objective to permit facilities created to serve as largely commercial enterprises oriented to non-Sausalito harbor users. The facility shall be limited in size, have limited dining and beverage services, including alcoholic beverages, and shall not provide for overnight accommodations.

The allowable development program for the "W" zone shall be as provided in the zoning ordinance/, subject to the additional requirements and limitations of this plan. The zoning ordinance shall identify the maximum allowable Floor Area Ratio (FAR) as well as any specific ratios between the amounts of permitted uses. To maintain the marine and marine industrial emphasis of this zone, no more than 10% of the permitted FAR shall be allowed for commercial uses. Such commercial use refers to marine commercial services and food services. Accessory office use is not included in this consideration. Commercial uses shall be permitted when developed with approved non-commercial uses. The number of dry boat berths shall not exceed 100 berths per acre.

Note/ The "W" zone is currently considered a Commercial District in the zoning ordinance/ The Marinship Specific Plan would change this classification to an Industrial District/

b. SITE SPECIFIC EXCEPTIONS

The following are site specific exceptions to the typical "W" zone treatment described above.

ZONE 1

Planning Area 1:

1B Terra Landing (land and water areas)

The primary development objective is to preserve the maritime use and heritage of the Sausalito waterfront. This particular site has a tradition of mixed maritime, art and live-

a. TYPICAL CONDITION

The Houseboat ("H") zone is the only residential district in the Marinship. Except as noted below, this residential use is permitted on these parcels. New development standards should be developed when revising the existing Zoning Ordinance. Should residential use no longer be permitted in the "H" zone, the district shall be changed to a Waterfront "W" zone designation and be bound by the same standards.

The existing standards for the "H" zone shall be modified as follows:

Arks:

Arks are neither defined nor permitted in the Marinship under the current Zoning Ordinance. BCDC is in the process of evaluating the use and treatment of Arks within their jurisdiction.

An Ark in the Marinship Specific Plan is defined in Appendix B.1. No new Ark use will be permitted in the Marinship. Any Arks that predate the City's General Plan Adoption and BCDC control are to remain as permitted structures. Currently only one such structure, considered to be an Ark and meeting the above criteria, is found in the Marinship area, the Anshen residence, located on Parcel 10A.

Public Access

All shoreline parcels in the Marinship shall provide for the temporary tie-up of small boats, as required by the City. The number of such spaces shall be a minimum of one per parcel or 2% of the total number of berths in the harbor, which ever is greater, unless otherwise approved by the City.

b. SITE-SPECIFIC EXCEPTIONS

The following are site-specific exceptions to the typical "H" zone treatment described above.

Planning Area: 10

10A Houseboat Area (Anshen)

This parcel contains a residential structure on pilings located over the water portion of the site. Since this unit is no longer a floating vessel it is not considered a houseboat according to the definitions used by BCDC or this Specific Plan document. Its physical condition most closely resembles an "Ark".

10C Houseboat Area (Onslow-Ford, Vallejo)

The City desires to retain as a historical landmark the ferry "Vallejo" and its site, which has been used for a variety of cultural, artistic and residential uses for over 30 years. The City may want to consider acquiring this parcel for open space or public use.

4. SHOPPING CENTER ("CS") ZONE

GENERAL INTENT

The Marinship Specific Plan objective for this parcel is that the full-service supermarket use in this zone be retained to serve the needs of Sausalito residents. The plan recognizes that a new postal facility is under construction on Parcel 6C. Since this is a federal government agency and does not require City or Plan approval, it does not appear in this plan as a designated use. Should the full-service supermarket use no longer be viable on these parcels, the plan objective would be to allow very limited industrial and marine uses. These are limited to: warehousing, lumberyards, and dry boat storage.

a. TYPICAL CONDITION

The original objective of the Shopping Center "CS" zone was to designate an area with uses that would provide Sausalito residents a place to obtain frequently purchased household goods. This purpose has narrowed in the Specific Plan process to preservation of the existing full service supermarket use on Parcel 6B. ~~A full service supermarket is also allowed with a Conditional Use Permit on Parcel 6C.~~

The United States Postal Service has recently purchased Parcel 6C and is developing a new local-serving postal facility on that site.

The non-supermarket and Post Office uses that would be permitted in the "CS" Zone are: lumberyard, warehousing, and dry boat storage. These uses are defined in Appendix- B: Glossary of Terms.

Commercial Retail:

The only permitted commercial retail use is a full-service supermarket.

Institutional- Post Office:

The Postal Authority does not require Plan approval from the City.

- Caruso's Deck (Parcel 8A): view of bay, marina, boat launch and maritime activity;
- Sandy Point, between Clipper #2 and #3 (Parcel 8A): views of San Francisco, the bay, marina, Corps operations, fishing boats, houseboats, and hillside;
- Sandy Point, between Clipper #3 and #4 (Parcel 8A): similar to Sandy Point described above;
- Clipper #4 access point (Parcel 8A): views of marina and houseboats;
- Vallejo Ferry Site (Parcel 10C): views of houseboats and bay.

D. SETBACKS AND EASEMENTS

1. BUILDING SETBACKS AND EASEMENTS

The building setbacks for Marinship parcels shall be as required in the Zoning Ordinance/ and as provided in this section. Evaluation of setback and easement requirements of any development proposal should include consideration of: public safety, use separation/integration, public access, view corridors, and support of the urban industrial character of the Marinship.

Building setbacks should adequately protect the public safety by separating buildings whose use or construction poses a threat to one another.

Building placement on a parcel should be clustered to the extent possible to optimize open space while providing definable urban forms, especially along street frontages. An "urban" rather than "suburban" treatment of building placement is preferred. In this context, buildings should define space rather than become points in space. Zero setbacks along streets and property lines are intended to encourage the placement of structures along the street to give the street definition and continuity. To the extent possible, or unless otherwise noted, buildings should not be set back from the street to provide space for parking lots. Instead, parking should be located behind or alongside the buildings.

The building placement on a parcel should respect the intent to provide public access, to provide views of Richardson Bay as well as views through the Marinship, and to create public and private open space areas.

These standards shall be required, when reasonable, as part of any new construction, redevelopment, or exterior building remodeling involving at least 25% of the existing Floor Area or representing 25% of the market value of the Parcel improvements. Existing structures, or undisturbed portions of existing structures, may remain in their existing locations, providing such positioning does not cause a threat to public safety.

APPENDIX: B. GLOSSARY OF TERMS

The Marinship Specific Plan document uses a variety of expressions, many of which are defined in the existing Zoning Ordinance (Section 10.102) or are commonly used planning terminology.

The Glossary of Terms is divided into two categories: terms used when describing, or referring to, the Specific Plan document contents, and the definition of the Specific Plan Uses. The terms are defined as follows:

1. SPECIFIC PLAN DOCUMENT TERMS

AFFORDABLE: The term has several applications. Affordable rent or sale price is one less than or equal to a percentage of annual personal income, typically a percentage of what is considered a Low and Moderate Marin County income level. An affordable income level is one established by the Sausalito City Council, and may relate to the Marin County Housing Authority definition of Low and Moderate income levels.

ARKS: ~~A residential structure once a legitimate floating vessel currently supported on piers found over the water with approved connections to public utilities and services such as water and sewer.~~ (Dwelling, Single Family Ark). A single family dwelling existing in the R-A Zoning district at the time of adoption of Title 10, or a single-family dwelling the exterior design of which is an exact replica of the structure existing at the time of adoption of Title 10.

BCDC: San Francisco Bay Conservation and Development Commission.

BERTH: A space or harbor slip for the mooring or storage of a boat. A "dry berth" refers to dry boat storage on land.

COUNCIL or CITY COUNCIL: The Sausalito City Council.

CUP: Conditional Use Permit.

DENSITY: A measure of residential intensity expressed as the number of residential dwelling units per acre (du/ac).

EASEMENTS: A variety of easements exist in the Marinship area. These include those for streets, railroads, pedestrian and bicycle ways, public access, public use, and navigational access. Of particular interest when calculating the amount of allowable development on a parcel are those described in the Zoning Ordinance, Section: 10.201.

EIR: Marinship Specific Plan Environmental Impact Report (Certified by the City Council February 4, 1986).

FLOOR AREA: see Zoning Ordinance, Section 10.102.

FLOOR AREA RATIO: see Zoning Ordinance, Section 10.103.

FULL SERVICE SUPERMARKET: Primarily a retail food store which also sells household supplies such as paper goods, cleaning supplies, and health and beauty items. May also include a small take-out deli or bakery.

GENERAL PLAN: City of Sausalito's General Plan, originally adopted in December 1970 and amended in 1979.

HARBOR: A part of a body of water protected and deep enough to furnish anchorage. Frequently interchanged with the term "marina".

HOUSEBOATS: ~~A nonnavigable residential structure floating on the water and connected to an approved water and sanitary sewer system.~~ A boat, vessel or structure in the water intended generally to be supported by means of flotation and to be maintained without a permanent foundation, used principally for residential purposes and generally not used for active navigation, and provided with a city-approved sewer connection.

INCLUSIONARY USE and RATIO: A use permitted in the Marinship only when another specified use accompanies its development. For example, commercial is an inclusionary use in the "I" zone and can only be developed when done so concurrently with industrial. Commercial development or construction shall not be done prior to or independently of industrial. The inclusionary ratio is the designated proportional relationship between the inclusionary uses. Using the same example, the inclusionary ratio is the amount of commercial area permitted on a parcel as a proportion of the amount industrial area in the proposed development.

INTENSITY: A measure of the amount of permitted Floor Area to the size of the development area or parcel expressed as Square Feet per acre (sf/ac). Similar to Density except that it refers to non-residential uses.

LIVEABOARD BOATS: Navigable vessel with an accessory use as a residential dwelling.

LUMBERYARDS: Commercial facility devoted to the storage and sale of lumber and other construction materials.

MARINA: Frequently interchangeable with the term "harbor". The term generally applies to harbors for pleasure boat use, while the term harbor can also include marine service berths.

MARINE SERVICE HARBOR: A part of a body of water protected and deep enough to furnish anchorage for mooring of boats or similar floating vessels used in the performance of a marine industrial activity or service conducted on the vessel or nearby on the land.

Examples: The following is a partial list of potential uses which would be consistent with the intent:
-Boat building, fabricators
-Marine carpentry, cabinet making, woodworking.

FINE ARTS:

These uses include the design, crafting and construction of unique, fine art products.

Examples: The following is a partial list of potential uses which would be consistent with the intent:
-Artists, such as painters, potters, sculptors, photographers, poets and authors
-Art and Craft galleries accessory to studios (CUP)
-Publishers (CUP)
-Theatrical groups (CUP).

APPLIED ARTS:

These uses include the design, crafting and constructin of unique, custom made applied art products.

Examples: The following is a partial list of potential uses which would be consistent with the intent:
-Architects, building designers,
-Commercial photographers
-Computer software and hardware designers
-Graphic design, including production,
-Home decorators,
-Industrial designer,
-Interior designer,
-Landscape architects, designers
-Marine applied arts such as:
-Marine graphics, illustrators,
-Marine photographers
-Marine publishers
-Nautical arts and photography
-Naval architecture, designers
-Naval engineering

COMMERCIAL USES:

Intent:

The intent of commercial use is to provide Sausalito, primarily the Marinship, adequate commercial service support to ensure a viable industrial, maritime and art community asset.

Examples:

The following is a partial list of potential uses which would be consistent with the intent:

-Bakeries,
-Delicatessen (packaged beer and wine as an accessory use),
-Foodstores (packaged beer and wine as an accessory use).

RESIDENTIAL USES (Land):

No land based residential use will be permitted in the Marinship except as follows:

- That currently permitted in the Houseboat (H) zone;
- Existing legal land based units outside the "H" zone will be allowed as legal non-conforming uses.

RESIDENTIAL USES (Water):

Intent:

It is the intention of the water-based residential use designations to address the special needs of the maritime industries and services, while attempting to enhance the public's access, use and enjoyment of the water areas.

Note: Liveaboard use of Maritime boats is described separately below.

Definitions:

HOUSEBOAT:

~~A non-navigable residential structure floating on the water, connected to an approved water and sanitary sewer system.~~ A boat, vessel or structure in the water intended generally to be supported by means of flotation and to be maintained without a permanent foundation, used principally for residential purposes and generally not used for active navigation, and provided with a city-approved sewer connection.

ARK:

~~A residential structure, once a legitimate floating vessel, currently supported on piers found over the water, with approved connections to public utilities and services, such as water and sewer.~~ Dwelling, Single Family Ark. A single family dwelling existing in the R-A Zoning District at the time of adoption of Title 10, or a single family dwelling the exterior design of which is an exact replica of the structure existing at the time of adoption of Title 10.

PLEASURE BOAT LIVEABOARD:

Navigable vessel, in recreational use, with liveaboard residential occupant(s) for harbor or marina security purposes.

SECTION 6: Amendments to General Plan.

A. The Introduction of the General Plan is hereby amended as follows:

* * *

RELATIONSHIP TO OTHER DOCUMENTS

A General Plan describes broad objectives and policies that will be implemented by other area plans, codes, ordinances, and policy documents. Under California state law, the General Plan is the policy foundation for all other planning documents. Many objectives and policies will be directly implemented by the General Plan. Others work in concert with existing regulations, plans, and regional and state directives.

FIGURE I-2: VISION TO IMPLEMENTATION

The General Plan must be integrated with local regulations and planning documents as well as their state and regional counterparts. The city is committed to periodically reviewing land use restrictions that may hamper the full implementation of this General Plan. The City Council should consider, as appropriate, examining voter initiatives periodically to determine if they impact the attainment of the objectives and policies of the General Plan. Any desired changes would have to be evaluated to determine if they require voter approval.

The General Plan has been developed within the framework provided by several regulations and documents that help shape or interact with the goals, objectives, policies, and programs of the General Plan, including, but not limited to, the following:

- **City Voter Initiatives**
  - ~~Ordinance 1022, the Fair Traffic Limits Initiative~~
  - Ordinance 1128
  - Arts, Industrial & Maritime Preservation and Improvement ("AIM") Initiative)
- **City Planning Documents**
  - Age-Friendly Sausalito Community Action Plan
  - Climate Action Plan
  - Low Emissions Action Plan
  - Sausalito Strategic Plan
- **Municipal Code**
  - Zoning Ordinance
- **General Plan-Related Documents**
  - General Plan Environmental Impact Report
- **State Regulations**
  - Assembly Bill 32 (California Global Warming Solutions Act)

- McAteer-Petris Act
- SB-330 (Housing Crisis Act of 2019)

- **Regional Planning Documents**
  - BAAQMD Clean Air Plan
  - Richardson Bay Special Area Plan
- **County Planning Documents**
  - Marin Climate Action Plan
  - Marin County General Plan
  - Marin County Multi-Jurisdictional Local Hazard Mitigation Plan
  - Plan Bay Area 2040
    - Regional Transportation Plan and Sustainable Communities Strategy

* * *

SAUSALITO'S HISTORY

Sausalito was built on Miwok land in the 1830s. It transitioned from a fishing village to a town in 1870, when the North Pacific Coast Railroad extended southward to the ferry terminal—which is still in use today for trips to San Francisco.

Pre-war Sausalito was small in scale but diverse, crowded with the San Francisco elite, smugglers from throughout the Pacific, fishermen, and craftswomen. The United States' entry into World War II changed the city by introducing industrial-scale shipbuilding. The Bechtel Corporation transformed 210 acres of railyards and wetlands into the Marinship, which employed around 20,000 men and women to construct nearly 100 ships over the course of the war—averaging more than two ships built every month.

Thousands of the Black workers at the Marinship were treated unequally by the segregated labor laws of the time. It took a lawsuit argued by future US Supreme Court Justice Thurgood Marshall to quash the segregation laws and make the Marinship one of the country's first integrated shipyards.

After the war, the Marinship was gradually converted to civilian industrial and marine-oriented use, except for the large Army Corps of Engineers facility that would eventually become home to the Bay Model. The Marinship's singular attributes add to the diversity of lifestyles within Sausalito. The city has retained its small-town character through its 1970 General Plan and its victory in the Marincello lawsuit the same year. Later voter initiatives—namely the Fair Traffic Limits Initiative (Ordinance No. 1022, 1985) ~~and~~ Ordinance No. 1128 (1997), and the AIM Initiative —worked with the ~~1989 Marinship Specific Plan and~~ 1995 citizen-authored General Plan to maintain Sausalito's desired character and its unique balance of industrial, tourist-facing, and local-serving economies.

This General Plan builds off these earlier planning successes and strives to manage new and familiar challenges. Sausalito is working collaboratively on finding solutions, adaptations, and mitigation strategies for climate change and sea level rise, as seen by the formation of new organizations like Sausalito Beautiful and city commissions such as the Sustainability Commission. The city also seeks ways to maintain its character, economy, and housing options as the San Francisco Metropolitan Area has transformed into a global capital of finance and technology. Sausalito is a city that is proud of how it has been shaped by its history, and this General Plan looks to respond to future challenges with the spirit of ingenuity and creativity as is the tradition of Sausalito.

* * *

TABLE 1-1: GENERAL PLAN LAND USE DESIGNATIONS

RESIDENTIAL

Land Use	Description
Very Low Density Residential Up to 2.2 du/ac Avg. 4.12 persons/ac	Located only in the Wolfback Ridge area. Intended to be a transition area between the city and the Golden Gate National Recreation Area open space. Also intended to preserve hillsides and ridgelines from higher density development. Development under this category typically consists of construction of new single-family homes on large lots or minor expansion of existing single-family residences. Whenever possible, construction of new single-family

Land Use	Description
	homes should be clustered to maintain maximum open space.
Low Density Residential Up to 5.4 du/ac Avg. 7.98 persons/ac	Located on the higher slopes east of State Highway 101. Intended to protect and maintain the vegetated, scenic character of the City. Development under this category typically consists of single-family homes on parcels a minimum of 8,000 square feet.
Medium Low Density Residential Up to 7.3 du/ac Avg. 16.38 persons/ac	Located on the upper slopes of town above the primary commercial and high-density residential areas of the city. Development under this category is typical of Sausalito's character; single-family homes on parcels a minimum of 6,000 square feet.
Medium Density Residential Up to 8.7 du/ac Avg. 19.32 persons/ac	Developed during the 1960s and 1970s, this designation was intended to apply to large-lot planned development in the north end of town. The designation provides for two-family development with larger minimum lot sizes than other two-family areas.
Medium High Density Residential Up to 17.4 du/ac Avg. 27.42 persons/ac	This density begins to reflect the more urban parts of the city. Located throughout the city, this area is intended to provide a transition between the lower density uses on the steep slopes and the higher density uses on the flat lands.
Planned Development – High Density Residential Up to 22.3 du/ac Avg. 48.55 persons/ac	This density applies to only two planned residential development areas known as Whiskey Springs and the Anchorage. This designation is intended to preserve the density now enjoyed by the properties.
High Density Residential Up to 29.0 du/ac Avg. 54.6 persons/ac	Surrounding the city's commercial areas, this density reflects the urban character to a greater extent than the Medium High Density Residential category. The multi-family category is envisioned to maintain a mix of single-family residences, condominiums and apartment buildings.

Land Use	Description
	The intent of this category is to accommodate housing locations that provide opportunities for residents to live within easy walking distance of commuter and shopping facilities.
Arks Up to 0.35 du/ac	This area is located on the waterfront of the New Town neighborhood. This specific location is a historical remnant of Sausalito's old waterfront. Accordingly, the seven existing arks have been designated Noteworthy Structures by the city. Because there are no vacant parcels, future development will likely only consist of repair or replacement of the existing arks.
Houseboats Up to 4.35 du/ac	Like the residential arks designation, this area is part of Sausalito's history. This area is located in the Marinship and other waterfront parts of the city. Subject to BCDC approval, new houseboats may be constructed in this area. Additional houseboat locations have been identified in the Shoreline area of the city's northern Sphere of Influence.

COMMERCIAL

Land Use	Description
Mixed Residential and Commercial FAR up to 1.00 Up to 29.0 du/ac	Located in the Caledonia Street area of the New Town neighborhood. Intended to be a local/resident serving area with a mix of residential and commercial uses. The commercial uses are intended to be of a type that will serve residents and local visitors. Commercial establishments on the ground floor should provide goods and services needed by residents and local visitors. Residential use is the preferred use on the upper levels of all structures. The residential component of the area is

Land Use	Description
	intended to serve as a location for high-density residential development with some affordable units due to its location near public transit and access to major roadways and public services. All existing residential structures are to remain in residential use pursuant to the direction of the 1985 Traffic Initiative. Historic and architecturally significant structures in this area are to be protected.
Central Commercial FAR up to 1.30 Up to 29.0 du/ac	Located along Bridgeway and a small portion of Princess Street. This designation describes the intense retail shopping area serving residents and visitors. First-floor uses should be retail commercial with general office and residential uses on the upper floors of buildings in this area. The vast majority of the parcels in this area are located within the city's Historical District and all development must respect its historic character.
Neighborhood Commercial FAR up to 0.50 Up to 29.0 du/ac FAR up to 0.35	There are three neighborhood commercial areas in the city. One is located along Second Street in the Old Town neighborhood. The second is located along Bridgeway between Easterby and Olive Streets in the Spring Street Valley neighborhood. The third area is the commercial strip area north of Coloma Street and west of Bridgeway in the Nevada Street Valley neighborhood. The uses that are encouraged in these areas are resident serving commercial uses. Residential uses will also be permitted on upper levels of structures, with the exception of the Coloma/Nevada neighborhood at least until the Housing Element is next updated (see program LU-2.8.2).
Commercial Waterfront	

Land Use	Description
FAR up to 0.30	Located along the waterfront of the New Town neighborhood east of Bridgeway, between Dolphin Street to the south and Napa Street to the north. The commercial uses located on the water in this area are to be marine related or water-dependent. The uses in this area should be considered in the context of the nearby Mixed Residential and Commercial areas as well as expanding the lands of Dunphy Park.
Shopping Center FAR up to 0.20	Located in the Marinship area of the city. This designation is specific to the single site located west of the U.S. Post Office. The commercial use of the site is to serve the local community as well as areas in the city's sphere of influence.

MISCELLANEOUS

Land Use	Description
Industrial FAR up to 3.0	Located in the Marinship area of the city east of Bridgeway and between Napa Street to the south and the City limits to the north. An economically sustainable working waterfront neighborhood that preserves and strengthens the industrial, maritime and creative arts character of the Marinship while enabling compatible economic activity, including arts, food and dining, retail, recreation, education, and service uses as set forth in the AIM Initiative. FAR up to 3.0. ~~Intended to maintain one of the last working waterfronts in Marin County, this area is intended to be an economically sustainable working waterfront maritime and industrial neighborhood with maritime, industrial, and arts uses and only under certain limited circumstances, supportive uses.~~

Land Use	Description
	~~There are several large underdeveloped parcels in this area. Any future development of these parcels should be respectful of potential impacts on surrounding parcels and the city as a whole.~~
Waterfront FAR up to ~~0.30~~ 3.0	Located in the Marinship and Central Waterfront areas of the City. In the Marinship waterfront, development shall prioritize marine and maritime uses while permitting compatible arts, industrial, recreation; education, food and dining, retail, and service uses as set forth in the AIM Initiative. Marine service harbors, public access piers, houseboats, liveaboards, and harbor and marina facilities are permitted. No new or additional use may displace the uses at ICB Building or shipways at the historic Arques Shipyard. FAR up to 3.0. ~~This designation serves two distinct areas. The primary waterfront area is located in the Marinship. In the waterfront area of the Marinship, development will be limited to water-dependent uses and those that support marine industry. Marine service harbors, public access piers, and minor modifications to existing recreational marinas will be the only authorized use of the water, in addition to sea level rise, climate, and marine research uses.~~
Public Institutional FAR will be based on use and the FAR of surrounding land use designations	Located throughout the city, this designation is applied to publicly-owned properties. Minor development may take place at these sites over time. The Martin Luther King, Jr. Campus may have commercial uses as a temporary condition (without any increase in land area or floor area devoted to commercial use) until the city is able to finance its permanent use as a

Land Use	Description
	public recreation facility, pursuant to Ordinance No. 1128.
Public Parks	Located throughout the city, this designation is specific to the 18 publicly-owned recreational areas such as parks and piers. Development is not to take place in these areas except for minor site improvements as deemed appropriate.
Open Space	This designation includes maintained natural recreation spaces as well as the federally owned lands of the Golden Gate National Recreation Area (GGNRA). Development is not to take place in these area except for minor site improvements as deemed appropriate.
Open Area FAR up to 0.10	This designation applies to the open water areas located on the eastern boundary of the City. The parcels found in this category are exclusively underwater parcels, most of which are owned by the City. Parcels that are not owned by the City have been identified as potential public open space acquisition sites. No development is anticipated for these open water areas.

SPHERE OF INFLUENCE

Land Use	Description
General Commercial FAR 0.35	A mix of office and retail uses are permitted in these areas at intensities consistent with the Marin Countywide Plan.
Conservation Overlay FAR 0.00	This designation is located in the Sphere of Influence to the north of the City limits. This designation is intended to protect unique and valuable natural resources such as the open shoreline. Development is to be avoided in this area, and every effort should be made to cluster the development to

Land Use	Description
	preserve the integrity of the surrounding natural resources.

* * *

B. The Land Use Element of the General Plan is hereby amended as follows:

BACKGROUND AND CONTEXT

Sausalito in 2040 is a thriving, safe, and diverse community that sustainably cultivates and celebrates its natural beauty, history, and its arts and waterfront culture. Our vision for the best quality of life for current and future members of the Sausalito community, including residents and workers, embraces and fosters racial, cultural, and economic diversity. As an Age-Friendly City and Livable Community, Sausalito aims to achieve a balance of the old and the new, maintaining traditions and respecting our elders while adapting to new needs and lifestyles. As a community, Sausalito is prepared to seize upon future opportunities.

There have been few major land use developments since the previous General Plan was adopted in 1995. Twentieth-century land use patterns have been maintained, guided by the General Plan and, for the waterfront, the AIM Initiative. ~~the 1988 Marinship Specific Plan.~~ The City of Sausalito has nearly reached its maximum buildout potential based on the objectives of the General Plan. For the most part, future building will involve redevelopment or reuse of existing developed areas. In most residential neighborhoods, easily developed lots on the whole have been developed, and most remaining vacant lots have significant physical constraints. General Plan policies anticipate limited additional residential, commercial, and industrial development in the city. This is in keeping with the June 4, 1985, voter-approved Sausalito Fair Traffic Limits Initiative (Ordinance No. 1022), which established limits on the intensity of additional commercial and industrial development, as amended by the AIM Initiative for the Industrial and Waterfront zones in the Marinship.

* * *

Objective LU-2 Promote and Enhance Commercial Diversity

Policy LU-2.1 Downtown Land Use. Retain the boundaries of the visitor-serving commercial area in the downtown to provide a clear distinction between the visitor-serving commercial activities and neighboring residential uses.

PROGRAMS

LU-2.1.1 Land Use Designations. Maintain a zoning map which reflects the General Plan land use designations for the area.

LU-2.1.2 Residential Use (Downtown). Maintain Zoning Ordinance standards that allow residential dwelling units in the downtown.

Policy LU-2.2 Downtown Economic Diversity. Work with affected downtown businesses to enhance the economic diversity of the area.

PROGRAM

LU-2.2.1 Funding Downtown Enhancement. Investigate potential funding programs that will assist in the enhancement of the downtown.

Policy LU-2.3 Tourist/Residential Serving Buffer. Provide a buffer so that the downtown visitor commercial area and the Caledonia Street residential serving commercial areas remain distinct.

PROGRAM

LU-2.3.1 Buffer Zone. Retain the existing residential properties located between the downtown and the Caledonia Street areas as a buffer between the two commercial locations.

Policy LU-2.4 Visitor-Serving Uses in Downtown. Emphasize visitor-serving commercial uses in the downtown area while also encouraging uses that also serve the needs of residents and local and regional visitors.

PROGRAMS

LU-2.4.1 Zoning Ordinance (Mix of Downtown Businesses). Consider changes to the permitted uses in the Zoning

Ordinance to encourage a desired mix of local-serving businesses.

LU-2.4.2 Parking Standards (Downtown). Continue annual updates of the Shared Parking Model, including revisions as necessary.

LU-2.4.3 Hotels. Revise and update the Zoning Ordinance so that all new hotel and bed & breakfast uses should be in the downtown (Central Commercial Land Use Designation) small in size and maintain the same scale and character as nearby existing structures.

Policy LU-2.5 Commercial/Residential Compatibility. Encourage rebuilding and reuse of commercial space in a manner which minimizes conflict with adjacent residential uses.

PROGRAMS

LU-2.5.1 Zoning Ordinance (Uses and Standards). Review the existing Zoning Ordinance use restrictions and development standards to ensure conflicts are minimized.

LU-2.5.2 Market Study. Conduct, as necessary, marketing and feasibility studies of commercial areas in order to inform potential changes to use or development standards.

Policy LU-2.6 Public Art. Encourage local artists to exhibit their works in Sausalito through the development of a Public Art Policy.

PROGRAMS

LU-2.6.1 Artists' Showcase. Work with interested parties, such as the Chamber of Commerce, local artist groups (including ICB and other Marinship artists) and other interested parties to investigate the possible locations for an artists' showcase.

LU-2.6.2 Arts Commission. Study viability of development of a public art policy.

Policy LU-2.7 Visitor Information. Provide for the dissemination of visitor-serving information to enhance the economic sustainability of the downtown.

PROGRAMS

LU-2.7.1 Visitor Information Center. Work with the Chamber of Commerce and other interests to investigate possible locations and funding mechanisms for operating a visitor information center.

LU-2.7.2 Increased Outreach. Work with the Chamber of Commerce and other interested parties to increase the city's and businesses' digital presence using social media and marketing to reach younger visitors and tourists.

Policy LU-2.8 Upper Floor Residential Uses. Encourage residential use on the upper levels of commercial structures.

PROGRAMS

LU-2.8.1 Zoning Ordinance (Upper Floor Residences). Maintain the Zoning Ordinance regulations to preclude conversion of upper-floor residential to commercial uses due to the importance of housing retention in addressing the housing crisis.

LU-2.8.2 CN-2 Residential. Consider amending the Zoning Ordinance to allow upper-floor residential in CN-2 or convert the CN-2 designation to CN-1 in order to meet future housing needs.

Policy LU-2.9 Downtown Historic Character. Protect the historic character of the downtown area.

See Figure 1-4: Downtown and Caledonia Area

PROGRAMS

LU-2.9.1 Zoning Ordinance (Historic Preservation Incentives). Consider amending the Zoning Ordinance to provide incentives to property owners for preservation of

historic structures. Incentives may include intensity credits for FAR, parking, lot coverage, or transfer of development rights to the historic structures.

LU-2.9.2 Design Guidelines. Consider establishing streetscape and/or neighborhood guidelines for the purpose of protecting the historic character of the area.

Policy LU-2.10 Caledonia Street's Role. Enhance Caledonia Street's role as a mixed residential and commercial area by encouraging commercial uses that serve locals, residents, and local and regional visitors and the preservation of housing as described in Table 1-1, General Plan Land Use Categories, and shown on the General Plan Land Use Map (Figure 1-1).

PROGRAMS

LU-2.10.1 Zoning Ordinance (Commercial Uses). Periodically review and update as necessary the list of commercial uses that are local/resident serving and appropriate for the Caledonia Street area.

LU-2.10.2 Zoning Ordinance (Street Activation). Consider allowing co-working spaces to encourage trip generation on Caledonia Street.

LU-2.10.3 Street Level Uses. Amend the Zoning Ordinance to require that commercial parcels locate local/resident serving retail and personal service at the street level.

LU-2.10.4 Traffic Initiative. Continue to implement the requirement of the 1985 Fair Traffic Limits Initiative pertaining to the prohibition of conversion of existing residential uses to commercial uses in the CR zone.

LU-2.10.5 Caledonia Commercial District. Consider forming a "Caledonia Commercial District" which would contribute to the beautification of the district's shops and streetscape, direct economic studies, and oversee retail mix to promote economic prosperity. This scope may include a Caledonia Area Historic District or a Music/Arts Discontiguous Historic District, if feasible.

LU-2.10.6 Commercial Design Standards. Establish design standards for new and remodeled stores.

LU-2.10.7 Caledonia Street Promotion. Improve signage around Sausalito directing pedestrian traffic to Caledonia Street and promoting its use among residents.

Policy LU-2.11 Caledonia Street Parking. Adapt new parking approaches and other infrastructure modifications to support the residential and commercial activities in the Caledonia Street area without excessive impairment to the quality of life for New Town residents.

PROGRAMS

LU-2.11.1 Locust Street Parking Lot. Integrate the Locust Street parking lot (Lot #5) into Caledonia Street parking needs.

LU-2.11.2 Parking Standards. Consider the establishment of an appropriate common parking standard for all principally permitted uses in the Caledonia area.

LU-2.11.3 Zoning Ordinance (Shared Parking). Amend the Zoning Ordinance to streamline shared parking for residential and commercial uses on the same lot.

LU-2.11.4 Evolving Parking Patterns. Continue to revisit parking standards on Caledonia Street to align with evolving parking patterns for commercial and residential areas and provide better resident and local-oriented bike parking.

Policy LU-2.12 Caledonia Street Historic Character. Protect the historical character and the architecturally significant structures of the Caledonia Street area.

PROGRAMS

LU-2.12.1 Zoning Ordinance (Historic Preservation Incentives). Consider amending the Zoning Ordinance to provide incentives to property owners for preservation of historic structures. Incentives may include intensity credits for FAR and lot coverage or a transfer of development rights program.

LU-2.12.2 Design Guidelines. Consider establishing streetscape and/or neighborhood guidelines for the purpose of protecting the historic character of the area.

Policy LU-2.13 Neighborhood Commercial Uses. Only promote uses that will increase the diversity and economic sustainability and viability of local neighborhood commercial areas that serve immediate neighborhoods as described in Table 1-1, General Plan Land Use Categories, and shown on the General Plan Land Use Map, Figure 1-1.

PROGRAMS

LU-2.13.1 Zoning Ordinance (Neighborhood Commercial Uses). Periodically review the current lists of principally and conditionally permitted uses and the parking requirements for those uses in the Zoning Ordinance to reflect the desire of maintaining and encouraging local neighborhood commercial uses.

LU-2.13.2 Community Amenities. Consider creating and maintaining an inventory of desired community amenities and defining incentives to establish amenities in Neighborhood Commercial areas.

Policy LU-2.14 Neighborhood Commercial Areas. Limit neighborhood commercial areas in Sausalito to those that currently exist.

PROGRAM

LU-2.14.1 Neighborhood Commercial Designation. Enforce the land use types as shown on the General Plan Land Use Map (Figure 1-1).

Policy LU-2.15 Existing Marinship Office Uses. Recognize all office buildings and office uses built or established prior to April 5,1988 ~~(adoption date of Marinship Specific Plan) and the office uses contained within~~ as permitted legal non-conforming ~~office~~ uses in the Marinship, consistent with the AIM Initiative.

~~**PROGRAM**~~

~~**LU-2.15.1 Identification of Existing Office Uses**. To implement the policy of the 1988 City Council intent to allow that the square footage of existing office uses could be transferred within a given parcel but not exceed the amount that existed at MSP adoption, maintain an inventory of location and square footage information of office uses in the Marinship as of April 5, 1988. This inventory will also include field verification of existing uses and identification of any uses that have been established without appropriate approvals.~~

Policy LU-2.16 Marinship Office Uses Impacts. Continue to ensure that office uses do not adversely affect the desired continuance of maritime, industrial, and/or waterfront-related uses in the Marinship area.

PROGRAMS

LU-2.16.1 Adequate Parking. Continue to require adequate parking for existing office uses through the occupancy permit process or reduce the need for parking by enforceable transportation demand management plans that reduce single occupancy vehicle trips.

~~**LU-2.16.2 New Marinship Office Uses**. Limit office uses in the Industrial and Waterfront Land Use Designations to those offices that existed prior to or on April 5, 1988 and the new ancillary/accessory office space referenced in program LU-2.16.3.~~

LU-2.16.3 Ancillary/Accessory Office Space. ~~Revise the Zoning Ordinance section 10.28.050(D)(2) to specify the maximum percentage of building area that can be considered ancillary/accessory office space (i.e. the small amount of office activity needed to administer the operations of an approved use).~~ Allow ancillary/accessory offices needed to administer the operations of an approved use.

Policy LU-2.17 Supermarket Use. Maintain a full-service regional serving supermarket on Harbor Drive in the Marinship.

PROGRAMS

LU-2.17.1 Shopping Centers. Continue to apply Zoning Ordinance standards as they pertain to the Shopping Center Land Use Designation.

LU-2.17.2 Harbor Drive Intersection Improvements. Pursue the Harbor Drive Intersection improvements identified in the Circulation and Parking Element, refer to Program CP-1.1.2, and the description in the Background section of the Circulation and Parking Element.

Policy LU-2.18 Non-Conforming Commercial Uses and Structures. Maintain replication rights for non-conforming structures and uses in non-residential areas.

PROGRAMS

LU-2.18.1 Zoning Ordinance (Non-Conformities). Continue to implement the Zoning Ordinance requirements for non-conforming structures and uses in non-residential areas.

* * *

Objective LU-3 Promote and Enhance Industrial Economic Viability

Policy LU-3.1 Marinship Industrial. Encourage industrial use of the Marinship as described in General Plan Land Use Categories, Table 1-1, and shown on the General Plan Land Use Map, Figure 1-1.

PROGRAMS

~~**LU-3.1.1 Zoning Ordinance (Marinship Uses)**. Update and revise the list of permitted uses in the Zoning Ordinance to be consistent with the Land Use designations and the Marinship Vision, provided in the Waterfront and Marinship Element. Define conditions under which conditional uses will be permitted.~~

~~**LU-3.1.2 Commercial Uses in the Industrial Zone**. Consistent with the Fair Traffic Initiative, revise the zoning requirements for~~

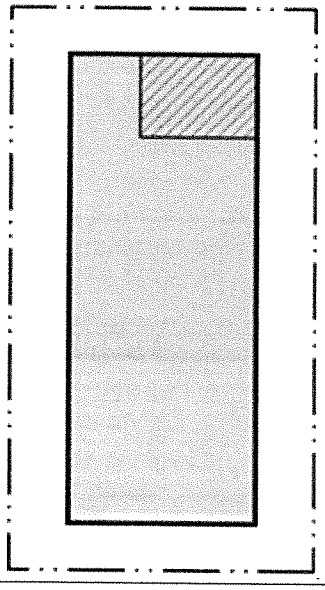
~~the Industrial Marinship District to limit inclusionary commercial uses to 15 percent Floor Area Ratio on the parcel (instead of 40 percent of the FAR which results in 16 percent non-industrial FAR). Inclusionary commercial uses are limited to commercial office, commercial services, restaurants and food services that provide needed support to the primary industrial uses, and only when developed with approved non-commercial uses.~~

~~**LU-3.1.3 Accessory Uses**. Revise the existing Zoning Ordinance limitation of accessory (the small amount of office or retail activity needed to support the operations of an approved use) commercial and office uses within the Industrial Marinship District from 0.15 of the total permitted floor area ratio on the parcel to 15 percent floor area maximum of the tenant space, not to exceed 0.15 of the total permitted floor area ratio for accessory uses of the parcel.~~

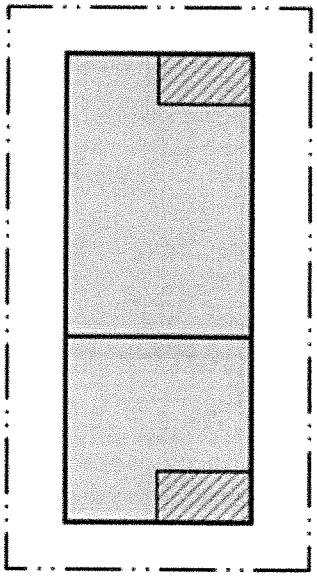
Industrial Zoned Properties in the Marinship: Accessory Office Use
Parcel Size: 10,000 square feet
Industrial Zone
Maximum Permitted FAR: 0.40

Scenario A: Non-Conforming Building Size (Over-Developed) Single-Tenant Scenario				**Scenario AA: Non-Conforming Building Size (Over-Developed) Multi-Tenant Scenario**			
		15% floor area maximum of the tenant space	*15% of the total permitted floor area ratio*			*15% floor area maximum of the tenant space*	*15% of the total permitted floor area ratio*
Existing Building Size and Tenant Space (sf)	5,000	750	600	**Existing Building Size (sf)**	5,000		
				Tenant Space A (sf)	3,000	450	600
				Tenant Space B (sf)	2,000	300	
Maximum Permitted Accessory Office Use (sf) (lesser of 15% of permitted FAR or 15% of Tenant Space)		600 sf max		600 sf max, with no more than 15% of the floor area of either tenant space dedicated to accessory office, not to exceed 600 sf total for the site.			

Scenario A



Scenario AA



Industrial Zoned Properties in the Marinship: Accessory Office Use

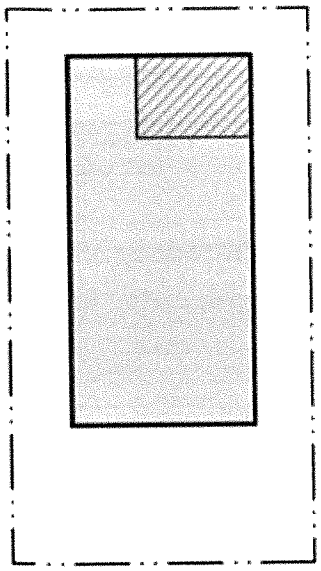
Parcel Size: 10,000 square feet

Industrial Zone

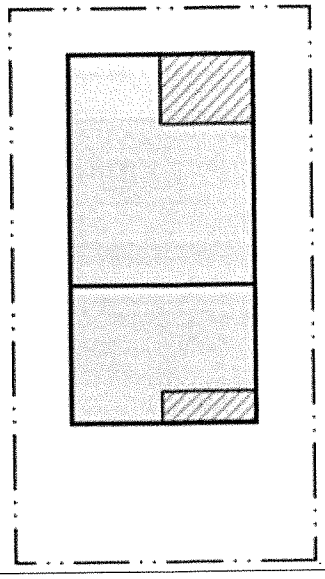
Maximum Permitted FAR: 0.40

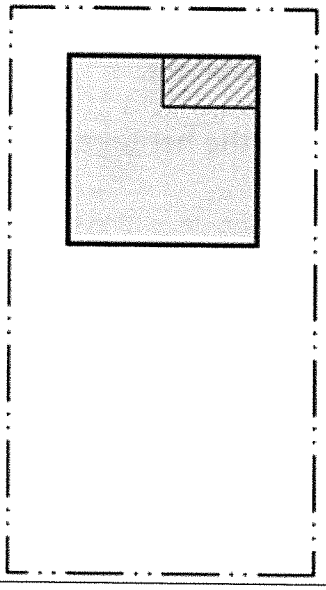
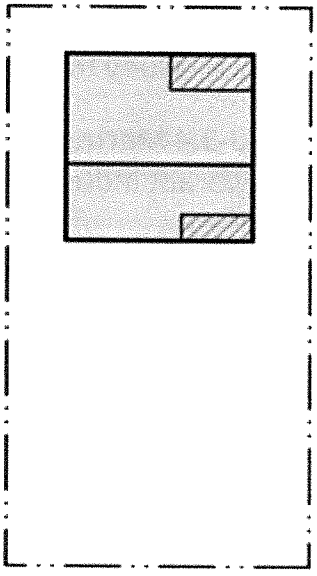
Scenario B: Conforming Building Size (At Maximum) Single-Tenant Scenario				**Scenario BB: Conforming Building Size (At Maximum) Multi-Tenant Scenario**			
		15% floor area maximum of the tenant space	*15% of the total permitted floor area ratio*			*15% floor area maximum of the tenant space*	*15% of the total permitted floor area ratio*
Existing Building Size and Tenant Space (sf)	4,000	600	600	**Existing Building Size (sf)**	4,000		
				Tenant Space A (sf)	2,500	375	600
				Tenant Space B (sf)	1,500	225	
Maximum Permitted Accessory Office Use (sf) (lesser of 15% of permitted FAR or 15% of Tenant Space)		600 sf max		600 sf max, with 375 max sf for Tenant A and 225 max sf for Tenant B.			

Scenario B



Scenario BB



Industrial Zoned Properties in the Marinship: Accessory Office Use Parcel Size: 10,000 square feet Industrial Zone Maximum Permitted FAR: 0.40							
Scenario C: Conforming Building Size (Underdeveloped) Single-Tenant Scenario				**Scenario CC: Conforming Building Size (Underdeveloped) Multi-Tenant Scenario**			
		15% floor area maximum of the tenant space	*15% of the total permitted floor area ratio*			*15% floor area maximum of the tenant space*	*15% of the total permitted floor area ratio*
Existing Building Size and Tenant Space (sf)	2,000	300	600	**Existing Building Size (sf)**	2,000		
				Tenant Space A (sf)	1,250	188	600
				Tenant Space B (sf)	750	113	
Maximum Permitted Accessory Office Use (sf) (lesser of 15% of permitted FAR or 15% of Tenant Space)		300 sf max		300, with 188 max sf for Tenant A and 113 max sf for Tenant B.			
Scenario C 				**Scenario CC** 			

Policy LU-3.2 Marine Industrial Uses. Promote and encourage new marine industrial uses.

~~**PROGRAM**~~

~~**LU-3.2.1 Zoning Ordinance (Marine Industrial Uses).** Update and revise the list of permitted uses in the Zoning Ordinance and define conditions under which conditional uses will be permitted.~~

Policy LU-3.3 New General Industrial Uses. Promote new general industrial uses that are ~~small scale, low traffic generating, non-polluting,~~ environmentally sensitive and contribute to the economic sustainability of the Marinship, consistent with the development standards and permitted uses established by the AIM Initiative.

PROGRAMS

~~**LU-3.3.1 Zoning Ordinance (General Industrial Uses).** Update and revise the list of permitted uses in the Zoning Ordinance and define the conditions that permit conditional uses.~~

LU-3.3.2 Industrial Study. Conduct study on strategies to retain existing industrial businesses and what new industrial or industrial-related uses would suit the Marinship. Implement the study through an action plan, as appropriate.

Policy LU-3.4 Marinship Preservation. Preserve the heritage, history, and existing vibrant industrial community.

PROGRAMS

~~**LU-3.4.1 Zoning Ordinance (Marinship Preservation).** Update and revise the list of permitted uses in the Zoning Ordinance and define conditions under which conditional uses will be permitted.~~

~~**LU-3.4.2 Restaurant Restriction.** Limit the amount of new restaurant and food services uses in the Waterfront and Industrial Land Use designations to those that provide unique local neighborhood-serving services and amenities, and~~

~~consider encouraging mobile food vendors rather than brick-and-mortar uses.~~

LU-3.4.3 Design Guidelines. Consider the development of Marinship design guidelines that maintain an urban rather than suburban character for building style, landscaping and supporting elements.

LU-3.4.4 Sense of Place. Development plans should recognize the aesthetic and social value of small-scale, individual activities as a vital component in the overall composition of the Marinship.

* * *

Objective LU-4 Preserve Sausalito's Waterfront

Policy LU-4.1 Marinship Waterfront Uses. ~~Promote marine industrial-oriented uses that require waterfront locations and strongly encourage the success of the existing general industrial uses found in the Marinship waterfront area.~~ Preserve and strengthen the industrial, maritime and creative arts character of the Marinship while enabling compatible economic activity as set forth in the AIM Initiative.

~~**PROGRAMS**~~

~~**LU-4.1.1 Zoning Ordinance (Marinship)**. Utilize a public process to revise the Zoning Ordinance to incorporate land use policies and development regulations contained in the 1989 Marinship Specific Plan. The revised Zoning Ordinance should implement the Marinship Vision, as provided in the Waterfront and Marinship Element. Specifically, the revised ordinance should achieve the following (including but not limited to):~~

~~a. Zoning shall be in conformance with the land use designations and policies contained in this General Plan and facilitate the interrelated nature of the Marinship's maritime, light industrial, and artist communities.~~

~~b. Any FAR modifications must accommodate the stipulations of Ordinance 1022, the Fair Traffic Limits Initiative.~~

c. On any specific parcel, office use should be allowed only as an accessory use to an allowed use.

d. On any specific parcel, commercial service use should be significantly limited in comparison to industrial use.

e. On any specific parcel applied arts use should be regulated though a Conditional Use permitting process and may not exceed 50 percent of arts usage.

f. Transition detailed View Corridor provisions, including any updates deemed necessary, into the Zoning Ordinance.

g. The Marinship Specific Plan contains detailed descriptions and tailored land use requirements on a parcel by parcel basis. This guidance should be carefully evaluated and updated into a reader-friendly format that presents the information clearly. To avoid confusion in the future this should be done without reference to business or property owner names. Consideration should be given to consolidating land use requirements.

h. Zoning should be considered with the necessary infrastructure improvements and impacts of sea level rise, subsidence, and liquefaction in mind.

LU-4.1.2 Retire Marinship Specific Plan. Upon adoption of the revised Zoning Ordinance implementing the Marinship Vision, discontinue use of the Marinship Specific Plan as a regulatory document.

Policy LU-4.2 New Recreational Marinas. Prohibit the creation of new shoreline recreational marinas along the Marinship waterfront.

PROGRAM

LU-4.2.1 Zoning Ordinance (Recreational Marinas). Amend the Zoning Ordinance to prohibit the construction of any new recreational marinas along the Marinship waterfront.

Policy LU-4.3 Existing Recreational Marinas and New Marine Service Boatyards. Provide opportunities to build new marine service boatyards, encourage upgrading and allow expansion of existing marine service

boatyards and maritime construction and repair facilities, and allow for minor expansion of existing recreational marinas in the Marinship.

PROGRAM

LU-4.3.1 Zoning Ordinance (Boatyards). Continue to apply the provisions of the Zoning Ordinance as they pertain to boatyards in the Waterfront land use designation.

Policy LU-4.4 Central Waterfront Uses. Promote commercial uses that maximize open water and view corridors in the Commercial Waterfront area as described in General Plan Land Use Categories, Table 1-1, and shown on the General Plan Land Use Map, Figure 1-1.

PROGRAMS

LU-4.4.1 Master Plan for Underdeveloped Properties. Encourage preparation of a master plan for the currently underdeveloped properties in the central waterfront area.

LU-4.4.2 Zoning Ordinance (Recreational Marinas). Amend the Zoning Ordinance to allow new recreational marinas only if development is part of a master plan for properties in the central waterfront area.

Policy LU-4.5 Central Waterfront Open Water Areas. Preserve the total acreage of existing open water areas in the central waterfront.

PROGRAMS

LU-4.5.1 Dunphy Park Open-Water Properties. Maintain city ownership of open-water properties for Earl F. Dunphy Park.

LU-4.5.2 Retire Other Open Water Properties. Explore processes, such as conservation easements, to retire other open water properties in order to maintain views and provide ecological value.

Policy LU-4.6 Downtown Waterfront. Maintain and enhance the existing character of the downtown waterfront with a mixture of open vistas and commercial uses.

PROGRAMS

LU-4.6.1 Tourism Plan. Support the development of a Tourism Plan (objective E-7) that focuses on the downtown waterfront area and implements the Plan's land use recommendations.

LU-4.6.2 Zoning Ordinance (Over Water Uses). Review the Zoning Ordinance to allow the continued use of existing structures located over water even in the event of catastrophic damage.

LU-4.6.3 Existing Ferry Terminal. Maintain existing ferry terminal that serves visitors and commuters, benefitting the quality of life of Sausalito residents, workers, and community members.

LU-4.6.4 Improved Access. Improve public access by implementing policies W-1.4 and CP-5.8.

LU-4.6.5 Terminal Signage. Identify financing to improve signage directing pedestrians and bicyclists to the ferry terminal, and automobiles to municipal parking lots.

LU-4.6.6 Municipal Parking Lots. Consider innovative uses of parking lots, including exploring opportunities for open space or other public space while staying within requirements of Ordinance 1128 regarding municipal parking lots 1, 2, 3, and 4.

LU-4.6.7 Design Guidelines. Implement design guidelines and objective standards which support the existing character of downtown.

LU-4.6.8 Waterfront Gathering Spaces. In line with programs LU-4.6.3 (Existing Ferry Terminal) and LU-4.6.6 (Municipal Parking Lots), consider developing waterfront gathering spaces that can increase resident and community-serving focus on the downtown (supporting local businesses) as well as emphasize pedestrian and bicycle uses in the downtown waterfront.

Policy LU-4.7 Sea Level Rise. Consider land use and development in the context of a changing shoreline due to sea level rise, related subsidence and erosion.

See Figure 1-5: Sea Level Rise and Land Use Map

PROGRAMS

LU-4.7.1 Development. Continue to update uses and development standards throughout the city, and particularly in the Waterfront land use designation, to align with the city's sea level rise adaptation plan (program S-3.2.1) and the best available climate and sea level rise science.

LU-4.7.2 Environmental Cleanup. Conduct as required federal, state, and locally-mandated environmental cleanup operations for land projected to be inundated by Richardson's Bay to mitigate runoff issues.

LU-4.7.3 Habitat Restoration. Consider the sustainability of the Richardson's Bay biome when permitting projects on Sausalito's shoreline.

* * *

C. The Waterfront Element of the General Plan is hereby amended as follows:

Central Waterfront

The central waterfront extends from Napa Street in the north to Spinnaker Point at the south.

Development potential exists in the central waterfront where several large privately-held parcels are under-developed. Additional commercial development must be sensitive to the impacts of sea level rise and consider potential impacts to the aesthetic and fragile environmental quality of this area. It is a goal of the city to expand and maintain Dunphy Park as well as preserve the open water and views of Richardson's Bay.

Marinship Waterfront

The Marinship waterfront should promote the waterfront area and diversified water-dependent uses. More details on land uses allowed in the Marinship waterfront are included in the General Plan Land Use Designations table (Table 1-1) in the Land Use and Growth Management Element, under the Industrial and Waterfront land use designations.

- ***"The Marinship contains the culture of this town."***

— Marinship Workshop Participant: September 7, 2019

New development should not crowd out traditional uses in the neighborhood. Liveaboards on Marinship waterfront berths are welcomed as part of Sausalito's housing strategy.

More details of the General Plan's policies regarding the Marinship are included in the "Marinship Vision" section.

MARINSHIP VISION

The Marinship is recognized by this General Plan as a key area of Sausalito. With a rich history and a diverse present, but at heightened risk due to sea level rise, the Marinship is a unique area not just for Sausalito but for the San Francisco Bay Area. In 2019, the City Council recommended a vision to guide the future of the Marinship:

> The Marinship is an economically sustainable working waterfront maritime and industrial neighborhood that is planned and developed with innovative solutions to sea level rise combined with regional and global sea level rise reduction and management programs.
>
> The Marinship welcomes residents of houseboats and liveaboards while providing safe and convenient public access to transit, the shore and parks with a low-impact and functional vehicular and pedestrian circulation network. The neighborhood is supported by updated infrastructure, has unique local neighborhood-serving services and amenities, and is home to a thriving community of artists and innovators.
>
> The Marinship neighborhood respects and protects water-dependent uses as well as the neighborhood's historical maritime and industrial nature and character.

- Economic sustainability, defined as "a dynamic process in which communities anticipate and accommodate the needs of current and future generations in ways that reproduce and balance local social, economic, and ecological systems, and link local actions to global concerns," will be considered throughout Sausalito, including, but not limited to, the

Marinship. Economic Sustainability will also be a theme noted in each element of the General Plan Update. There should be a financial underpinning to ensure that the vision for each area of the city may be achieved.

- Subareas may be considered as a planning tool in the General Plan Update, but they need not specifically be part of the Marinship vision ~~nor align with the subareas designated in the Marinship Specific Plan~~.

- Opportunities should be sought for more senior and live/work housing throughout the city, and not to the detriment of the viability of industrial business operations or viability in the Marinship. The General Plan Update should give the city flexibility to pursue aging-in-place and industrial workforce housing strategies.

- A waterfront path should be functional and serve residents and workers in the Marinship. It would ideally promote accessibility and prioritize the working waterfront, serving everyone from children getting to school to senior citizens in wheelchairs and including those who bicycle or walk to work. A separate Bridgeway-adjacent path should safely separate bicyclists from vehicles.

- Environmental remediation should be a strong factor in the General Plan Update's environmental policies and implementation programs, but it is not specifically part of the Marinship vision.

- The General Plan Update should identify both unique infrastructure challenges and mechanisms to finance their solutions in all areas of Sausalito due to the interconnectedness of infrastructure issues throughout the city.

HISTORY OF THE MARINSHIP[14]

The area of today's Marinship, as with the city, is Coast Miwok land. Native people relied on the marshes for food and building material. The land was taken from the

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[14]Sources include: Community Development Department, City of Sausalito, *Historic Context Statement: Marinship* (Knapp & VerPlanck: 2011); Randal Millken, "Ethnohistory and Ethnography of the Coast Miwok and their Neighbors, 1783-1840" (National Park Service, Golden Gate NRA: 2009); Charles Wollenberg, "James v. Marinship: Trouble on the New Black Frontier" in *Working People of California*, Danial Conford, ed. (University of California

Coast Miwok by colonizers and eventually granted to William Richardson, an English-born Mexican citizen, in 1838. Richardson died bankrupt, and much of his land, including what would become the Marinship, was sold in 1868 to the Sausalito Land and Ferry Company in order to settle his debts.

The company built the Sausalito Ferry Terminal. This served as a hub for development in Marin, particularly as the booming railroad industry brought first timber and later passengers into San Francisco. In 1879, repair yards for servicing engines were constructed on the site that would become the Marinship. Rails were built over marshy soil and even, at times, over Richardson's Bay itself.

In 1942, less than three months after the bombing of Pearl Harbor, the W.A. Bechtel Company worked with the U.S. Maritime Commission to take possession of the land in order to develop a shipyard similar to the company's facility in Southern California, Calship. They selected the tract of marshland because it was level, largely undeveloped, and had deep-water access close to the mouth of San Francisco Bay. Just as important, it had excellent rail and highway access due to the Northwestern Pacific Railroad and the Redwood Highway, both of which ran through the site. On March 10th, 1942—just ten days following the Commission's request—Bechtel signed a contract with the Maritime Commission to build and operate the Marinship shipyard.

The first Liberty ship, the *William H. Richardson*, was launched from the Marinship 51 days ahead of schedule and delivered in just 126 days—half the average time of other Bay Area shipyards. Although the Maritime Commission had requested only three Liberty Ships by the end of 1942, five were built in the Marinship. By the end of the war, Marinship facilities were even more efficient. The *Sun Yat Sen*—the last Liberty ship built at Marinship—only took 63 days to build.

For many African Americans, work in the Marinship was an opportunity to achieve "Double Victory": victory against Fascism and Nazism abroad, and victory against segregation and discrimination at home, including obstacles posed by racial covenants on housing throughout the Bay Area. One of the larger issues relating to racial tensions in the Marinship centered on the exclusion of African Americans from full union membership, a pre-requisite of employment at Marinship. Journeyman

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Press: 1995); Jim Wood, "100 Years of Railroads in Marin" *Marin Magazine* (April 16, 2007); Bill Van Niekerken, "Sausalito's houseboat wars: Decades of bay battles" (*San Francisco Chronicle*: September 6, 2016); Larry Clinton, "Piro Caro and the Houseboat Wars" (*Sausalito Historical Society*: April 5, 2017). The Sausalito Historical Society assisted with the editing of this subsection.

welder Joseph James led the fight against union discrimination as the head of the Committee Against Segregation and Discrimination.

James organized a strike that concluded with the federal Fair Employment Practices Commission condemning "practices which discriminate against workers because of race or color." The victory for African Americans in this case was an important and little-known precursor to the Civil Rights movement in the 1960s and an important historic event that grew out of the Marinship.

After World War II, the Marinship was parceled off. Some of the land was retained by the Army Corps of Engineers, including piers and a warehouse. The warehouse would eventually become home to the Bay Model, which was initially built to test an audacious plan to fill in much of San Francisco Bay for industrial shipping, called the Reber Plan after its proponent John Reber. The Bay Model demonstrated that the concrete barriers crisscrossing the Bay would likely collapse and the plan was scuttled.

Other portions of the Marinship were sold into private hands, such as the Arques Shipyard and Clipper Yacht Harbor. These shipyards, much smaller in scale than the World War II-era Marinship, continue to represent the site's maritime heritage to this day.

Throughout the 1950s and 1960s, the Marinship's semi-abandoned waterfront became home to a vibrant houseboat community – part of the Bay Area's rapidly expanding counterculture scene. Artists such as Jean Varda and Shel Silverstein made their homes and hosted parties on houseboats on the waterfront.

From the 1950s into the 1970s, tensions between the houseboat dwellers and city and county authorities escalated into the "Houseboat Wars," a series of standoffs that at times became violent. In the late 1970s, houseboat residents successfully stopped the redevelopment of the Sausalito waterfront and formed communities at Galilee Harbor and Waldo Point Harbor. These still exist as homes for maritime workers, artists, and devotees of the houseboat lifestyle alongside the maritime and industrial businesses that make up the Marinship today.

INDUSTRIAL POLICIES

The character of Sausalito, throughout its history, has been defined by its marine industrial uses along the waterfront. In 1942, the industrial character became more prominent with the creation of the Marinship boat works during World War II. Since

the late 1950s, this large-scale industrial influence has given way to smaller scale industrial uses and other marine-related use.

With the influx of commercial and office uses in the late 1970s and early 1980s, retaining the marine industrial focus of the area and minimizing traffic impacts on Bridgeway were major concerns of the city. Planning documents focused on preserving the area for continued marine industrial use to mitigate these concerns.

The strong market demand for land in Sausalito creates pressures for more intensive development in the Marinship area. The existing industrial and maritime uses are mostly small and are considered by the city to be low intensity. These uses could be forced out by larger, more intensive retail and office uses.

~~While existing offices and retail that existed at the time of adoption of the Marinship Specific Plan in 1989 will be allowed to remain in the Marinship, new office or retail uses, including restaurants, will only be permitted if they support the working waterfront maritime, industrial, and arts neighborhood of the Marinship. Permitted uses include those that focus on innovative sea level rise industrial research, are water dependent, and are industrial or compatible with industrial uses.~~

Existing offices and retail that existed in 1989 are allowed to remain in the Marinship. New office, retail, restaurant, arts, creative, recreation, education, food and dining, service, and other uses are permitted in the Industrial (I) and Waterfront (W) zones as set forth in the AIM Initiative and Table 10.26-1.

The 1985 Fair Traffic Limits Initiative established specific limits on the intensity of development for most of the city's commercial and industrial areas. ~~In the Marinship, the result of these regulations is that new buildings will be smaller than many which currently exist.~~ The AIM Initiative amended Ordinance 1022 as to the Industrial (I) and Waterfront (W) zones in the Marinship, establishing a floor area ratio of 3.0 and the permitted use standards set forth in the AIM Initiative. The 1985 Fair Traffic Limits Initiative remains in effect for the State-approved Downtown Historic District as designated and/or depicted on the Sausalito zoning map as of January 1, 2026.

RICHARDSON'S BAY

The Richardson Bay Special Area Plan was adopted in 1984 to address these concerns. Sausalito was previously a major participant on the Richardson's Bay Regional Agency (RBRA), which was established in July 1985 to implement the Special Area Plan. Sausalito withdrew from the RBRA in 2017 but continues to collaborate

and cooperate with the agency. The General Plan incorporates the policies of the Richardson's Bay Plan and the city will continue to support implementation efforts.

Shoreline

Future development must also be sensitive to the unique natural terrain and vegetation of the shoreline and Richardson's Bay. The General Plan calls for the preservation of existing wetlands and best efforts to preserve aquatic plant and animal life in Richardson's Bay.

OBJECTIVES, POLICIES, AND PROGRAMS

Objective W-1 Promote Public Access and Enjoyment of the Waterfront

Policy W-1.1 Sausalito Waterfront. Leverage Sausalito's greatest asset, its waterfront, with careful consideration of pedestrian engagement, floating homes, and maritime lifestyles.

PROGRAM

W-1.1.1 Industrial Neighborhood. ~~In the public process to update the Zoning Ordinance described in program LU-4.1.1, c~~ Consider land uses and development regulations that promote alternatives to automobile travel, including walking commutes and consideration of live/work sites focusing on maritime occupations.

Policy W-1.2 Waterfront Access. Promote and enhance public access and enjoyment of the Sausalito waterfront from both land and water approaches.

PROGRAMS

W-1.2.1 Shoreline Access. Maintain and enhance water view corridors and walking paths to and along the shoreline where compatible with private development.

W-1.2.2 Anchoring Sites. Implement findings of Mooring Feasibility study by focusing mooring sites for visiting boats.

Policy W-1.3 Waterfront Path. Provide functional access to the waterfront for bicyclists and pedestrians that promotes accessibility and prioritizes the working waterfront.

PROGRAMS

W-1.3.1 Waterfront Bicycle and Pedestrian Plan. Implement a plan for a waterfront bicycle and pedestrian path system, as shown in Figure 5-2, that prioritizes the working waterfront and safely serves people of all ages and abilities. This plan could use paths that identify landmarks, trivia, photos, and stories that have historic importance.

W-1.3.2 Path of Honor. Promote a low-impact pedestrian path with bicycle usage and educational signage that highlights areas of historical

significance in the Marinship and is consistent with active working waterfront and industrial businesses where feasible.

Policy W-1.4 Public Access Standards. Promote public enjoyment of the waterfront through public access standards that require improvements to be safe, well-designed, and with adequate wayfinding that promotes access to the water.

PROGRAMS

W-1.4.1 Objective Standards. Include safe public access standards in objective standards for waterfront areas.

W-1.4.2 Public Easements. Consider implementing public easement policies that would encourage public easements for paths and water access on private waterfront parcels.

W-1.4.3 Public Safety. Work with property owners to ensure public access to waterfront is safe and maintained.

Policy W-1.5 Waterfront Parks. Waterfront parks should promote public access, enjoyment of waterfront area, and a healthy environment.

PROGRAMS

W-1.5.1 Sea Level Rise. In keeping with Sausalito's goal of sea level rise adaptation leadership (see objective S-3), waterfront parks should be designed with sea level rise in mind.

W-1.5.2 Landscaping and Identity. The landscape and maintenance of waterfront parks should reflect Sausalito's identity and local plants, in compliance with Sausalito's policy to protect threatened and endangered wildlife and plant species native to Sausalito and the southern Marin area (see policy EQ-1.4).

Policy W-1.6 Shoreline Streets. Design street ends to enhance rather than reduce public access and environmental health in recognition that shoreline street ends and underwater streets are valuable resources for public use, access, and shoreline restoration.

PROGRAM

W-1.6.1 Street Ends. Assess viability of using street ends and underwater streets as park spaces with environmental benefits. These spaces should be treated similarly to public parks, minimizing public nuisances, while promoting a healthy sea floor that does not disturb marine life.

Policy W-1.7 Recreational Diversity. Work with local, regional, and state agencies as well as local organizations to encourage, promote, and provide a diversity of water-dependent recreational uses, including those unique to Sausalito.

PROGRAMS

W-1.7.1 Water Recreational Inventory. Create an inventory of existing recreational uses of Sausalito's waterfront and the agencies or organizations that manage these uses.

W-1.7.2 Water Recreation Plan. Create a water recreation plan that provides support for the maintenance and growth of water recreation activities in Sausalito, including implementation steps and potential funding opportunities. The water recreation plan should include small craft recreation (e.g. kayaks, sculls, shells, and paddle boards) and identify public access sites in Richardson's Bay.

Policy W-1.8 Waterfront Access. Provide safe public access to and from the water where possible, including limited amounts of temporary public small boat tie-up space.

PROGRAMS

W-1.8.1 Enforce Public Access. For developments that required public access to the water as a condition for a permit, enforce the public access requirement.

W-1.8.2 New Developments. Include public access to water requirements for new developments and substantial remodels, including small boat tie-up space when feasible, or potential in-lieu fees.

W-1.8.3 Publicly Owned Parcels. If feasible, include water access and small boat tie-up space on publicly-owned parcels.

W-1.8.4 Public Access Location. If feasible, promote public access to and from water in areas where essential services (such as water, groceries, and gasoline) are located.

W-1.8.5 Access Management. Consider access management techniques (such as, but not necessarily, time limits) for boat access to ease circulation. Consider working with the Harbormaster to develop these techniques.

Objective W-2 Encourage Safe Usage of Water for Transportation

See Figure 3-3: Navigational Channels

Policy W-2.1 Navigational Channels. Preserve and maintain public navigational channels in Sausalito waters.

PROGRAM

W-2.1.1 Harbormaster Compliance. Maintain navigational channels in compliance with Harbormaster policies.

Policy W-2.2 Support Water-Based Transportation. Use existing waterfront infrastructure to promote water-based trips.

PROGRAMS

W-2.2.1 Ferry Terminal. Support ferry services in maintaining ferry service at the Sausalito ferry terminal, providing an enjoyable non-automotive route to San Francisco and potentially additional locations. Ease connections to transit and micro-mobility services for ferry commuters.

W-2.2.2 Water-Based Shared Mobility. Consider the feasibility of supporting small-craft shared mobility platforms and transportation network companies that connect to Sausalito.

Policy W-2.3 Water Circulation Patterns. Support the maintenance and enhancement of the existing circulation patterns on the water in Richardson's Bay.

PROGRAMS

W-2.3.1 Breakwaters. Revise the Zoning Ordinance to review and control the construction of breakwaters along the Richardson's Bay waterfront.

W-2.3.2 Richardson's Bay Regional Agency. Continue to collaborate with the Richardson's Bay Regional Agency to implement the policies of the Richardson Bay Special Area Plan.

W-2.3.3 Bay Management. Work with San Francisco Bay Conservation and Development Commission (BCDC) and other agencies to manage and maintain Bay waters.

W-2.3.4 Visiting Vessel Management. Implement BCDC Vessel Management policies as they are developed and modified.

Objective W-3 Promote Safe Residences and Private Enjoyment of Waterfront

Policy W-3.1 Residential Uses. Houseboats, arks, and liveaboards should be maintained for residential use and as potential affordable and marine-related workforce housing.

PROGRAMS

W-3.1.1 Houseboats. Houseboats should be encouraged along the waterfront in line with Policy LU-1.5.

W-3.1.2 Residential Arks. Residential arks should be maintained in the proper land use designation, in accordance with policy LU-1.6.

W-3.1.3 Liveaboards. Berths for residential use should be maintained in compliance with BCDC permits and in line with Policy LU-1.7.

Policy W-3.2 Vessel Pollution. Evaluate water-dependent developments with regard to pollution control and sea level rise.

PROGRAMS

W-3.2.1 Code Enforcement (Marinas). Support BCDC enforcement of marina requirements to provide restrooms and pump-out facilities connected to sewers where liveaboards are allowed and where transient dock space is available.

W-3.2.2 Houseboat Requirements. Continue to require that all houseboats be served by sewer connections and provide for the inspection of vessels.

W-3.2.3 Hull Requirements. Consider amending the Zoning Ordinance to require that any new or reconstructed houseboats be constructed incorporating the best practices for hull materials.

W-3.2.4 Boat Hull Requirements. Support the Regional Water Quality Control Board's (RWQCB) requirement that boat hulls be painted with non-toxic materials.

W-3.2.5 Zoning Ordinance Amendment (Liveaboards). Amend the Zoning Ordinance to require the installation of sanitation facilities in all marinas that permit liveaboards.

W-3.2.6 Pump-Out Stations. Require permit approvals for new and existing harbors to include pump-out stations.

Objective W-4 Maintain and Sustain Health of the Waterfront Ecosystem

Policy W-4.1 Ecological Functions. Require that no net loss of ecological functions occur as a result of uses, development, shoreline modifications, or expansion of existing uses.

PROGRAM

W-4.1.1 Mitigation Sequencing. If a loss of ecological function (including stormwater management) is foreseeable, use mitigation sequencing steps in the following order to mitigate the loss: avoid, rectify, minimize, and/or compensate for loss.

Policy W-4.2 Bay Waters. Preserve and enhance the wetlands, open waters, and ecosystem of Richardson's Bay and San Francisco Bay and utilize these landscapes for sea level rise mitigation.

PROGRAMS

W-4.2.1 Bay Waters Review Agencies. Support the goals and policies of BCDC, RBRA, and the State Lands Commission.

W-4.2.2 Marine Life. Create development policies that support the retention of Richardson's Bay's aquatic ecosystem, particularly the eelgrass beds.

W-4.2.3 Sea Level Rise. Identify ways in which wetlands and open waters may be utilized in accordance with Sustainability – Climate Change Mitigation and Resiliency Element objective S-3.

Policy W-4.3 Shoreline Areas. Preserve the undeveloped open shoreline, shoreline habitat, and public access in waterfront development consistent with public trust and private ownership purposes.

PROGRAMS

W-4.3.1 Dunphy Park Master Plan. Promote the development of a master plan for the property surrounding Dunphy Park to provide more public access to the waterfront, including boat access.

W-4.3.2 Zoning Ordinance Amendment (Open Shoreline). Revise the Zoning Ordinance to require retention and/or restoration of substantial portions of open shoreline as shown in Figure 6-2.

W-4.3.3 Zoning Ordinance (Improved Access). Revise the Zoning Ordinance to require that new development projects improve public access to the shoreline and views.

W-4.3.4 BCDC. Support BCDC in maintaining, enhancing, and expanding the total wetland areas located within the Sausalito planning area.

W-4.3.5 Wetlands Preservation Strategy. Review federal, state, regional, and local policies, principles, and guidelines to develop a consistent wetland preservation strategy.

W-4.3.6 Wetland Purchase. Establish a program that enables the City to purchase or assist in purchase of development rights for the purpose of preserving and enhancing wetland and other conservation resources.

W-4.3.7 Maintain Open Area. Continue to prevent new development on wetlands and in over-water parcels.

Policy W-4.4 Long-Term Benefits. Encourage shoreline uses that prioritize long-term benefits over short-term benefits.

PROGRAM

W-4.4.1 Beneficial Uses. Uses in the waterfront area should be considered for their long-term as well as short-term benefits, considering long-term consequences of current land uses to ensure sustainable uses.

Policy W-4.5 Sea Level Rise. Research and adapt to sea level rise in Sausalito's waterfront.

PROGRAM

W-4.5.1 Sea Level Rise and the Waterfront. Consider Sausalito's unique waterfront concerns when developing the Sea Level Rise Assessment (policy S-3.1) and Sea Level Rise Adaptation Plan (program S-3.2.1).

Policy W-4.6 Waterfront Protection. Develop a multifaceted strategy to protect Sausalito's waterfront from environmental damage and adapt to sea level rise.

PROGRAMS

W-4.6.1 Shifting Waterfront Boundary. Encourage floating structures and temporary buildings as an adaptation measure for a shifting waterfront boundary.

W-4.6.2 Nature-Based Adaptation. Explore nature-based frameworks for adaptation to changing environmental conditions along the shoreline.

W-4.6.3 Low-Impact Infrastructure. Minimize financial risk exposure to the city and members of the Sausalito community by encouraging low-impact development strategies per EPA Guidance.

Objective W-5 Respect the Character of Sausalito's Working Waterfront

Policy W-5.1 Marinship Character. Preserve and enhance the maritime history and character of the Marinship, including giving preference to marine uses and maritime industries where feasible.

PROGRAMS

W-5.1.1 Permitted Use. ~~In the public process described in program LU-4.1.1, expand permitted water-dependent and maritime-related uses in the Marinship.~~ Consider expanding additional water dependent and maritime uses in the W zone.

W-5.1.2 Maritime Hub. Promote a maritime hub (policy E-8.2) in the Marinship. Consider sustainability, climate change, and the working waterfront in the implementation of the policy.

W-5.1.3 On-site Reuse. Encourage on-site reuse of materials during renovations or changes in use.

W-5.1.4 Zoning Ordinance to Allow Sea Level Rise Research. Consider an ordinance to allow sea level rise research uses as described in policy E-6.5.

Policy W-5.2 Protect Historic Resources from Sea Level Rise. Provide recommended actions for resilience to sea level rise for each historic resource, including those in the Marinship.

See Figure 3-4: Historic Marinship

PROGRAMS

W-5.2.1 Define Alternative Scenarios. Identify and pursue strategies to increase the city's resilience to sea level rise, floods, seismic events, and emergencies/disasters, while protecting the city and particularly the Marinship's unique historic, maritime, and cultural assets and environment to the maximum feasible extent.

W-5.2.2 Sea Level Rise and the Marinship. Consider the city's—and particularly the Marinship's—historic assets when developing scenarios for the city's sea level rise strategy.

* * *

D. The Community Design, Historic and Cultural Preservation Element is hereby amended to delete Figure 4-4 in its entirety:

* * *

Objective CD-3 Balance View Protection with Property Rights

Policy CD-3.1 Private Views. Locate and design new and significantly remodeled structures and landscape improvements to minimize the interference with primary views from structures on neighboring properties. Some minor loss of view may be consistent with this policy if necessary to protect a property right.

PROGRAMS

CD-3.1.1 Design Review of Private View Impacts. Analyze project submittals for impacts on views from adjacent properties through Design Review.

CD-3.1.2 Fences. Continue to enforce Zoning Ordinance provisions that require fence heights to consider view blockage on adjacent properties.

Policy CD-3.2 Public Views. Locate and design new and significantly remodeled structures and other private and public improvements with consideration for their impact on significant public views and view corridors.

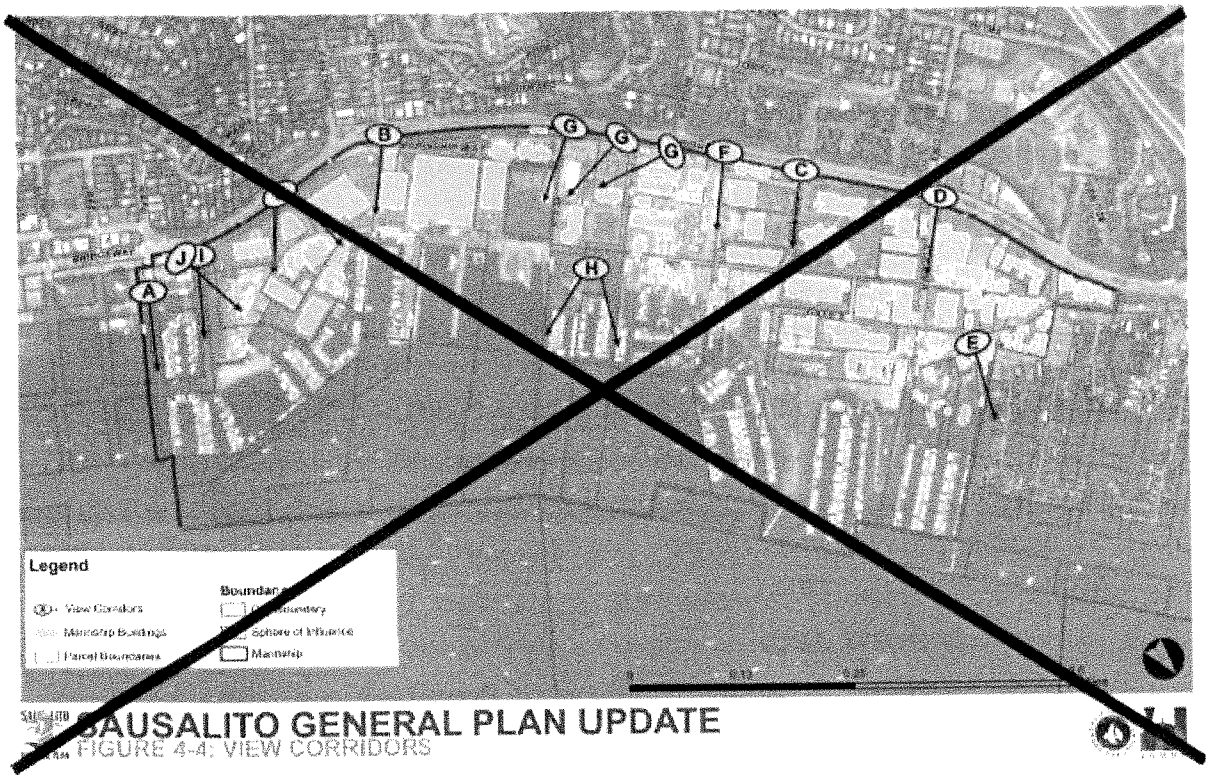
~~*See Figure 4-4: View Corridors*~~

PROGRAMS

CD-3.2.1 Design Review of Public View Impacts. Through Design Review, analyze project submittals for new and significantly remodeled structures and landscaping for their impact on views from major public vantage points.

CD-3.2.2 Map of Public Views. Develop and maintain a citywide map that identifies priority public viewpoints that should be considered for mandatory preservation.

* * *



E. The Economic Element of the General Plan is hereby amended as follows:

OBJECTIVES, POLICIES, AND PROGRAMS

Objective E-1 Establish a Working Relationship between Businesses and the City

Policy E-1.1 Economic Development Advisory Committee. Maintain an Economic Development Advisory Committee with membership from the City Council, Chamber of Commerce, residents, and business community.

PROGRAMS

E-1.1.1 EDAC Funding. Consider allocating city funding for staff services to support the operation of an Economic Development Advisory Committee.

E-1.1.2 EDAC Reporting. Encourage the Economic Development Advisory Committee to periodically report to the City Council on the business conditions of the city.

Policy E-1.2 Resource Sharing. Establish a positive working relationship with neighboring communities and the Marin Economic Forum in order to share resources and funding.

PROGRAMS

E-1.2.1 Community Collaboration. Work with neighboring municipalities and the county to share resources and funding in economic matters of mutual interest.

E-1.2.2 Participation in Economic Forum. Encourage Economic Development Advisory Committee participation in the activities sponsored by the Marin Economic Forum.

Objective E-2 Foster Spirit of Cooperation with Businesses

Policy E-2.1 Regulatory Processes. Develop regulatory processes which advance the needs of businesses in Sausalito.

PROGRAMS

E-2.1.1 Zoning Administrator. Explore the inclusion of additional routine discretionary business permit applications that could be reviewed by the Zoning Administrator in order to streamline and improve development review procedures.

E-2.1.2 Review Permitted Uses. Periodically review uses permitted in the Zoning Ordinance for all commercial, industrial, and waterfront districts. Planning Commission input may be desirable for this review, which could include a procedure checklist.

E-2.1.3 Zoning Ordinance Update. Seek feedback from the Economic Development Advisory Committee and, if applicable, the Planning Commission, on any proposed changes to the Zoning Ordinance regulations that will affect businesses.

E-2.1.4 Development Review Procedures. Investigate methods to streamline and improve development review procedures.

E-2.1.5 Streamlining for Health. Consider methods of streamlining the permitting for certain uses during pandemics and other disasters while retaining enforcement capability and transparency.

Policy E-2.2 Economic Data. Consider city or private funding and staffing to maintain data on the state of the economy of Sausalito and Marin County and commission studies and audits to assess the financial health of the City of Sausalito.

PROGRAMS

E-2.2.1 City Economic Data. Consider funding and staffing to work with city departments, Chamber of Commerce, and the business community to provide city economic analysis, data and reports that include revenue based on business sector and taxation sources. Sharing resources and funding with neighboring cities and the county may be considered to fund and staff this program.

E-2.2.2 City Economic Data Portal. Consider funding and staffing to create a City Economic Data Portal. This project could include work with economic development firms, the Marin Economic Forum, and Marin County to publish city economic data that could also be part of a City Economic Data Portal. Sharing resources and funding with neighboring cities and the county may be considered to fund and staff this program.

Policy E-2.3 Inter-Business Cooperation. Consider the formation of Business Improvement Districts and other commercial area improvement programs.

PROGRAMS

E-2.3.1 Business Improvement Districts. Consider cooperating with businesses and encourage the creation of Business Improvement Districts in appropriate commercial areas of the city.

E-2.3.2 Neighborhood Improvements. Study the feasibility for small-scale and/or short-term improvement projects in appropriate commercial areas of the city.

Objective E-3 Encourage Businesses that Enhance the Quality of Life for the Sausalito Community

Policy E-3.1 Existing Business. Encourage existing businesses that produce tax revenue per employee and produce minimal environmental impact to remain in Sausalito.

PROGRAM

E-3.1.1 Business Interviews. Conduct interviews with representatives of existing companies to determine service needs and local government's ability to address those needs.

Policy E-3.2 New Business. Recruit new businesses that contribute societal and fiscal value while producing minimal environmental impact.

PROGRAM

E-3.2.1 Business Recruitment Strategy. Prepare an action plan that identifies actions the city can take to encourage targeted new businesses, particularly those that would diversify business ownership in Sausalito.

Policy E-3.3 Diversify Businesses. Encourage diverse business opportunities.

PROGRAMS

E-3.3.1 Business License. Review business licensing procedures to encourage the development of small businesses that improve the quality of life for the Sausalito community, including residents and workers.

E-3.3.2 Diversification Implementation. Work with Marin Economic Forum, the Economic Development Advisory Council, and other business groups to identify desired or needed innovation in business attraction, including modifying regulatory practices and identifying priority business categories.

E-3.3.3 Formula Retail. Re-examine, and update as necessary, the standards of approval for formula retail to ensure new retail or restaurant development maintains the distinctive visual appearance and small-scale eclectic ambiance of Sausalito's business districts while improving the economic vitality and sustainability of the Downtown and Caledonia Street commercial areas.

E-3.3.4 Age-Friendly Businesses. Consider working collaboratively with the local business community and senior-focused organizations to increase the age-friendliness of merchants and local businesses.

E-3.3.5 Job Opportunities. Encourage the local merchants and business community to consider diversity in their hiring and job training, including local seniors and individuals from other underrepresented groups or communities.

E-3.3.6 Cooperatives. Encourage availability of affordable space for community-serving organizations, including cooperatively-owned assets such as housing, vacant land, local energy systems, and incubator business space as a way to reduce business operating costs and foster local community serving businesses, supportive service providers, and non-profits that assist disadvantaged populations.

Policy E-3.4 Economic Studies. Conduct periodic economic studies of the city to assess financial health across all the city's verticals and commercial areas to be followed with implementation plans.

PROGRAMS

E-3.4.1 Study Strategy. Establish schedules and a priority list of the city's commercial areas and verticals (typologies of economic activity such as tourism, maritime, industrial, etc.) for which economic studies should be conducted.

E-3.4.2 Implementation Plans. Work with the business community and residents to implement study recommendations.

Objective E-4 Promote a Diversity of Commercial Uses in the Downtown Area

Policy E-4.1 Downtown Uses. Promote and enhance a diversity of uses in the Downtown area.

PROGRAMS

E-4.1.1 Hotel Uses. Encourage and promote hotels and Bed and Breakfast accommodations in the Downtown area that are consistent with the scale and size of existing commercial buildings.

E-4.1.2 Waterfront Recreation. Encourage safe water-based recreation (as discussed in policy W-1.7) in downtown area.

E-4.1.3 Encroachments. Continue to authorize outdoor dining on sidewalks and parklets in the downtown where deemed appropriate by the city.

E-4.1.4 Downtown Vibrancy. Promote uses, adaptations, and landscape improvements that attract pedestrian customers to Downtown businesses.

Policy E-4.2 Downtown Access and Parking. Provide sufficient access to the Downtown and parking through demand management of the Downtown parking lots and meters.

PROGRAMS

E-4.2.1 Parking Management. Use parking demand management tools to achieve the city's business development goals, recognizing that different rates for resident parking may be appropriate.

E-4.2.2 Parking Standards. Maintain a Downtown Shared Parking Model for commercial uses downtown.

E-4.2.3 Parking Density. Promote management strategies that have less impact on views and pedestrian/bicycle circulation, including encouraging public transit, reducing surface parking, and examining high-density parking.

E-4.2.4 Employee Parking. Explore alternative forms of transit service such as shuttle service from remote parking sites for employees of businesses in Sausalito, as described in Circulation and Parking Element program CP-3.2.1.

E-4.2.5 Tour Buses. Consider reevaluating the city's policy on tour bus operations to improve quality of life and visitor experience.

Policy E-4.3 Downtown Appearance. Maintain and enhance the appearance of the downtown to promote a vibrant, clean, and aesthetically pleasing shopping and visiting experience.

PROGRAMS

E-4.3.1 Pedestrian Experience (Downtown). Maintain clear sightlines, safe sidewalks, and walking paths to promote foot traffic and ease of access businesses for people of all abilities.

E-4.3.2 Downtown Clean Up. Consider a program for regular city or contractor washing of sidewalks and trash containers.

E-4.3.3 Signage. Review and modify the sign ordinance in order to establish a clear and simple review procedure consistent with program CD-1.4.2.

E-4.3.4 Solid Waste. Consider a solid waste collection system to eliminate the placement of solid waste on sidewalks in the afternoon and evenings.

Objective E-5 Promote Local Commercial Uses in the Neighborhood and Resident Serving Commercial Areas

Policy E-5.1 Neighborhood Commercial Uses. Promote and enhance a diversity of local serving commercial uses in the neighborhood commercial areas of the city.

PROGRAMS

E-5.1.1 Permitted Uses. Revise the list of permitted uses in the Caledonia Street area consistent with Land Use and Growth Management Element policy LU-2.10.

E-5.1.2 Retail Uses. Retail/service uses should be favored over office uses on the ground floor.

E-5.1.3 Parking. Continue to develop new parking and traffic approaches to support the residential and commercial activities in the Caledonia Street area as described in policy LU-2.11 of the Land Use and Growth Management Element.

E-5.1.4 Pedestrian Experience (Caledonia). Promote Caledonia businesses to residents and members of the Sausalito community by accommodating increased foot traffic and safely managing crowds.

E-5.1.5 Resident-Serving Businesses. Consider a mechanism for protection of resident-serving businesses including (but not limited to) hardware stores, barbers, yoga studios, dry cleaners, and jewelers.

Policy E-5.2 Commercial Residential Uses. Promote and enhance a diversity of resident serving commercial uses in the commercial residential areas of the city.

PROGRAMS

E-5.2.1 Permitted Uses. Revise the list of permitted uses in the Commercial Residential areas consistent with Land Use and Growth Management Element program LU-2.10.1

E-5.2.2 Retail Uses. Retail/service uses, including pop-up retail and food and beverage outlets, should be favored on the ground floor for their enhancement of the pedestrian environment (see Policy E-5.3)

Policy E-5.3 Pedestrian Environment. Promote and enhance the pedestrian environment along Caledonia Street.

PROGRAMS

E-5.3.1 Improve Connectivity. Improve the pedestrian experience on Caledonia Street, considering promoting connectivity between storefronts, to other areas of Sausalito, and modifications to parking requirements.

E-5.3.2 Vacancies. Consider allowing innovative land uses such as pop-up retail or collocated uses in order to minimize vacancies on Caledonia, particularly in larger and/or consistently vacant storefronts, while revising Zoning Ordinance.

E-5.3.3 Street Beautification. Establish a beautification program for the Caledonia Street area.

E-5.3.4 Public Communal Spaces. Work with Caledonia Street businesses and property owners to create public communal areas such as parklets.

Policy E-5.4 Access and Parking. Provide access to the commercial areas of the city, including sufficient car, bicycle, and scooter parking to support commercial and residential uses.

PROGRAMS

E-5.4.1 Parking. Continue to develop new parking and traffic approaches to support the residential and commercial activities in the Commercial Residential and Neighborhood Commercial areas. These approaches could include restricting parking uses to appropriate times and other innovative programs that take advantage of shared parking models according to time of day.

E-5.4.2 Telecommuting. Explore promoting telecommuting for employees of businesses in Sausalito.

Objective E-6 Promote and Enhance the Economic Vitality of the Marinship

Policy E-6.1 Marinship Uses. Promote and enhance the long-term economic sustainability and viability of the maritime, industrial, and arts economy of the Marinship.

PROGRAM

E-6.1.1 Applied Arts. ~~Consider revising the list of "applied arts" in the Zoning Ordinance to reflect the Applied Arts businesses. This revision should be linked to the Zoning Ordinance revision described in program LU-4.1.1.~~ All arts are welcome in the City of Sausalito per the AIM Initiative.

Policy E-6.2 Marinship Development. Maintain and enhance the role of economically sustainable maritime, industrial, and arts, activity and supportive activity in the Marinship.

PROGRAM

E-6.2.1 Design Standards. Implement objective standards and a design review process that promote small-scale development in the Marinship.

Policy E-6.3 Marinship Engineering Study and Financing Approaches. Consider an Engineering Study of Infrastructure Needs in the Marinship Area as recommended in the Land Economics Study. Explore financial approaches

including the formation of assessment district(s) within the Marinship to address these issues and needs.

PROGRAM

E-6.3.1 City Assistance. Consider providing city assistance to the property owners in the Marinship in the preparation of a Marinship Engineering Study to address infrastructure needs.

Policy E-6.4 Manage Marinship Tourism. ~~Limit new tourist attractions in the Marinship and focus on water-based recreation and visitor education around the arts, Marinship history, and sea level rise impacts and innovation.~~ Ensure that tourism-related uses in the Marinship are compatible with the industrial, maritime, and creative arts character of the neighborhood, consistent with the permitted uses established by the AIM Initiative.

PROGRAM

E-6.4.1 Attractions. Ensure uses that attract visitors are compatible with the maritime, industrial, and arts uses and supportive activities that presently make up the Marinship.

Policy E-6.5 Innovative Marinship. Promote and support innovative business uses in the Marinship that serve Sausalito's sustainability goals (Sustainability – Climate Change Mitigation and Resiliency objective S-4).

PROGRAMS

E-6.5.1 Innovative Uses. ~~In a process linked to the Zoning Ordinance revision described in LU-4.1.1, c~~ Consider permitting innovative businesses in the Marinship that further Sausalito's sustainability and resiliency goals, including nature-based adaptation to sea level rise, fabrication technology, and light industry, ideally located in a cohesive "innovation zone."

E-6.5.2 Innovation Strategy. Develop a strategy for attracting innovation that helps Sausalito pursue its sustainability leadership objectives, such as businesses that focus on industrial and fabrication approaches to resiliency and sea level rise."

Objective E-7 Promote Economically-Sustainable Tourism

Policy E-7.1 City Identity. Consider funding to develop a prominent city identity that emphasizes Sausalito's maritime history and recreational waterfront.

PROGRAMS

E-7.1.1 Community Design Consistency. Develop a city identity consistent with Policy CD-4.1.

E-7.1.2 City Brand. Consider how city identity serves as a brand to attract visitors, residents, and other community members to shop in Sausalito's commercial areas when implementing identity.

E-7.1.3 Brand Implementation. Encourage city businesses to post signage or other materials with city branding and collaborate in city economic development programs.

Policy E-7.2 Tourism Plan. Develop and implement a Tourism Plan to manage the tourism industry in Sausalito.

PROGRAMS

E-7.2.1 Tourism Plan Development. Support the development of a Tourism Plan including city promotion, circulation issues, and inclusive outreach strategies that seek to welcome a diverse array of visitors.

E-7.2.2 Tourism Plan Implementation. Implement the recommendations of the Tourism Plan.

Objective E-8 Maritime-Industrial Economic Engine

Policy E-8.1 Maritime-Industrial Activity. Monitor the economic activity of the maritime-industrial sector. Include direct, indirect, and induced benefits.

PROGRAMS

E-8.1.1 Maritime-Industrial Study. Conduct a study on strategies to retain existing maritime businesses and promote expansion of the Marinship's maritime hub (as described in program W-5.1.2). Implement the study through an action plan, as appropriate.

E-8.1.2 Maritime-Industrial Data. As part of the city's consideration of economic data collection (policy E-2.2), obtain and continually update economic data on the Maritime-Industrial sector.

Policy E-8.2 Maritime Hub. Promote Sausalito as a maritime hub with the goal of maximizing the economic benefit to other sectors of Sausalito's economy.

PROGRAM

E-8.2.1 Maritime Promotion. Promote Sausalito's maritime sector as a spatial and economic cluster. This may include promoting the sector to existing and potential new businesses (policies E-3.1 and E-3.2) as well as forming strong links between the city's maritime sector and the city identity (policies E-7.1 and CD-4.1).

Objective E-9 Commit to Equitable Implementation

Policy E-9.1 Equitable Planning. Strengthen and expand the city's commitment to social equity throughout planning processes.

PROGRAMS

E-9.1.1 Service Procurement. Prioritize equitable procurement of planning services that build the capacities of disadvantaged, minority-owned, and women-owned firms.

E-9.1.2 Inter-Relationships. Develop and center sustainable relationships that work across racial, religious, and class lines through the planning process.

Policy E-9.2 Inclusive Participation. Strive to engage populations that are under-represented in the planning process due to language, mobility, age, citizenship status, economic, and other barriers. Partnerships with community organizations and non-profits may support this policy and contribute to a shared community understanding of past and present injustices.

PROGRAMS

E-9.2.1 Justice Lens. Implement an inclusive participation strategy that:

a. Identifies the city's past actions that have contributed to racial injustices.

b. Describes how the city intends to remedy these issues.

c. Works to ensure the inclusion of individuals and communities impacted by racial injustices in current and future planning processes.

E-9.2.2 Meeting Strategies. Expand public meetings to incorporate alternative meeting strategies, such as telephone or virtual meetings, that will engage community members whose voices have not been heard or whose input has been marginalized, as well as those experiencing mobility challenges, limitations on availability due to family or work responsibilities, literacy challenges, or language barriers.

E-9.2.3 Civic Engagement. Encourage broad participation in city commissions, committees, and other government, planning and policy making bodies from underrepresented communities, including older adults and minority groups.

E-9.2.4 Youth Engagement. Develop meaningful strategies to engage youth in the planning process.

E-9.2.5 Youth Issues. Promote collaboration, including building models of governance between school districts, local governments, and community organizations, to better address the complicated and interrelated issues children and youth face.

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SECTION 7. Objective Design and Development Standards.

A new uncodified provision is added to Sausalito law as follows:

The City may adopt Objective Design and Development Standards (ODDS) that include: (1) view corridor standards for the Industrial (I) and Waterfront (W) zones; (2) setback standards for shoreline parcels, including building and parking setbacks from the shoreline; (3) setback standards for parcels adjacent to Houseboat (H) or Public (P) zoning districts; and (4) public open space setback standards.

SECTION 8. Earliest Possible Election.

The People of Sausalito hereby expressly request that this measure be submitted to the voters at the earliest time allowable by law.

SECTION 9. Effective Date.

This measure shall become effective upon its approval by a simple majority of electors voting on the measure.

SECTION 10. Conflicting Measures.

A. Any other measure concerning or affecting land use designations in the Marinship area or other commercial districts which appears on the same ballot shall be deemed to conflict with this measure.

B. In the event that this measure and one or more conflicting measures appear on the same ballot, the provisions of the measure which receives the greater number of affirmative votes shall prevail in their entirety, and the other measure or measures shall be null and void.

C. If this measure is approved by the voters but superseded by any other conflicting measure approved by voters at the same election, and the conflicting ballot measure is later held invalid, this measure shall be self-executing and given full force and effect.

SECTION 11. Severability.

Should any provision of this measure, or its application to any person or circumstance, be determined by a court of competent jurisdiction to be unlawful, unenforceable or otherwise void, voidable, or invalid, that determination shall have no effect on any other provision, or the application of this measure to any other person or circumstance and, to that end, the provisions hereof are severable. By approving this measure, the voters express their intent that each section and subsection would have been adopted irrespective of whether any one or more sections or subsections are found to be invalid or unconstitutional, and that each section and subsection is therefore explicitly severable, part-by-part, phrase-by-phrase, and word-by-word, and that if any portion is determined by a court of competent jurisdiction to be unlawful, unenforceable or otherwise void, voidable or invalid, that the least amount of language be severed from the measure.

SECTION 12. Amendments.

In accordance with the state law which allows initiatives to contain a provision allowing them to be amended without a vote of the people:

A. Except in the State approved Downtown Historic District, as designated and/or depicted on the Sausalito zoning map as of January 1, 2026, the provisions of this measure may be changed in compliance with the administrative and legislative hearing procedures in the Sausalito Municipal Code, the California Brown Act open meetings law, the California Environmental Quality Act, and State law regarding adoption of general plans.

B. In addition, the City Council may make changes to this measure in order to resolve ambiguities, resolve inconsistencies or otherwise further the purposes of this measure. Any such changes made by the City Council to resolve ambiguities, resolve inconsistencies or further the

purposes of this measure must be accompanied by a finding specifically explaining how the correction furthers the purposes of this measure.

SECTION 13. Liberal Construction.

This measure shall be liberally construed to effectuate its purposes.

SECTION 14. Municipal Affairs.

The People of Sausalito hereby declare that land use designations in the Marinship area and other commercial districts constitute a municipal affair. The People of Sausalito declare their intent that this citizen initiative be enacted, and land use designations in these Districts be updated, if this measure is approved by a simple majority of voters.

SECTION 15. Legal Defense.

The People of Sausalito desire that this measure, if approved by the voters and thereafter challenged in court, be defended by the City. The People, by approving this measure, hereby declare that the proponents of this measure have a direct and personal stake in defending this measure from constitutional or statutory challenges to the measure's validity or implementation. In the event the City fails to defend this measure, or the City fails to appeal an adverse judgment against the constitutionality, statutory permissibility, or implementation of this measure, in whole or in part, in any court of law, the measure's proponents shall be entitled to assert their direct personal stake by defending the measure's validity and implementation in any court of law and shall be empowered by the people through this measure to act as agents of the people. The City shall indemnify the proponents for reasonable expenses and any losses incurred by the proponents, as agents, in defending the validity and/or implementation of the challenged measure. The rate of indemnification shall be no more than the amount it would cost the City to perform the defense itself.